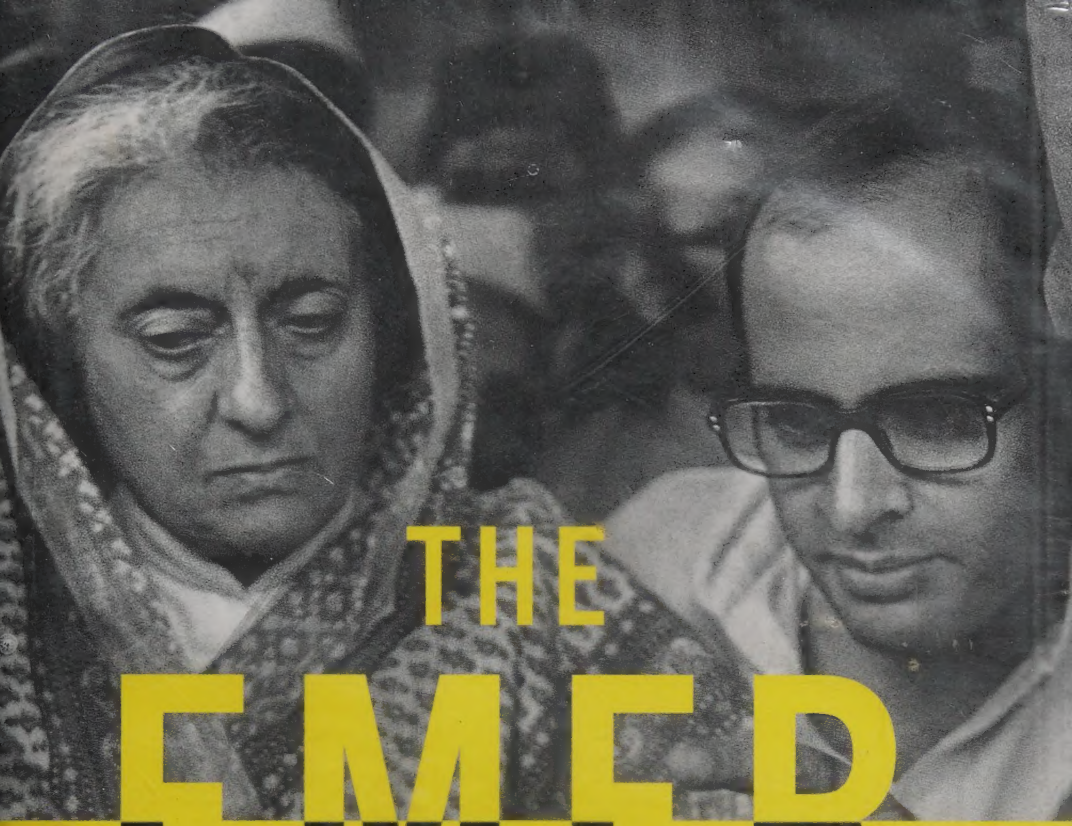


THE EMERGENCY

A Personal History

COOMI KAPOOR

Foreword by ARUN JAITLEY

'A riveting and necessary account' Pratap Bhanu Mehta

In June 1975, Coomi Kapoor was a young reporter at the *Indian Express* in Delhi, when Indira Gandhi declared a state of Emergency, suspending civil liberties and sending the opposition leaders to prison. In the dark days that followed, she personally experienced the full fury of the Emergency—her journalist husband was imprisoned on flimsy charges under the draconian Maintenance of Internal Security Act, and her brother-in-law, Jana Sangh MP Subramanian Swamy, was on the run to evade arrest, while her family faced constant threats and harassment from the security forces.

Meanwhile Indira Gandhi, her son Sanjay and his coterie unleashed a reign of terror that saw forced sterilizations, brutal 'beautification' drives that left thousands of people homeless overnight, and students and other innocent people jailed without cause or trial, while the press was firmly muzzled under strict censorship rules.

This eyewitness account of the Emergency vividly recreates the drama, the horror, as well as the heroism of a few, during those nineteen months, forty years ago, when Indian democracy was derailed.

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COOMI KAPOOR

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To my husband, Virendra, and countless others
who stood up to challenge Indira Gandhi's Emergency

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Foreword

This book is an invaluable record of one of the darkest periods in the history of independent India, grippingly recounted by Coomi Kapoor. My own memories of that period are vivid and indelible since, like Coomi, I too was personally affected by the Emergency.

It all began forty years ago, in June 1975. On 12 June 1975 three significant developments took place. First arrived the news that one of Indira Gandhi's closest advisers, D.P. Dhar, had died. Then came the results of the Gujarat Assembly elections—the Congress had lost to a combined opposition, which was led by Morarji Desai. In the early afternoon came the final shock: the election petition against Indira Gandhi, filed by the socialist leader Raj Narain, was allowed by the Allahabad High Court. Justice Jagmohanlal Sinha held that the election had been vitiated on several counts, among them using the services of a public servant in the campaign and spending money in excess of the permitted amount. With that judgment, Indira Gandhi was unseated from her membership of the Lok Sabha.

The economy was doing badly. The government was perceived to be a non-performer. The Opposition was closing ranks while Jayaprakash Narayan (JP) had already been leading a student and youth agitation against the government. Clearly, the pressure was building up for Indira Gandhi to quit. She preferred to file an appeal in the Supreme Court. The vacation judge, Justice V.R. Krishna Iyer, admitted an appeal and passed the usual interim order that she could attend the House but not vote, nor could she draw her salary as a member of Parliament (MP). She could speak as the prime minister but not as an MP.

JP convened a meeting of all the opposition leaders at the Gandhi Peace Foundation at Delhi's Rouse Avenue (now called Deen Dayal Upadhyaya Marg). As convenor of the Sangharsh Samiti for student and youth organizations, appointed by JP, I attended this meeting, as well as others held by JP at this time. On the evening of 25 June 1975 a huge rally was held at the Ram Lila Maidan. An all-India satyagraha was announced, which would start from 29 June.

I returned home late in the evening on 25 June. At about 2 a.m., when I was fast asleep, the doorbell rang. The police were at the door. My father, a practising lawyer, got into an argument with them—there was neither an FIR nor any detention order against me; how then could they arrest me and take me to the police station? While he engaged them in a dialogue, I made good my escape from the rear door and woke up a friend in the neighbourhood. I spent the remaining hours of the night at his house. By sunrise I started calling up some friends in the Akhil Bharatiya Vidyarthi Parishad (ABVP). News was coming in that all

the senior opposition leaders had been picked up from their residences. No newspapers had come out that morning—the electricity supply to Bahadur Shah Zafar Marg, from where most papers were published, had been cut off the previous evening. After an early, hurried breakfast, I left for the Delhi University campus. I felt we must stage a protest against the arrest of our leaders and the closing down of newspapers. By about 10 o'clock we had collected around 200 ABVP members. We went from college to college, where the admission season was on, and teaching had been suspended on account of summer vacations. We finally arrived at the coffee house behind the vice-chancellor's office.

I delivered a speech there to protest against the arrest of senior leaders and the closure of the newspapers. By this time hundreds of policemen, led by the then deputy inspector general of Delhi Police, P.S. Bhinder, had surrounded us. I requested my friends to leave since I alone would get arrested and the others could then continue to organize the protest. As expected, I was arrested and taken to the Civil Lines police station. At the police station I heard a news broadcast on All India Radio: Emergency had been proclaimed in the country, press censorship had been imposed, senior leaders had been arrested and fundamental rights had been suspended. It was then that I realized that we were staring at a dictatorship. There was no clarity as to how long the Emergency would last. The police served me a detention order under the Maintenance of Internal Security Act (MISA). It was a blank detention order already signed by an additional district magistrate, and only later were details such as my father's name and my address

filled up. At the Civil Lines police station I also learnt that throughout the previous night a lot of activity had taken place there. Morarji Desai, JP and many other senior opposition leaders had been arrested from their homes and brought there before being sent to different jails in north India. Among the arrested were also two Congress leaders, Chandra Shekhar and Ram Dhan, who were believed to be close to JP.

In the early evening, I was driven from Civil Lines police station to Delhi's Tihar jail, where I joined a group of detainees in Ward No. 2 of the jail. The detainees included local politicians of the Jana Sangh, the Congress(O) led by Morarji Desai, the Swatantra Party and some old socialists from different Lohiaite groups. There were also some Anand Margis, ultra-left Naxalite activists, teachers from Delhi University and members of the Jamaat-e-Islami. A kitchen was being set up in the ward for the detainees. By the evening a suitcase containing my clothes arrived from home. I was a student of the LLB course at the Delhi University Law Faculty, and was also the president of the Delhi University Students' Union (DUSU). I had completed my second-year law exams and still had one year to go before I could become a lawyer.

The daily allowance for other detainees under the rules framed under MISA was three rupees—breakfast, lunch and dinner all had to be managed within this money. Newspapers and transistors were not allowed. Interviews and meetings with relatives were also not allowed. After a week, twenty of us were summoned with our baggage to the jail office and driven in a Black Maria, the jail van, to the Ambala central jail. Bansi Lal, the then chief minister of Haryana, had the

reputation of being tough and ruthless, and Haryana jails were the strictest ones. I spent the next three months in Ambala jail, before I fortuitously got transferred back to Delhi. Seven false cases had been registered against me for participating in different agitations, and I was being summoned for these by the criminal courts in Delhi. One of the magistrates insisted on my presence and therefore, under a court order, I found myself back in Tihar jail.

Political developments during this period were all aimed in the direction of suppressing democracy and turning India into a totalitarian state. Fundamental rights under Articles 14, 19, 21 and 22 were suspended. Further, the Supreme Court, by a majority of four against one upheld the plea of the government that even illegally detained persons had no right to move a court. The then attorney general, Niren De, had argued that even if a detainee was unlawfully deprived of his right to life, there was no remedy in law as long as the Emergency was promulgated. The newspapers quickly began to toe the government line, with only the *Indian Express* and the *Statesman* offering some resistance. Indira Gandhi's election appeal was allowed by the Supreme Court primarily on the ground that Parliament had amended the election law retrospectively and corrected the illegality by a legislative amendment. Every corrupt practice that she had committed for which her election had been set aside thus ceased to be a corrupt practice. As most opposition MPs had been detained under MISA, there was no opposition in Parliament to any of these questionable changes. The media was prohibited even from reporting parliamentary proceedings.

The most alarming aspect of the Emergency, as this book so vividly narrates, was that Indira Gandhi managed to demonstrate how easy it was to misuse the Constitution and convert democracy into a constitutional dictatorship. In this journey, she seemed to have picked up some clues from Adolf Hitler. As a democratic head of government of 1930s Germany, Hitler used the provisions of the German Constitution to proclaim a state of emergency and claimed, as did Mrs Gandhi in 1975, that he took these actions because the country was in danger (the German parliament had been set on fire, and it was later proved that this arson had been planned by Hitler himself). He announced a twenty-five-point programme for Germany's economic growth. He claimed that discipline had been inducted into the system, that trains were now running on time. He censored the media. He detained the entire opposition. And his ministers proclaimed, 'Hitler is Germany and Germany is Hitler.' Indira Gandhi did much the same: she imposed a constitutional dictatorship, censored the media, imprisoned the opposition and launched her Twenty Point economic programme. The sycophantic Congress president proclaimed, 'Indira is India and India is Indira.' But Indira Gandhi was one step ahead of Hitler—she used the Emergency to make her son Sanjay Gandhi her political heir and successor.

The state of the economy during the Emergency was alarming. The growth rate was modest, and inflation rose to record highs. Nevertheless, the Emergency regime declared that India was growing. Who was left to question their propaganda? Eventually, Indira Gandhi, in the face of mounting international criticism of her crushing of democracy,

took a calculated risk. Having extended the life of Parliament from five years to six years, she decided in January 1977 to call for general elections. She thought she would come back, with a strong mandate from the people, supporting her and her son Sanjay. As it turned out, her calculations were way off the mark.

In jail, we heard about her broadcast to the nation announcing the general elections in January 1977. Censorship was partly relaxed. Detainees were to be released. I was released after nineteen months in prison, on 25 January 1977. With less than forty-five days to prepare for elections, we jumped into the fray. Atal Bihari Vajpayee called me and asked me to contest the election. I informed him that I was underage and hence not eligible. We hurriedly got together all the youth and student wings of the Jana Sangh, the Congress(O), the Socialist Party and the Swatantra Party and formed the Loktantrik Yuva Morcha. I became its convenor.

The first rally of the hurriedly formed Janata Party, addressed by Morarji Desai and Atal Bihari Vajpayee, was a grand success. Immediately thereafter we organized a massive rally to be addressed by JP at the Ram Lila Maidan. By this time Congress stalwart Jagjivan Ram had quit the Congress and joined us, dealing a decisive blow to Indira Gandhi. This rally drew record crowds who supported us wholeheartedly. I was one of the early speakers, and this was the first time I addressed such a mammoth gathering. I also had the opportunity to tour several states as part of the election campaign. The atmosphere was charged throughout the country. More than political workers, it was the public who took care of the campaign. When the results came in,

the Janata front had won a landslide victory. Both Indira Gandhi and her son Sanjay Gandhi lost in their constituencies. Democracy had been restored. I went back to studying and to write my final year examination in April–May 1977.

This book brings to life the events and the atmosphere of those dark nineteen months in telling and compelling detail. Apart from its accounts of the reign of terror unleashed during the Emergency, it also recounts the acts of heroism and compassion shown by so many people during those troubled times, and bears testimony to the wisdom and courage of the people of our country who so decisively rejected the 'dynastic politics', craven sycophancy and dictatorial acts that flourished during the Emergency.

Arun Jaitley

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The *Indian Express* kindly gave me permission to publish photographs of the Emergency from its photo library, and gave me access to its archives for my research. The India International Centre library, New Delhi, provided me a peaceful space to work in. My grateful thanks to all of them.

Timeline of Events

March 1971	Indira Gandhi re-elected prime minister after a landslide electoral victory in which her party gets a two-thirds majority.
April 1973	Indira Gandhi supersedes the three senior-most justices of the Supreme Court in order to appoint A.N. Ray as Chief Justice of India.
January 1974	Students in Gujarat launch a violent movement against the Congress chief minister Chimanbhai Patel for corruption. Buses and government offices are set on fire during the Navnirman campaign for the ouster of 'Chiman chor' (Chiman the thief).
March 1974	Mrs Gandhi asks the Chimanbhai Patel government in Gujarat to step down.
April 1974	Student leaders of Bihar's Chhatra Sangharsh Samiti invite Jayaprakash Narayan (JP) to head a struggle against the state government.

8 May 1974	George Fernandes calls for a railway strike across the country to press for increased wages to keep pace with the rising cost of living. The strike lasts three weeks before being brutally crushed by the Central government.
September 1974	The Opposition corners Mrs Gandhi in Parliament on the Pondicherry licence scam. MP Tulmohun Ram is indicted for forging the signatures of twenty-one MPs to seek licences from the foreign trade ministry for some Pondicherry businessmen. The concerned minister, Lalit Narayan Mishra, is not touched, although he is rumoured to be the kingpin behind the operation.
November 1974	Talks between Mrs Gandhi and JP break down over the question of dissolution of the Bihar state assembly. The Chhatra Sangharsh Samiti, consisting of non-communist students' groups, demand the assembly be dissolved, following the example of Gujarat, because of the state government's corruption, misgovernance and brutal police action against the agitators.
3 January 1975	Lalit Narayan Mishra, who had become an embarrassment to the government because of the Pondicherry licence scam and had been moved from the foreign

	trade ministry to the railway ministry, dies in hospital due to injuries sustained in a bomb blast on 2 January at Samastipur in Bihar.
8 January 1975	Siddhartha Shankar Ray writes a letter to Mrs Gandhi, suggesting she impose an internal emergency and arrest those opposing the government.
12 June 1975	Judgment of Justice Jagmohanlal Sinha of the Allahabad High Court disbars Mrs Gandhi as an MP for election malpractices. The judgment followed an election petition filed in 1971 by Raj Narain who lost to Indira Gandhi from the Rai Bareilly Lok Sabha constituency. He challenged her election on the grounds of violations of the Representation of the People Act, 1951.
	The Janata Front backed by JP and led by Morarji Desai wins the Gujarat Assembly elections.
18 June 1975	A meeting of the Congress Parliamentary Party is held, where its MPs reaffirm their faith in Mrs Gandhi's leadership.
20 June 1975	A massive rally is organized by Mrs Gandhi's supporters at the Boat Club, Delhi.
23 June 1975	Preparations for the arrest of the opposition leaders begins.

24 June 1975	Vacation judge of the Supreme Court, Justice Krishna Iyer, grants only a partial stay to Mrs Gandhi in her election petition regarding her disbarring as an MP by Justice Sinha of the Allahabad High Court.
25 June 1975	JP's rally at the Ram Lila grounds in Delhi calls for Mrs Gandhi to step down as prime minister. President Fakhruddin Ali Ahmed signs the proclamation of internal emergency.
26 June 1975	Opposition leaders, including JP, Morarji Desai, Atal Behari Vajpayee and L.K. Advani arrested. Dissident Congress members like Chandra Shekhar and Ram Dhan also arrested. The cabinet meets at 6 a.m. on the 26th to ratify the Emergency ordinance. Press censorship is imposed and I.K. Gujral is relieved of the information and broadcasting portfolio. V.C. Shukla takes charge of the I and B ministry.
28 June 1975	Delhi newspapers reappear after a gap of two days.
29 June 1975	Journalists meet at the Delhi Press Club to sign a formal protest against censorship.
30 June 1975	An ordinance is passed amending the Maintenance of Internal Security Act (MISA), under which it is no longer necessary to disclose the reasons for arrest to the persons taken into custody.

4 July 1975	A ban on the Rashtriya Swayamsevak Sangh (RSS), Anand Marg, Jamaat-e-Islaami and the Naxalites is imposed.
21 July 1975	Emergency session of Parliament is convened to endorse Emergency proclamation.
24 July 1975	Kuldip Nayar, editor of the Express News Service, is arrested.
5 August 1975	Parliament amends the Representation of the People Act, 1951, with retrospective effect. The Congress wanted to ensure, by changing the law, that Mrs Gandhi's disqualification as an MP for election malpractices was overturned by the Supreme Court.
15 August 1975	Sheikh Mujib-ur Rahman, President of Bangladesh, and his family are assassinated in Dhaka.
September 1975	Delhi High Court judgment strikes down Kuldip Nayar's arrest under MISA.
1 November 1975	The author's husband, journalist Virendra Kapoor, is arrested under Defence of India Rules (DIR).
7 November 1975	The Supreme Court upholds Mrs Gandhi's election from Rai Bareilly.
12 November 1975	JP released on parole and taken to hospital.
30 December 1975	Sanjay Gandhi joins the Youth Congress at a Congress party session at Komagatu Maru Nagar near Chandigarh.

January 1976	A resolution is passed in Parliament to postpone Lok Sabha elections for a year.
31 January 1976	The President dismisses M. Karunanidhi's Dravida Munnetra Kazhagam government in Tamil Nadu.
March 1976	Babubhai Patel's Janata government in Gujarat is toppled.
	Bharatiya Lok Dal leader Charan Singh is released from prison.
	Virendra Kapoor transferred from Tihar jail to Bareilly jail.
19 April 1976	Police open fire at Turkman Gate, Old Delhi, as mobs revolt against the authorities in protest over the demolition drive and sterilization campaigns.
28 April 1976	The Supreme Court rules by a four-to-one verdict that the right to move the courts for fundamental rights is suspended during an Emergency.
4 May 1976	Ban on Kishore Kumar songs on All India Radio and Doordarshan is ordered. The temperamental singer had upset the information and broadcasting authorities by refusing to cooperate with them.
10 June 1976	George Fernandes is arrested in Calcutta.
29 July 1976	Virendra Kapoor is released on parole.

10 August 1976	Jana Sangh MP Subramanian Swamy, who had evaded arrest, appears in Parliament and then disappears again.
October–November 1976	Parliament passes the 42nd Amendment which gives Parliament unlimited powers to amend the Constitution and does not allow constitutional amendments to be challenged in the courts.
5 November 1976	Parliament passes a resolution extending Parliament's term by a year.
November 1976	Congress holds its session in Guwahati where Sanjay is feted as Mrs Gandhi's political heir.
4 December 1976	Opposition leaders Charan Singh and Biju Patnaik meet Minister of State for Home Affairs Om Mehta to try to work out an agreement with the government.
1 January 1977	Biju Patnaik writes a letter to Mrs Gandhi outlining the points discussed for reaching a settlement with the Opposition.
January 1977	Mrs Gandhi responds positively to opposition leader Ashoka Mehta's letter, stating that parliamentary democracy could be restored once certain basic points were accepted by the Opposition.
18 January 1977	Mrs Gandhi announces Lok Sabha elections in March 1977. Morarji Desai and L.K. Advani are released from jail.

20 January 1977	The Janata Party is formed.
2 February 1977	Jagjivan Ram resigns from the Congress and launches his party, Congress for Democracy.
16–20 March 1977	General elections take place.
20 March 1977	Indira Gandhi is defeated in Rai Bareilly and Sanjay Gandhi is defeated in Amethi. There is a debacle for the Congress in north India in the parliamentary elections. The Janata Party secures a majority.
21 March 1977	The Emergency is repealed.
24 March 1977	Morarji Desai takes oath as the fifth prime minister of India.

1

Darkness at Dawn

Twenty-fifth June Nineteen Seventy-Five was a sweltering day, made more uncomfortable by the frequent power breakdowns at the *Indian Express* office at Bahadur Shah Zafar Marg, Delhi's Fleet Street. Since I covered the Municipal Corporation of Delhi (MCD) beat, the news editor A.P. Saksena, universally addressed as Piloo sahib, had asked me to use my contacts in the Delhi Electricity Supply Undertaking (DESU) to ensure that the power was set right before the printing presses rolled that night. The DESU deputy general manager assured me they were working on restoring the power supply to the entire street. When the lights came on by 8 p.m., I left the office, oblivious of the fact that the blackout was just a dress rehearsal and that a coup was in the works a couple of kilometres away. The restoration of electricity was temporary—the newspaper would be in the dark for a long time to come.

The lead headline for the next morning's edition was to be the anti–Indira Gandhi rally held that evening at Delhi's

Ram Lila Maidan, with Jayaprakash Narayan (JP) as the main speaker. The Gandhian Sarvodaya leader, who had launched a campaign against corruption and misrule in Bihar and at the Centre, had given a call for 'Total Revolution', which had captured the imagination of the youth of north India, particularly in Bihar.

JP's campaign against Mrs Gandhi had gained additional momentum on 12 June. On that day, Justice Jagmohan Lal Sinha of the Allahabad High Court disbarred the prime minister as a member of Parliament (MP) for election malpractices, and from holding any elected post for six years. Mrs Gandhi had appealed against this ruling, but the vacation judge of the Supreme Court, Justice V.R. Krishna Iyer, had on 24 June refused to grant a complete stay to Mrs Gandhi on her petition. He ruled that she could continue as prime minister till the matter was decided by the Supreme Court, but she did not have the right to vote in Parliament. It was a decision that made Mrs Gandhi's position very vulnerable.

The feisty *Indian Express* owner, Ramnath Goenka, a close friend of JP's, was the media adviser for JP's campaign. He was, in fact, an important strategist for the diverse political groups that had hitched their wagon to the JP movement: the Congress(O), the Bharatiya Lok Dal (BLD), the Socialist Party and the Bharatiya Jana Sangh. The Congress(O) was the faction of the party which had tried to expel Mrs Gandhi in 1969 and had then been largely marginalized by her. The BLD was headed by the dour peasant leader Charan Singh. C. Rajagopalachari's Swatantra Party, which stood for free enterprise and free trade, had merged with Singh's BLD that represented the farmers of north India. The Socialist Party

was an offshoot of the socialist caucus of the Congress party. The Jana Sangh was a right-wing pro-Hindu party with close affiliation to the Rashtriya Swayamsevak Sangh (RSS), a voluntary social and cultural organization whose members, in distinctive khaki short pants, wielded lathis at their morning *shakha*s and were perceived in some quarters as anti-Muslim.

A solid phalanx of humanity covered the historic Ram Lila grounds on the night of 25 June, endorsing the call for Indira Gandhi to step down. JP recited Ramdhari Singh Dinkar's evocative poem, *'Singhasan khaali karo / ke Janata Aati hai'* (Surrender your throne, for the people are coming), to thunderous applause. The crusty septuagenarian Morarji Desai from the Congress(O), who had come out of semi-retirement to spearhead the agitation to get rid of the corrupt Congress chief minister of Gujarat, Chimanbhai Patel, was on the dais. So was Raj Narain, the maverick wrestler-politician—it was he who had set the wheels in motion against Mrs Gandhi by filing a case against her in the Allahabad High Court for electoral malpractices in her constituency of Rai Bareilly, where he had contested against her. The RSS *pracharak* (crusader) and Jana Sangh strongman Nanaji Deshmukh and the Delhi Jana Sangh boss, Madan Lal Khurana, were also present.

Earlier that evening, Subramanian Swamy, the Harvard-returned, newly elected Jana Sangh member of the Rajya Sabha, had been tasked to bring JP to the Ram Lila Maidan from the nearby Rouse Avenue office of the Gandhi Peace Foundation, where JP stayed whenever he was in the capital, and they had had an interesting exchange. With the growing groundswell of support for the call to remove Mrs Gandhi, Swamy had ominously and (as it would turn out) presciently

speculated: 'What would happen if Mrs Gandhi introduced martial law?' JP laughed and dismissed his fears: 'You are too Americanized! Indians would revolt.'[1] Seeing the huge crowds that turned up to hear him wherever he addressed rallies in the country, JP believed he had unleashed a people's movement which was unstoppable till it had achieved its goal.

Biju Patnaik, BLD leader from Orissa, who had once been close to the Nehru–Gandhi family, was, like Swamy, also apprehensive about Indira Gandhi's reaction. Two days earlier, at a conference of all the opposition parties supporting JP, which had been convened to work out the modalities of organizing a national satyagraha on 29 June, he had warned, 'I know Indira Gandhi well. You must give her an exit route; if you completely corner her then in panic she may overreact.'[2]

At the rally on the night of 25 June, JP declared that there would be non-violent demonstrations and satyagrahas to compel Indira Gandhi to resign. He asked those present to indicate if they were willing to go to jail for the cause. There was a sea of raised hands. JP then announced that Desai would be the chairman of the Lok Sangharsh Samiti, the umbrella organization formed by JP, which would coordinate the efforts of all the opposition parties; Nanaji would be its general secretary and Asoka Mehta of the Congress(O) its treasurer. But JP's most significant statement that night repeated what he had said in the past: that the police and armed forces should not obey 'illegal and unconstitutional orders'.

JP's words were later quoted repeatedly by Mrs Gandhi to justify the Emergency. But, in fact, preparations for putting her political opponents behind bars and stifling all expressions

of dissent were being planned for many months before the actual deed was done on the fateful night of 25 June.

A handwritten note by the West Bengal chief minister Siddhartha Shankar Ray, which has come into the author's possession, reveals that the smooth-talking Ray, who fashioned himself as a progressive liberal, had, along with Law Minister H.R. Gokhale, Congress president D.K. Barooah and Bombay Pradesh Congress Committee bagman Rajni Patel, conceived of the idea of an internal Emergency and mass arrests of political opponents back in January that year. Ray's note of 8 January 1975 to Mrs Gandhi spells out the details of the plan to be put into operation.

Dear Indira*

> We just finished the meeting at Barooah's. I wanted to tell you something very urgently but you are at some state dinner. I am therefore sending you this hurried note.
>
> Nothing has been done—no list prepared . . . nothing whatsoever. Some people here do not realize the seriousness of the situation in the country. But Barooah and Rajni were helpful and Ghokale [sic] will have a draft ordinance ready by tonight. We have decided on the guidelines and we are meeting again at 9 am. (ugh!) at Ghokhale's tomorrow. So that we can come to you with something.
>
> I told Om† to do this thing and I would want *you* to order Brahmananda Reddy [then the home minister] to do this thing immediately. A secret telex message should go

* He was the only one in his party who presumed to call her by her first name.
† Om Mehta, minister of state for home affairs.

at once to every chief minister (Congress) directing him to prepare a list of all prominent Anand Marg and RSS members in his state. He need not be told of any ordinance but he should have the list ready. The idea is to swing into action immediately after the ordinance is ready—and it *has* to be ready in 24 hours' time from now. I hope the President will be readily available to sign the ordinance. Also a special Cabinet meeting should be called either tomorrow evening or night or very early in the morning the day after. (This is in case the ordinance takes more than 24 hours to be finalized.)

At tomorrow's meeting you insist on the ordinance being ready by the evening. Also please ring up Brahmananda Reddy tonight and tell him about 'x'. Prepage (sounds like a file noting!)

Siddhartha

In case you want to talk to me I shall be at home.

The breezy, familiar tone indicates the close relationship between the prime minister and Ray. She had known him since childhood and their grandfathers, C.R. Das and Motilal Nehru, were close friends and fellow lawyers. Their friendship was renewed when they were both students in the UK. It is significant that at the time Ray wrote this note, there were no very pressing problems on the law-and-order front for him to advocate such extreme measures.

JP's Total Revolution movement was not at its peak. The countrywide railway strike had been put down six months

earlier. The student-led Navnirman movement in Gujarat had resulted in the stepping down of the unpopular Congress chief minister Chimanbhai Patel. The only noteworthy event was that five days earlier, on 3 January 1975, the railway minister Lalit Narayan Mishra, under attack in Parliament for serious corruption charges in granting licences, was assassinated in a bomb blast at Samastipur, Bihar. Mishra's murder remains a mystery to this day. At that time the rumour mill talked of a Congress hand in eliminating an inconvenient minister who was giving the party and the government a bad name. On the other hand, Mrs Gandhi blamed JP's campaign for creating an atmosphere that encouraged violence.

Ray, Barooah, Patel and Gokhale had come up with a plan as early as January 1975 because Indira Gandhi was greatly rattled by Mishra's violent death. She wanted to ban the RSS, the Anand Marg[3] and the main activists in JP's movement. But Mrs Gandhi backtracked later, after officials in her secretariat advised her that the Opposition would accuse her government of repression.

Now, with the Allahabad judgment putting a question mark over her own political future, Mrs Gandhi seemed to have discarded the scruples she had had earlier and decided to bring Ray's plan out of cold storage. The actual execution of the Emergency followed Ray's proposed plan of action to the letter.

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On 22 June, R.K. Dhawan, Mrs Gandhi's additional private secretary, who was the man who issued instructions on

behalf of his boss, rang up the Andhra Pradesh chief minister J. Vengala Rao and asked him to come to Delhi on 24 June, when the Supreme Court vacation judge was expected to rule on the prime minister's application for a total stay order on the Allahabad High Court verdict. Several Congress chief ministers were alerted on the morning of 25 June to take action against opposition leaders once they received the green signal from the PM's house that night. Rao, on his return journey to Hyderabad on an Indian Air Force (IAF) plane on 25 June, was instructed to stop over at Bangalore and convey the instructions about the arrests and other contingency measures to the chief minister of Karnataka. Similarly, the Madhya Pradesh chief minister P.C. Sethi was instructed by Minister of State for Home Om Mehta to stop by in Rajasthan and alert Chief Minister Harideo Joshi.[4]

Mrs Gandhi waited for JP's rally as the pretext for executing her plan. The rally was originally scheduled for 24 June, and on 23 June Dhawan informed the Delhi lieutenant governor Kishan Chand that a list should be prepared of the prominent politicians who were to be taken into custody. The list of all senior politicians was personally vetted by Mrs Gandhi, who removed and added names till the last date. When the rally was postponed by a day, the schedule for the mass arrests was delayed accordingly.

One Congress chief minister excluded from the advance preparations was H.N. Bahuguna, chief minister of Uttar Pradesh (UP); he learnt of the developments only on the morning of 26 June while he was having breakfast with veteran Congressman Uma Shankar Dikshit.[5] Mrs Gandhi was already suspicious of Bahuguna whom she perceived as

too ambitious and close to the Young Turks—Congress MPs like Chandra Shekhar who had backed Mrs Gandhi against the party old guard but were now sympathetic towards JP. A few months later, he was removed as chief minister. Bahuguna's fault was that he had shown his independence from Delhi on occasion.

The Haryana chief minister, the homespun but ruthless Bansi Lal, who had no qualms about using the police to lock up his opponents in his own state, was alerted ahead of other CMs about the plans for mass arrests. He was, in fact, an active conspirator along with Indira Gandhi's younger son, Sanjay, in planning the strategy. The two had bonded ever since Sanjay had set up his small-car manufacturing unit, Maruti, in Gurgaon, Haryana, with the chief minister obligingly providing 290 acres of fertile land at a throwaway price after first acquiring it from the farmers at a much lower rate than the market price. He also ensured a government loan for the factory. Bansi Lal believed in strong-arm tactics to deal with his opponents. Both Sanjay and Bansi Lal had been working overtime, planning reprisals, ever since the Allahabad High Court judgment.

The judgment had shaken the government to its roots and stunned the country. Mrs Gandhi had no intention of allowing the judgment to end her political career—Justice Sinha's ruling debarred her from standing for election for six years. And she knew that if she resigned, even temporarily, her ambitious colleagues would not wait to step into her shoes.

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Pandit Jawaharlal Nehru's daughter—once described as *gungi gudiya* (a dumb doll) by the socialist leader Dr Ram Manohar Lohia—had fought a tough, no-holds-barred battle to become the unquestioned leader of the Congress party, and to dominate national politics. Mrs Gandhi once pointed out to writer Dom Moraes, 'I have always been very quiet and when I was younger people thought there was no fire in me. But this fire has always been there, only nobody saw it except when it flared.'[6] The prime ministership may have initially been handed to her on a platter because she was her father's daughter and considered a pushover, but to retain her position she had convincingly bested her elderly male rivals, divided the grand old party and emerged completely victorious in the 1971 parliamentary election, with a stunning two-thirds majority in the Lok Sabha.

Imperious, often icy, in her manner towards her colleagues, Mrs Gandhi was described as the 'only man' in the cabinet of ministers, and was dubbed 'the Empress' by *The Economist*. Now the iron lady was in danger of being eased out of the political arena because of electoral malpractices which her supporters indignantly claimed were mere technicalities that could be compared to minor traffic-rule infringements.

Justice Sinha had held Mrs Gandhi guilty of two malpractices out of fourteen charges made by Raj Narain. The first was that Yashpal Kapoor, officer on special duty in the prime minister's secretariat and an old family retainer, had handled Mrs Gandhi's campaign in Rai Bareilly from 7 January 1971, although he continued in government service until 25 January, according to the official record. Government servants were barred by the electoral code of conduct

from active participation in political campaigns. The other impropriety was that UP government officials had helped make the arrangements for her election meetings, including constructing podiums, arranging loudspeakers and electricity connections—a practice which was not uncommon, and to which the authorities generally turned a blind eye.

Twelfth June was indeed an ill-fated day for Mrs Gandhi. Justice Sinha's judgment had come like a bolt from the blue. Nobody had taken Raj Narain's petition, which was pending for three and a half years, very seriously. That was why a family loyalist with no great reputation as a lawyer was appointed as Mrs Gandhi's defence counsel. On that same morning D.P. Dhar, a former minister and ambassador to the Soviet Union, who was her close confidant, had passed away. Later in the day Mrs Gandhi learnt that the Congress had lost in the Gujarat assembly elections to an alliance of opposition parties known as the Janata Morcha, which was backed by JP.

Suspicious and manipulative, Indira Gandhi had a history of abruptly changing advisers. The triumvirate of Ray, Barooah and Patel were the current favourites among her left-leaning advisers. But, at the same time, plain gofers who had no intellectual pretensions or ideological constraints, like Yashpal Kapoor, Om Mehta, Bansi Lal, R.K. Dhawan and the yoga guru Dhirendra Brahmachari, among others, also wielded influence. The 'Punjabi mafia', as it was nicknamed, had cultivated her son Sanjay to get ahead. In the crisis facing Mrs Gandhi, Sanjay had emerged as his mother's most trusted confidant. Sanjay was then just twenty-eight and attempting to manufacture a small car, despite the general scepticism about his ability to undertake such an ambitious venture

and criticism from the Opposition over the blatant misuse of government machinery.

Pupul Jayakar, a close family friend of the Gandhis, acknowledged that Sanjay grew up 'a wild wayward youth, often in scrapes fiddling with cars, attracting questionable friends'.[7] But his mother relied on Sanjay's judgement. She knew he was totally loyal to her, whereas she could never be sure of the motives of her political colleagues. Since his return from England, where his apprenticeship at the Rolls Royce factory had ended abruptly, Sanjay had started taking a greater interest in government. He was keen to settle scores with those who had opposed his small-car project.

While Indira Gandhi claimed, for public consumption, that she would resign if the stay in the Supreme Court went against her, Sanjay was adamant that there was no question of his mother stepping down because of a pettifogging judge. Sanjay swung straightaway into action on 12 June itself when he heard of the court judgment in the afternoon, after returning home for lunch from the Maruti factory. He indignantly vetoed Barooah's self-serving proposal that he assume the prime ministership temporarily and Mrs Gandhi take over as president of the party.

Sanjay, unlike his more pragmatic mother, was a diehard believer in capitalism who looked with deep suspicion at all communists, including the left-leaning triumvirate whom his mother turned to for advice. Sanjay, his doting mother acknowledged, was a doer not a thinker.[8] His career in school and as a Rolls Royce apprentice had been disappointing. He was a young man in a hurry, impatient with what he considered the hypocrisies of political correctness, in stark

contrast to his grandfather Pandit Nehru who was deeply sensitive to his image as the upholder of liberal, secular, socialist and democratic values.

Sanjay had gathered around him a tiny band of loyalists who were part of his inner coterie. They included a junior-level Union Territory–cadre IAS officer Navin Chawla, who was an old friend from Sanjay's days in England. At Chawla's suggestion, a retired Indian Civil Service (ICS) officer, Kishan Chand, had been appointed the lt governor of Delhi and Chawla himself became the lt governor's private secretary. Others in this inner circle included B.R. Tamta, the municipal commissioner of Delhi, P.N. Behl, the chief of New Delhi Municipal Committee (NDMC),* who later joined the prime minister's office (PMO), and Jagmohan, vice chairman of the Delhi Development Authority (DDA), who was a law unto himself in the Delhi administration. P.S. Bhinder—deputy inspector general (DIG) (Range) of the Delhi Police, who had earlier been posted in Gurgaon and thus come into contact with Sanjay—was also part of this charmed circle.

The most powerful of all was R.K. Dhawan, Mrs Gandhi's unctuous additional private secretary who had made himself indispensable to both Mrs Gandhi and Sanjay after his cousin Yashpal Kapoor gave up his secretarial duties and formally joined politics, soon being appointed a member of the Rajya Sabha. Both mother and son turned to Dhawan for advice in matters of appointments, much to the chagrin of senior officials in the PM's secretariat. Dhawan's presence was particularly resented by the prime minister's secretary, the

* Renamed New Delhi Municipal Council in 1994.

economist P.N. Dhar. Dhawan later claimed in his defence, 'I never did anything on my own. If I called someone to give orders I did not say the PM desires it. It was understood I was following her orders.'[9]

A day after the fateful judgment, a meeting of Congress MPs, chief ministers and ministers proclaimed that Indira Gandhi must continue to lead the party and the country. The lone dissenter was Mohan Dharia, who had lost his ministership three months earlier for urging Mrs Gandhi to reach a compromise with JP. Dharia's suggestion that Mrs Gandhi should resign was shouted down. But behind Mrs Gandhi's back it was a different story. While publicly expressing support for her, many Congress leaders whispered privately that Mrs Gandhi should indeed step down. Initially, even Congressmen such as Jagjivan Ram, Karan Singh, the chief minister of Andhra Pradesh Vengala Rao and the chief minister of Karnataka Devraj Urs were among those who held this view. But none of them could muster the courage to say this to the PM directly.

The Opposition, meanwhile, had stepped up the agitation, calling for Mrs Gandhi's resignation. Even the media by and large urged Mrs Gandhi to respect the court's verdict and bow out of office gracefully.

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Those who saw Indira Gandhi regularly during this period observed that she was severely rattled and frequently lost her temper. Her supporters were conscious that she could be betrayed and let down by her own party members, and

so they acted with speed and determination. By the time the Congress Parliamentary Party met on 18 June, most of the doubting Thomases had fallen in line. At a specially convened meeting, the entire gathering reaffirmed its faith in her. The MPs all signed a loyalty pledge which stated, 'Mrs Indira Gandhi continues to be the Prime Minister. It is our firm and considered view that for the integrity, stability and progress of the country, her dynamic leadership is indispensable.'[10] The resolution was proposed by Jagjivan Ram and seconded by Y.B. Chavan, the two senior ministers in her cabinet who were suspected of nursing ambitions of stepping into Mrs Gandhi's shoes. Five members did not attend: Chandra Shekhar, Krishan Kant, Mohan Dharia, Lakshmi Kantamma and Ram Dhan. They objected to the use of the word 'indispensable' in the loyalty pledge. D.K. Barooah, the rotund sycophantic party president, described contemptuously by Sanjay as a 'joker', declared 'Indira is India and India is Indira', a refrain which sounded ominously similar to the Nazi slogan 'Germany is Hitler and Hitler is Germany'.

People from all walks of life, including leading industrialists, professionals, chambers of commerce and various federations and associations, were encouraged to sign the loyalty pledge, which was drafted by P.N. Haksar, her former principal secretary, now relegated to the sidelines in the Planning Commission. Some dramatically signed the pledge in blood.

It was Sanjay's coterie that went into overdrive to protect his mother's position. Between 12 and 24 June, daily pro–Indira Gandhi demonstrations, rallies and public meetings were held, the usual rent-a-crowd shows organized by Congressmen

keen to win brownie points from the party bosses. The crowds were often also mustered through strong-arm tactics. Navin Chawla ordered all public utility services, including the NDMC, the DESU, the Delhi Transport Corporation (DTC) and the Delhi Milk Scheme (DMS), to contribute manpower and transport. J.R. Anand, traffic manager of the DTC, confirmed that most of the buses were booked on orders over the telephone from Chawla. The lt governor's aide gave instructions on the number of buses required, unconcerned as to how it would affect the city's normal bus services.[11]

On 13 June, the entire fleet of 983 buses plying on Delhi routes was diverted to bring the crowds to No. 1 Safdarjung Road, the residence of the prime minister. People from the neighbouring states of Haryana, Punjab, Rajasthan and UP were similarly transported in vehicles commandeered by their respective state authorities. Some participants carried banners of the unions of the public sector undertakings with which they were affiliated. Factories in Faridabad were viewed as a fertile catchment area by Bansi Lal, whose officials were ordered to muster crowds from there.

The crowds would usually assemble at the Safdarjung Road traffic island outside the prime minister's residence. I was one of the reporters sent to cover these 'solidarity' rallies. We used to jokingly refer to Mrs Gandhi's standard diatribe as the 'They-are-out-to-get-me rant'. The crowds were frenzied, almost hysterical, a number of the women thumping their chests and screaming, in chorus, *'Indira, ham tumhare saath hain'* (Indira, we are with you). The obsequious court jester Barooah composed a couplet for the benefit of the rank and

file: *'Indira teri subah ki jai, Indira teri shaam ki jai / Tere kaam ki jai, tere naam ki jai'* (Indira, we salute your morning, your evening, your name and your great works). Several times a day, Indira Gandhi would emerge from her bungalow and make an appearance for a few minutes for the gathering of the faithful. Holding her sari border tightly over her head and standing on a footstool, she would address the motley crowds in a high-pitched voice, with her eyelids twitching with a nervous tic. Invariably, her message was: I shall serve my country till my last breath. 'The real issue is not whether Indira stays or goes. It is whether the country will follow the socialist policies that we launched four years ago,' she would declare. An effigy of Justice Sinha was burnt by some of Mrs Gandhi's overzealous supporters.

She believed a conspiracy was being hatched by self-serving opposition politicians who were hand in glove with foreign interests. The CIA was the favourite bogeyman of the Congress party in those days. So much so that the opposition leader Piloo Mody once sported a badge in Parliament, which said 'I am a CIA agent', to mock Mrs Gandhi's oft-repeated charge.

The most spectacular show of strength by the Indira camp was at the Boat Club lawns on 20 June where the dependable Bansi Lal outdid himself in mustering numbers. He had ordered all police stations in his state to commandeer trucks and buses to transport men and women from their respective areas. In addition to the Haryana contingent, Congress cheerleaders were lugged in by train from all parts of the country. There were an estimated one million people at the rally that day.

In her speech, Gandhi thundered that powerful vested interests were at work not only to oust her but to liquidate her physically. These vested interests, she claimed, had the backing of the press and enjoyed a unique freedom to distort facts and spread lies. 'The question is not whether I die or live, but one of national interest.' In a display of family solidarity, both her sons, Rajiv and Sanjay, and daughters-in-law, Sonia and Maneka, sat with her.

A sea of humanity covered the lawns on either side of Rajpath. The day trippers from the neighbouring states, who were in a holiday mood, brought the city to a halt as they flooded the roads of New Delhi after the rally, visiting the tourist spots of the capital.

On 24 June things took a turn for the worse for Mrs Gandhi. As mentioned earlier in this chapter, the vacation judge Justice Krishna Iyer turned down her plea for an absolute stay on the Allahabad High Court judgment until the Supreme Court disposed of her appeal. Justice Iyer granted only a conditional stay: Mrs Gandhi could continue as prime minister but could not vote in Parliament nor draw an MP's salary. Iyer's ruling was greeted as a fresh victory for the Opposition. MPs from the Opposition now called on the President to demand that Mrs Gandhi step down from office. She in turn decided that she must now crack down on her opponents without further delay.



On the afternoon of 25 June all arrangements for the impending arrests of political leaders were discussed in Dhawan's

room in the presence of Bansi Lal, Om Mehta and the superintendent of police of the Crime Investigation Department, the SP (CID), Delhi administration, K.S. Bajwa. Subsequently, Lt Governor Kishan Chand called a meeting at 7.30 p.m. at which the chief secretary J.K. Kohli, the inspector general (IG) of police, Bhawani Mal, and DIG (Range) Bhinder were present. The chief secretary visited Tihar jail an hour later and checked on the accommodation there. He informed the superintendent of the jail that 200 'Naga prisoners' could be expected by the next morning.

Sanjay Gandhi and his cohorts were impervious to constitutional and legal niceties in making arrests. The outspoken Bansi Lal advised Mrs Gandhi, '*Behenji*, give them to me and I will set them right.'[12] It was clear that Sanjay had a strong hold over his mother. While Mrs Gandhi was in conference with the officials, Sanjay used to interrupt her frequently. 'Mummy, come for a moment,' he would say, and Indira Gandhi would quietly leave the room to confer with her son.[13] Sanjay was in regular touch with the chief ministers from north India.

But, unlike Sanjay and Bansi Lal—who declared that Mrs Gandhi was being too soft in dealing with her opponents—the prime minister was anxious that her draconian plan be clothed in legal cover. She turned to her legal expert, Siddhartha Shankar Ray. The blue-blooded Ray was a distinguished lawyer who could be relied upon to present his arguments with polish and sophistry. Although chief minister of West Bengal, Ray in those days came to Delhi practically every week. And after the Allahabad judgment he had been summoned to the capital to be on hand to provide expert legal advice.

Mrs Gandhi explained to him that the country needed 'shock treatment' and extraordinary powers were required by the government to keep the threat at bay. She had advance information that JP at his rally would be calling for a mass movement all over India. She feared India was drifting towards chaos and anarchy. Ray promised to study the relevant sections of the law and recommend the best course of action. He borrowed a copy of the Constitution from the Parliament House library, and later claimed he was shown Intelligence Bureau (IB) reports on the serious law-and-order problems facing the nation. (In fact, the IB had not submitted any report to the home ministry between 12 and 25 June 1975 suggesting that there was a problematic situation on the law-and-order front.)[14]

This was Ray's defence later before the Shah Commission (which was set up by the Government of India in May 1977 to inquire into all the excesses committed during the Emergency). But the letter he wrote to Mrs Gandhi on 8 January 1975 indicates that he had conceived the idea of an internal Emergency and jailing political opponents much earlier. His claim that the idea of imposing an internal Emergency was conceptualized in the few hours given to him to study the Constitution on 25 June was simply to cover up his own role as the initiator of the sinister move.

Ray's proposal was that although Emergency laws already prevailed ever since the 1971 war with Pakistan, these related to an Emergency imposed due to an external threat. He recommended imposing a second Emergency under Article 352 of the Constitution, to deal with an internal threat. Mrs Gandhi asked Ray to accompany her to meet President

Fakhruddin Ali Ahmed. She repeated to the President what she had told Ray about India drifting into anarchy, and he asked her to make her recommendations.

Mrs Gandhi had an additional query for Ray. Could she recommend a decision to the President without first consulting her cabinet? Ray obligingly looked up the Business Rules and came to the conclusion that she was empowered to act on her own under Rule 12 and depart from the normal convention of first consulting her cabinet. (This suggestion is also mentioned in Ray's 8 January letter.) After helping Mrs Gandhi draft her speech for broadcast the next day, Ray left the room and bumped into Om Mehta, who informed him that orders had been passed to lock up the high courts and cut off electricity connections to all newspapers. Ray was perturbed and cited a law under the Emergency that no action could be taken until rules were framed. He insisted on meeting Mrs Gandhi again. While he was waiting, Sanjay met him in a highly excitable state and ticked him off rudely, saying he did not know how to run the country. The no-nonsense Sanjay disliked Ray, whom he considered a pseudo-communist. Ray tried to pacify him, stating he should not interfere in what was not his sphere.[15] Later when he met Mrs Gandhi, he thought she looked red-eyed. She assured him the drastic measures suggested by Sanjay would be stopped. Sanjay, however, had his way regarding the disconnecting of electricity supply to newspaper offices.

Brahmananda Reddy, formerly chief minister of Andhra Pradesh and a power to reckon with in his home state, felt humiliated and sidelined as home minister in Delhi. Nobody had bothered to consult him. The joke in the government was that

the home ministry was referred to as the 'Om ministry' because it was Om Mehta—who was part of Sanjay's coterie and had earned a reputation as a tale carrier—who called the shots.

Reddy was summoned to the prime minister's residence at round 10.15 p.m. on 25 June and informed that there was a deteriorating law-and-order situation in the country and it had become necessary to impose an internal Emergency. He pointed out that since an external Emergency was already in place, the powers were sufficient. When Mrs Gandhi replied that it would be wiser to go for a second Emergency, he did not argue the point. He said she must do what she thought fit. He signed a letter to the President, referring to the conversation between the prime minister and Fakhruddin Ali Ahmed earlier in the day, and appended the draft proclamation of the Emergency for the President's assent along with his letter. The letter was on a plain sheet of paper and not even on the letterhead of the home minister of India.

The President's Secretary, K. Balachandran, would later confirm (before the Shah Commission) that a Top Secret letter from the prime minister to President Fakhruddin Ali Ahmed was received at around 10.30 p.m. that night. It referred to the discussion the prime minister had had with the President earlier in the day. She asked that if the President was satisfied, a proclamation under Article 352(1) of the Constitution be declared. When Balachandran was shown the letter he suggested to the President that it would be constitutionally wrong for him to act in the manner suggested as he had to act on the advice of the council of ministers. He pointed out that the letter was worded in a manner to indicate that the decision to declare the Emergency was that of the President. The President seemed

to agree with his argument and called up the prime minister. But after Ahmed spoke to Mrs Gandhi his reservations melted away. After all, he owed her an enormous debt of gratitude for installing him as President. In the brief intervening period, the ubiquitous Dhawan called on the President and delivered the draft of the proclamation of the Emergency for his signature. Ahmed signed the document around 11.45 p.m. and returned it to Dhawan, who recalls that, contrary to Balachandran's claim, Ahmed did not demur in the slightest at the wording of the ordinance when it was shown to him.[16]

The proclamation of the Emergency was brief and read as follows:

> In exercise of the powers conferred by clause 1 of Article 352 of the Constitution, I, Fakhruddin Ali Ahmed, President of India, by this Proclamation declare that a grave emergency exists whereby the security of India is threatened by internal disturbances.
>
> PRESIDENT
>
> New Delhi – 25th June, 1975

Mrs Gandhi did not consult her cabinet before the imposition of the Emergency because she trusted them as little as she did her opponents in the Opposition. Such was the Byzantine atmosphere of intrigue surrounding her court that her ministers, in turn, were convinced that she was spying on them.

Jagjivan Ram believed his phone was continuously tapped and later claimed his extreme caution and silence during the Emergency was because he knew the PM had assigned people to keep tabs on him. Another minister, exercising abundant precaution, put a tea cosy over his telephone for fear that his phone was bugged and his conversations were being listened to. Mrs Gandhi treated her ministers with such contempt that she did not convey instructions to them directly but let her office staff, usually Dhawan, act as messengers.

Of all her ministers Mrs Gandhi was most suspicious of Jagjivan Ram who considered himself the seniormost minister in the cabinet and the one who seemed most likely to take charge in case she stepped down. In 1969 he had stuck with Indira when the rest of his senior Congress colleagues had joined the camp against her, referred to as 'the Syndicate'. She in turn had forgiven him for his 'memory lapse' in forgetting to pay his income tax for ten years.

Jagjivan Ram, who belonged to a Scheduled Caste, was rumoured to have the support of some eighty Scheduled Caste MPs. Mrs Gandhi, fed by IB reports, believed correctly that he was in touch with the Young Turk rebels in the party like Chandra Shekhar and Ram Dhan, who were sympathetic to JP's movement. In fact, Chandra Shekhar had hosted a dinner for JP which was reportedly attended by some fifty Congressmen. The fact that JP had once referred to Jagjivan Ram as an able and efficient minister probably added to Mrs Gandhi's suspicions. Immediately after the Justice Sinha judgment, Jagjivan Ram conveyed to some Young Turk party colleagues that he felt Mrs Gandhi should resign. But he backtracked when he found Mrs Gandhi in complete control.

When Kuldip Nayar of the *Indian Express* called on Jagjivan Ram on the morning of 26 June, Jagjivan Ram was jittery and expressed fears for his own safety.[17]

Y.B. Chavan, the strongman of Maharashtra, was another who nursed dreams that the judgment voiding Mrs Gandhi's election could turn into an opportunity for him. But Chavan was too intimidated by Mrs Gandhi to take any initiative to seize power.

When Indira Gandhi's ministers were woken up at 5 a.m. on 26 June and summoned for a cabinet meeting, there was bewilderment as to what it was all about. But when the cabinet met a little after 6 a.m. no one raised a whimper of protest except, surprisingly, the mild-mannered defence minister, Swaran Singh. Mrs Gandhi announced that the proclamation of the Emergency had become imperative because the law-and-order situation in the country was getting out of hand. The home secretary S.L. Khurana, who was also out of the loop till the very end, read out the proclamation and Om Mehta explained the background.[18]

Swaran Singh inquired about the need for a second Emergency when there was already an external Emergency in operation. The prime minister responded in a manner which suggested that he should have known better than to ask superfluous questions. Swaran Singh was never able to live down his act of temerity in questioning the PM. He was stripped of the defence portfolio shortly afterwards. Mrs Gandhi described JP's speech of the previous night as highly inflammatory. She also informed the gathering of the imposition of censorship. The cabinet meeting lasted barely fifteen minutes. Meanwhile, the next stage of the Emergency plan had already been set in motion.

2

The Midnight Knock

Hours before the cabinet meeting on the morning of 26 June, senior officials throughout the country had been asked to begin the formalities for the arrest of political leaders and activists. Delhi's district magistrate (DM) and deputy commissioner, Sushil Kumar, was visibly disturbed and 'trembling like a leaf' when he met the city's five additional district magistrates (ADMs) at his residence past midnight, recalls Pradipto Ghosh, then ADM (South). Sushil Kumar had just returned from the prime minister's house after meeting the PM's close aide R.K. Dhawan, to try to explain that it would not be possible to detain prominent political leaders from the opposition parties under the Maintenance of Internal Security Act (MISA) in the limited time available that night. It made more sense to make the arrests under the preventive sections of the Criminal Procedure Code (CrPC). He had already met the Delhi lt governor Kishan Chand and DIG Bhinder at Chand's residence, but both men were

adamant that the arrests be made only under MISA, since that way the courts could be bypassed—under its draconian provisions, those arrested could be held without trial and judicial review for as long as the Emergency lasted.

Dhawan's manner and tone when Kumar pointed out the problem were aggressive and threatening. 'I certainly got a clear impression that any further resistance or delay on my part in issuing the warrants would be fraught with danger to me personally,' recalled Kumar before the Shah Commission. He felt that Dhawan was giving him orders so authoritatively because he was doing so at the behest of the PM herself. ADM (North) S.L. Arora, who had accompanied Kumar to the PM's house, confirmed that he found the DM quite upset when he came out of Dhawan's office.[1]

The lt governor insisted that Sushil Kumar process the arrest warrants without waiting for incriminating evidence on the earmarked MISA detainees to come from the police stations. All the arrests were to be made simultaneously so that there was an element of surprise, and those on the list could not be forewarned and thus evade arrest. Dhawan was highly critical of the delay in Delhi compared to the arrests in other states, and ordered Kumar to hand over the warrants to the police without insisting on 'technical requirements'.[2]

Dhawan was also furious with the Delhi Police. He summoned Delhi's IG, Bhawani Mal, around midnight, and asked him whether the Delhi Police was developing cold feet. Bhawani Mal assured him that the arrests would be carried out speedily, after the warrants were received from the ADMs.

When some of the ADMs repeated the same argument that Kumar had made to Dhawan, that they first needed to

be supplied with the grounds for detention, Kumar threw up his hands, 'The job has to be done. The grounds will come subsequently. You merely give detention orders and coordinate with the SPs. They will take out our blood if we don't issue the order,' he remonstrated.[3]

Apart from being forced to ignore both the spirit and the letter of the law, the DM and his team had another problem on their hands. Each detention required a set of around five MISA warrant slips. Since there were around 100 persons to be arrested, 500 slips were required. Ghosh, ADM (South), was instructed to rush to the Tis Hazari offices (where the Delhi district courts were housed) and cyclostyle the MISA warrants using an old MISA slip as the sample. Six persons worked frantically at the machine. After around 100 slips were printed the machine broke down. The first lot was sent post-haste to Sushil Kumar while they tried their luck with a second machine. The second machine did not just break down, it tore the stencil paper so that the stencil had to be retyped. Finally, the slips were printed on a hand-cranked machine.

It was 4 a.m. on the early morning of 26 June by the time the detention slips reached Kumar's residence. There was no time to fill in names, particularly as the full quota of 500 MISA warrant slips was not yet ready. Each ADM was sent to a major police station and it was decided that the police would first arrest the person and only then would the form be filled out. 'Ironically, at the time we were filling out the forms, nobody told us that a state of Emergency was in place. That we got to know only when we reached home at around 8 a.m. We were implementing a procedure without even

knowing the constitutional position,' admits Pradipto Ghosh. The operation was planned and carried out in so secretive a manner that the IB chief, S.N. Mathur, claimed he came to know about the Emergency only on the morning of 26 June. Home Secretary S.L. Khurana got a phone call late on the night of 25 June, informing him that arrests were being made, but he had no clue what the arrests were about.

At the Defence Colony police station, policemen were bustling around, getting ready to round up politicians on the arrest list. Ghosh recalls, 'Someone came to me, said he had phoned Subramanian Swamy's house, and his wife had informed them that he was not in Delhi. Swamy was my professor at IIT [Indian Institute of Technology], Delhi, and I had seen him hours earlier at the JP rally and waved to him. But I kept quiet and said, "Let's move on to the next name on the list."'[4]

Lt Governor Kishan Chand later testified that the list of persons proposed to be detained was prepared in the PM's house. It had been an ongoing process since 12 June. K.S. Bajwa, SP (CID), Special Branch, Om Mehta and R.K. Dhawan were the key decision makers. Names were constantly being added and dropped from the list. Ram Dhan's name was not there in the beginning but was added later. The petroleum minister K.D. Malaviya's name figured at one stage, as did that of George Verghese, former editor of the *Hindustan Times*. But their names were deleted in the final list. (Sanjay seems to have suggested their names as he had a grouse against both of them because of their criticism of the Maruti project.) Kishan Chand confirmed that every single name on the list was seen and approved by Mrs Gandhi,

and the detentions made on the night of 25 June were with the express approval of the PM.[5]

Within four days of the declaration of the Emergency, an amendment came into effect in the MISA rules, doing away with the obligation to communicate the grounds for detention to all those detained on 25 June and the following days.

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The first person to be arrested in Delhi was my former boss K.R. Malkani, editor of the Jana Sangh–RSS–controlled *Motherland* newspaper, whose bold, sometimes sensational reports and stridently anti-Gandhi line had personally infuriated the PM. The newspaper's controversial articles included the charge that there was a political conspiracy in the murder of the railway minister Lalit Narayan Mishra in a bomb explosion in Samastipur. It dug deeper than other publications into the infamous Rustom Nagarwala case in which Nagarwala, a retired army man, was accused of swindling the State Bank of India of Rs 60 lakh by mimicking Mrs Gandhi's voice and ordering the head cashier to deliver the money to Nagarwala. The article claimed that Nagarwala was an agent of the Research and Analysis Wing (RAW), with insider knowledge of RAW's secret bank accounts, which were at the disposal of the country's first family. The *Motherland* also raised many embarrassing questions about Sanjay Gandhi's Maruti factory, which were taken up in Parliament.

As far back as 30 January 1975, the *Motherland* had carried a report claiming that there was a plan afoot to arrest JP, ban

the RSS and seal the *Motherland*. The tip-off was reportedly given to the newspaper by *Indian Express* owner Ramnath Goenka, whose own newspaper did not carry the news since it could not be verified. The *Motherland* report about the impending arrests, which was dismissed as far-fetched and unsubstantiated by most in the media at that time, in retrospect appears to have been based on solid evidence.

Malkani was woken up before 1 a.m. on 26 June by a group of policemen who banged on the gate of his Rajendra Nagar bungalow and told him he was wanted at the police station. His house was surrounded on all sides, his small garden swarming with policemen. His alarmed wife, Sundari, asked what it was all about, but the response was simply, 'Malkani sahib knows.' The policemen were not able to produce any warrant of arrest. Fearing for his life, Malkani finally reached an agreement with the police: he would be accompanied to the police station by a friendly neighbour who could act as witness to make sure he was not being kidnapped. Malkani also made a call to the *Motherland* office to pass on the news and told them to inform the RSS, the Bharatiya Jana Sangh, Press Trust of India (PTI) and United News of India (UNI) immediately.[6] His message served as a timely warning for several people, who thereby managed to escape the police dragnet. News of his arrest was also carried in a small box on the front page of the *Hindustan Times*. This was the only Emergency news that made it to the next day's newspapers.

When Malkani reached the New Rajendra Nagar police station, it was empty except for one police officer. Around 2.30 a.m. Dr Bhai Mahavir, vice president of the Jana Sangh, was brought in and Malkani felt reassured that he was not

being singled out. Both men were driven to the Defence Colony police station where they found other detainees. Most of them were from the Jana Sangh and Anand Marg. There was also one Marxist, Major Jaipal Singh. Around 4.30 a.m. they were finally served with arrest warrants under MISA.[7]

At the Civil Lines police headquarters in Old Delhi, many new detainees arrived, including Biju Patnaik, Piloo Mody, Raj Narain, Chandra Shekhar, Samar Guha and Ram Dhan. The prisoners were taken in police vans without being informed of their destination. Raj Narain, a veteran who had been jailed dozens of time both during British rule and later by the Congress government, was the coolest of them all. He stretched himself out on three long planks in the police van and, using his holdall as a pillow, went to sleep.[8]

The final destination was Rohtak jail where the prisoners were escorted into the main community hall. The prisoners started speculating about Indira Gandhi's intentions. Somebody suggested they would be in jail for a week, someone else felt a month was more likely. Patnaik talked gloomily of spending the rest of their lives in jail. When several expressed shock at the prospect, he amended it to suggest, 'You can make it ten years.' He explained, 'I know how ruthless she can be.' Soon they were joined by Congress(O) leaders Asoka Mehta and Sikander Bakht. Shortly afterwards, there was a radio announcement that a national Emergency had been declared.[9]

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At the Gandhi Peace Foundation, at around 1.30 a.m. on 26 June, the secretary of the foundation, K.S. Radhakrishna,

woke up to find that three truckloads of policemen had laid siege to the compound. The SP and DSP (deputy superintendent of police) who entered the building were apologetic as they produced the arrest warrant for JP. Radhakrishna tried to prevaricate and request that JP be allowed to sleep for a while longer as he was unwell. In the meantime, he rang up a few political leaders to alert them. When he got through to Morarji Desai's home he was informed that the police had already arrived there. Radhakrishna also contacted Chandra Shekhar and asked him to rush to the Gandhi Peace Foundation immediately. Shekhar arrived just as JP was being taken away at around 3 a.m. He and Radhakrishna followed JP to the Parliament Street police station. A small crowd of journalists and party workers who had been tipped off were standing outside the station despite the early hour. The police took Chandra Shekhar into custody as well, explaining that a police team had, in fact, gone to his residence to arrest him. Radhakrishna told JP that the press standing outside wanted a comment from him about the arrests. JP looked at Radhakrishna and said, *'Vinaash kale vipareeta buddhi'* (When the moment of destruction is at hand reason abandons the mind). This is comparable to the English adage 'Those whom the gods want to destroy, they first make mad'.[10]

Unlike the other prisoners, JP and Morarji Desai were taken to a guest house in Sohna in Haryana. The two met when they entered the guest house but never subsequently. They were kept apart. And they were not permitted even to receive visitors. It was much later, after Desai's daughter-in-law Padma Desai filed a writ, and the high court decreed that rules had to be framed concerning meetings between

prisoners and their families, that relatives were allowed to meet him.

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Arun Jaitley, president of the Delhi University Students' Union (DUSU) and convener for JP's student- and youth-wing organizations, was sleeping at the back of his open courtyard in Naraina on the night of 25 June when he heard someone climbing over his wall. He peeped out and saw his father arguing with some policemen at the gate. His father told them that his son had not returned home that night. The policemen took his father to the local thana and let him off with a warning that if Jaitley returned home he should report to them. Jaitley presumed the policemen were making preventive arrests for the planned national satyagraha on 29 June. He quietly made his way out from the back entrance of his house and into the service lane, and spent the night at a friend's house in the same colony. In the morning, some boys from the Akhil Bharatiya Vidyarthi Parishad (ABVP), the Bharatiya Jana Sangh's student wing, picked him up from his friend's and escorted him to the university. It was around 10.30 a.m. but they managed to gather some 200 students, mostly ABVP members, a sizeable number considering that Delhi University was closed since the process for new admissions had begun. Jaitley was unaware that an Emergency had been imposed, but he knew that several senior leaders had been arrested.[11]

The students gathered outside the vice chancellor's office and Jaitley, as DUSU president, made a speech. An effigy of

Mrs Gandhi was burnt. Some lecturers and others had arrived to see what the commotion was about. Jaitley later recalled what happened at the university that morning: 'We learnt that there was a huge police force led by P.S. Bhinder, DIG (Range), surrounding the whole place, waiting to take us into custody. I asked my companions Vijay Goel [now a Delhi BJP leader] and Rajat Sharma [now a well-known TV anchor] to disappear and announced that I would court arrest. However, on the off chance that I would manage to escape, I requested Prabhu Chawla [now a prominent journalist], another ABVP colleague, to meet me with his scooter at a little-known side entrance of a university building. I did manage to temporarily evade the police, but when I reached the assigned spot I found that Chawla was not there. He had ditched me. Later we learnt that he, Balbir Punj [former BJP MP in the Rajya Sabha] and Shriram Khanna had signed the Twenty Point Programme.'[12] (Pledging support to Mrs Gandhi's Twenty Point Programme during the Emergency was a way to declare that you had disassociated yourself from oppositional activity and now supported the government.)

Jaitley was caught by the police and taken to the Alipur police station where they filled out a blank MISA warrant form in his name. He was bundled into a police van and taken to Tihar jail. While in the police station, he and the others who had been rounded up heard the news about the imposition of the Emergency on a transistor radio. They also came to know that censorship of the press had been imposed, because when one of the ABVP boys had telephoned the *Evening News* to request coverage of the rally, he was told that censorship laws were in place. Jaitley was put in Ward

No. 2 of Tihar jail along with many other political prisoners. Charti Lal Goel, a local politician, was the oldest. He asked expectantly if there was a bandh all over the city to protest against the large-scale arrests. Jaitley had to explain that there was a fear psychosis in the capital and that Delhi was quiet.[13]

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One day earlier, on 25 June, Jana Sangh MPs Atal Behari Vajpayee and Lal Krishna Advani, along with Congress(O) MP Shyam Nandan Mishra, had arrived in Bangalore to attend a meeting of the Joint Parliamentary Committee dealing with a proposed law against defection. Around 7.30 a.m. on 26 June Advani received a phone call from the local Jana Sangh office. There was an urgent message for him from Delhi from Rambhau Godbole, one of the secretaries of the Jana Sangh, breaking the news that JP, Morarji Desai, Malkani and several other important opposition leaders had been arrested. He warned Advani that the police were bound to come to arrest him and Vajpayee. Advani passed on the news to both Mishra and Vajpayee. After a brief discussion among themselves they decided they would not try to evade arrest. At 8 a.m. they heard the news bulletin on All India Radio (AIR) in which Indira Gandhi announced in a sombre voice that a state of Emergency had been declared.[14]

Soon, the Bangalore police had arrived to arrest them. Vajpayee and Advani quickly prepared a joint press statement condemning the arrest of JP and other leaders, denouncing the Emergency and declaring that 26 June would have the same historic significance in the history of independent India

as 9 August 1942 had in pre-Independence India. The press statement was never printed because of censorship laws. They came to know that Madhu Dandavate of the Socialist Party had also been arrested. The four men were taken to the Bangalore central jail. Advani wrote in his diary, 'June 26, 1975 may well prove the last day in the history of Indian democracy as we have understood it. Hope this fear will be proved unfounded.'[15]

Within a few days of his arrest Vajpayee had to be rushed to hospital as he was suffering from acute stomach pains and high fever. The doctors at Bangalore's Victoria Hospital operated on him for appendicitis, which turned out to be a misdiagnosis. Vajpayee had typhoid, and after the unnecessary operation he developed septicaemia. To add to his health issue, an agonizingly painful slipped-disc problem surfaced, which made it impossible for him to move. Finally, he was transferred to the All India Institute of Medical Sciences (AIIMS), Delhi, for further treatment.

At AIIMS Vajpayee was kept isolated on the fifth floor. The entrance to his room was guarded, and there was wire netting on his windows. Nurses were scared to enter the room because of the fear of the policemen. The night before his operation for the slipped disc, while Vajpayee was being kept on traction, there was not a soul to attend to him. He could not even ask for a glass of water. It was with great difficulty that his foster family who stayed with him, the Kauls, were permitted to see him. The procedure to obtain permission was lengthy and time consuming. It involved getting clearance from Om Mehta and the PMO before the file could be sent to the ADM's office for final orders.[16]

Eventually, because he was bedridden, Vajpayee was granted parole to stay at home. But his house on Ferozeshah Road was placed under constant surveillance. Except for next-door neighbour Prakash Vir Shastri, an MP, who occasionally conveyed news across the wall, few dared to visit. Even the vegetable vendors stayed away. The neighbourhood taxi drivers were reluctant to take the Kauls in their taxis, because they would be subjected to relentless interrogation by the police. 'We were treated as untouchables,' recalls Namita Bhattacharya, a member of the Kaul family and Vajpayee's foster-daughter.[17]

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The detention of the major opposition leaders was the first day's exercise. Soon thousands of ordinary people as well as petty criminals were being rounded up by the authorities on flimsy, usually totally false grounds. There was no recourse to the courts to get relief. Although there were supposed to be detention reviews every four months, these were just mechanical exercises—there was no intention of releasing the prisoners. Increasingly, the home ministry played less of a role in the reviews of MISA detainees. It was the word of Lt Governor Kishan Chand, his all-powerful aide Navin Chawla, SP (CID) Bajwa and DIG (Range) Bhinder which decided who should be freed from MISA detention. A former deputy secretary to the lt governor later testified before the Shah Commission that Kishan Chand would clear the important files, particularly those relating to advice or directions from the home ministry, only after consulting

Chawla. Often Chawla would bring information directly from the PM's house and action would be taken accordingly.[18] Some detainees were released after local Congress leaders stood guarantee for their good behaviour.

Pradipto Ghosh recalls Chawla summoning him and ADM (East) Girish Srivastava and ordering them to 'fabricate evidence' whenever they found the material supplied by the police to be inadequate. Ghosh remembers how Chawla threatened them, 'What's this about your demanding grounds for detention? You can't stand on such technicalities. I know the lt governor's mind and he would have no hesitation in putting IAS officers behind bars under MISA.'[19]

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The conditions in most jails were appalling. They were overcrowded, the sanitary arrangements were practically non-existent, there was an acute shortage of water, the food was nearly inedible, medical arrangements were inadequate and the whole atmosphere was oppressive.[20]

Delhi's Tihar central jail could accommodate 1273 prisoners. But on 26 June 1975 there were already 2669.[21] The number of inmates would rise to 4250 by March 1976. Water and sewage services were sufficient for only 750 people. The water pipes had corroded and were leaking. All water tanks, WCs and cisterns were broken and no major repairs had been carried out in the past eighteen years. Chawla, who walked in and out of the prison with impunity, had even suggested that some new cells could be constructed with asbestos roofs so that the prisoners would bake in the heat. Chawla also

proposed that certain troublesome detainees should be kept with the 'lunatics'.[22]

Kuldip Nayar, the editor of the Express News Service, who had been arrested on 24 July and put in Tihar jail, later described the experience in his book *In Jail*: 'The dal was watery and the chappatis half made' and flies would float on the surface. But, over a period of time, like other prisoners, he too got used to fishing the flies out and eating without a qualm.[23] In the barracks twenty-eight prisoners were accommodated with just one fan and only three dry latrines for which they had to queue up in the morning. The stench was overpowering, and could not be masked even by burning incense. Prisoners bathed in the open. There was only one water tap which was shut off at 9 a.m. and most of the prisoners depended on handpumps. It needed hard work just to release a trickle.

Jyotirmoy Basu, the Communist Party of India (Marxist)—CPI(M)—MP from Diamond Harbour (not to be confused with the late West Bengal chief minister Jyoti Basu) filed a writ before the Delhi High Court stating that since 9 July he had been kept in solitary confinement in Hissar jail. The building where he was confined was also used for prisoners awaiting execution. Throughout the day the condemned prisoners let out blood-curdling cries. His cell had no window, although near the roof there was a small ventilator, which allowed drain water and dust to enter the cell.

The impact of such harsh conditions was to wreck the detainees physically and mentally and force them to write humiliating letters of apology to the authorities.

Applications for parole were dealt with in a heartless fashion. Prisoners were denied parole for even a few days to

perform the last rites of a parent or to visit an ailing relative. Dr J.K. Sharma, head of the department of philosophy at Delhi University's Hansraj College, requested parole on the death of his father-in-law. He was granted four hours from noon to 4 p.m. He could not avail of this as he was in Ambala jail and his father-in-law had passed away in Delhi. Parole requests by student detainees to take their exams were routinely denied.

Several detainees died in jail because medical treatment was not provided in time. T.R. Narula, a prisoner in Tihar, was repeatedly denied parole by Lt Governor Kishan Chand despite the doctor's report and numerous petitions from his family. He was finally released only on 2 April 1976 after the eminent cardiologist Dr Padmavati reported that his condition was critical. He died the same month while on parole. JP, in his letter after his release, recalls three deaths in jail he personally knew about. In Chandigarh, a prominent lawyer, C.L. Lakhanpal, died while in detention. In Bihar, Ramachandra Sahi died in Darbhanga jail. An ailing Vaidyanath Prashad Chaudhary's condition worsened daily but he was released from Varanasi prison only when he became critically ill, and he died soon afterwards.

An ugly feature of arrests and detentions under Defence of India Rules (DIR) was the immediate rearrest of persons released on bail. The police collected from the superintendent of Tihar every evening the names of persons who were to appear in the court for hearings of bail applications. The information was passed on to DSPs who were asked to take 'suitable executive action' if the prisoners were released on bail. Outside the jail gates, policemen waited to rearrest prisoners who had just been bailed out.

Jaitley recalls that although hardships abounded in prison, over time some concessions were made. Periodic protests helped to improve the conditions in jail. The prisoners managed to get the right to use heating rods for bathing water in winter. Later they were even allowed a transistor and a black-and-white TV. The amount spent on food for the convicts was increased. The jail staff were usually sympathetic. Doctors and dispensing staff came daily to distribute medicine, and they often prescribed a more palatable 'medical diet' apart from the regular badly prepared fare. Families on weekly visits were also allowed to bring food for the inmates.

'Jail is a state of mind. If you are too upset about your position you would get depressed and demoralized and have hair loss and other traumatic experiences. If you were young and thinking of fighting the Emergency you felt fine,' Jaitley reminisces. 'You could create your own world inside the prison walls. Listen to the early-morning BBC news on transistors, take tea and play on the badminton court every morning. Convicts oversaw your breakfast. There were things to look forward to like oil massages, taking books from the jail library, reading underground literature including good foreign articles.'[24] Around 4 p.m. the detainees would gather together and one person would speak on a subject, usually politics. In the evenings the prisoners played volleyball. Some played cards; Charan Singh was very fond of sweep.[25]

Despite the Emergency, corruption in jail was rampant. The jail manual introduced by the British is a very precise document, which lays down exactly the amount of calories a prisoner is entitled to, the quantity of firewood to use, the protein count in the food and the amount of hair

oil to be doled out. My husband, Virendra Kapoor, who was imprisoned later (see chapter 5), has his own vivid recollections of his days in prison: 'In reality, we got a fraction of what was stated in the rules—the major share was siphoned off by the staff . . . The chapattis were invariably half-cooked because three-fourths of the firewood supposed to be used was not supplied to the kitchen. The dal was just a watery gruel—you had to search really hard to find any grains or potatoes.'

Virendra also remembers a known 'bad character' detained under MISA who ran the city's only cabaret. He had gifted an Ambassador car to the jail superintendent so he was allowed to do what he pleased. He stepped out of jail during the day and returned only at night. Once the man even organized a cabaret show for the prisoners and the staff.[26]

Some political activists were demoralized, especially those who believed they would be incarcerated forever. But more traumatized than the political prisoners were the ordinary people who had been picked up at random. For instance, 150 lawyers who protested the demolition of their chambers were brought to jail. Some of the lawyers wept frequently.

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The few women detainees were far worse off than the male prisoners because they were only a handful, and there were no proper conditions in place for them. Tihar in those days was not a prison for women—it was only for women undertrials.

The former maharani of Jaipur, Gayatri Devi, was housed in Tihar jail in a small room with a veranda which was meant

for visiting doctors. It had open sewers running along its side. The room was already occupied by Shrilata Swaminathan, a dedicated NGO worker who had incurred the wrath of the authorities because she had organized farm labourers working on the plush farmhouses bordering Delhi. Rajiv Gandhi was one of those who owned a farmhouse in Chhatarpur, then an outlying region of the capital.

As an erstwhile royal, Gayatri Devi was given some special facilities by the Tihar jail superintendent—a newspaper along with her morning tea, and a fellow prisoner, Laila Begum, to clean her room. She was also allowed to take a walk in the evening with her stepson Major Bhawani Singh (Bubbles), who had been arrested along with her. These small concessions kept her going and insulated her to some degree from the terrifying world around her. Women prisoners were released only for two hours in the morning and two in the evening. 'It was like a fish market with petty thieves and prostitutes screaming at each other,' she recalled in her memoirs.[27] Sympathetic friends from overseas sent all sorts of presents, from books and perfumes to chocolates and Christmas pudding. The maharani spent her days reading and embroidering. She also assisted the children of the convicts in getting textbooks and slates to start some lessons, and helped set up a badminton court. Gayatri Devi soon developed an ulcer in her mouth and it took three weeks for the authorities to permit her personal dental surgeon to visit her. It was several more weeks before the prison superintendent would allow her to be operated on at the clinic of a well-known Delhi dentist, Dr Bery.[28]

The internment of the Rajmata of Gwalior, Vijayaraje Scindia, was longer, but she was probably less traumatized

by her experience than Gayatri Devi. 'There was a glow on her face. The Rajmata of Jaipur on the other hand looked haggard and shell-shocked,' recalls Virendra Kapoor.[29]

In Tihar jail the two maharanis greeted each other in the traditional style of the heads of two royal houses, with bowed heads and folded hands, when they first met. But Gayatri Devi could not help bursting out, 'Whatever made you come here? This is a horrible place.'[30]

Vijayaraje's cell was at the very edge of the women's ward. It was a small, narrow room with a high, barred window. The common bathroom had no tap. A hole in the ground, covered with a plank, served as a toilet and a sweeper came twice a day to flush it with a bucket of water. There was an all-pervading stench, ever-present flies and mosquitoes and perpetual noise. The location of her cell, between the men's and women's wards meant that she got to hear the sounds from both sides. The women inmates engaged in frequent slanging matches, with their children constantly howling; from the other side of the wall came the sounds of political slogans and patriotic songs as well as demented screams and maniacal laughter.[31]

The maharani bore these conditions stoically. She tried to make the best of the situation, drawing strength from her regular reading of the scriptures. For a month her family had no idea of her whereabouts. Vijayaraje used her time in jail to try and improve the lot of her fellow prisoners. She acted as mother confessor and confidante to many of them. A prisoner accused of murder was assigned as her personal maid and the woman looked after her with great dedication. Vijayaraje instructed her daughters to bring clothes for the

children, as well as cough syrups and sweets. She also taught the prisoners to sing bhajans as a change from their usual repertory of film songs, which they referred to as cabaret numbers. When Vijayaraje finally left the prison, the female convicts lined both sides of the entrance to the inner gate and strewed her path with petals to show their gratitude.[32]

The maharanis probably had a less torturous incarceration than some of the other women detainees. In Bombay the gutsy, no-nonsense socialist leader Mrinal Gore was asked to share a toilet with the woman in the adjoining cell who suffered from leprosy. In the cell opposite hers there was a lunatic who kept stripping off her clothes and shrieking day and night.[33]

For some students and teachers of Delhi University, who were jailed for distributing underground literature and evading arrest, the painful part was not the detention under MISA but the period before that. They had been kept in police custody and tortured to make them reveal the hideouts of the others in the underground movement. Raj Kumar Bhatia, general secretary of the ABVP, was kept in the police lock-up in Shahdara police station and made to stand continuously for thirty-six hours. Om Prakash Kohli, president of the Delhi University Teachers' Association (DUTA), who was a polio victim with a lame leg, was not allowed to sit down for a day and a night. The worst brutality was reserved for Hemant Bishnoi, an ABVP activist who eluded arrest till October 1975. To make him talk, the police resorted to all sorts of cruelty with the encouragement of the Shahdara station house officer (SHO). Two musclemen hit the soles of his feet

with lathis so that he was unable to walk for days. They removed his clothes and hit him with straightened rubber tyres. When this failed to work they put a bamboo under his knees and spun him round and round like a chicken on a skewer. The last exercise in third degree torture was suspending him upside down and pouring cold water on his face. Chilli powder was mixed in the water and pushed down Hemant's nostrils.[34]

With the swift and brutal operation to round up opposition politicians under way, Indira Gandhi's coterie now turned their attention to shackling the media.

3

The Media Muzzled

Inder Kumar Gujral, the mild-mannered and courteous minister for information and broadcasting (I and B), had been getting flak even before the Emergency was declared, because Sanjay Gandhi felt that the government-controlled media, AIR and Doordarshan, were not giving the desired spin to the news. Sanjay gave Gujral a severe dressing-down on 20 June 1975, the day of Indira Gandhi's massive Boat Club rally. Although Gujral had been summoned to meet the PM he was told to speak to Sanjay instead. Mrs Gandhi's son wanted to know why the rally was not being relayed live on television. Gujral swallowed his pride and tried to explain that the rule was that no political rally was covered live without direct orders from the director general. But Sanjay was in no mood to listen. Another grievance was that the Hindi AIR had carried verbatim the PTI news of the Supreme Court's temporary stay to Mrs Gandhi position as MP, without giving it a positive

spin. Sanjay had accosted Gujral in the PM's anteroom and yelled, 'You don't seem to know how to control your ministry. Can't you tell them even how to put out the news?'[1] Gujral rather rashly retorted that he too was upset about the coverage, but he did not have to offer Sanjay any explanation.

The next day when Gujral met Indira Gandhi, she was furious. She said that in future she wanted to see the radio and TV scripts of all news bulletins. When Gujral ventured to protest that even he did not get to see the scripts, she snapped back that whether he saw them or not, the prime minister wanted to see them.[2] On 26 June 1975 both mother and son pulled up Gujral for allowing Doordarshan to telecast bits of JP's rally of 25 June, even though pains had been taken to restrict coverage to a few stray clips, without revealing the full extent of the crowd.

At 6 a.m. on 26 June, P.N. Bahl, joint secretary in the PMO, walked into the AIR newsroom and took charge. He asked the director general, AIR, to get a team ready to record Indira Gandhi's message to the nation which would be broadcast at 8 a.m. instead of the news bulletin. Early in the day Mohammed Yunus, a family friend of the Gandhis, who wielded enormous clout—although his official position was vague—telephoned Gujral in a rage. He claimed that BBC had reported that some members of the government such as Jagjivan Ram, Swaran Singh and Gujral himself did not support the Emergency and had been put under house arrest. Yunus wanted Mark Tully, BBC's New Delhi correspondent, arrested: 'Pull down his pants and give him a few lashes and put him in jail' was his advice.[3] Gujral conveyed to Yunus

that it was not his job but that of the home ministry to make arrests. Later, on investigation, it turned out that it was not the BBC, which was monitored by AIR, that had broadcast the offending report, but a Pakistani news programme.

Gujral explained this to Mrs Gandhi and thought he had mollified her and convinced her that he was doing his best to ensure favourable coverage. Another black mark against Gujral was that although DESU had cut off power to the newspapers located on Bahadur Shah Zafar Marg on the night of 25 June, it had forgotten to take similar action against the *Hindustan Times* and *Statesman*, which were located in the Connaught Place area. (This, in fact, had nothing to do with Gujral as the orders had been given directly by Sanjay to the lt governor to pass on to the general manager of DESU, B.N. Malhotra.) Later the same day, Gujral was called to Mrs Gandhi's office and informed that he was being relieved of his portfolio. Sanjay had convinced his mother that Gujral was too soft in his handling of the media.

On 26 June itself, V.C. Shukla, who was then minister of state for defence production, took over informally from Gujral and was present at a high-level meeting that night chaired by Mrs Gandhi. The law minister, H.R. Gokhale, and the chairman of the policy planning division of the ministry of external affairs, G. Parthasarathy, were also present. At the meeting it was decided that a law should be passed to prevent 'scurrilous' and 'malicious' writings in newspapers and journals, and that news agencies should be restructured and the Press Council of India wound up. (The Press Council was an independent body set up in 1966

for preserving press freedom, to ensure that newspapers maintained professional standards and that journalists adhered to a code of conduct.)

It was felt, moreover, that the government policy regarding issuing of advertisements to newspapers and magazines by the Directorate of Advertising and Visual Publicity should be reviewed, as also the facilities that had been given to press correspondents by the government. Mrs Gandhi accused newspapers of inciting the people and creating an inflammatory situation. She deeply resented the fact that almost all the major newspapers in their editorials had advised that Mrs Gandhi step down after the Allahabad judgment. Once the newspapers were placed under censorship there would be no agitations, she predicted.

The new minister for I and B, V.C. Shukla, had a close association with Sanjay. In his previous capacity, the foppish Shukla had obliged Sanjay by removing an ammunition dump close to the Maruti factory, and had got his new job—which would involve clamping down hard on the media—with Sanjay's blessings. Shukla had initially attached himself to the D.K. Barooah–Rajni Patel–Siddhartha Shankar Ray coterie, until he realized that it made shrewder sense to cultivate the prime minister's son. Rising in politics through opportunism and sycophancy, Shukla was willing to follow Sanjay's orders blindly.

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Vidya Charan Shukla was the younger son of Ravi Shankar Shukla, the wealthy and powerful first chief minister of

Madhya Pradesh. With a business background of running wildlife safaris in Madhya Pradesh, the well-heeled Shukla had a reputation for enjoying the good life and being a ladies' man. He had his hair cut at the Oberoi hotel, swam daily in the hotel's pool and dressed in safari suits made of the finest polyester, shunning as far as possible the rough, white khadi kurtas donned by most of his party colleagues.[4]

Shukla made it clear on his first day as information minister that he expected the station directors of AIR and other media heads to scrutinize and screen all subordinates for any hint of subversion. He ordered that detailed background records of all editors and correspondents be prepared with the help of the IB. He was equally blunt with foreign correspondents: they could either toe the line or expect to be expelled.[5]

Soon after he took over, Shukla summoned Delhi editors for a meeting and informed them in no uncertain terms that the government would not tolerate 'any nonsense'. Confrontation would not be permitted between the press and the government, and no dissent or protest would be tolerated. The editors did not argue with the minister. After a similar meeting with editors in September that year, Chalapathi Rao, editor of the *National Herald*, whose own behaviour during the Emergency was questionable, remarked to Sharada Prasad, the PM's information adviser, 'I haven't seen such a performance of toadies even at the height of the British Raj.'[6]

Newspapers like the *Hindustan Times*, *The Hindu* and the *Times of India* caved in completely. They were eating out of the government's hand. S. Nihal Singh, then editor of

the *Statesman*, recalls: 'What I couldn't take was that Sham Lal, editor of the *Times of India*, was the meekest man and complied with everything throughout the Emergency. The day Mrs Gandhi lost the elections he wrote a whole double-column editorial to take out his bile against the Emergency.'[7] Jana Sangh leader L.K. Advani was to remark later that during the Emergency the press 'was asked to bend and it chose to crawl'.

Taking a leaf out of Goebbels's book, Shukla brought to the ministry his loyal police officer K.N. Prasad as officer on special duty. He became Shukla's eyes and ears, and kept him informed of what was happening in the media. Prasad, with Shukla's blessings, wanted to supervise the media through police officers and had even written to the home ministry, requisitioning fourteen officers from the Indian Police Service (IPS) for this task. He felt the Central Information Service (CIS) was a good cover for picking up information for the IB since CIS officers were in a position to watch journalists closely. By the end of the year thirty-three correspondents had been disaccredited, either for writing adverse reports or for being considered anti-establishment. Prasad later acknowledged to the Shah Commission that he had got the IB to check the antecedents of all accredited correspondents, in case they were associated with organizations that had been banned, for instance with the RSS.

For two days after the Emergency was declared, electricity to all newspapers in Delhi was cut so that editions could not be brought out until the censorship apparatus was well in place. The *Motherland*, which had been a thorn in Mrs Gandhi's

side for long, was sealed. The police raided the office of JP's weekly, *Everyman's*, which was brought out on his behalf by Ramnath Goenka, and shredded its last edition. *Everyman's*' staff was transferred to the *Indian Express*, including its editor, Ajit Bhattacharjea, who became deputy editor of the *Indian Express*. Censorship was imposed under Rule 48 of DIR. Although technically this related to news dealing with security issues and public order, at that time its guidelines barred just about anything that could be interpreted as being against the government or the rulers. It was specifically mentioned that these guidelines were themselves not to be published. No names were to be given of the people arrested under MISA and DIR. Communist leader E.M.S. Namboodiripad, in a letter to Indira Gandhi, said her regime had outdone the British colonizers, because even in the crucial years 1920–21, 1930–31 and 1942 the newspapers had been free to publish the names of those arrested.

When the Delhi edition of the *Indian Express* was finally published on 28 June, it apologized for not appearing for two days because there was an electricity breakdown in the office. The newspaper carried a blank space instead of the first editorial, while its sister publication, the *Financial Express*, reproduced lines from Rabindranath Tagore's famous poem: 'Where the mind is without fear and the head is held high.' It concluded with the prayer, 'Into that heaven of freedom, my Father, let my country awake.' The *Statesman* also had blank spaces and announced that the issue of the newspaper had been censored.[8]

Claiming that some newspapers were misusing their rights by indulging in irresponsible comments and misleading

the public by giving wrong news, the censors promptly warned editors about leaving editorial columns blank or using quotations from great works of literature or by national leaders like Mahatma Gandhi, Rabindranath Tagore, Jawaharlal Nehru, and so on. Even quotes from the Bhagavad Gita were proscribed. Cho Ramaswamy, editor of the Tamil magazine *Thuglak*, recalls that jokes, cartoons and satirical articles not even remotely in conflict with DIR were subjected to censorship. His magazine was forbidden from congratulating Morarji Desai on his birthday.[9] The *National Herald*, founded by Jawaharlal Nehru, supported the Emergency throughout, and cautiously removed the quote 'Freedom is in peril, defend it with all your might' from its masthead.

A few months after the imposition of the Emergency, *Shankar's Weekly*, the satirical journal famous for its cartoons, wound up. Although K. Shankar Pillai was ideologically on the same side as Mrs Gandhi, in the prevailing atmosphere he knew there was no space for his journal. In his farewell editorial, Shankar insightfully observed, 'Dictatorships cannot afford laughter because people may laugh at the dictator and that wouldn't do. In all the years of Hitler, there never was a good comedy, not a good cartoon, not a parody, not a spoof.'[10] When the chief censor H.J. D'Penha suggested timidly that it would be wise to get a clearance from the law ministry for censorship orders, so that they would be in conformity with the statutory order 275(E) under Rule 48—which listed the subjects under the scope of pre-censorship—Shukla brushed him aside. He said that if the orders were challenged in a court of law they would see that appropriate action was taken. In fact, both the Bombay High Court and the Gujarat High

Court held that the chief censor could not issue censorship orders in the guise of directions unrelated to DIR—on which grounds censorship had been imposed. But the courts' instructions were blithely ignored; censorship guidelines were continuously updated and made more stringent.

Parliamentary and court proceedings were also subjected to censorship. In the coverage of Parliament, apart from statements on behalf of the government, nothing else was allowed to be published except the name and party affiliation of a member speaking on a subject in support of or against a motion, and the results during voting on a motion. Remarks of the Chair, the empty seats in the Opposition benches and the names of missing members could not be mentioned. The PM was more liberal than her son: she and her cabinet agreed that the newspapers could mention if there was a walkout by the Opposition. This decision was, however, overruled by Sanjay and his coterie, and news of walkouts was subsequently prohibited. A law granting immunity to journalists covering Parliament which, ironically, Mrs Gandhi's husband, Feroze Gandhi, had introduced, was repealed.

A directive prohibited the publication of those judgments by state high courts which ruled against the censors. News about the opposition of certain state governments to constitutional amendments was also killed.[11]

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A four-page newsletter, *Opinion*, brought out from Bombay by retired ICS officer A.D. Gorwala, continued to defy the

censors' instructions. Gorwala was served a notice by the government to show cause why ten specific issues of *Opinion* should not be banned and the press where they were printed not be forfeited. The next day the press, which had printed *Opinion* for sixteen years, told Gorwala that it could not print the journal any longer. Gorwala shifted to another press, which bowed out after three issues. Two more printing presses backed out after initially agreeing to print. The elderly former bureaucrat started cyclostyling his leaflets and posting them to his subscribers. He was served with an order for a security deposit of Rs 25,000.

Gorwala filed a petition in the high court, which issued a stay order. But, in May 1976, the postal authorities refused to transport *Opinion* unless the issue was first cleared by the censors. Gorwala recounted his tribulations in his June edition and shortly afterwards he was forced to close down his publication. Other courageous small publications such as *Seminar* and *Himmat* also faced the wrath of the censors and could not continue publication.

The *Statesman*, printed from Calcutta and Delhi, was frequently harassed for not toeing the government line. S. Nihal Singh, the Delhi editor, issued orders that the newspaper would give prominence to international news and put national stories at the bottom of the page or inside, as a mark of protest. A furious Shukla summoned Singh and gave him a mouthful for not giving important national news the space it deserved. Nihal Singh retorted defiantly, 'If you want to tell us not just what to print but also how to display reports, you will have to devise new laws.' Shukla never forgave Singh for his impudence and

tried to prevent his appointment as editor-in-chief of the newspaper's head office in Calcutta.[12] In Calcutta, as editor-in-chief, Singh started the practice of making use of the third editorial in the newspaper, traditionally a light piece, to hit out at the government. The writing was humorous, laced with double meanings referring to the prevailing situation. The censors did not catch on to the innuendoes but the readers did.

The government tried to appoint an unspecified number of government directors on the board of the *Statesman*. However, after a protracted hearing in the Calcutta High Court, the notice was withdrawn. The main target was the paper's gutsy managing director C.R. Irani, who played a cat-and-mouse game with Shukla, staying at a friend's house and not answering his phone. Irani was a member of the International Press Institute (IPI) and he used to fill in fellow members on all that was happening in the country. To prevent Irani from attending IPI meetings the government impounded his passport without giving any reasons. A notice was issued to the *Statesman*'s Delhi office, threatening the forfeiture of its press in Delhi on the grounds that as part of the press's additional jobwork the *Seminar* journal had been published without the prior scrutiny of the censors. Attempts were also made to purchase shares of the *Statesman* by threatening the companies that held them. The shareholders, such as the Tatas and Mafatlal, opted out and instead set up trusts, of which Irani and some staff members were shareholders.[13]

The government reviewed its advertising policy to newspapers, depending on the 'loyalty' of the publication. A study was done on the views and editorial columns of newspapers

from 12 to 26 June 1975. The master copy was kept with K.N. Prasad. V.C. Shukla's hatchet man. 'A' category was considered friendly, 'B' was deemed hostile and 'C' neutral. Of the national dailies published in English from Delhi, *Hindustan Times* and *Times of India* were put in the 'A' category and *Statesman* and *Indian Express* were blacklisted with a 'B' grading.

About a month after the Emergency was declared, the government drew up a censorship agreement for foreign correspondents who wanted to continue to file stories from India. The BBC and several news agencies and publications refused to sign on the grounds that they would be deceiving the public. (One of the clauses stated that you could not disclose that you had been censored.) When the BBC refused to sign the agreement, the BBC's New Delhi correspondent Mark Tully was given twenty-four hours to leave the country. Peter Hazelhurst of the *Times*, London, Loren Jenkins of *Newsweek* and Peter Gill of the *Daily Telegraph* were others who had to leave India overnight. Jenkins wrote, 'In 10 years of covering the world from Franco's Spain to Mao's China, I have never encountered such stringent and all encompassing censorship.'[14]

Even after the BBC no longer had a correspondent in India, it continued to broadcast. The radio station got its news from Reuters, and people also used to feed information to its London office. The BBC became a byword for anti-government news. A number of rumours spread during the Emergency were credited to BBC although the reports had actually emanated from elsewhere. *'BBC mein suna hai'* was a common refrain to claim authenticity for anti-Emergency stories, Tully recalls. Even the government seemed to have been taken in by the rumours. Shukla had once summoned

Tully to find out how BBC knew that a bomb had exploded in the yard of an AIR station. Tully said he had no knowledge of it but would be happy to broadcast it now that Shukla was confirming the occurrence of the event.[15]

At the start of the Emergency, P.C. Chatterjee, director general of AIR, ventured to suggest to Mrs Gandhi that she would destroy the credibility of AIR if the government did away with AIR's code of objectivity. She responded angrily, 'What credibility? We are the government!'[16]



Within three months of the imposition of pre-censorship the Indian government announced with great fanfare that pre-censorship had now been replaced by self-censorship, and the publication of news was free and unhampered. The reality was altogether different. As jurist Soli Sorabjee notes, 'Never was a claim more thoroughly belied in practice. Numerous written and oral instructions were given by the concerned authorities relating to topics which were not even covered by the broad terms of the censorship order and which had not the remotest connection with public order or defence and safety of India.'[17]

A list of a few of the censors' orders during this period, even after pre-censorship had been supposedly lifted, gives an insight into just how totally news was blacked out.

September 1975

Reports, features, photos and captions about demolitions of jhuggis in Delhi (Pre censorship)

Reports and comments on Bangladesh (Pre censorship)

November 1975

JP's visit to Bombay (Pre censorship). No photographs to be used.

December 1975

No reports or pictures of the DDA demolition around Jama Masjid are allowed except those issued or authorized by the DDA. Edits must be cleared.

Mid January 1976

News about JP's health and any comments about him (Pre censorship)

All stories from Madras, especially statements by Karunanidhi or statements in the assembly to be cleared

February 1976

Karunanidhi's petition challenging imposition of President's Rule in Tamil Nadu in Madras and Delhi High Courts is not to be published

March 1976

All reports on Tihar jail (Pre censorship)

April 1976

DDA demolition activity around Turkman Gate (Pre censorship)

Censor is issuing the official version of the Turkman incident; this is not to be played up and should be used with the suggested heading. Any other heading must be cleared.

Reports on family planning and vasectomy at follow up centre set up by the Lok Kalyan Samiti in Delhi (Banned)

Sanjay Gandhi today walked out of a function held in his honour (Banned)

May 1976

Nothing should be published for three days until May 9 about the demolition of the Theatre Communication Building in Connaught Place, New Delhi (Banned)

June 1976

News on Acharya Vinoba Bhave's proposed indefinite fast on cow slaughter from September 11 nor any statement by the Acharya or his secretary (Banned)

JP's letter about Mrs Gandhi's contribution from the PM's Relief Fund for the purchase of dialyser for JP. (Only use Samachar).

July 1976

No adverse comments or edits on the family planning programme allowed.

August 1976

No news or comment about Subramanian Swamy having raised a point of order today in Parliament nor any other report about him relating to Parliament. (Banned)

September 1976

There [are] to be no sensational stories about Sundar dacoit.

October 1976

Fernandes statement in court on dynamite case not to be used (Banned)

December 1976

All stories relating to intra party rivalries within the Congress and between the Youth Congress and the All India Congress not to be used. This relates particularly to West Bengal, Orissa and Kerala. (Banned)

Reference to the transfer of state high court judges (Banned.)[18]

Even the news that the film actress Nargis was arrested in London for shoplifting was ordered to be blacked out.

Six months later, Indira Gandhi would claim that censorship had had salutary effects. In a speech in the Rajya Sabha on 8 January 1976 she commented, 'It is obvious that the opposition movement was not merely getting publicity, but was actually built up by our press; and it is because we denied the opposition the benefit of this, their special type of publicity, that the emergency has succeeded. In a battle the antagonists' lines of supply have to be cut off, and this is what censorship has done.'[19]

Long after the Emergency, when Indira Gandhi was back in power,* Tully took the then head of BBC to meet her. He asked

* In 1980, she made a remarkable political comeback, with a landslide electoral victory.

her how it had felt when she had lost the support of the people. Indira Gandhi replied with a smile, 'I never lost the support of the people, only the people were misled by rumours, many of which were spread by BBC.'[20] Till the end, she showed no remorse for her repressive tactics in silencing the media.

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Despite such vigilant censorship, enterprising journalists occasionally managed to smuggle in vignettes of life under the Emergency. Raghu Rai's photograph in the *Statesman*'s City Diary section titled 'Life in Chandni Chowk on Sunday' did not depict the usual scene in the bustling marketplace of the walled city. Instead, it showed a large number of policemen on the main road. It was left to the readers to deduce that the heavy police contingent was waiting for students from Delhi University who had announced they would be courting arrest. The obituary column in the *Times of India*, Bombay, regretted the demise of 'D'Ocracy, DEM beloved husband of T. Ruth, loving father of L I Bertie, brother of Faith, Hope, Justice [who] expired on 26th June'. The obituary became a popular Emergency joke. By the time the censors woke up to its true meaning it was too late. The authorities were unable to trace the author from the records of the *Times of India*'s advertising department.

The *Indian Express*, more courageous than the others in exploring the boundaries of what was permissible, carried a number of edit-page pieces which were indirect comments on the Emergency. Kuldip Nayar, early on in the Emergency, compared the ruthless regime of Zulfikar Ali Bhutto to that

of the dictatorship of Field Marshal Ayub Khan. 'The worst part is suffocation of the people. The press is gagged and statements of the Opposition are suppressed. Even minor criticism is not tolerated.' The similarities to conditions in India did not escape most readers. In the Sunday edition of the *Indian Express* Mrs Gandhi's cousin Nayantara Sahgal wrote on 'The call of clean conscience'. She reminded readers of great martyrs in history, from Socrates and Jesus to Guru Tegh Bahadur, who had preferred to sacrifice their lives rather than submit to tyranny.

The deputy editor of the *Express*, Ajit Bhattacharjea, in his column commented sharply on the Supreme Court ruling in the habeas corpus judgment which permitted arbitrary detention during an Emergency. Bhattacharjea argued that it amounted to virtual negation of the minimum democratic rights of the citizen. In his article 'Legalising Ethics' *Express* editor V.K. Narasimhan wondered whether it was an accident that nowhere in the code of ethics prepared by the All India Newspaper Editors Conference (a pliant pro-government body) did the word 'freedom' appear. Abu Abraham, the cartoonist who wrote supporting the Emergency in foreign publications, was, however, surprisingly irreverent in his cartoons back home. One famous cartoon showed President Fakhruddin Ali Ahmed in a bathtub and a hand offering some official documents to be signed. 'Tell them to wait till after I have had my bath,' the President protests. An obvious dig at the President's speedy and obliging clearance of the spate of ordinances that Mrs Gandhi forwarded to him.* Somehow the allusion escaped the censors.

* More on the *Indian Express* and its battle with the government in chapter 7.

Within a month of the Emergency the government had begun the process of merging the four existing news agencies—UNI, PTI, Hindustan Samachar and Samachar Bharati—into one single statutory body, Samachar. Protests against the merger, including by the UNI general manager, G.G. Mirchandani, were brushed aside. Samachar was both administratively and editorially to be controlled by the government, with the police officer K.N. Prasad as the overall supervisor.

All India Radio came to be jokingly referred to as All Indira Radio as, following government directions, it played up every speech by Indira and Sanjay. Written and oral instructions were frequently received from the minister of I and B himself and sometimes even from the PMO. So overwhelming was the domination of the Gandhis in the news that between 1 January 1976 and 18 January 1977, the main AIR news bulletins carried 192 items on Sanjay Gandhi alone.

Here are a few examples of the type of coverage given to the PM's son:

> 'On his arrival in Bhopal Shri Gandhi was given a rousing welcome.' (AIR news February 26 1976)
>
> 'Mr Sanjay Gandhi was taken in a big procession through the streets of Guntur.' (AIR news March 21, 1976)
>
> 'Hundreds of thousands of people lined up the roads in Tirupati to cheer Mr Gandhi.' (AIR news March 21, 1976)
>
> 'The Youth Congress leader Mr Sanjay Gandhi was given an affectionate welcome by a big crowd in Agra.' (AIR news March 2, 1976)
>
> 'On arrival at Bombay airport Mr Sanjay Gandhi was accorded a big welcome . . . Several organizations gave a

grand welcome to Mr Sanjay Gandhi all along the route from the airport.' (AIR news October 29, 1976)
'The AIR correspondent says lakhs of people turned up in Karnal to greet Mr Sanjay Gandhi. The town wore a festive look.' (AIR news January 11, 1977)[21]

A number of films were produced by the Films Division to project the image of Sanjay, not merely as a youth leader but as a leader in his own right. The decision to produce these films was taken at a meeting presided over by the Secretary, I and B ministry, S.M.H. Burney. Sanjay's protégés Navin Chawla and Kishan Chand were present to ensure the correct orientation.

AIR's slant against the Opposition was so blatant that in December 1976 AIR bulletins carried 2207 lines on the spokesperson of the Congress party as against 34 lines about the Opposition.[22] Even after general elections were declared, in January 1977, control over the '*sarkari* media', that is, government media, did not end. When Vijaya Lakshmi Pandit, Mrs Gandhi's aunt who had joined forces with the Opposition, made an election speech in Raipur, the I and B minister personally ordered that the services of G.L. Vohra, AIR's part-time correspondent at Raipur, be dispensed with, even though the news had been based on a Samachar report and was not sent by the correspondent.

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Controlling the media was one aspect of Shukla's job, but he took more pleasure in handling the affairs of another

department under his ministry: the cinema world. There were whispers in the Hindi film world of how the minister would first act tough, insisting on the need to censor a particular film and then mysteriously change his mind overnight. Actresses ranging from Vidya Sinha to Katy Mirza later complained that the minister made unwelcome advances towards them and they fobbed him off with great difficulty. A starlet in whom Shukla took a special interest was a curvaceous beauty called Vijay Kumari, known by her pet name, Candy. Students at the Film and Television Institute of India (FTII), Pune, recall how one day in August 1976 film director G.P. Sippy turned up at the institute along with Candy dressed in blue jeans, a yellow top and dark glasses. They were told that Candy, who had 'high connections', was to be given a place in the girls' hostel even though she had taken none of the mandatory admission tests. N.V.K. Murthy, the then director of FTII, at first resisted her admission but was told by Sippy that it was a direct order from Shukla. Shortly afterwards Murthy was transferred to Delhi and replaced by Jagat Murari. Shukla, however, later maintained that it was Sippy and not he who had sponsored the fledgling starlet, although he admitted that he had appreciated her dance performance when he went to deliver the convocation address.[23]

Shukla displayed the same authoritarian streak he had demonstrated in handling the print media in dealing with 'irreverent' films. Just before the Emergency, in April 1975, producer Amrit Nahata, a Congress MP, submitted his movie *Kissa Kursi Ka*, starring Shabana Azmi, Raj Babbar and Manohar Singh, to the censors. The film was a parody on politics in India and featured characters who seemed to be

based on real-life individuals such as Dhirendra Brahmachari and R.K. Dhawan. Most offending to the government was a clear spoof on Sanjay Gandhi and his small-car project. The censorship committee forwarded the movie to a review committee and the ministry of I and B put forward fifty-one objections to the film. But banning the film was not enough for Shukla and Sanjay. All the prints of the movie, including the master proof of the film, were sent to the Maruti factory, where they were burnt.[24] Gulzar's film *Aandhi*, starring Suchitra Sen and Sanjeev Kumar, was banned because the main characters bore an uncomfortable resemblance to Indira Gandhi and Feroze Gandhi.

Another Shukla intervention was the ban on singer Kishore Kumar. On Shukla's orders, a delegation from the I and B ministry had gone to Bombay in April 1976 to seek the cooperation of the film world for programmes to be released in praise of the Twenty Point Programme on AIR and on television. The meeting was attended by notable film directors such as Sriram Vohra, G.P. Sippy, B.R. Chopra and Subodh Mukherjee. Sippy explained to the officials from Delhi that the temperamental singer Kishore Kumar was not prepared to cooperate in any manner with this programme and ministry officials should contact him directly.[25] The joint secretary C.B. Jain spoke to Kishore Kumar on the telephone and explained to him briefly the government policy in this matter. Jain suggested they visit Kumar to discuss the issue. The reclusive Kishore Kumar was not intimidated and refused to meet ministry officials. He told them he was not well, that he did not do any singing on the stage. He claimed he had heart trouble and the doctors had advised him not to see anyone.

He made it clear that he did not want to sing for either radio or TV. Kumar's eccentricities had since long been accepted by the film world, but in the capital his 'discourteous' response was not taken lightly.

Jain returned to Delhi and reported the matter to Burney, who hit the roof on hearing of Kishore Kumar's impudence. He gave orders that all songs of Kishore Kumar be banned from AIR and Doordarshan. All films starring Kishore Kumar were to be listed for further action. The sales of gramophone records of Kishore Kumar's songs were to be frozen. The peremptory action against Kumar was presumably not just to teach him a lesson, but also to serve as a warning to other film artists. Shukla cleared Burney's orders. Kumar finally realized that he was in deep trouble and the authorities in New Delhi were impervious to his temperamental genius. After advice from well-wishers, on 14 June 1976 Kishore Kumar wrote a letter in which he agreed to cooperate with the government. C.B. Jain noted on the files that 'in view of the undertaking given by Kishore Kumar in writing to cooperate we may lift the ban and watch the degree of cooperation that he extends'. But the AIR and Doordarshan ban on Kishore Kumar had by then been noticed by people all over the country and was the talk of the town.

The iron hand of the Emergency not only stifled the media—it also reached right inside our own family.

4

A Strange New World

We were fast asleep when the phone rang in the early hours of 26 June 1975. Subramanian Swamy, Bharatiya Jana Sangh MP and my sister Roxna's husband, was on the line, sounding very agitated as he informed us that JP, K.R. Malkani and other opposition leaders had been picked up by the police earlier in the night. He then went on to say that he had to leave his house in Greater Kailash before the police came to get him. My husband, Virendra Kapoor, a journalist working for the *Financial Express*, asked him to come straightaway to 520 Vithalbhai Patel (VP) House. It was a one-bedroom MP's flat, allotted to Swamy as a first-time Rajya Sabha member of the Jana Sangh from UP. Since it was too small for Swamy's family, we were staying there. Completely in the dark as to who the government would go after next, Virendra wondered aloud as to why the police would be interested in arresting Swamy. After all, he wasn't one of the top-ranking leaders.

While waiting for Swamy to arrive, Virendra walked across to the UNI news agency next door to find out more. Dawn had not yet broken, and he found the sub-editors busy handling reports about the countrywide arrests that were reaching the agency headquarters from its various correspondents and stringers. Exchanging notes agitatedly, they nonetheless put out news on the UNI wires about the shocking developments unfolding before them. Politicians from different parties, even Chandra Shekhar, a Young Turk of the Congress party, had been arrested by the police.

Swamy arrived shortly afterwards at VP House. He was restless and on edge, unable to hide his concern that the police might come and look for him at the flat, especially since it was officially allotted in his name. It was decided that the best hiding place would be Virendra's college friend Suman Anand's house, a decaying haveli in the nearby Gole Market. The Anands were a business family who dealt in automobile spare parts at Kashmere Gate; like most families who had been uprooted by Partition, they were sympathetic towards the Jana Sangh. To our relief, the Anand family was warm and welcoming and provided Swamy with a room, although Swamy seemed a little put off by the common toilet at the end of the passage. The old-fashioned mansion, which had once belonged to a Muslim businessman who had fled to Pakistan during Partition, had become a residence for refugees from the other side of the border. It was divided into several different quarters.

Shortly afterwards, Manohar Lal, a colleague from the RSS–Jana Sangh–owned English daily *Motherland*, where Virendra and I both had worked earlier, came across to

exchange notes about Malkani's arrest and other momentous developments. By this time my professional instincts were awakened. I telephoned my chief reporter Abdul Rehman, asking if I could requisition the office van to visit the residences of the arrested leaders and speak to their families. Rehman, with his many years of experience, was cautious. He pointed out that the *Indian Express* had not come out that morning because of a blackout the night before. He felt we should wait and watch the situation before rushing to do anything. Around 8 a.m. my sister Roxna called up, asking me to switch on the radio—Indira Gandhi had just announced the imposition of an internal Emergency. Mrs Gandhi explained that this had been done to save the country from a major conspiracy by the Opposition. Some elements, in the name of democracy, were bent on destroying democracy, she said, and they had to be stopped.

A family acquaintance from Bombay, whose husband, a former business executive, had come to Delhi to work in the Planning Commission, called up. She wanted to find out how I was doing since I was pregnant and due to deliver in a month. She had no clue about the night's developments. After uttering an astonished 'What! What!' when I gave her a rundown, she put down the telephone abruptly. I never heard from her again. Her husband was in a senior government post and she must have obviously felt insecure. I was to soon discover that this was not an uncommon response during the Emergency. People would hastily cross the road to avoid having to speak to me. The fact that my brother-in-law Swamy was a member of the Jana Sangh and that both Virendra and I had at one time worked for the *Motherland* made us undesirable

people to mix with. Kuldip Nayar, my editor at the *Indian Express*, Nihal Singh, editor-in-chief of the *Statesman*, and Soli Sorabjee, who fought many cases on behalf of MISA detainees, all recall similar experiences of being ostracized by friends. Most people wanted to play safe and were scared they would earn a black mark if seen associating with those known to be opposed to the Emergency.

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Virendra and I came from very different backgrounds and had very different temperaments. Being a Bombay Parsi, I was apolitical and pragmatic. My father, a retired ICS officer working in the corporate world, was keen that I should opt for a more conventional profession like medicine or law. Journalism to him was not a long-term career option. All the same, he permitted me to go to the USA to get a master's in journalism from Boston University. When I returned to Bombay I got no response from the two major newspapers in Bombay to which I applied for a job. It was my brother-in-law Swamy—an economist from Harvard who became close to the Jana Sangh on his return to India because of similar views on India developing a nuclear deterrent—who suggested I come to Delhi and take up a reporter's job with the *Motherland*, which was to be launched in early 1972 by the RSS. I got my first job working for the paper in Delhi and entered an entirely new, highly politicized world. In the *Motherland* we cheekily wrote irreverent, anti–Indira Gandhi reports which no one else in the media would have dared to carry. Two years later I joined the *Indian Express*, which had earned a reputation

as an anti-establishment paper because of its support for the JP movement. The *Express* had a much larger circulation than the *Motherland* and was considered more credible and mainstream in its approach.

It was at the *Motherland* that I met my husband, Virendra, a hot-headed Punjabi with a political bent since childhood. He comes from an east-Punjab family. His father, an engineer in a Delhi textile mill, had shifted base to Delhi to ensure that his children could get a better education than was possible at the time in their hometown in Bhatinda. Virendra too had moved from the *Motherland* to the *Financial Express*, a newspaper which was part of Ramnath Goenka's media empire. Virendra covered crime for the *Motherland*, and created quite a stir when he scooped the findings of the police investigation into the sensational Vidya Jain murder case, in which a well-known Delhi eye surgeon had got his wife bumped off so he could marry his mistress Chandresh Sharma. A few days after this scoop was published, Virendra got a job offer from the *Financial Express*. Little did Virendra imagine that he would soon find himself housed in the same Tihar jail as Dr Jain and his paramour.

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As the morning of 26 June dawned, Virendra did not seem able to stay still for a moment. Manohar and he left for the Indian Coffee House in the Theatre Communications Building on Janpath. The huge no-frills restaurant was located in the middle of Connaught Place, at the very spot below which the Palika Bazaar now stands. The coffee

house was a landmark meeting place where you could buy your periodicals, pick up your day's supply of news and gossip over steaming cups of tea and coffee and while away the time between press conferences and other reportorial assignments. It was a hub not just for journalists but people from all walks of life, including politicians, lawyers, trade unionists, artistes, academics and ordinary citizens who enjoyed political *gup-shup*.

Not surprisingly, the coffee house would soon be demolished on the orders of Sanjay Gandhi. He felt this den of iniquity was the centre of anti-Emergency propaganda/gossip and must be pulled down. But on 26 June, the coffee house was abuzz with all kinds of stories of what the government was up to. The entire crowd of curious people there surrounded Virendra who they thought, as a journalist, must know exactly what was happening. As was his wont, Virendra dispensed the latest news with great relish.

From the coffee house, Virendra thought it would be worthwhile finding out what was happening at the *Motherland* newspaper in Jhandewalan, which like most newspapers in the city was not on the stands that morning because of the power cut the night before. At 10.30 a.m. when Manohar and he reached the *Motherland* office, they found the electricity had been miraculously restored. Although he had left the newspaper several months earlier and moved to the *Financial Express*, Virendra decided that *Motherland* should bring out a special edition. Since there were no senior journalists or editors around, he and Manohar compiled agency copy about the arrests from all over the country. Apart from giving the bare news, Virendra sat down to type out a commentary on

the sensational events of 25–26 June. The bureau chief, Arvind Ghosh, arrived just as the two-page special supplement was being printed.

The special edition was made up largely of UNI 'newsflashes', giving names of arrested leaders and Mrs Gandhi's statement declaring an Emergency. Virendra's semi-editorial declared that 'a wave of shock and anger had gripped the Capital as Mrs Gandhi went ahead with her plan like a copy book dictator'. He ended his vituperative piece by saying that Mrs Gandhi's gambit too would fail as had that of many dictators before her. Since he was no longer working with the *Motherland*, he used Manohar's name when filing his piece, something Manohar was not too happy about—probably he sensed trouble, which Virendra at this stage did not.

Within an hour, the special edition of the *Motherland* was out on the streets. The hawkers selling it were besieged by the public, starved for authentic news. No one bothered about getting change, all they wanted was to snatch a copy before the edition was sold out. One man grabbed a pile of newspapers and handed over a fifty-rupee note to the hawker.

Virendra, armed with two dozen copies, decided to return to the coffee house. He drove Manohar's scooter while asking him to clutch the pile of the special edition in his arms. Since Manohar felt uneasy holding the paper, they stopped midway to the coffee house, and Virendra asked Manohar to drive while he held the pile of papers. Once at the coffee house, copies of the paper were passed from one hand to the next. By then the *Hindustan Times*'s *Evening News* edition had also

come out, giving news of the arrests and the proclamation of an Emergency on the basis of news agency reports. But it was far more circumspect than the *Motherland*.

When I reached the *Indian Express* office in the forenoon, I was greeted by an unforgettable sight. The reclusive editor-in-chief S.M. Mulgaokar, who seldom ventured out of his ivory-towered office to mingle with us humble reporters and special correspondents—in fact, he did not know the names of half of us—was sitting in the newsroom with a stunned expression, his hand on his forehead. The news editor Piloo sahib was handing him a series of news agency updates. The *Express*, too, was hoping to bring out a special edition on the startling news of the day, except that the electricity on Bahadur Shah Zafar Marg kept flickering on and off. By afternoon there was a newsflash from the agencies, declaring that censorship had been imposed and nothing could be printed without prior official clearance. By evening, electricity supply to Bahadur Shah Zafar Marg was disconnected for the whole night so that the *Times of India*, *Indian Express*, *Navbharat Times*, *Patriot*, *National Herald*, *Daily Pratap* and *Veer Arjun* could not bring out their editions. The newspapers would not be printed for another two days.

In those days, there were less than half a dozen members of the staff in the *Indian Express* who owned cars. Anjali Pal, a freelance writer who used to write a column on the historic monuments of the city, offered to drive us around New Delhi in her battered Fiat. The only visible sign of the Emergency was the large presence of policemen outside government offices. Fresh barbed-wire fencing had been attached on the top of the brick walls of some official residences. For the rest,

life seemed very normal. Mrs Gandhi reportedly gloated, 'There was not even a spark, leave aside a conflagration.'

By evening the police had arrived at the *Motherland* office to seal the building and also find out just who was responsible for the afternoon edition, since the editor K.R. Malkani had been arrested earlier in the night. The chief reporter Ramesh Batura had destroyed all the copies of the typed reports so that blame could not be fixed on any single individual. The authorities decided to issue a MISA warrant against the assistant editor D.N. Singh who was next to Malkani in the newspaper's hierarchy. Singh happened to be close to Chandra Shekhar, a fellow Thakur. After remaining elusive for several weeks, Singh eventually made use of all his political contacts to get his MISA warrant squashed. Singh pointed out that he was not at the office and had no knowledge of the special Emergency edition. Years later, he would confess to Virendra that for weeks he had suspected him of being a government agent who had provided the authorities an excuse for the sealing of the newspaper. After all, what business did he, an outsider, have to bring out a special edition of the paper? It was doubly suspicious that there was no warrant against Virendra. Little did anyone know that, as in any other totalitarian state, the left hand often does not know what the right is doing. The imposition of the Emergency would not make the unimaginative police and bureaucracy efficient overnight.

Kuldip Nayar, who acted as something of a mentor cum father confessor to the reporters, called us to his office for a pep talk. Even though we could not write about the goings-on in the city because of censorship laws, he suggested that

we keep a diary, carefully recording all that was happening around us. It was invaluable advice but unfortunately none of us followed it. Nayar also announced that we would meet the next day, on 29 June, at the Press Club of India to protest against the imposition of censorship and demand that the government lift restrictions on the press.

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At the Press Club the following day one could sense a clear divide. On one side were the young reporters from the *Indian Express*, *Statesman* and *Hindustan Times*, who were exercised by the turn of events and came forward enthusiastically to sign the petition that criticized press censorship and demanded the release of two arrested journalists, K.R. Malkani of the *Motherland* and Jagat Narain of the *Hind Samachar*, Jalandhar. On the other side were some cynical older journalists, mainly from the *Times of India*, who sat at separate tables, not taking part in the proceedings but watching carefully from the sidelines. Some of them would report back to the authorities about the meeting. The letter of protest, which was signed by around 100 journalists, including by Virendra and me, was dispatched to the President, the prime minister and the minister for I and B. The list of the signatories was kept by Nayar himself and he refused to part with it even when the domineering information minister V.C. Shukla personally demanded that he hand it over to Mrs Gandhi.

It took us many days to get accustomed to the strange new world in which we were now living. Not all were unhappy with the turn of events. There were those who

claimed that the Opposition had indeed gone too far. In fact, many genuinely believed that there was a sinister conspiracy that had been discovered in the nick of time. The country needed a bit of discipline too, they felt. The trains began to run on time, government officials were more responsive, prices were coming under control. The government brought out a spate of slogans to try and sell the Emergency. There were big billboards with homilies like: 'Discipline makes the nation great', 'Talk less, work more', 'She stood between order and chaos', 'Courage and clarity of vision, thy name is Indira Gandhi'. Some even put up stickers on the back of their cars to make it clear which side they were on. Supporters of the Emergency chose to ignore the palpable sense of fear all around.

The newspapers informed us that Vinoba Bhave, Sarvodaya leader and JP's guru who stayed in an ashram in Paunar, near Nagpur, had given his stamp of approval to the Emergency. Since Vinoba was under a vow of silence, his views written on a piece of paper had been conveyed to one of his disciples, Nirmala Deshpande, who was close to Mrs Gandhi. Vinoba had described the Emergency as an 'era of discipline' and the government had picked up the slogan for its propaganda purposes. Indeed, the word discipline was very much in vogue.

A small gleam of light was that Additional Solicitor General Fali Nariman resigned his post. I was proud that a fellow Parsi had displayed more courage than the dozens of government employees in senior positions who gave no public indication of discomfort at the imposition of these draconian new rules. Another Parsi, legal luminary Nani Palkhivala, returned the

brief as the PM's defence counsel in her election petition in the Supreme Court.

It soon became increasingly clear that the arrests and the Emergency were not going to end in a hurry. By 30 June an ordinance was passed amending MISA, so that it was no longer necessary to disclose the reasons for arrest to the people taken into custody. The terror of being picked up by the police without any reason summed up the Emergency for us.

After arresting the top leaders, the police had started cracking down on the lower rungs of the dissidents, including student union activists, trade unionists, municipal corporators and members of the Delhi Metropolitan Council affiliated to the opposition parties. On 4 July the government banned twenty-six organizations, including the RSS, the Anand Marg, the Jamaat-e-Islami and the Naxalites. In our own office, B.M. Sinha, the respected deputy chief reporter, who happened to be an Anand Margi, was arrested. (Nobody took the Anand Marg very seriously except for Mrs Gandhi. My colleague Arvind Kala often made Sinha and his Anand Margi affiliation the butt of his jokes.)

In the *Financial Express*, the cub reporter Balbir Punj, who had been a RSS–Akhil Vidyarthi Parishad activist (later to become an MP and a vice president of the BJP), was convinced the police were after him and called up Virendra asking if he could stay at our flat to evade the police. Subodh, who was from Jammu and had recently married Sinha, also asked for temporary shelter, as she knew no one else in Delhi.

Life got more complicated when the Jana Sangh central office secretary at VP House asked if we could temporarily store the office cyclostyling machine, since the staff had got

wind that all party offices in VP House were to be raided, and the expensive machines would get confiscated. A day later they were back asking if we would print copies of a message from Nanaji Deskhmukh to all RSS and Jana Sangh workers, giving instructions on how to conduct themselves during the Emergency. Courting arrest, staging satyagrahas and educating the public was the crux of the message. Virendra, all afire to do something constructive to fight the Emergency, was only too willing. I was more reluctant and felt they were presuming on our good nature. The loud clanging of the machine was very audible and it seemed to me that it was just a matter of time before the downstairs neighbour, who I thought was a Congress MP, would complain about the noise and the police would be at our doorstep. (It was months later that I discovered that our neighbour in Room 420 was Ghayur Ali Khan, an MP who belonged to the BLD.)

As if printing proscribed leaflets for the Jana Sangh was not bad enough, Virendra through his friend Yogendra Rajpal, who was SP, New Delhi district, had got hold of the latest issues of *TIME* and *Newsweek*, which had carried cover stories on Indira's Emergency. Both these issues had been promptly banned by the government. Virendra got the Jana Sangh office staff to make a stencil of the two cover stories, which were then printed by the grunting and heaving cyclostyling machine. I took to smocking dresses for my unborn baby to calm my frayed nerves.

Since both Subodh and Balbir were staying temporarily at our house I used their services to help staple the sheets of the copies of the magazine articles. Their attitudes were very different. Subodh was breathing fire and brimstone

against Indira Gandhi and wanted to help in any way. Balbir Punj was extremely nervous and kept protesting that we would all be unnecessarily getting ourselves into trouble by such actions.

My tension continued even after the printing activity ended. Virendra was busy distributing copies of the magazine articles in the Indian Coffee House and at the *Express* office. Ajit Bhattacharjea, a known JP sympathizer, refused to accept the leaflet; others like Ashwini Sarin, a reporter at the *Indian Express*, returned asking for more copies the next day. Rajpal, with his police training, warned Virendra that while Bhattacharjea was probably on his side but did not want to show his hand, he should look with suspicion at anyone who wanted extra copies.

To our surprise, Rajpal gave Virendra Rs 500 from businessman Kuldip Narang, who was a good friend of Sanjay Gandhi's, to pass on to the family of Mam Chand, who ran a small newspaper kiosk next door to the coffee house. The sole breadwinner of a family of ten, Mam Chand was detained under MISA on 4 July. Arjan Das, metropolitan councillor and car mechanic friend of Sanjay Gandhi's, had had an altercation with him and decided to settle scores. Das complained to Bhinder that prejudicial literature was being sold by Chand at his tiny kiosk. A police squad was sent to the stall and after thoroughly checking the premises only one magazine, which looked vaguely incriminating, was seized. It was a copy of Piloo Mody's *March of the Nation* weekly. Ironically, all those who took part in the raid later acknowledged that they had not read the magazine to see if its contents were in fact prejudicial. Mam Chand was booked under DIR and was

released only nineteen months later. No one bothered about the fact that the poor man was illiterate and could not read the magazines he was selling.

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Some days later, my chief reporter Abdul Rehman took me aside with a worried expression. A friend of his in the local CID had received a complaint that I was printing subversive material in my house and was the sister-in-law of wanted absconder Subramanian Swamy. Rehman had assured the policeman that he could vouch for my credentials and he would stand guarantee that I was not mixed up with any anti-government group. The police officer, although he did not know me personally, was kind-hearted enough to make out a report exonerating me and declaring that I was not on good terms with my sister. In fact, my sister Roxna had been in and out of VP House during that time.

Swamy had worked earlier as a professor of economics at IIT, Delhi, until he was dismissed for union activities and anti-establishment pronouncements. Apart from him, there were warrants of arrest for his IIT union colleagues who were also considered troublemakers: Suresh Upadhyaya, a professor of English, Prakash Takkar, a driver, and Satpal Khurana, a member of the secretarial staff. Like Swamy, all the other three had also gone underground, and since VP House was a central location off Parliament Street they often met there. That one-bedroom apartment was often crowded with visitors.

Because of his strong anti-Congress views, Virendra was an admirer of the one-time *Hindustan Times* cartoonist, Rajinder

Puri. It was therefore natural for him to join the morning coffee session at the Embassy Restaurant in Connaught Place where a table was reserved for Puri and his friends. Another table was occupied by local Congress politicians, including Jag Pravesh Chandra, a very decent human being who became Virendra's lifelong friend. However, once the Emergency happened, Chandra not only stayed away from Virendra but warned him not to openly criticize the Gandhis and the Emergency. He did not threaten him, only tried to warn him that he could get into trouble given the nature of the Emergency regime.

Within two days of the Emergency being declared, Puri confided in Virendra that there was a warrant pending against him; he needed to leave the city for a few days. Virendra took Puri on his scooter's pillion and put him on a train to Ahmedabad. The Janata Morcha was in power in Gujarat and it had become a sanctuary for many from all over the country who feared arrest. Puri stayed in Gujarat for some days, and returned only when he was assured that the warrant against him would not be executed. In the early days of the Emergency, many were convinced there were warrants against them and went 'underground'. Some stopped sleeping in their own homes and disguised themselves rather amateurishly, so that it was not difficult to recognize them. One prim social worker donned bright lipstick as her sole disguise.

The anonymous complaint against me reported by Rehman had given me a jolt. It seemed that I could no longer trust anyone. There were very few who knew about the cyclostyle machine in my house. I now insisted that the Jana Sangh staff take their machine somewhere else.

Around this time I visited a *Hindustan Times* colleague, Prabha Dutt, to congratulate her on the birth of a baby girl, Bahar. We chatted about babies, my impending delivery, her apprehension that her second baby, like her first, Barkha (now a well-known TV anchor), might also be allergic to milk and have to be put on a diet of soya milk, and so on. But soon enough the topic veered to the Emergency. Prabha kept repeating, 'What will happen to Verghese?' George (B.G.) Verghese had been sacked as editor of the *Hindustan Times* by its proprietor K.K. Birla; and he, in turn, had appealed to the Press Council against his dismissal. Shortly before the Emergency, Verghese had written a letter to the council, charging that people on behalf of Sanjay Gandhi had warned him against the newspaper continuing to write negatively about Sanjay's Maruti project. I felt that Prabha's priorities were misplaced. The whole world around us was falling apart and she was focused on the dismissal of just one editor. I pointed out tartly that the *Indian Express* reports had been far more critical of the government than those in the *Hindustan Times*. I did not then fully appreciate that it took enormous guts to print anti-government stories in a newspaper which was known to be pro-establishment.

Another call I made during that period was to Kamala Advani, the wife of Jana Sangh leader L.K. Advani who was jailed in Bangalore and unable to meet his family regularly. The Jana Sangh's Nanaji Deshmukh, who was underground, had sent word to my sister that someone should go and meet Mrs Advani, to reassure her, but it should not be someone the police would be suspicious of. I was considered a suitable choice. Mrs Advani recevied me graciously, although she

was surprised by my visit. I tried to reassure her that Nanaji Deshmukh and the underground would see to it that things were set right. She didn't seem very convinced and nor, truth to tell, was I. The future seemed very dark.

At the *Express* office there was very little work to do except type reports based on the official handouts issued by the government. We reporters felt it best to play safe as the *Indian Express* was already in hot water for having carried a blank space instead of an editorial, and some of the articles on the edit page were disguised barbs against the Emergency. Even giving prominence to crime reports might have suggested that the law-and-order situation was not under control. Who knew what would upset the censors? It was safer to simply rehash government statements.

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Indira Gandhi announced her Twenty Point Programme. The goals set included bringing down the prices of essential commodities, cutting down on government expenditure, declaring bonded labour illegal, setting up special squads for cracking down on conspicuous consumption, bringing in special legislation for the confiscation of smugglers' properties, increasing power production, developing the handloom sector, and so on. It seemed like old wine in a new bottle: most of the programmes were old hat and had been repackaged for propaganda purposes.

It was Sanjay Gandhi's five-point programme that came out shortly afterwards which was more controversial. It focused on family planning, tree plantation, slum clearance,

abolition of dowry and eradication of illiteracy. Unlike the Twenty Point Programme, for which nothing very much was done, Sanjay demonstrated quite early that he took his pet projects seriously, especially family planning and slum clearance. He went about implementing his programme like a bulldozer. His city beautification programme was inspired by Jagmohan, the single-minded DDA vice chairman who was obsessed with the need to clear the city of slums and unauthorized settlements. The maid working in my sister's house was one of the first victims. Her hutment was demolished and she had no option but to move to a faraway part of the city. As a result, she would turn up late for work every day. All over the city, unauthorized tenements were being removed. Another beautification measure made shop signboards uniform, with the lettering in the same typeface and colour. It gave a rather dull, regimented look to our erstwhile colourful Indian shopping centres.

Early on in the Emergency, traders and dealers were ordered to prominently display their price lists. Among the dozens of people jailed for not keeping proper price tags on goods were representatives of some of the leading business houses. The word was that Sanjay Gandhi wanted to teach the big companies a lesson and a heavy price was extracted for the release of the arrested men. Irfan Khan—a friend who after the folding of JP's weekly *Everyman's* had joined Hindustan Lever in Bombay in the PR department—flew down to Delhi. He used his old police contacts, being a former journalist, to bail out a Lever staffer who had been arrested. Not everyone was so fortunate. Pandit Brothers, a very reputable shop in Connaught Place, owned by the family of P.N. Haksar, who

had once been Indira Gandhi's closest adviser, was raided and the owners arrested. Sanjay was known to be hostile towards Haksar. The infighting amongst the PM's people was now public knowledge, with AIR broadcasting every hour the news of the raid on Pandit Brothers, who were the official stockists of Bombay Dyeing textiles.*

The newspapers began to carry lists of people who were once dubbed anti-establishment, but who had now turned over a new leaf and signed the Twenty Point and five-point programmes. To endorse the programmes was viewed as disassociating oneself from all opposition activity, and as a form of apology. Many of those who had gone underground because they were wanted by the police, or feared arrests, now made the rounds of newspaper offices with their statements, hoping their names would be published to establish that they had nothing to do with the Opposition. Prabhu Chawla (now a senior journalist), once an active member of the ABVP and a lecturer in a Delhi University college, got his name struck off the wanted list by swearing allegiance to Indira Gandhi's and Sanjay's programmes. He pleaded with the *Statesman* campus reporter Neena Vyas to carry his statement so that he would not be harassed by the police. O.P. Jain, a municipal councillor of the Jana Sangh (now head of the Sanskriti Foundation), also got the warrant against him quashed. His former tenant, Ayub Syed, editor of *Current*, intervened on his behalf with Sanjay Gandhi.

I gave birth to my daughter Ila on 22 July. There was a major rainstorm that night and as my labour pains began,

* See chapter 10 for the details.

no taxi from the stand outside VP House was willing to take us to hospital. While we were standing at the portico wondering helplessly how we would reach the nursing home, our neighbours J.K. Jain and his wife, Ragini, were returning home after dropping underground leader Nanaji Deshmukh at the place where he was spending the night. They came to our rescue and gave us a lift to the South Delhi Polyclinic at Safdarjung Development Area in the pouring rain.

While I was in hospital the police came in the middle of the night of 24 July to arrest Kuldip Nayar under MISA. It came as a rude jolt to all of us in the *Indian Express*. The fact that Nayar had organized the media protest against the Emergency at the Press Club was one of the many black marks against him. He had been warned by Shukla, whom he knew personally, against hobnobbing with foreign journalists. As stringer for the *Times*, Nayar was in regular touch with their office in London, and Nayar's article on Zulfikar Ali Bhutto was seen as a veiled allusion to the Emergency. After that his weekly column was stopped since the newspaper received an order that all Nayar's writings should be first submitted to the censors. A few days before his arrest Nayar had written a letter to Mrs Gandhi, protesting against censorship and quoting Nehru's words about the importance of a free press. He received a terse response from the PM's media adviser Sharada Prasad, stating that the very fact that for nine and a half years Mrs Gandhi did not react to even the most vicious personal attacks on her showed the PM's extraordinary tolerance of criticism.[1]



A month and a half later when I returned to work—in those days maternity leave was restricted to six weeks before and six weeks after delivery—I found the situation grim. To add to our frustration there were plenty of people claiming they appreciated the benefits of the Emergency. Eulogies to Mrs Gandhi came from all corners of the country. Eminent artist M.F. Husain portrayed her as the goddess Durga astride a tiger. I considered it the height of sycophancy, but then court painters in medieval times would no doubt have done the same. Husain's series of paintings was taken on exhibition all around the country.

Mrs Gandhi convened an emergency session of Parliament on 21 July to get the official stamp of approval for her proclamation of the Emergency. MPs from the treasury benches dutifully endorsed everything they were told to. There was not a murmur of dissent. To the left of the Speaker there were a large number of empty spaces since the leading lights of the Opposition were mostly behind bars. The few still out of jail stood up to voice their protest.

Even before the Emergency Mrs Gandhi had aired her views that government departments unnecessarily wasted time answering questions raised by MPs during Parliament's Question Hour and providing ministerial responses to debates. She now decreed that only urgent and important government business should be transacted in a Parliament session. Question Hour, Calling Attention motions and other parliamentary business initiated by private members were dispensed with.

Mrs Gandhi asked Jagjivan Ram to do the honours and move the resolution seeking Parliament's approval for the proclamation of the Emergency. Jagjivan Ram, minister for

agriculture, revealed none of his inner anguish in his speech. He squarely blamed the Opposition for creating a situation where there was a very real threat to democracy. A united front of four opposition parties had created an atmosphere of lawlessness in the country, particularly in Gujarat and Bihar where students and agitators had prevented elected members of the Legislative Assembly (MLAs) from carrying out their political duties, he said, adding that the railway strike had also sought to paralyse the government and force it to resign. In these circumstances, he argued, the government had no recourse but to issue a proclamation of Emergency.

In Parliament there were only a few stray voices of dissent. A.K. Gopalan of the CPI(M) charged that the sudden declaration was not because of a real threat to security but because of the Allahabad High Court judgment and the Janata Morcha victory against the Congress in Gujarat on that same day. Mohan Dharia, expelled from the Congress, declared that 26 June would be remembered as the blackest day in Indian democracy and the history of the country. Era Sezhiyan of the Dravida Munnetra Kazhagam (DMK) warned that the day was not far when all the citizens' freedom would be in danger. The government's motion was passed by 336 votes to 59 in the Lok Sabha. In the Rajya Sabha, Home Minister Brahmananda Reddy proposed the motion and it was approved by 136 votes to 33. The main opposition parties boycotted the House after the proclamation had been passed but the Communist Party of India (CPI), which voted with the government, and smaller parties like the Anna Dravida Munnetra Kazhagam (ADMK), the Republican Party of India (RPI) and the Muslim League continued to attend Parliament.

None of the details of the Opposition's speeches were reported in the next day's newspapers. The censors' orders were that no report of the proceedings of Parliament could be published other than a report authorized by the Speaker of the House. We read the remarks of the few brave MPs who had defied the majority thanks to A.D. Gorwala's tiny pamphlet *Opinion* which was sent to me by my mother from Bombay. Gorwala, whom I've mentioned before, was a retired government bureaucrat and a former colleague of my father's. My mother had been posting me Gorwala's publication for years, but I had never taken it very seriously until then. There was a big demand in the office for my copies of *Opinion*. It was ironical that here we journalists were in the capital, next door to Parliament, but it was an old man sitting far away in Bombay who had the forethought and courage to purchase for two rupees the proscribed speeches from the Parliament Secretariat and reprint them.

The endorsement of the Emergency was complete, with Parliament passing an amendment which held that the imposition of Emergency by the President could not be challenged in the courts. The other task before Mrs Gandhi was to ensure that her election petition would be upheld in the appeal to the Supreme Court. Mrs Gandhi acted with extraordinary brazenness, leaving no stone unturned. Parliament amended the Representation of the People Act (RPA) retrospectively so that the ruling of the Allahabad High Court judgment would be null and void. The amendments to the electoral law dealt specifically with issues raised in Mrs Gandhi's case, where she was on weak ground. Civil servants were no longer barred from assisting

a candidate during a political campaign. Publication in the official gazette was conclusive proof of the date of resignation of a government servant.* For computing election expenses, the date of nomination was deemed to be the deciding date. Another amendment was that the case of every person disqualified on the basis of corrupt election practices should be referred to the President who would be the final arbiter in consultation with the Election Commission.

As an extra precaution to ensure that her position was safeguarded, Law Minister Gokhale introduced the 39th Constitutional Amendment on 7 August which decreed that the election of the President, vice president, PM and Speaker of the Lok Sabha would be outside the scrutiny of the court.

The legislation was passed with embarrassing haste, ignoring the minimum period required for circulating a bill. This was because the PM's case was to be heard on 11 August in the Supreme Court. No one from the ruling party dissented from the spate of amendments. Another hastily passed Constitutional Amendment decreed that no criminal proceedings could be instituted in any court against any person who had been President, vice president or PM.

Shanti Bhushan, Raj Narain's lawyer, protested in the Supreme Court, 'The rules of the game are never changed till after the game is over.' But Mrs Gandhi was so single-minded about ensuring that no impediment should come in the way of her election appeal that even the upright P.N. Haksar was coerced to go to every judge to plead her case.[2] There was

* These provisions were inserted to let Yashpal Kapoor off the hook. See chapter 1 for details.

little doubt about the outcome. The media was instructed that the court proceedings be censored.

The road was clear for Mrs Gandhi. It seemed as if nothing could stop her and there seemed no visible signs of opposition to her regime. The *New York Times* marvelled at how the JP movement had just melted away. The *Guardian*, London, wrote, 'India's State of Emergency is almost three months old now and rapidly becoming the mystery of the missing opposition.' It lamented the absence of 'angry voices' against the Emergency. There were several satyagrahas and courting of arrest by groups of people, but the general public did not get to hear about them because of censorship.

We heard stories of the brutal methods employed by the police while clamping down on the students and teachers of Delhi University. Some fifty student leaders were rounded up on the day the university opened in July. JP's Lok Sangharsh Samiti, which had been formed before the Emergency, declared a bandh on 25 July as a protest and pamphlets were distributed. Nearly 200 people were arrested, including around 120 teachers. The entire Sanskrit department of Delhi University was sent to prison. Unbelievable acts of cruelty were carried out by the police of east Delhi on certain student activists who had taken part in underground activities. East Delhi had a particularly sadistic police officer in charge. We heard about these horror stories of torture through the underground grapevine.

Virendra was witness to one group of satyagrahis courting arrest on 2 October 1975, while he was on his way to the Embassy restaurant in Connaught Place for his regular coffee session. He saw a group of elderly farmers

with BLD flags shouting slogans near the Ramble restaurant abutting what is now the underground Palika Bazaar in Connaught Place. It seemed that they had chosen to go to prison instead of the younger generation, so that the able-bodied in the village could continue to work in the fields. Virendra saw Ajmer Singh, SHO of Parliament Street police station whom he knew from his days as a crime reporter, slapping a seventy-five-year-old man and stamping on the BLD flag. He remonstrated with the policeman who then retreated. The policeman could have been more aggressive and arrested Virendra, but he knew that Virendra, as a crime reporter, was friendly with his boss, SP Yogendra Rajpal. When Virendra related the incident to Subramanian Swamy, Swamy cautioned restraint. 'You are useful to the underground, you will unnecessarily become a marked man,' he warned.[3]

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Now it was the turn of events not in India but developments in neighbouring Bangladesh that cast a shadow over Mrs Gandhi. President Sheikh Mujib-ur Rahman and almost his entire family were massacred by rebellious troops on 15 August. The youngest son, Russel, was just ten years old and he too was shot dead as he ran for shelter.

R.N. Kao, the trusted Kashmiri head of the agency for external intelligence, RAW, had earlier alerted Mrs Gandhi that Mujib's life was in danger and there were several plots being hatched to assassinate him, some within the army itself. She had sent Kao to Bangladesh to warn

Mujib of the threat to his life. But Mujib had refused to believe that he could be eliminated by his own people.

Indira Gandhi saw uncanny parallels in Bangladesh to her own situation. Mujib, like Mrs Gandhi, had transformed from being a popular leader to an absolute dictator, scrapping the Constitution. Mrs Gandhi now began to live in fear for the safety of herself and her family. She informed Pupul Jayakar that the assassination of Mujib was the first event in a plot that would engulf the subcontinent. Mrs Gandhi believed she was the next target. Her fears were fuelled by Kao who kept providing inputs that there was indeed a very real threat to her life.[4]

Although Mrs Gandhi rarely appeared in public in this period, she could not avoid the annual address at Red Fort on 15 August, Independence Day, where she had to hoist the national flag. Every precaution was taken by the police to safeguard the route. Policemen were posted on rooftops and people in Daryaganj were ordered to keep the road-facing windows of their houses shut.[5] She travelled in a closed car and delivered her speech from a heavily guarded enclosure on the ramparts of the Red Fort. Ironically, in her speech Mrs Gandhi quoted her father, Jawaharlal Nehru: 'Freedom is in peril, defend it with all your might.' She claimed that extraordinary steps were necessary to put the country back on the right road. Her voice sounded strained, her speech was rambling.[6] The ghastly death of Mujib and his family clearly weighed heavily on her mind.

Meanwhile, the *Times*, London, ran a full-page advertisement on 15 August protesting the Emergency, proclaiming, 'Today is India's Independence Day. Don't let the light go out on Indian

Democracy.' It was signed by 700 prominent world citizens, intellectuals, writers, artistes and MPs who had contributed towards the payment for the ad and signed the appeal. The signatories included: Bishop Trevor Huddleston, Dame Peggy Ashcroft, Fenner Brockway, Glenda Jackson, A.J.P. Taylor and Kenneth Tynan. The advertisement demanded the release of JP and other political prisoners and the restoration of democratic rights in India. It appealed to the conscience of the world to put pressure on India.

Mrs Gandhi was hit at her most vulnerable spot. She prided herself on being Jawaharlal Nehru's daughter. It was Nehru who had laid the foundation for an India that held true to democratic values and adhered to a Constitution that upheld every citizen's fundamental rights. It was India's democracy that set her apart in South Asia, where there were many dictatorships. Her close friend Dorothy Norman in the USA, once a regular correspondent, had stopped writing to her and had supported protest meetings abroad. Mrs Gandhi tried to counter the ad by getting Chalapathi Rau, the editor of the Congress-owned *National Herald*, to draft a reply. But not many Indian intellectuals signed the statement. Historian Romila Thapar who declined to sign had her income tax assessments for a decade reopened.[7]

Subramanian Swamy, who visited VP House often when he was in Delhi (because by this time he was on the run and didn't stay in one place for long), was full of stories from the underground about Mrs Gandhi. It was claimed that after Mujib's death Mrs Gandhi was in a state of constant terror that she would be bumped off. According to one story, one day she discovered a picture of herself without a head on the

window of her room. Although she screamed at her staff she was unable to find out who had put the picture there. Sanjay slept in the room next to hers and the door that connected her room to Sanjay's through a tiny passage was kept open. She confided to Kao that if anything were to happen to her Sanjay was within call.[8]

There were also stories of Sanjay Gandhi's growing influence over her. *Washington Post* correspondent Lewis Simons sent a dispatch asserting that she was terrified of her younger son. He quoted an unnamed source as claiming that Sanjay had slapped his mother six times at a dinner party in front of all the guests. Mrs Gandhi did not react. Predictably, Simons was asked to leave the country. The story, although of doubtful authenticity, spread like wildfire through word of mouth.

5

Black Diwali

As the months went by it became clear that the Emergency was not going to be lifted anytime soon. We chafed about the situation in the country but did not realize that life was going to get much grimmer. Virendra had befriended some foreign journalists and was helping them to get news of the underground. He tipped off Geoff Hughes, the newly arrived correspondent of the Australian Broadcasting Corporation (ABC), that a demonstration was planned during a civic reception at the Red Fort for foreign delegates to the Commonwealth Parliamentary Conference on 1 November 1975. Madan Lal Khurana of the Delhi Jana Sangh, who was underground, was in charge of the operation.

Virendra was after me to secure a press pass for him for the civic reception since the MCD did not normally send passes to the financial newspapers as they did not cover such events. He insisted he wanted to see the drama. I was reluctant, because my sixth sense foresaw trouble, but I finally picked up one

of the invitations from the chief reporter's tray and passed it on to him. He promised he would return early from the reception to take my niece Gitanjali, who was spending the night at our house, to the Diwali mela. That evening, Gitanjali waited impatiently for Virendra's return but there was no sign of him. After some time she fell asleep, while I got more and more agitated. My worst fears were realized when I received a call from Hughes, informing me that Virendra had been arrested by the police. Minutes later, there was a call from Najmul Hasan, a colleague from the *Hindustan Times*, asking me to go immediately to the Kotwali police station where they were holding Virendra. Swamy's IIT employees' union colleague, Satpal Khurana, was in the house, and the two of us immediately rushed to the police station.

At the thana there were two Sikh police officers and the SHO of Kotwali. I addressed myself to the SP (North), Prakash Singh, assuming that he was in charge. I asked how a journalist doing his legitimate duty of covering a civic reception could be detained in this fashion. Singh mumbled that it was not the police who had caught Virendra but members of the public who had handed him over to the police. He seemed uncomfortable and kept looking for instructions towards the other Sikh officer sitting behind the desk. It was later that I came to know that the other man was the infamous K.S. Bajwa. I became argumentative and aggressive and blurted out, 'I would like you to know that this Emergency will not last forever.' The police officers moved away to confer among themselves. They returned to inform me that Virendra was being arrested under DIR and there was nothing they could do to help me.

It was later that I pieced together the whole story behind Virendra's arrest. As soon as the function got over with the singing of the customary *Jana Gana Mana*, some twenty-odd students, duly instructed by Khurana, had jumped up from among the audience at the civic reception and distributed leaflets, shouting 'Up, up with democracy, down, down with dictatorship'. They had taken care not to sit in a group but had scattered themselves among the audience. Several people in the audience picked up the leaflets, including some of the foreign delegates. As Virendra was leaving with the other journalists, he saw Ambika Soni, a rising star in the Indian Youth Congress with a reputation for being free with her hands. (Just before the Emergency, Soni had manhandled a group of Socialist youth who had marched to the Gol Methi Chowk outside the PM's residence at 1 Safardarjung Road, demanding Mrs Gandhi's resignation in the light of the judgment. The police had looked on passively.)

On that evening at the Red Fort function, Soni and a couple of her Youth Congress activists got hold of a boy who was barely out of his teens. She ordered the others present, including the police, to thrash the boy. Virendra being Virendra felt it necessary to intervene and chide Soni: 'Why are you beating this boy? What has he done? If he has broken any law, the police will look after it. You are not the police.' Soni stopped for a second, assuming he was a plain-clothes policeman. But when she saw him walking away from the scene, she was taken aback by his effrontery and asked who he was. He nonchalantly replied, 'I am an ordinary citizen like you.'[1]

'But don't you think that instead of helping me arrest these boys, you were preventing me from getting hold of them?' she shot back. Bajwa came running up to her and the two went into a huddle. Within a split second Bajwa ordered the police to arrest Virendra as well. Soon Najmul Hasan and some of the other journalists tried to remonstrate with Soni and explain that she was getting a journalist colleague arrested. Soni turned on Hasan and asked, 'Who are you?' In a panic, Hasan left the scene without arguing any further.

The arrested were virtually dragged outside the Red Fort's Diwan-e-Aam. Virendra was held by two plain-clothes men as one of them rained baton blows on his upper legs, taking care to hit him only on the soft flesh so as not to risk a medico-legal case. All those arrested were lined up next to the jail van, which was already there since the CID had prior intimation of the planned demonstration by the anti-Emergency underground movement. Now, Soni came up to Virendra and again asked, 'Don't you think instead of preventing me from nabbing those boys, you should have been helping me in doing that?' A hot-headed Punjabi, Virendra, instead of showing any remorse, repeated defiantly: 'I still maintain it was none of your business to catch those boys. If they were breaking any law, the police were there to handle it.' A rattled Soni angrily said, 'OK, then you go in.' The DSP of Chandni Chowk, Ramamurthy Sharma, who knew Virendra from his crime reporter days, sidled up to him, whispering, 'You have taken *panga* with Sanjay Gandhi's special friend. I cannot help you.' Virendra whispered back, 'It's fine, Panditji.'

In the police station records Virendra was described as a long-time RSS worker, although he had never had anything

to do with the organization. It was also claimed that he was distributing pamphlets. This identical charge was slapped on all the twelve boys arrested that evening. At least half a dozen others who had been part of the group that had been sent to protest had escaped notice in the confusion that followed their slogan shouting.

That night there was a dinner at the lt governor's house. Soni, riding high on her proximity to Sanjay Gandhi, complained to Kishan Chand and Navin Chawla, saying the Youth Congress members were helping out the police but a twopenny journalist had behaved rudely with her. Meanwhile, SP Prakash Singh attempted in a timid fashion to see if Virendra could be released. Bajwa telephoned the lt governor's house from the Kotwali police station but was firmly told by Chawla that the journalist should be kept in custody along with the other demonstrators.

Virendra spent an uncomfortable night in the Chandni Chowk police lock-up. The place stank. There was a hole in a corner which doubled as a pisspot and a loo. The tattered blankets reeked of urine and vomit. The door had iron bars so you couldn't keep out the cold. It also preyed on Virendra's mind that there was a lot of underground literature in the dickey of his Vespa scooter and if detected the police might torture him to find the source. Fortunately, the scooter keys were handed over to Satpal Khurana that same night and he drove it home.

The next day in the afternoon Virendra was brought to the Tis Hazari court, his hands shackled to those of the other demonstrators. It was a painful sight, but Virendra had not lost his fighting spirit and assured me that he would soon

be out. His elder brother Balraj who had come to the court room remonstrated with him, remarking cynically, 'What was the need for you to try and behave like a hero? You know the circumstances prevailing in the country.' For Virendra's family, jail was not just an unpleasant place to be in, there was also the stigma attached to being a prisoner, for whatever reason.

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Virendra was sent to Tihar jail, where he got to meet the other political prisoners. BLD leader Chaudhary Charan Singh and Akali Dal leader Prakash Singh Badal were especially kind to him, perhaps because he was a journalist and they had heard the circumstances of his arrest. Charan Singh took him to his barracks where there were two books, Hitler's *Mein Kampf* and a biography of Vivekananda's, taken from the prison library. He pointed to his room and told Virendra, *'Dekh ley, Kapoor, issi kothri mein Indira Gandhi ko rakhunga'* (Look carefully, Kapoor, I will detain Indira Gandhi in this same cell). Badal, who had courteous old-world ways, was very solicitous of Virendra's well-being. He kept three large tin canisters in his room, one filled with tea, another with sugar and a third with home-made biscuits. He was generous about sharing his supplies. Badal, Charan Singh, Jeewan Singh Umrangal, another Akali leader detained with Badal, and one known simply as Captain Saheb would play the card game, 'Court Piece', to pass time. A *mashakti* (a convict assigned hard labour) would make endless cups of tea and offer it to all visitors even as the foursome immersed

themselves in their card game. Virendra stayed in jail for several days under DIR. It was a dark Diwali for me. The next one was to be even worse.

On 6 November Virendra was released on bail on the basis of affidavits given by two foreign journalists to the court, testifying that he was not one of the slogan shouters at the civic reception. It is indicative of the terror prevailing at that time that no Indians, not even colleagues, were prepared to give evidence on the circumstances surrounding Virendra's arrest. His counsel argued forcefully on his behalf. The courts seemed to be the sole area that had not succumbed to the fear psychosis prevailing in the rest of the country. (In fact, all the bar associations, other than the Calcutta bar association, had issued statements condemning the Emergency rule.) Even then, we were apprehensive that we were not out of the woods, for Virendra was now a marked man. Prakash Takkar from the IIT union was waiting outside for Virendra with a car. It had become common practice for the police to wait outside Tihar jail every night when the prisoners were being released and rearrest them on some other charge. Takkar had therefore been instructed to drive at breakneck speed once Virendra got into the car, and not stop even if a policeman signalled to him to halt.

Ambika Soni, meanwhile, was obviously feeling uncomfortable since several journalists had questioned her about why she had got Virendra arrested. She later claimed that at the lt governor's dinner party she tried to make it clear to Navin Chawla that she was not responsible for Virendra's arrest, and that if Virendra was actually innocent he should be let off. But Chawla had laughed flippantly and said she was a heroine who had in fact captured a much-wanted RSS man.

Gurudutt Ravi, a Coffee House friend, who knew a lot of Congressmen since his brother was office secretary of the Congress Parliamentary Party, took the initiative on his own to arrange a meeting between Soni and Virendra at Imperial Hotel to remove any misunderstanding. Soni wanted to make it clear she had not realized Virendra was a journalist. Virendra, however, said he had not asked for the meeting, and he did not want to see her since he knew she would defend her arrest of the boys, whereas he had not changed his views. Soni waited at the hotel for forty-five minutes and then left, not pleased at the snub, especially when she was trying to make amends.



The relief of being out of jail proved short-lived. The lt governor had given orders that all those who had been arrested for the Red Fort incident should be rearrested under the infamous MISA. The detention order was issued on 21 November. Virendra was blissfully unaware of the fresh warrant against him and went about his business as usual. The police at the Greater Kailash station from where the warrant was issued were either too lazy or sympathetic, and did not make an effort to arrest Virendra from his residence. But one day he went to court, accompanied by his lawyer friend Balbir Sherawat, a diehard Congress supporter, to reclaim his Seiko wristwatch and a ballpoint pen which had been seized by the Chandni Chowk police during his original arrest. The reader for the magistrate signalled to a plain-clothes policeman waiting in the court

when Virendra entered. To Sherawat's horror, the South Delhi Police came forward to arrest Virendra under MISA. It fell on this very decent individual to convey the news to me. He may have been a Congress backer, who would during the Janata government stand bail for Indira Gandhi, but he was no supporter of the Emergency. Virendra had come to know him from his Coffee House days. Sherawat accompanied Virendra to our flat in VP House—the police had permitted Virendra to first stop by the house to pick up his clothes and toothbrush. He urged me to go ahead with my evening assignment, which was of delivering a lecture, ironically on the importance of press freedom, at the Bharatiya Vidya Bhavan.

I taught journalism on some evenings a week which people in the office did not know about. Since work at the *Express* was so slack due to the Emergency and censorship, I could get away with moonlighting without anyone being the wiser. The lecture was a blur, my heart was beating so fast. But I do remember talking emotionally about John Locke's philosophy, and freedom and the right to dissent. The students showed no emotion. My own voice was tremulous and it was with difficulty that I held back tears. I did not know until much later that one of the students was Gitanjali Maken, daughter of Congress leader Shankar Dayal Sharma and wife of Youth Congress member Lalit Maken. Another student was Vinod Sharma who later became a journalist. He recalls that I once protested to some heckling students, 'I am not in the mood for jokes, my husband is in jail.'

There were some fourteen detainees in the MISA ward at Tihar jail where Virendra was housed. These included K.R.

Malkani, his former editor at the *Motherland*, Arun Jaitley, then the DUSU president, Kanwar Lal Gupta, former MP from the Sadar constituency in Delhi, Ram Nath Vij a professor from Hansraj College, Suresh Upadhyaya, a lecturer at IIT, Delhi, who was a close associate of Subramanian Swamy's and who had been a regular at our home at VP House, D.P. Tripathi, a union leader from Jawaharlal Nehru University (JNU), O.P. Kohli, president of DUTA, and Balbir Tokas, a student with no political affiliation who happened to have been persuaded to stand for election to his college union by the ABVP.

Virendra soon settled into the routine of prison life. Every morning they got bed tea. The detainees were assigned a mashakti to help with the chores and cooking. The convicts, who were sentenced to hard labour, were happy to do the lighter tasks involved in looking after the MISA prisoners. The mashakti assigned to their ward was a man who was convicted of stabbing a Hindu College professor. The stormy petrel Raj Narain, who was temporarily in the same ward, promised that he would get the convict's term reduced when his party came to power.

Every morning Prof. Ram Nath Vij would wear a loincloth, give himself an oil massage and then take rounds of the periphery of the ward. He was a health freak. Some of the prisoners played volleyball and badminton. Malkani read a lot. A transistor was smuggled into jail but more exciting news was obtained from the underground network, which was conveyed to the detainees when visitors came to see them on their weekly visits. Kanwar Lal Gupta, a former MP, used to lament his fate all the time, and talk to Virendra

about his unnecessary arrest. He would say, 'You have a long life ahead of you, but we will all die here.' Virendra would ignore his pessimism, and urge him not to lose faith in the people. Fortunately, most of the others in the ward were not demoralized by their arrests, and instead were determined to fight. The fly in the ointment was a crude businessman from Jama Masjid area who had got into trouble for selling fake ball bearings. He was arrested under MISA as a 'bad character', but had bribed his way into being placed with the political detainees. He taunted Virendra that either he had been put in jail because he wanted to enter politics or Swamy had sent him there to spy inside jail for the CIA.

In the adjoining wards too there were political prisoners and they were all permitted to mix freely. The RSS–Jana Sangh prisoners, who were in larger numbers than the others, were well organized. They had laid out a routine. Every week one of the MISA detainees was assigned the task of ensuring that meals were cooked and served on time. Once a week they met to discuss what was wrong with the arrangements in jail. There were daily discourses by different prisoners.

An arrest under MISA, unlike an arrest under DIR, had an air of finality about it. There was no scope for intervention by the courts, no provision for bail. When I first heard about Virendra's detention under MISA I had visions of a scene from Aleksandr Solzhenitsyn's *One Day in the Life of Ivan Denisovich*, with indefinite detentions from which there was to be no reprieve. A sentence with a clearly defined time frame is so much easier to bear. I remember Sushila, Swamy's sister, asking me how long I expected Virendra to be in prison; I had replied, 'I fear at least seven years.'

Being a prisoner's wife with an infant, and having to keep a job at the same time, was tough. Ramnath Goenka, despite his sympathy for the JP movement, refused to pay Virendra's salary. He said there were only so many fronts he could fight on and the government would object. Some in the office felt cynically that he was making excuses and was just a congenital miser. For that matter, he also refused to pay the salary of another *Express* staffer, Kirit Bhatt, who was later arrested in the Baroda dynamite conspiracy.* All the same, Ramnath Goenka did not sack the arrested staffers.

The authorities had devised a very cumbersome and time-consuming procedure for the weekly visits of relatives. You had to travel all the way to Tis Hazari to the ADM's office and put in a request for a pass, then go back again the next day and collect the pass, if you were lucky. Most often, you had to make yet another trip. The whole procedure involved long hours and much patience, waiting for the indifferent secretarial staff of the ADMs to attend to you. Once, fed up with waiting for more than an hour and a half for my application to be signed, I simply barged into the ADM's office and asked him to sign my form. The ADM, Pradipto Ghosh, did it without blinking and continued talking with some people in his office. Other ADMs were, however, not so tolerant. I was lucky that Swamy's union colleague Satpal Khurana often helped me in getting the necessary paperwork done. Khurana was out of work and evading arrest. Many housewives whose husbands were in jail did not have any anyone to assist them, and although they had seldom been

* See chapter 13 for details.

outside their homes on their own, they had to make the rounds of Tis Hazari several times a week to procure the visitor's pass.

Friday was visitors' day for MISA prisoners from New Delhi and south Delhi. Two visitors per prisoner were permitted. Virendra's visitors could also use Upadhyaya's visitors' passes since he did not have family in Delhi. Once, one of Virendra's college friends, Prafula Mishra, an IPS officer of the Orissa cadre, was courageous enough to come in mufti to meet him, posing as a relative. My sister would drive me to faraway Tihar in her Fiat as I had no car of my own. Outside the jail, waiting to be called in, would be a motley group of people from all strata of society. On one occasion we saw a man and a woman in jodhpurs and riding boots walking through the gate. We were told they were visiting the Rajmata of Jaipur. Another time we met the former vice chancellor of Delhi University, Dr Swarup Singh, who had come to meet his relative, the BLD leader Chaudhary Charan Singh. And we saw a lot of people from very humble backgrounds as well.

There were many fellow journalists who were sympathetic but felt I should be more proactive in securing my husband's release. The warm-hearted Prabha Dutt gave me a pep talk about not being so helpless. She urged me to take the assistance of her newspaper's Delhi Administration reporter to meet Mir Mushtaq Ahmed, the chairman of the Delhi Metropolitan Council. On Dutt's insistence I met Mushtaq with Ahtesham Qureshi, a reporter at the *Hindustan Times*. Mushtaq was sympathetic but unable to help. 'Who is this Ambika Soni? I have heard all kinds of stories about her!' he

muttered darkly, making it evident that he did not approve of her. But it was also clear that he was part of the old order in his party and no one was listening to him any more. The power was now with the newcomers. Another colleague who tried to help was Pranab Basu from the *Patriot* who told me he had a friend in government, a fellow Bengali, the minister of state in the finance ministry, Pranab Mukherjee, who he was sure could help me. Mukherjee, a Sanjay appointee, was polite and accepted a summary of the case. But I heard nothing further. Only a handful of people in the government were actually involved in the MISA detentions.



I decided that my only recourse was the courts. By this time many MISA detainees had filed writ (habeas corpus) petitions against detention under Article 226 of the Constitution, claiming their fundamental rights. The legal argument was that no one could be deprived of life or liberty without the authority of law. In nine high courts—Allahabad, Andhra Pradesh, Bombay, Delhi, Karnataka, Madras, Madhya Pradesh, Punjab and Rajasthan—the judges ruled against the government. On 15 July 1975 the Delhi High Court MISA bench upheld the plea of Kuldip Nayar's wife, Bharati, that he could not be detained without judicial scrutiny and criticized the conduct of the government. (In fact, the government, getting wind that the court would rule in Nayar's favour, had released him a day earlier from Tihar in the vain hope that since they had revoked the detention order, the petition had become infructuous and thus there was no need for the court

to pronounce a verdict—which would have been applicable for other detainees as well.) Additional Justice R.N. Aggarwal, who was part of the two-member Delhi bench, had to pay the price for this judgment. Although recommended by both the chief justice of the high court and the law minister H.R. Gokhale to be promoted as a permanent judge, he was reverted as a sessions judge on the instructions of the PM herself, who claimed there were IB reports suggesting that Aggarwal was an RSS man. The other judge, Justice S. Rangarajan, was transferred to Assam. Similarly, in the Bombay High Court, Justice U.R. Lalit, also on a MISA bench, was not permitted to continue as a judge of the high court. Again, the PM took a personal interest in the matter.

In all, eighteen judges were transferred for delivering judgments not to the government's liking. Chief Justice S. Obul Reddy of Andhra was transferred to Gujarat, Justice B.J. Dewan of Punjab to Andhra, Justice O. Chinappa Reddy of Andhra to Punjab, Justice Chinna Kondaiah of Andhra to Madhya Pradesh, Justice S.H. Sheth of Gujarat to Andhra, Justice J.R. Vimadalal of Bombay to Andhra, Justice S. Sadananda Swami of Karnataka to Assam, Justice D.M. Chandrashekhar of Karnataka to Allahabad, Justice D.S. Tewatia of Punjab to Karnataka, Justice D. Biharilal of Himachal Pradesh to Karnataka, Justice A.P. Sen of Madhya Pradesh to Rajasthan, Justice T.U. Mehta of Gujarat to Himachal Pradesh, Justice P.N. Mukhi of Bombay to Calcutta, Justice R.M. Lodha of Rajasthan to Madhya Pradesh, Justice R. Sachar of Sikkim to Rajasthan and Justice S.S. Grewal of Punjab to Sikkim.[2]

When I approached the *Indian Express* general manager R.K. Mishra for legal help, he poured cold water on my

hopes of securing Virendra's release through the courts. He said that he felt it was a waste of time—the government was determined to bypass the courts. Kuldip Nayar had been released by the government, not by the courts, he pointed out. All those who had got favourable verdicts from the high courts were still in jail, pending the decision in the Supreme Court. Undeterred, I telephoned the former judge and senior Supreme Court counsel V.M. Tarkunde on my own and was given an appointment immediately. The eminent jurist was extremely sympathetic and helpful. He assured me he would take up the case and instructed me to approach the solicitor firm J.B. Dadachanji & Co. to get my case papers prepared. The basic question involved in the MISA cases was whether the imposition of an Emergency took away the right of a person to approach a court for the enforcement of his or her fundamental rights guaranteed under the Constitution.

There was no question of any fee being charged either by Tarkunde or the law firm, unlike my experience in the lower courts for DIR bail where the lawyer, although helpful, had insisted on his fee. Apart from Tarkunde, other leading lawyers like Soli Sorabjee, Shanti Bhushan and Ashok Desai appeared for many MISA detainees free of cost. Sorabjee recalls that the atmosphere in those days was very different in Bombay and Delhi. 'In Delhi I was not considered a desirable or safe person to mingle with. Even my young son Hormuz was scared. He told me once, "Daddy, it will look so bad if you are put in jail."'[3]



While I was seeking legal advice, a fresh difficulty arose. Virendra was abruptly transferred out of Delhi. Because of overcrowding in Tihar, many convicts had to sleep in the 'factory' in which they worked during the day. A group of convicts led by the notorious dacoit Sundar had been secretly digging a tunnel at night. They put wooden planks over the entrance in the daytime to conceal the opening. On the night of Holi, Sundar and a few of his henchmen escaped. Alarmed by this lapse in jail security, the authorities immediately decided to reduce the number of political prisoners in Tihar. A large number of detainees were dispatched to other jails in north India. Virendra was one of five sent to Bareilly.

Virendra and his four companions were given no notice. They were simply told they had to leave within an hour. They were put in a jail van and sent to the Old Delhi railway station. When the van stopped at a red light on the Outer Ring Road, Virendra had the presence of mind to take out the silver foil from his cigarette packet and write my telephone number and a message on it. He asked me to meet him at the Old Delhi railway station as he was being sent to Bareilly that night. He then threw the chit towards a scooterist waiting for the signal to turn green. The scooter driver was so cautious that he did not pick up the paper from the road till the van had moved on. This helpful stranger called me up to pass on the message. I was stunned. I felt very helpless and alone. Bareilly seemed like the back of beyond.

Sushila accompanied me to the railway station. Despite the crowds and the confusion at the platform, we managed to locate Virendra who was handcuffed and surrounded by policemen. He had little in common with the four other

prisoners from Tihar. As we said our goodbyes, we could hear a crowd of sycophantic slogan-shouting Congressmen. They had come to see off Yashpal Kapoor, who was travelling on the same train. Kapoor, Mrs Gandhi's former aide, was now an MP. Something within me snapped and I yelled loudly, 'Boo! Boo!' There was a momentary silence on the noisy platform and people stared at us curiously. Sushila and Virendra chided me for my foolishness, but it was a spontaneous, impulsive act, born of my pent-up feelings. The fact that no one came forward to take action against me, not even the policemen standing around, seems to indicate there was sympathy for political prisoners. We Indians are not by nature a ruthless people. If it had been Nazi Germany I would no doubt have been bundled into jail instantaneously.

For more than a month, I was unable to meet Virendra. I filed a writ of habeas corpus in the courts that I had no knowledge of my husband's whereabouts. But I was never officially informed of my husband's transfer to Bareilly jail. It was simply more time wasted in the magistrate's court. I also put in a request to the lt governor on 7 April 1976 for Virendra's release on parole for three days, to enable him to see my father who was leaving for the USA for cancer treatment. I attached my father's medical certificate, but the permission for parole was rejected.

The Bareilly jailers themselves had not been given any explanation as to why the Tihar prisoners were being sent to their jail. In jail lore, one gets transferred from a prison in one's home town as a punishment, for being difficult. The jail authorities had heard rumours about the Tihar jailbreak and suspected that the five prisoners brought to Bareilly from

Tihar might have had something to do with it. Virendra was thus locked up in solitary confinement and put in leg irons. The only human company was the guard who every few hours peeped in to ensure the prisoner was not up to any mischief. The jail manual refers to this form of punishment as *chalees chakki*, and it stipulates that it is punishment for extreme misbehaviour and no one should be kept in this condition for more than five days. Virendra and other MISA political prisoners in the Agra, Fatehgarh and Bareilly jails were made to suffer this inhuman torture for over a week. It had an impact on Virendra's personality. He became more brooding and introverted.

Virendra's younger brother Vijay Kapoor was working for the shoe company Bata in Bareilly and he made friends with one of the jailers so that a letter could be smuggled out to me. Virendra's letter was a desperate cry for help. 'Do something to get me out of here. I am going mad in this place. Tihar was heaven compared to this.'



I was at my wits' end, clueless about what to do next. It was the kindly V.K. Narasimhan—promoted as editor of the *Indian Express* in the absence of S.M. Mulgaokar*—who on his own volunteered to write to his old friend, Home Minister Brahmananda Reddy, explaining Virendra's case. Narasimhan knew Virendra well, since he was earlier in charge of the *Financial Express*. Unlike Narasimhan, however,

* Mulgaokar had been removed during Ramnath Goenka's illness, after Goenka suffered a heart attack.

I had little faith in Reddy's ability to help. The old guard in the Congress counted for nothing under the present regime. It was well known that Reddy's deputy Om Mehta's word carried far more weight than that of his superior.

After over a week Virendra was finally released from solitary confinement. The authorities had realized that the five prisoners sent from Delhi had nothing to do with the jailbreak. Also, the other political detainees in the jail had got wind that some political prisoners were being kept in solitary confinement and had raised a ruckus. Vijay helped in softening the attitude of the jailers by providing free footware to the staff. He also obtained weekly passes for Roxna and me along with my nieces Gitanjali and Suhasini and my baby daughter, Ila, to visit the jail. The overnight train was grimy and overcrowded; monetary circumstances were such that I now had no option but to travel by second class. On one such journey, at the Rampur station, someone pulled Roxna's gold *mangalsutra* off her neck while she was asleep. Everything seemed to be going wrong at the same time. After I returned to Delhi from one such journey to Bareilly, I found that Ila's cold had worsened; she had turned blue in the face and was unable to breathe properly. I rushed her to the clinic where the doctor immediately put her on a steam inhalator. I sat on the bench praying for my daughter's life. Doctor Promila Gupta comforted me, 'Don't worry, things look bleak but you will find that you will get over your troubles eventually.' Ila recovered in two days.

Compared to Bareilly, Tihar was a model of efficiency. In Bareilly, after the tiring overnight journey, we were kept on tenterhooks till the very last moment as to whether the

lackadaisical UP jail authorities would permit us to actually meet the prisoner. For Virendra, it was an eye-opener. To begin with, the caste hierarchy was very pronounced. Virendra recalls many prisoners looking askance because he insisted that his mashakti, who happened to be a dalit, share the goodies sent by the family. The mashakti was reluctant to sit on the same charpoy instead of on the floor. And even when he was on the string cot, he was so intimidated that he perched gingerly on the edge of the bed. Unlike Tihar, there was also a divide between the political prisoners—the Jana Sangh–RSS group stayed away from the socialists. It was not just that the environment and food in Bareilly jail were bad, it was the near absence of like-minded people that was worse.

It was around this time that the *Financial Express* Delhi editor C.P. Raghavan showed me a letter from a couple in Sweden who were associated with Amnesty International. They had been given details of Virendra's arrest and wanted to find out if it was true and to whom they should write in India to express their concern. Raghavan and I both decided that the wisest course was to not answer the letter, even if that was a cowardly reaction. To reply, I felt, would have only infuriated the authorities further and served no useful purpose.

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Another Good Samaritan was Promilla Kalhan, editor of the *Hindustan Times*, Sunday magazine. She asked me to meet the IB director S.N. Mathur who was an old friend of hers. She had fixed up an appointment for me. By coincidence

the appointment was on the same day, 28 April 1976, as the Supreme Court's verdict on the habeas corpus writ petitions. Nine high courts had struck down the government's MISA orders as being ultra vires the Constitution. They had held that under Article 21 of the Constitution no person can be deprived of his life or personal liberty except according to procedure established by law, which includes the right to petition the courts. The government had appealed to the Supreme Court against the high court judgments. All MISA detainees and their relatives had now pinned their hopes on the Supreme Court judgment. I prayed that my visit to Mathur would turn out to be redundant as by then the court would have given its ruling on the case,* which would hopefully set a precedent, and Virendra would be free.

My father, who had belonged to the Bombay cadre of the ICS, was familiar with the previous judgments of both Justice P.N. Bhagwati and Justice Y.V. Chandrachud and was serenely confident that they would rule against the government. I told him that in Delhi the rumour was that although Justice H.R. Khanna could be counted on to oppose the government, the intentions of the others were suspect.† My father was certain that if Justice Khanna could be counted on then the judgment would be three–two against the government. But, eventually, those very judges who had once been particularly vocal about civil liberties and human rights remained silent in court on these subjects. Justice Khanna, on the other hand, had put searching questions to Attorney General Niren De. Contending that Article 21 related not merely to personal liberty but also to

* The *ADM Jabalpur vs Shivkant Shukla* case, known as the habeas corpus case.
† The two other judges were A.N. Ray and M.H. Beg.

life, Khanna had quizzed the attorney general as to whether there would be any remedy if a police officer because of personal enmity killed another man. De was unequivocal: 'There would be no judicial remedy in such a case as long as the Emergency lasted. It may shock your conscience, it shocks mine, but consistently with my submissions, no proceedings can be taken in a court of law on that score.'

The day the judgment was pronounced, the deputy news editor S.K. Verma, probably aware that I was waiting with bated breath to learn the decision, thoughtfully sought to relieve my suspense and suggested I go to the Supreme Court with a fellow reporter. I entered just as Khanna was delivering his judgment and announcing, 'I am in a minority.' My hopes crashed. Everyone in the court, who had been waiting for the verdict, knew the government had won.

Khanna sacrificed his chance to be chief justice of the Supreme Court for the sake of upholding truth and justice. He was next in order of seniority to be chief justice, but after his judgment against the government there was no way Mrs Gandhi would allow him this honour. In his dissenting judgment, Khanna mocked the argument that judges had to function under the law in force at that time. He quoted from Wolfgang Friedman's *Law in a Changing Society* that 'in a purely formal sense, any system of norm based on a hierarchy of orders, even the organised mass murders of Nazi regime, qualify as law'.[4] The judgment was one of the darkest chapters in the history of the courts as it struck at the heart of fundamental rights. There was despair in jails across the country and among all those who believed in the primacy of a citizen's fundamental rights. (Years later, Justice P.N.

Bhagwati was to apologize for his judgment and for being swayed by the majority opinion.)

The historic importance of Justice Khanna's dissent was acknowledged by the media, jurists and people the world over. The *New York Times* in an editorial on 30 April 1976 wrote that a grateful nation should erect a monument to Justice Khanna, who had upheld the Constitution and the rule of law, even though it had meant sacrificing his career. Justice Khanna had been well aware that his judgment would bring to an end his dream of being Chief Justice of India. Justice M.H. Beg was appointed the next chief justice and Khanna resigned from the bench.

Soli Sorabjee recalls that he was with Nani Palkhiwala at a legal conference in Bombay when they came to know that the Supreme Court judgment in the habeas corpus matter had been delivered and the verdict was four to one. 'Naturally we thought that the case was won. We couldn't believe it when we learnt that the Supreme Court had dismissed the petition. Nani was stunned. We had banked on Bhagwati and Chandrachud, and they let us down. Ray and Beg we never had any hopes about.' Another lawyer declared defeatedly, 'This case was our last hope and now that hope is gone.'[5]

But Mrs Gandhi had not yet completed her programme to subvert the Constitution. Soon Parliament passed the 42nd Amendment whose clauses gave unprecedented powers to Parliament. The Lok Sabha now had the power to extend its own term and it promptly postponed the impending elections.

Straight from the Supreme Court I went to meet the IB director Mathur at his residence at Tughlak Lane. Mathur said he had read my husband's file and would see what could be

done. I did not know it at that time, but Brahmananda Reddy had forwarded Narasimhan's letter to the IB for investigation. A few days later, Virendra had a visitor from Delhi, the DSP of Delhi, Raghunath Sharma, whom Virendra knew from his crime reporter days. Sharma had been sent by the IB to check him out. He clearly put in a good word for Virendra.

Soon afterwards, Virendra's bureau chief Kewal Varma told me in confidence that his friend Shailaja Chandra, home secretary in the Delhi government, had alerted him that the home ministry had cleared Virendra for parole but Navin Chawla was sitting over the file. She suggested to Varma that I meet Chawla.

Making an appointment to see Chawla was tough; getting to actually meet the great man was a test of patience. I was called at 9 a.m. and at 12.30 p.m. I was still in the waiting room, as were many others. As a reporter, I have had opportunities to meet the high and mighty on many occasions but this was surely the longest wait for an appointment. But when I was finally ushered in to meet Chawla, he was all amiability and apologized for the delay. He was obviously familiar with the case although he pretended to be ignorant of the details. He said the matter could be cleared up by speaking to Ambika Soni. He picked up the phone and inquired, 'Ambi, can we meet?' I could make out from the conversation that they were to have lunch the next day at the Maidens Hotel. A week later, he called up to inform me that he had spoken to Soni and 'scolded her' for her behaviour. He assured me that Virendra would be released shortly on parole. Within days, Virendra was back home—after spending over nine months in prison.

After Virendra's release, most journalists at the Press Club shied away from talking with him. Only one or two, who looked like businessmen and had managed to get Press Club membership on dubious grounds, sat with him and insisted they were happy to keep him company. Later, he discovered they were keeping an eye on him for the CID. Virendra's editor C.P. Raghavan sent him on a State Trading Corporation trip organized by the Andhra Pradesh tobacco industry, thinking it would do him good to get away from Delhi's vitiated atmosphere. But even during the trip the IB kept tabs on him. This was later revealed to him by the STC official Rattan Chopra who had organized the tour and who was a relation of the IB officer Vijay Karan, who would later go on to become the CBI director.

Despite Virendra's release from prison, the shadow over our lives did not lift. In fact, the nightmare for our family was to continue, with the Emergency regime harassing my parents, and launching a countrywide hunt for my sister Roxna's husband, Subramanian Swamy.

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Swamy on the Run

Subramanian Swamy had come to join the Bharatiya Jana Sangh through a circuitous route. An up-and-coming academic economist who specialized in China, he had completed his PhD at Harvard at the age of twenty-four and co-authored a study with the noted economist Paul Samuelson. Swamy had quit his associate professorship at Harvard when he was invited to teach at the Delhi School of Economics in 1969. But his views were too pro-market and anti-establishment for the leftists who dominated the school at the time. The offer of professorship was withdrawn and instead the lower post of a reader was offered to him. Swamy opted instead for a professorship at IIT, Delhi. Even here, his opinions got him into trouble: he advocated economic liberalization, criticized the Planning Commission and was passionate about India's need for a nuclear deterrent. In 1972, Swamy was sacked from IIT and Roxna lost her post as teacher of mathematics. His nationalist views appealed to

the Jana Sangh, which nominated him to the Rajya Sabha in 1974. Thereafter, he worked closely with Nanaji Deshmukh, a full-time RSS pracharak, at the Deen Dayal Upadhyaya Research Institute.

Nanaji was a key figure in the JP movement. Known for his excellent organizing skills, he was chosen by JP to be secretary of the Lok Sangharsh Samiti, which brought together all the opposition parties and organizations supporting JP's Total Revolution. When the Bharatiya Jana Sangh was founded in 1951, Nanaji was loaned to the party by the RSS, and soon became a much-respected figure who was largely responsible for building the party's structures at the grass roots, particularly in UP. Nanaji had an excellent working relationship with people from all strata of society. He could recall the names of RSS–Jana Sangh members, even of their wives and children, several years after first meeting them—a quality that endeared him to all those with whom he came into contact. He was on very friendly terms with leaders from other political parties as well, including Charan Singh and the socialist leader Ram Manohar Lohia. And, like JP, Nanaji took an active part in Vinoba Bhave's Bhoodan movement (a voluntary land-reform movement, started in 1951). As the chief fund raiser for the Jana Sangh, Nanaji was on first-name terms with many businessmen and industrialists too. He was especially close to the *Indian Express* proprietor Ramnath Goenka.

Nanaji was leaving for his home at the Deen Dayal Research Institute in Jhandewalan after the rally of 25 June, when he received a phone call from an anonymous source, warning him not to sleep at his own residence as he would

be arrested. He thought he could identify the man as an acquaintance from the IB, but the caller put down the phone when he tried to ask for more details. He spent the night at the flat of his protégé, Dr J.K. Jain, at VP House, and left early next morning for the airport to meet JP who was due to fly back to Patna that morning. The airport was swarming with policemen and armed forces. Somebody recognized Nanaji and asked him, 'What are you doing here. JP has been arrested. How come you have not been taken into custody?' He drove back hastily to VP House in his Fiat and awoke Jain: 'Doctor, get up, we have to leave immediately. We have no time.' As they were leaving, a phone call came from the Delhi Jana Sangh leader, Madan Lal Khurana, telling Jain to inform Nanaji that JP had been arrested during the night and Nanaji should immediately go underground.[1]

Dr Jain recalls that when they left VP House, where a large number of MPs and political workers resided, there were some 500 policemen getting down from trucks to take control of the complex. His car was parked next to a police van, but he simply honked for them to move aside and drove away. The policemen did not seem to have any clue as to whom or what they should be looking for.

Nanaji wanted to go to a place where he could think. At the first place to which Jain took him, the owner of the house was too frightened to provide him shelter. Jain then drove Nanaji to his sister-in-law's house, where he stayed for a day. When Dr Jain reported for work that evening at the Tirath Ram Shah Hospital in Civil Lines, Delhi, he was told that a patient was waiting to see him. It was Ramnath Goenka

who wanted to know where Nanaji was. Goenka felt that Nanaji and the RSS were the only ones who could mobilize manpower and money.



The ban on the RSS came into effect from 6 a.m. on 4 July. That was a blunder by the government. At that time, RSS workers were at the shakhas, doing their daily morning drill, and the police found almost no one at the RSS offices and headquarters. The ageing RSS head, Balasaheb Deoras, was taken into custody, and Madhavrao Mule, the organization's general secretary, became the man in charge. The RSS worked out a network of safe houses for those underground. It also organized cadres to distribute leaflets and court arrest in different states, although these were not reported in the newspaper. Mule's deputy, Chaman Lal, who headed the regional headquarters of the RSS in Jhandewalan, Paharganj, Delhi, was an unassuming man who kept track of countless details and liaised with many who were underground.

Ironically, Balasaheb Deoras, who was put in jail, did not play such a heroic role. From prison he sent several letters to Indira Gandhi praising her leadership, and these were perceived as a form of apology and a plea for pardon. Others more kindly disposed towards Deoras argued that these letters were a tactical move meant to protect the interests of the organization and its members. Some 25,000 RSS workers were detained under MISA and DIR. Around 1,00,000 offered satyagraha.

Another group with loyal cadres and willing to offer satyagraha was the Akalis. At one time there must have

been over 1,50,000 people in jail under MISA, DIR or various provisions of the CrPC,[2] slapped most arbitrarily against whoever the authorities perceived to be unfriendly towards the Emergency regime. Indeed, at the local level Congressmen used the Emergency to settle personal scores with their neighbours, and business and professional rivals, and so on. In fact, opposition activists would often liken the Emergency to a 'mad dog', its terror lying in the uncertainty as to whom it would attack and throw into prison next. The fear of arrest dangling over so many heads besieged the country. It made people suspect their own neighbours, their colleagues at work, and often, their own shadows. You dared not express an opinion edgeways for fear of being reported to the authorities. The number of those in Indira Gandhi's prisons during the Emergency far exceeded the total number jailed during the 1942 Quit India movement. The difference was that despite such a large number of political prisoners, the public was unaware of the extent of the arrests because of the news blackout. Very often the police managed to swoop down and arrest satyagrahis even before they had reached the spot where they were to publicly court arrest.

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One of the first things Nanaji did was to disown his cars. He had two old Fiats. Fearing that the police might attach them in case he was declared a proclaimed offender for evading arrest, the registration of the two cars was immediately transferred in the names of the spouses of two of his close aides. For his own use, to mobilize anti-Emergency operations, a brand-new

Fiat was procured—a gift from an industrialist who had been widely known to be anti-Congress from the days of Pandit Nehru. Nanaji criss-crossed the country in this shiny white Fiat, without the police having a clue about his identity.

Nanaji kept changing the houses he stayed in practically every night. He utilized the services of Dr Ragini Jain, Dr J.K. Jain's wife, as a driver since it was feared that the police might be tailing her husband. Nanaji drove mostly at night, and usually he and the person he was supposed to meet sat in the back of the car. Nanaji established contact with Madhavrao Mule and Sunder Singh Bhandari, general secretary of the Jana Sangh. The Rajmata of Gwalior called on him to seek his advice. He suggested she court arrest. Her son Madhavrao Scindia said he could not cope with prison life and left for Nepal where he lived with his in-laws till he negotiated peace with Sanjay Gandhi.

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Within a day of the Emergency being declared, Nanaji met up with Subramanian Swamy at a house in Rajinder Nagar, Delhi, where Virendra had ferried him on his scooter. Swamy found Nanaji sitting comfortably on a sofa, showing no signs of fear. Swamy, more cautious, kept looking out of the window that opened towards the colony road. 'So, Doctor, don't you want to run away to America now?' Nanaji joked with Swamy.[3] From then on, Swamy and Nanaji spent a lot of time together. RSS sympathizers and Dr Jain's large circle of patients and relatives provided temporary shelter. A relative living in Vasant Vihar agreed to be host for a few days with some

trepidation. The Gole Market residence of Virendra's college friend Suman Anand was also used on occasion.

Nanaji decided to go to Bombay to raise money. He was persuaded to change his appearance, so he discarded his regulation dhoti–kurta and slippers and now wore a loose-fitting safari suit with Bata chappals. He shaved his hair, dyed his moustache black and wore round spectacles. In the new garb he could well pass off as a tobacco trader from Guntur, Andhra Pradesh. Swamy, meanwhile, transformed himself into a Sikh, wearing a turban and a kara. Nanaji travelled by car from Delhi to Bombay with Prakash Takkar in the driver's seat. In Bombay he met industrialists including Ram Batra, who was the Jana Sangh treasurer before he quit the party after the imposition of the Emergency. Nusli Wadia, scion of the family that owned Bombay Dyeing, was another man Nanaji met to solicit help. Despite their very different backgrounds and ages, the two had a close association.

Members of the Lok Sangharsh Samiti who were out of jail, including N.G. Gore, Era Sezhiyan and Ravindra Verma, sometimes met at safe houses in Delhi. The samiti's mood was glum and nothing concrete was decided. JP had been shifted to a prison in Chandigarh and he had sent word that someone should go abroad to counter the government propaganda that the only arrests being made were of smugglers and criminals. Madhavrao Mule suggested to Swamy that he should leave the country himself as he had numerous contacts abroad from his days as an associate professor at Harvard University.[4]

Meanwhile, Swamy travelled frequently to Gujarat and Tamil Nadu. Both states were considered safe havens as the

respective state governments were run by non-Congress parties sympathetic to the anti-Emergency movement and were uncooperative with the Central government. In Delhi the police were still on the lookout for Swamy. Once when he caught the train for Bombay, policemen were all over the New Delhi platform searching for him. They could not locate him because of his disguise, but they apprehended his friend Suresh Upadhyaya who had come to see him off. Upadhyaya was arrested under MISA and remained in prison till the Emergency was lifted.

Swamy made several trips to Gujarat, staying at the residence of Makarand Desai, a Gujarat minister. The RSS made all the arrangements and he travelled using his MP's pass which allowed him free passage on trains. The ticket collectors obviously did not coordinate with the police about which MPs were on the wanted list. Swamy never made bookings in advance, as he was convinced that all reservation lists were forwarded to the IB. In Gujarat the RSS often sent a young pracharak to pick him up from station and take him to Desai's house. This humble pracharak was Narendra Modi, who would become leader of the Bharatiya Janata Party (BJP) and prime minister of India four decades later. At Desai's house Swamy could make telephone calls freely without fear of the phone being tapped.[5]

Nanaji Deshmukh now asked Roxna to go abroad on an exploratory visit to get in touch with RSS sympathizers in the UK and the USA, who were keen to help. In London Roxna felt the RSS people she was asked to meet seemed a trifle timid and fearful of upsetting the British authorities. In the USA, which was more familiar territory, the atmosphere was more encouraging. She caught up with old friends such as

Jitendra Kumar, a consultant to oil companies, Satish Singh, a former IAS officer who had settled in the USA, and Meera and Amit Mitra who were teaching at Franklin Marshal College in Pennsylvania. (Mitra is now finance minister in West Bengal.) The Harvard economic faculty, particularly Paul Samuelson, Marshall Goldman and Simon Kuznets, were supportive. Roxna returned home and reported these positive findings to Nanaji.[6]

Shortly after Roxna's return, Nanaji was finally caught. The police received a tip-off through an Akali source that a prominent underground leader was staying at Safdarjung Enclave and that two Jana Sangh leaders were going to meet him. Although the policemen were not sure which house he was staying at, they kept a watch on the area. Subramanian Swamy suspected a trap when he came to meet Nanaji that day, as he had noticed many policemen in the vicinity. He warned Nanaji that something was not quite right and said he was leaving immediately. He suggested that Nanaji follow suit. But Nanaji was confident and said he did not see any need to panic. A short while later the police arrived to arrest him.[7] His disguise was so complete that the police were not sure of his identity even when they took him into custody. They had with them some old pictures of Nanaji, which they felt did not match the person who had been arrested. Nanaji took advantage of the police's delay in establishing his identity to go to the toilet and flush down a small notebook that contained the telephone numbers of his contacts. He was first sent to Tihar jail, but later shifted to Ambala jail.[8]

After they picked up Nanaji Deshmukh and Dattopant Thengadi—the founder of the Jana Sangh's trade union arm, the Bharatiya Mazdoor Sangh—the morale of the men fighting the Emergency underground was shattered further. Many more turned 'Twenty Pointers'—paying obeisance to the Emergency powers, they declared their allegiance to Indira Gandhi's Twenty Point Programme and Sanjay Gandhi's five-point programme. Swamy now felt it was time to leave the country. He planned to make the journey by travelling from Madras to Colombo and then to London. He got a letter from my brother Meher Kapadia, sponsoring his visit to the UK. Harvard University had sent him an invitation for a conference on China in Puerto Rico, all expenses paid. And he was to apply for the US visa in London, on the basis of the invitation.

Swamy did not want to stay long in Colombo as Sirimavo Bandaranaike, head of the government, had a good relationship with Indira Gandhi. Although all the flights to London were full, a Tamilian at the counter came to his rescue and managed to wangle an out-of-turn ticket for him. Swamy was received by RSS representatives in London. His visit attracted a lot of attention in the British media. He met BBC correspondents and other journalists, he took part in a big march in London protesting against the conditions in India, and he presided over a Save Democracy conference in which 300 delegates from all over the world participated. Messages were received from JP, Charan Singh, N.G. Gore and E.M.S. Namboodiripad. The Indian High Commissioner in Britain, B.K. Nehru, traced Swamy to Essex and telephoned him. Nehru urged Swamy to call on him in London. He pointed out that they were old

friends, Swamy having arranged a lecture for Nehru while at Harvard. Nehru suggested they meet and gave his word he would not do anything against Swamy's will. He kept his word, but when the two met he suggested that Swamy return home and court arrest.[9] B.K. Nehru in his memoirs claimed that Swamy volunteered to return his passport, but never did.[10]

When Swamy landed in the USA, the Indian Foreign Office put a lot of pressure on the American government to hand him over on the grounds that his passport was cancelled. But a few Harvard professors had pleaded Swamy's case with Henry Kissinger, who was then Secretary of State under US President Gerald Ford. The US government took the stand that although India claimed that Swamy's passport was cancelled, the document was not physically stamped with a cancellation order. The US government could not act as policeman for the Indian government.

Swamy stayed on as a visiting professor at Harvard and also campaigned against the Emergency in twenty-four states of America, at various university campuses. Back in India, the office secretary of the Delhi unit of the RSS, Chaman Lal, was coordinator, a clearing house of information. He put Swamy in touch with many members of the newly set-up body Indians for Democracy, which was very active. India's ambassador in the US, T.N. Kaul, was an ardent votary of the Emergency just as B.K. Nehru was in London. Kaul even wrote to the education ministry in New Delhi to withdraw the scholarships of several students who took part in the anti-Emergency protests. He got the passports of a few students cancelled for defaming India abroad. Nevertheless, many

students and Indians settled abroad were committed to the cause. It was a very successful tour for Swamy with hundreds coming to listen to his talks.

But, after a while, people also started to wonder why nothing was happening back in India. Swamy got word from some in jail that he should come back and surrender. He was accused of living a comfortable life in America, while his political colleagues rotted in jail. Also he was in danger of losing his Parliament seat. Under the rules, if an MP is absent from the House for sixty days without permission he or she automatically forfeits membership of the House. There were so many MPs in jail that it was standard practice to write asking for exemption from personal appearance. These were given routinely. Swamy got an exemption the first time. But the next time the Parliament Secretariat was alerted that he was the man creating trouble abroad and he was denied permission.

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Meanwhile, furious at the anti-Emergency propaganda that Swamy had generated abroad, the authorities began to crack down on the family back home. The Enforcement Directorate simultaneously raided Roxna's house in Greater Kailash, Delhi, and my father's flat at Nepean Sea Road, Bombay. It was a particularly bad time for my parents. My father had recently been operated for cancer of the colon and his doctor and cousin, Dali Jasawalla of the Tata Memorial Hospital, had advised him to go to the USA for chemotherapy as the cancer had spread to the liver. My parents were in a daze when

the Enforcement Directorate officers stormed into the house and asked for keys to his cupboards so that they could search the place. They were looking for evidence that my father had somehow violated the Foreign Exchange Regulation Act (FERA). In those days foreign exchange rules were so rigid and unrealistic that most Indians who travelled abroad or had sent their children to study outside India had broken the law to some degree. For my father, Jamshed Kapadia, a retired ICS officer who had once been a senior government official, it was a rude shock to find minor officers turning up at the house to interrogate and bully him.

My sister, who was in Bombay at that time, tried her best to protect him. She protested to the officers that there was no need to search the whole house—any papers connected with Swamy were in her bedroom. Desperate to divert them, she handed over all the valuable papers she had in her possession. These included letters sent to her by Swamy from abroad, addressed to various friends, to be passed on to her. There was also a detailed plan of how Swamy proposed to return to India in code language. The Enforcement Directorate did not seem to have the vaguest idea of what the letters were all about. After two months, the directorate sent a notice to Roxna, asking her to come and explain. Someone had given the officers a false tip-off that money had been sent abroad through a company called Heatly and Gresham. They kept repeating the question and Roxna protested agitatedly that she had never heard of the company.

In Delhi, Swamy's sister Sushila Subramanian, who stayed with them at the Greater Kailash bungalow, had to handle the Enforcement Directorate's raid on her own.

They searched everywhere, making inventories of the contents of the house with two neighbours as witness. When Sushila called me up about the raid I rushed across in an autorickshaw—a mistake, since they caught hold of me and searched my bag. There happened to be a photograph of Virendra and other prisoners in jail, which I thought they would confiscate, but luckily they returned it. But I had to stay till the end of the raid. The raiding party had been told to pick up any papers that had numbers on them, and since Roxna was a mathematics postgraduate and Swamy an economist, the house was teeming with papers with figures.

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Swamy, meanwhile, had made up his mind that he wanted to do something that would create a nationwide buzz and serve as an inspiring example for all those wanting to throw out the Emergency powers. He sent word to Mule that he was contemplating returning to India. Mule's response was that the RSS could do nothing to help him since its networks would be exposed. But if he succeeded in reaching Bombay, Mule would personally give him a big bear hug.

For the return home Swamy booked himself on a Pan Am hopping flight from London to Bangkok. Since the destination on his ticket was Bangkok his name did not figure in the flight manifest for India. The plane landed in Delhi at 3 a.m. Swamy got off with no luggage, only a bag with a kurta and pyjama. In those days there was such little security at the airport that he could walk to the terminal. The victorious

Indian hockey team was returning from Montreal and sports fans had come to greet them, which helped him mingle with the crowd and cover his tracks. He moved from the transit lounge to the main immigration hall, flashing his Rajya Sabha pass at the sleepy policeman on duty. Once he was out of the airport he hailed a taxi and got off at the Archana Cinema theatre close to his Greater Kailash house.

His friend Satish Singh had arrived at his Greater Kailash residence from the USA a few days earlier. By a coincidence, that same day Virendra's probation officer also came to see him since Virendra had given the Greater Kailash address as his permanent residence. Swamy hid in a back room as my sister tried to juggle her visitors. The next day Roxna and Swamy took the children and booked into the Ranjit Hotel for some peace and quiet.

Swamy's plan was to make an appearance in Parliament. There was a lot of preparation for this. Roxna made several recces to see how many steps it took to walk from the building to the exit gate of the Parliament compound. She had to locate the most convenient spot close to Parliament House where she could park the Fiat without attracting attention. On 10 August 1976 Roxna dropped Swamy at Parliament's gate number 4 and then parked the car at the Church of Redemption. The security guards at Parliament House greeted the Jana Sangh MP who walked in so brazenly, assuming that he had signed the Twenty Point Programme and was back in favour after apologizing. Swamy signed the register without any trouble. He bumped into Indrajit Gupta, a CPI MP, who asked what he was doing there. Swamy laughed and took Gupta's hand and walked with him into the House. His timing was perfect—

he came in just as the last obituary references were being read out. There were a number of foreign journalists in the press gallery, which surprisingly had not alerted the authorities that something was cooking. The press had been tipped off by our Australian journalist friend, Geoff Hughes.

Just as the obituary references were concluding, Swamy stood up and raised a point of order, reminding the Rajya Sabha chairman, Vice President B.D. Jatti, that he had not included democracy in his list of recent deaths. There was a stunned silence. Minister of State for Home Om Mehta dived under a desk, fearing that Swamy must have a bomb in his hand. Jatti, taken aback, stated indignantly, 'There is no point of order. There is no point of order.' He then asked the MPs to stand in silence for two minutes as a mark of respect for those who had passed away, instead of asking the marshals to arrest Swamy. Taking advantage of the delay, Swamy announced that he was staging a walkout. For a few minutes, there was total chaos in Parliament and no one was sure just what they should do. The parliamentary watch and ward staff did not want to manhandle an MP unless they had been given specific instructions. The police, like bumbling Keystone Cops, were busy phoning the Parliament Street police station to find out if Swamy was on the wanted list. Swamy took advantage of the confusion to quietly leave Parliament House.

He picked up the car where Roxna had left it, the key under the mat, and drove it straight to Birla Mandir. There, he changed into a Gandhi cap and white shirt and pants, the standard Congress uniform, and then proceeded to the railway station. Some Youth Congress workers had attended a function

in Delhi to commemorate Quit India day and they too were at the station. It was presumed Swamy was one of them. He had memorized the train timetables as he had decided to keep changing trains to ensure safety. He boarded the Agra passenger train and a policeman, seeing his MP's pass, helped him get an upper berth. He left the train at Mathura and from the post office sent a telegram home stating 'Book published' which was the agreed code for mission accomplished.

From Mathura he caught the Grand Trunk Express and from Nagpur the Gitanjali Express. At Dadar station in Bombay he got off the train and went to the house of Prakash Goel who took him to Vile Parle. There was a large gathering of RSS pracharaks there and the mood was one of euphoria. People were crying with joy and excitement.[11] Foreign correspondents had flashed the news of Swamy's Scarlet Pimpernel act in Parliament to the wide world outside. By word of mouth, it also became well known at home how Swamy had pulled the wool over the eyes of the Emergency bosses. Embarrassed no end, the government put a price on Swamy's head.

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Swamy himself might have escaped, but a nightmare began for the rest of the family. When Roxna returned from Birla Mandir after picking up her car, she dropped by at VP House to give me the momentous news. My reaction was not what she had expected. I yelled at her that it was a thoroughly foolhardy show of bravado that would get us all into trouble. After she left, I got a call from Rajendra Bajpai, one of

the reporters at the *Indian Express*. The news of Swamy's appearance in Parliament had spread like wildfire and he had called up chuckling to congratulate me. I was in no mood for celebrations. I feared doom.

Feeling remorseful about my initial reaction, I called up my sister in the evening, only to get a hysterical Parvati, their Maharashtrian maidservant, on the line. She said Roxna and Sushila had been taken to the police station and had not returned for many hours. I rushed to Greater Kailash and found my little niece Gitanjali in a flood of tears. She was to attend a birthday party next door and had no gift. I pacified her and accompanied her across the road to the party. Some little girl asked inquisitively of Gitanjali where her gift was. She replied with aplomb, 'Was I invited or my gift?' Roxna and Sushila returned home only late at night. The police had kept them waiting throughout the day, claiming the 'sahib' would come to cross question them, but he never showed up.

The next morning the house was surrounded by policemen, and a man toting a gun refused to allow Gitanjali and the maid to walk to the bus stand to go to school. 'Nobody leaves this house,' he said firmly. Gitanjali was normally happy to skip school, but on that day she wept and insisted she had to go. Roxna yelled at the man for pointing his gun and asked to speak to his senior officer. She called up his boss and said she wanted it in writing that her little girl was not permitted to go to school. The police officer relented and Gitanjali was allowed to catch the school bus.[12]

During the day another group of uniformed men arrived with a notice of attachment, declaring that they were seizing all of Swamy's property. When Roxna as a law student pointed

out that there were legal requirements under the Indian Penal Code, like first serving a notice, making a proclamation in the marketplace, beating a drum, etc., they were unmoved. Roxna and Sushila spent the night writing her name on all Swamy's books to claim possession. But the police were least interested in seizing the books. They wanted tangible signs of property. They took the two cars, a refrigerator and some other household goods. Parvati, a formidable personality, refused to work in a kitchen without a fridge, and Roxna managed to persuade them to exchange the fridge for an air conditioner, which was in her name. They also wanted to attach the house, although Roxna produced evidence that her father had sold shares to buy the property in her name.[13]

The authorities began income tax proceedings against Roxna and Swamy for the preceding years and searched high and low for any incriminating documents. Parliament started proceedings against Swamy, alleging that he had falsely claimed travel allowance and dearness allowance by having someone forge his signature. He was expelled from Parliament on this pretext. In all, the government registered eighteen cases against him, including the charge of sedition. The Enforcement Directorate declared he had overstayed in the USA and slapped several FERA cases on him. Swamy was pronounced a proclaimed offender and put on the Interpol list. The spectre of becoming homeless hung over the family's head since the authorities began the legal process for attachment of the house, refuting the claim that the house belonged to Roxna and not Swamy.

Roxna had a posse of policemen following her round the clock. They travelled both by car and motorbike. They even had walkie-talkies, which we considered very high-tech

in those days. After the attachment of her car, she had to take the bus to Delhi University and the police followed in a car, stopping along the route wherever the bus stopped. (Although she had a PhD in mathematics from Harvard, Roxna had been unable to get a job as a lecturer in maths at any Delhi University college, presumably because of her Jana Sangh connections. She had started studying law for an alternative career.) No one dared to come and talk to her for fear of being followed. Vinod Sharma (now a journalist with the *Hindustan Times*) was a student leader in the good books of the university authorities. The authorities were looking for bright students to join the university's nominated students' body, since the elected students' union, which had been headed by Arun Jaitley, had been dissolved. He found Roxna's academic credentials impressive—they were listed in the law school list of students—and he wanted to invite her to join the body. He went up to speak to her, only to be told agitatedly by her to keep his distance—the police were watching her and he would become a marked man. Sharma realized only later that she was Subramanian Swamy's wife.

Despite the overpowering police presence, Roxna managed to give them the slip on more than one occasion. Once she changed buses several times to get to Punjabi Bagh and meet RSS pracharak Chaman Lal, who had a message for her from Swamy. An ABVP student, Rajat Sharma (now a well-known TV anchor), would pass on messages to her in the law faculty library. In Bombay, it was a tailor who came to my father's Nepean Sea Road flat who acted as RSS messenger.[14]

It was not just Roxna but all of Swamy's relatives who felt the wrath of the authorities. The night after Swamy appeared in Parliament, a group of policemen came to our flat when we were asleep. Virendra refused to open the door. But he gave in when the SHO of Parliament Street identified himself and threatened to break down the door if it was not opened. They searched every nook and cranny of the small flat, even flashing their torches under the bed, and into the loft, which we had often previously thought of as a safe hiding place. They raided many other residences as well. All those addresses at which Swamy had sent letters for Roxna were turned upside down. It made us feel guilty that we had got our friends into trouble. The rattled Anand family in Gole Market too was faced with a midnight knock. The only person unfazed by the police raids was Pipsy Wadia, my mother's friend in Bombay and fellow member of the charitable organization, the Time and Talents Club. This grand dame, long-time companion of atomic scientist Homi Bhabha, was cool as a cucumber and told the agitated police officer who had come to question her to calm down. She had no particular liking for Indira Gandhi, who she felt had set her cap at Homi Bhabha at one stage.

Virendra and I both had separate sets of sleuths following us, which made it difficult for us to carry out our professional duties. I travelled by bus and the police followed in a motorcycle and a car. Virendra on his scooter also had a posse of men trailing him in a car and on motorcycles. Far from being secretive about the surveillance, the policemen often rang my doorbell in the morning to ask what my programme for the day was. Once two IB officers, whom we nicknamed

Mutt and Jeff, were visiting us when the policemen came inquiring about our daily itinerary. The IB men were furious at the unprofessional manner in which the Delhi Police was carrying out its job.

My tails often made my life miserable. The policemen cross-examined any person whom I was seen talking to. I remember once returning to the office in tears from the Delhi Administration's Bureau of Statistics. I was doing a routine report on prices but my minders insisted on interrogating the person from whom I had got a list of the prices of essential commodities for the past three months. My source, thoroughly rattled, created a scene and complained to his boss, who asked me not to come again to their department.

At this stage, we had no visitors except family coming to the house, since no one wanted to be grilled by the police. Socialist leader Surendra Mohan's wife Manju, who lived in one of the adjoining flats, was one of the few people I could talk to. Her son Archis was the same age as my daughter Ila. Her husband had been in jail till recently, and given her political background, she empathized with my plight.

On the Diwali of 1976, when we visited my in-laws in the textile mill where Virendra's father was still employed as an engineer, a dozen policemen followed us and there was very little festive spirit in the air. The policemen claimed they were on duty and would not even accept a barfi. I could not make up my mind whether last year's Diwali, when Virendra had just been arrested, was worse or this year's, when a big question mark hung over what the authorities would do next.

Virendra felt that in the first part of the Emergency he was carefree and did not fear anyone, but in the second part

he was a broken man. 'I used to brood, wondering whether I would be able to withstand police torture without breaking down. In prison when detainees introduced themselves, they often mentioned they had got caught because someone else had revealed their hiding place. I never wanted to be in a position where I turned into an informer, because though the fellow might have parted with the secret information under threat of violence, there was a stigma attached as if he had not been man enough to withstand torture. The shame of being responsible for sending someone to jail weighed heavily on my mind and I did not want to be party to that,' he recalls.[15]

Once Roxna called up Virendra and asked him to rescue Parvati who had been detained at the local thana for the whole day. Virendra rushed from office to go to the Greater Kailash police station at around 8.30 p.m. to fetch Parvati. They let Parvati off and detained him instead. They shoved him in a dark room next to the SHO's office and told him to wait for the station chief Sodhi to arrive. Hours passed. There was no sight of Sodhi. Every time he stirred out to question the duty officer, he was rudely told to go back to the room. In the meantime, I was getting worried about him, but phone calls to the police station elicited the same response: 'He is OK and will come back soon.'

Sodhi arrived at about 11.30 p.m. He asked Virendra to be brought to his room. Once there, Virendra was asked to sit down. Sodhi then took out a revolver from a drawer and put it on the table. He kept asking 'Where is Swamy?' with Virendra responding each time, 'I do not know,' and Sodhi countering, *'Tenu zaroor pata hoyega'* (You must know).

While this was going on, my nth call to the police station was transferred to Sodhi. I asked him when he was going to release Virendra. Sodhi protested, *'Madam, humne usko pakda thodi na hai. Thodi der mein ghar aa jayengey'* (It's not that we've arrested him. He will return home in a short while). He offered Virendra a cup of tea which he declined, and after speaking to his superiors Sodhi allowed him to go home.

Another time, Virendra called me up frantically while I was in office, asking me to come home immediately. He said two people were banging on the door and he apprehended that they wanted to whisk him away. He refused to open the door. Mutt and Jeff from the IB came to interrogate us more than once. They tried to get information by appearing sympathetic and understanding. They assured us they would not be using any third-degree methods. Our phones were tapped as well. The constant trailing and harassment was getting us down. The policemen even intimidated my maid Emily, a Goan girl from Bombay. A policeman slapped her for putting a letter into the postbox in VP House without first showing it to him. The letter was from Emily to her fiancé in Dubai, and she was so frightened she wanted to give notice and quit the job. She couldn't understand why the police were harassing her.

With Swamy losing his Parliament membership we had to vacate VP House, which in a way I was happy to do, despite the additional expense. My father told me not to worry about the deposit money for the new flat in West Nizamuddin, which I had located—he would take care of it.

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Despite the huge deployment of manpower, the police were unable to trace Swamy who was still very much in India. Twice, the police blundered and followed the wrong lead. In the beginning they assumed that Satish Singh, who had been in the Greater Kailash house around the same time as Swamy and left days before he made his appearance in Parliament, was in fact Swamy. They followed Singh's trail to Assam where his brother-in-law owned a tea garden. They questioned all of Singh's family members, but by then Singh had disappeared into Bihar and could no longer be traced. Another time, Swamy's brother-in-law Srikanthan who worked in the UN Population Foundation in New York visited Delhi for a conference. He was taking an afternoon nap at Swamy's brother Ram Subramanian's flat in Bengali Market when he was woken by a loud thumping on the door. The police ordered him to let them in since they claimed they had a warrant for his arrest. They took him to the police station insisting he was Swamy. Srikanthan, a soft-spoken, scholarly man, gave them a lecture on physiognomy, pointing out that all Tamilian Brahmins did not look alike and the shape of his face and Swamy's was totally different. The police officer was not amused. 'Sir, do you realize I have not had a moment's sleep since your brother-in-law appeared in Parliament,' he remonstrated.[16]

Swamy, who was staying at safe houses provided by the RSS, sent word to Nepal's prime minister, Tulsi Giri, through RSS leader Bhaurao Deoras that he wanted to come to Nepal to meet King Birendra who had studied at Harvard. The response he got was that the Nepalese authorities could not take the risk of using the Royal Nepal Airlines to fly

him from India to Nepal as the government did not want to incur Mrs Gandhi's displeasure. However, the king gave an assurance that if Swamy reached Nepal he would ensure that he could fly abroad from there. Swamy managed to drive from Pune to Nepal undetected, even though he was not in disguise, crossing the border at Gorakhpur. From there he took a Dakota flight to Kathmandu. In the Nepalese capital he met Tulsi Giri who made arrangements to book him on a Royal Nepal Airlines flight to Bangkok. From Bangkok Swamy caught another flight to the US. It was by then the first week of December 1976.[17]

If the atmosphere at home was oppressive, it was equally so at work, at the *Indian Express*.

7

Ramnath Goenka's Battle

Even before the Emergency had been declared, the *Indian Express* had stuck its neck out, supporting JP's movement, and Mrs Gandhi was determined to bring it to heel. During the Emergency, although it could not openly defy the censors' orders, the newspaper regularly displayed a streak of defiance on its edit pages, to which the authorities usually woke up only belatedly. As the dark days of the Emergency went by, the net began to close around the *Indian Express*, and we journalists felt quite insecure. But neither the government nor the *Express* employees had bargained on a dogged, unyielding adversary like Ramnath Goenka (RNG), who fought a relentless battle to retain his newspapers and their independence.

RNG was that rare newspaper baron for whom the bottom line was not the only concern. He was an unusual businessman for whom the content of the newspaper was more important than the profits. A Marwari trader who had

moved to Chennai to make his fortune, RNG had been an ardent supporter of the freedom movement. He had numerous friends among the Congress leadership and was himself a member of the Madras Legislative Assembly for some years.

When he borrowed money to buy over the majority shares in an ailing English-language newspaper, the *Indian Express*, which had been started in 1932, he largely divested himself of his other business activities. From then on, RNG concentrated on the newspaper business and acquired several publications, including the *Dinamani*, the *Andhra Prabha* and the *Kannada Prabha*. All his publications had pro-nationalist leanings, and when Gandhiji gave his Quit India call in 1942 and the British government introduced a gag order on the press, the *Express* was one of the first newspapers to close down in protest. The *Express* in its farewell edition at that time carried a moving editorial in August 1942 titled 'Heart Strings and Purse Strings'. 'The hard fact of the situation is that if we went on publishing, *The Indian Express* may be called a paper, but cannot be called a newspaper,' the editorial pointed out.[1] RNG was fond of proclaiming that he came into the business world with a lota and he could leave with just a lota.



By the time of the Emergency, RNG headed a newspaper empire across the country, with over fifty lakh readers, which exercised enormous clout. He used to claim proudly that he was the first reader of his newspapers, getting up at four in the morning to go through each of his publications.

We journalists all appreciated the fact that although a hard taskmaster with the administrative staff, whom he would often berate in the most strong language, he left his correspondents alone. He did not interfere in the stories except on very rare occasions. He allowed us enormous leeway. It was his editors who bore the brunt of his occasional temper tantrums.

RNG was a great champion of JP's whom he knew intimately since the Quit India movement when he had provided shelter to the Congress leaders who had gone underground in the south. RNG had also had a close association with the Nehru–Gandhi family. At Nehru's request, he had found a job for Indira Gandhi's husband, Feroze Gandhi, then an MP, in his newspaper. This was during the period when relations between Indira and Feroze were strained. RNG sacked Feroze abruptly after the Mundhra exposé in Parliament in 1958 in which Feroze played a leading role.[2] It is unclear whether RNG acted at his own behest since he was friendly with the then finance minister T.T. Krishnamachari, who had per force to resign over the Mundhra case, or at the instance of Nehru whose government was embarrassed by the scandal.

During the Emergency, the first move to take over the newspaper chain was a suggestion from Finance Minister C. Subramaniam that RNG be prepared to sell his papers to the Congress party or its nominees. When Goenka declined to do so, the government decided to use strong-arm tactics.

A month after V.C. Shukla took over as I and B minister, at a meeting presided over by the PM it was decided that the department of company affairs and the ministry of law would investigate irregularities in the newspaper, including illegal transfer of funds to non-journalistic ventures from the profits of

the newspaper. Pressure was also put through the Monopolies and Restrictive Trade Practices Commission. The *Express* filed a writ in court. The government retaliated by sending word that it might detain Goenka's son Bhagwan Das (he was usually known by his initials BDG) and his wife Saroj under MISA. The mild-mannered and polite BDG was personally summoned by Shukla who threatened that failure to sell would lead to punitive taxes and other harsh measures, including imprisonment. A tax demand of Rs 4 crore was mentioned.[3] The paper's finances were in a bad way and salaries were delayed and being paid in instalments. When the editorial staff of the Delhi office went in a delegation to editor S.M. Mulgaokar, protesting that salaries be paid on time, he snapped, 'Do you think I have the money in my pockets to pay you?'

Goenka decided that the best tactic in the face of the government pulling out all its artillery was to temporarily retreat. He pleaded for time, explaining that it was not an easy decision for him to part with his beloved newspapers—it was like 'parting with my own son' he said. But at seventy-two, his powers to resist the government in the prevailing conditions were limited. RNG wrote to S. Ranganathan, a retired ICS official who sought to act as an intermediary with the government, 'It is not an easy decision for me to take. These newspapers have been my life's work.' The wily Goenka dangled a carrot before the government by letting BDG give the impression that he was amenable to keeping a channel of communication open with Shukla and Sanjay for brokering the purchase of the newspaper.

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BDG approached family friend K.K. Birla, owner of the *Hindustan Times* and an unabashed supporter of the Emergency, for help. RNG agreed that he would have no objection to an editorial trust which would guide the editor on broad policy matters, with Birla as its chairperson. The trust would not interfere in the day-to-day running of the newspapers. Goenka accepted that the cases against him could take their normal course through the courts, but he hoped for fair treatment in allocation of foreign exchange, newsprint and other facilities. However, he stoutly rejected the demand for the removal of Kuldip Nayar, the editor of the Express News Service, who had recently been released from jail. He also turned down the suggestion that editor S.M. Mulgaokar and deputy editor Ajit Bhattacharjea be transferred out of the capital.[4] Birla, with whom Mulgaokar had once worked in the *Hindustan Times*, advised the editor on the need for flexibility and fixed a meeting between Mulgaokar and Sanjay Gandhi. The meeting was not very productive. Both adversaries made it clear that they were not budging from their stated positions. Sanjay, as Mulgaokar recalled later to me, told him very politely, 'You do what you have to do and I will do what I want to do.'

Of the eleven members nominated to the board of directors of *Indian Express*, five were selected by RNG and the rest from a panel put forward by the government. The government nominees included K.K. Birla as chairperson, Kamal Nath, a Doon School friend of Sanjay Gandhi's, and Kerala Congress youth leader A.K. Antony. The new arrangement came into effect from December 1975 but the harassment continued. The income tax department made

exorbitant demands. The government felt that the *Express* was not cooperating as expected with its board.

In March 1976, Goenka suffered a heart attack and was bedridden till the end of April. Meanwhile, the board met on 9 April 1976 and extended its powers. With BDG's consent, it retired Mulgaokar as editor, who was replaced temporarily by V.K. Narasimhan, the seemingly mild-mannered, old-school editor of the *Financial Express*.

Goenka was infuriated when he heard of Mulgaokar's removal. Mulgaokar was not just his most trusted editor but also a close personal friend with whom he played bridge regularly. The government presumed that Narasimhan would be a stop-gap editor and it began looking for a permanent editor for the paper. Various journalists were rumoured to be in the running for the editor's job, including Mohammad Shamim, a pro-Congress reporter in the *Times of India*, *Express* staff cartoonist Abu Abraham and special correspondent Suman Dubey who was at Doon School with Rajiv Gandhi, but was, in fact, not interested in the job.

Narasimhan, far from being the pushover he was expected to be, stood by his staff and refused to transfer Bhattacharjea and Nayar. Birla wanted one editor transferred to Gangtok and the other to Kohima. Bhattacharjea had infuriated Birla by writing an article on the Supreme Court habeas corpus judgment. The judgment, he contended, amounted to 'a virtual negation of the minimum democratic rights to the citizen to prosecution against arbitrary detention'. By this time Goenka had recovered sufficiently from his illness to return to Delhi from Chennai. At a meeting with Shukla to discuss the *Express*'s articles of association he showered the

foulest and most colourful abuse on Shukla, whose father (a veteran Congressman) he had known.

Birla called the annual general meeting of the board, expecting Goenka to be absent because of his ill health. But he had not taken into account RNG's determination. An ailing Goenka turned up unexpectedly at the meeting and gave Birla a tongue-lashing. He dismissed the board on the grounds that the government directors' and chairmen's names had to be ratified by the shareholders within a stipulated period, and this had not been done. The board was left thunderstruck, and the powers of the board reverted to Goenka. George Verghese, who was editor of the *Express* in the 1980s, described it thus: 'The old fox had outwitted the lot of them.'[5]

The government took this as an open declaration of war. The Press Information Bureau issued a series of press notes which hit out at 'an industrial tycoon and newspaper baron'. Pre-censorship was imposed on 16 August 1976, and this meant that the pages were invariably released late by the censors, so the newspaper could not be printed in time for regular distribution by the hawkers. The *Express* challenged the government's order in court. The government, aware that its case was unsustainable, eventually withdrew its pre-censorship order on 30 December 1976.

All government and public sector undertaking advertisements were withdrawn from the newspaper and pressure was put on private advertisers not to release advertisements to the *Express* group. The newspaper went back to court.[6] At a press conference in Chandigarh Mrs Gandhi stated there was nothing unethical in the

government discriminating against some newspapers. 'Why should we support the newspapers of industrialists and big business . . . This is like asking us to also give them the stick to beat us with.'

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Meanwhile, we at the *Indian Express* lived in constant trepidation and felt we were walking a tightrope. In October 1976, we watched with apprehension as officials of the MCD, accompanied by a large posse of police, forcibly seized and sealed the *Express* printing press in the basement of the Express Building, on the grounds that municipal taxes were in arrears. This time I was convinced that the days of the newspaper were finally numbered and that in addition to my other troubles I would also be out of a job. But I had not reckoned on Goenka's remarkably indomitable fighting spirit. The *Express* lawyers once again produced a rabbit out of the hat—a stay order from the Delhi High Court, on the grounds that the arrears of payment were in dispute and the property was in any case owned by one of Goenka's southern companies and not the *Indian Express*, Delhi.

The government's intimidation tactics continued, however. The Punjab National Bank was instructed not to advance money for the purchase of newsprint or working capital. Official agencies launched some 320 prosecutions all over India against Goenka and none of the magistrates would give RNG an exemption from personal appearance. As a result, RNG was constantly moving from one court to the next. At one stage his lawyer Fali Nariman threw up his

hands: 'Ramnathji, enough is enough. We don't know how long this damn thing will go on, why don't you compromise?'

'Compromise, Nariman? We will fight,' he insisted.[7]

The international press was shocked by these crude attempts to snuff out the freedom of the *Indian Express*. Some 200 journalists wrote to the PM, protesting against the persecution of the newspaper. Although many around her advised Indira Gandhi to put the feisty press baron in jail, Mrs Gandhi herself resisted. Goenka used to claim privately that he had in his possession some of her confidential correspondence, which was of an explosive nature. Mrs Gandhi may have also been constrained by Feroze Gandhi's old association with the newspaper. According to K.K. Birla's reminiscences, however, it was he who was responsible for saving Goenka from detention under MISA.

Apart from the raids, court cases, pre-censorship orders, withdrawal of bank loans and advertisements, the government ordered Samachar, the nationalized news service that had a monopoly, to suspend its services to the *Express*, claiming unpaid dues. Goenka gave instructions that foreign and international news be gathered by a regular monitoring of AIR and various foreign news bulletins. A romance between two *Express* staffers, Bharati Bhargav and Jawid Laiq, blossomed while monitoring international news broadcasts together.

By now the newspaper was starved of resources and even the indefatigable Goenka began to feel he might not be able to hold out much longer. He told Kuldip Nayar, 'I am at the end of the rope. I don't have any money left. Take me to meet your old law professor, Khushwant Singh.' As editor of the *Illustrated Weekly of India*, Singh did not hide his admiration for Sanjay

Gandhi. He had written more than one cover story extolling Sanjay as an outstanding youth leader, and he was also awestruck by the Maruti project. In contrast to the cynicism all around about the prospects of the small car, he visualized Marutis running all over the country from Kalimpong to Kanyakumari when not even a single car was coming off the assembly line.

Goenka offered Singh the editorship of the *Express*, which the latter eagerly accepted.[8] The situation changed dramatically two weeks later on 16 January 1977, when Kuldip Nayar put out one of his most extraordinary scoops, declaring that general elections would be held by March 1977 and Emergency regulations liberalized. RNG rang up Nayar at midnight, telling him to fob off Khushwant Singh if he made inquiries about the job offer.

Defying censorship rules still officially in place, the newspaper broke its long silence to carry a series of reports, from the end of January 1977 onward, on the true situation during the dark days of the Emergency. It was the *Express*'s finest hour.

After the Emergency, when asked how he had continued to fight the government despite the enormous pressure on him, including crippling financial and personal consequences, Ramnath Goenka replied, 'I had two options: to listen to the dictates of my heart or my purse. I chose to listen to my heart.'

In her own way, Indira Gandhi too was listening to the dictates of her heart when she imposed the Emergency—a heart filled with fear, suspicion and paranoia.

8

The Enigmatic Empress

Indira Gandhi suffered from a deep sense of insecurity. In sharp contrast to her father, Jawaharlal Nehru, she saw politics as primarily a struggle for power that had nothing to do with ideals or ideology. In a letter to her son Sanjay written on 5 January 1967, soon after she became prime minister, she wrote: 'The problem is not one of right or left (indeed it never has been) but a struggle for power.' It was a remarkably cynical and candid confession from one who would shortly create a reputation for herself as a progressive radical, fighting for the poor and downtrodden against the well-entrenched, right-wing old guard in her party. The letter, which I was later shown by a source, was clearly not meant for public consumption.

'My father was a saint who strayed into politics, I am a tough politician,' Mrs Gandhi declared when she fought the old guard of the party.[1] Mrs Gandhi not only lacked

the principled approach and humanism of her father, she also lacked his generous and egalitarian spirit vis-à-vis colleagues. This is evident from the letters she wrote to Sanjay between 1964 and 1967, when he was in England.[2] She was caustic about Lal Bahadur Shastri, her predecessor as PM, to whom she owed her appointment as the minister for I and B. 'Shastri was weak but we have made him a national hero,' she complained to her son. She was suspicious of the Tamil stalwart K. Kamaraj, who was instrumental in installing her as PM after Shastri's death: 'Kamaraj's friends are trying to push him into prime ministership and he is not unwilling.' Her antagonism towards her aunt Vijaya Lakshmi Pandit was unconcealed, and she accused her of 'spearheading a group, especially of men who are very vocal against me'.[3] Mrs Gandhi was resentful that Vijaya Lakshmi sought a role in politics by standing from Nehru's old constituency in Phulpur. And she believed that JP was plotting against her because he secretly wanted to become PM himself.[4]

In the contest for prime ministership after Lal Bahadur Shastri's death in 1966, the senior Congress leaders who backed Mrs Gandhi instead of the stubborn, self-righteous, austere Morarji Desai, assumed her biggest plus point was her malleability. They could not have been more off the mark. The seemingly diffident, frail and diminutive forty-nine-year-old woman, with a distinctive white streak in her dyed black hair, may have been an unimpressive parliamentarian, but she was no pushover.

Mrs Gandhi's defining characteristics of being both self-willed and at the same time extremely insecure can be traced back to her difficult childhood. As the only child of Jawaharlal Nehru, an icon of the freedom movement, she enjoyed a special position not just in her large, wealthy joint family, but also in the entire country. Yet her childhood was a troubled, unhappy one, with a father frequently in jail or too engrossed in his political crusade to be conscious of the loneliness of his ailing wife and neglected daughter. Indira Gandhi had overheard her father's domineering sister Vijaya Lakshmi Pandit describe her as 'ugly and stupid' when she was thirteen years old, and this left a deep scar on her psyche.[5]

Indira grew up shy, aloof and private. But she had a mind of her own. When she decided she wanted to get married to Feroze Gandhi, a Parsi from a very different social strata and without any clear source of income, she was not deterred by her father's strenuous objections. It was an unhappy marriage, partly because of her gregarious husband's philandering, but also because she chose to leave her husband's home to serve as her father's official hostess in Delhi when he became PM of India in 1947. Her domestic life was in a state of limbo—she was neither divorced nor was she living under the same roof as her husband.

As her father's daughter, Indira had witnessed the world of politics at close quarters from an early age. Even when she was not an active participant, she developed a remarkable skill for remembering the names and faces of key players in the political arena. In 1959, at the age of forty-one, she was elected president of the Congress party despite her father's ostensible reservations at what appeared to be nepotism. It

was the Congress leaders who pushed for her appointment, not Nehru. As Congress president, Mrs Gandhi showed signs of her dictatorial streak by spearheading the move for the dismissal of the Namboodiripad-led Communist government in Kerala through extraconstitutional methods.

Mrs Gandhi was not party president for long, but she had developed ambitions for a larger role in politics. Many believe that she was the brain behind the Machiavellian Kamaraj Plan, which forced six major cabinet ministers and six powerful chief ministers out of office. The apparent purpose of the swiftly executed coup was that the veteran Congressmen's talents would be used to rejuvenate the party by giving them organizational work at the grass roots. It was actually a shrewd scheme to eliminate potential rivals from the scene during an ailing and incapacitated Nehru's last days in office. Mrs Gandhi might well have been her father's immediate successor, but Morarji Desai was unwilling to step down in her favour. After Nehru's death, Lal Bahadur Shastri sent a message to Morarji Desai, suggesting that either JP or Mrs Gandhi be nominated as the leader of the party. Desai turned down both choices. He dismissed JP as confused and Mrs Gandhi as a mere chit of a girl. He insisted that he would be a contestant for prime ministership. Eventually, the Congress party bosses opted for the soft-spoken, modest Shastri as PM.[6]

Her paranoia about her political colleagues coupled with her determination to have her own way made Mrs Gandhi a formidable political contender. In 1969, when the Congress parliamentary board voted for Neelam Sanjiva Reddy as the party's candidate for President of India rather than her choice of Jagjivan Ram, Mrs Gandhi signed the nomination paper

for Reddy but quietly canvassed instead for Vice President V.V. Giri who was standing as an independent. Giri won the election in 1969, humiliating the party elders. The Congress Working Committee, presided over by party president S. Nijalingappa, expelled her. She held a parallel meeting at her residence that 310 of the 429 party MPs attended, demonstrating that the majority was with her.

In contrast, although he did not want S. Radhakrishnan as President, her father went along with good grace with the majority view, even agreeing to a second term for him. But Indira's bold move in 1969 purged the Congress party of opponents and dissidents, and established her supremacy.

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It was more to score points over her opponents than out of genuine conviction that Mrs Gandhi cultivated the image of a champion of the downtrodden, adopting populist programmes such as bank nationalization and the abolition of privy purses of the erstwhile princely states. The Lok Sabha elections held in February 1971 were a referendum on her rule. She toured the entire country, addressing over 300 meetings. Everywhere she went, she struck a chord with her audiences. The awkward, tongue-tied girl, about whom a member of the audience she had addressed as a student in London had joked, 'She squeaks, not speaks,' had been left far behind. As she pointed out to Sanjay in one of her letters, while refuting the view of the *Times* correspondent that she was not good with the masses, 'Apart from nana [Nehru] nobody is getting such large audiences since 1957.'[7]

She knew how to work a crowd. Apart from her emotional rhetoric, projecting herself as a defender of the poor and a keeper of India's honour and integrity, she also knew how to play on regional sentiment as well. She wore her sari in the Gujarati style when she visited her husband's home state and called herself Gujarat's daughter-in-law. In Kohima, she would don a Naga skirt and headgear, in Punjab she would wear salwar–kameez and dance the bhangra. Mrs Gandhi won the 1971 elections with a stunning two-thirds majority in the Lok Sabha and the victory was entirely due to her own charisma.

Mrs Gandhi was now at the acme of her political career. She defied the mighty USA, sending the Indian Army to assist rebels in East Pakistan to liberate the territory from Pakistani rule. It was a gamble that paid off despite President Richard Nixon sending in the US Seventh Fleet to the Indian Ocean as a threat. Pakistan, India's arch enemy, lost its eastern territory and the new nation of Bangladesh was born. Mrs Gandhi was truly the heroine of the hour—even the Opposition hailed her triumph, with a standing ovation in Parliament.

And then began the downslide. Apologists for Mrs Gandhi portray the Emergency as an aberration by a leader who was at heart a democrat. They paint a picture of Mrs Gandhi being pushed into suspending civil liberties simply to save the country from chaos. JP's mass movement had crossed the bounds of legitimate protest, they claim, and the declaration of the Emergency in June 1975 was triggered off by JP's unconstitutional actions that had created a major law-and-order crisis. To save India, Mrs Gandhi had to secure her own position after the Allahabad High Court had unseated

her from Parliament. She told Dom Moraes in 1978, 'After my judgment in 1975 what could I have done except stay? You know the state the country was in. What would have happened if there had been nobody to lead it? I was the only person who could, you know.'[8]

The truth is more complex. Dictatorial tendencies do not surface overnight. From the early 1970s, Mrs Gandhi's autocratic streak was increasingly evident with the growing accumulation of power in her own hands. One man who was prescient enough to foresee an Emergency-type situation in the offing was B.N. Tandon, the joint secretary in her secretariat who interacted with her on a daily basis. Tandon was the first man she met in the office every morning. An upright and perceptive IAS officer, Tandon wrote in his diary on 31 December 1974: 'I am filled with foreboding . . . Gradually a crisis is building up which, if there is no improvement in the situation, will overwhelm the government. . . . The truth is that her domination has increased massively and is still increasing. JP and Morarji may be wrong about many things but they are right when they say that a cloud of fascism and dictatorship is hovering over the country. Their warnings are not misplaced . . . the prime minister will not flinch from anything to maintain herself in power. This could prove a big danger to our democracy. Individual liberties can be quashed.'[9] Tandon started keeping a diary from January 1974, soon after talks failed between Mrs Gandhi and JP over the dissolution of the Bihar assembly. Tandon's diary provides a graphic account of the complete breakdown of the constitutional form of government during the Emergency and the gradual

takeover of the government by Sanjay Gandhi, with the tacit consent of his mother.

Raj Thapar, who with her husband journalist Romesh had been close friends with Mrs Gandhi in the early days of her rise to power, expressed similar misgivings in her diary. Prior to the Emergency she wrote, 'Power seems to flow from a single source—Indira Gandhi . . . It is clear that she will stop at nothing. Let all institutions be subverted to her own ends.'[10]



The adulation she received after December 1971 and her sweeping victory in the subsequent assembly elections fanned Mrs Gandhi's megalomania. Cocooned in an atmosphere of sycophancy, Mrs Gandhi ran the party as a one-woman show. She started demolishing the democratic edifices her father had installed. She ousted powerful chief ministers without consulting the legislators and appointed lightweights in their place. Her cabinet ministers were rubber stamps to do her bidding. She nominated whoever she wished to the Congress Working Committee and personally selected the party president, D.K. Barooah, an inconsequential leftist politician from Assam who had little to recommend him except a glib tongue and an unabashedly fawning manner.

Mrs Gandhi was by now seasoned in the art of manipulation. She rarely conveyed her wishes directly but preferred to act through minions. When she wanted to dismiss Moinul Huq Chaudhary and Raj Bahadur as ministers, she asked her private secretary Yashpal Kapoor to convey the

news to them. Morarji Desai came to know through the PTI teleprinter that the finance portfolio had been taken from him.[11] Similarly, Nandini Satpathy was pushed out as chief minister of Orissa without Mrs Gandhi formally informing her of the reasons for her displeasure. Inner democracy in the Congress party was a thing of the past. She had begun to look upon her political opponents not as rivals but as enemies. In contrast, Pandit Nehru had always been anxious to try and reach a consensus with opposition leaders and give them their say. She had repeated the blatant falsehoods about her reasons for imposing an Emergency so frequently that she had begun to believe them herself.

Indira Gandhi's enigmatic personality and her unpredictable reactions often kept her party colleagues guessing. Tandon cites an example of her habit of doing sudden U-turns. The Congress and the Shiv Sena had arrived at an agreement, with Mrs Gandhi's full knowledge, and with Maharashtra Congress leader Rajni Patel as the architect. But when people started to criticize this move, she wrote an extremely angry letter to the Maharashtra chief minister V.P. Naik, blaming him for the tie-up with the Shiv Sena.[12]

She seldom probed issues in depth, relying on her advisers to do her homework for her. D.R. Gadgil, deputy chairman of the Planning Commission, once held forth for forty minutes on economic issues. He thought he held the PM's full attention and she was taking notes on his lecture. When he leaned over he was shocked to find that she had been doodling on a piece of paper.[13] A delegation of businessmen from Bombay who met her reported a similar experience—Mrs Gandhi was doodling as they spoke.

'Economic subjects bored her,' conceded Natwar Singh who worked closely with her.[14]

Ajit Bhattacharjea, in the *Times of India* on 16 July 1973, pointed out that in the seven and a half years that Mrs Gandhi had been PM, the Central government had invoked President's Rule twenty-two times to take over the administration of a state. In the previous sixteen years, these powers had been used only ten times. Despite many representations and pleas, she refused to revoke the Emergency powers invoked in 1971 during the war with Pakistan, which included the state's right to make preventive arrests without trial under MISA.

Influenced by her leftist advisers, particularly Mohan Kumaramangalam, Mrs Gandhi in April 1973 ruthlessly broke with judicial tradition and superseded three Supreme Court judges, J.M. Shelat, K.S. Hegde and A.N. Grover, in order to appoint a junior judge, A.N. Ray, as Chief Justice of the Supreme Court. Significantly, the three senior judges, all of whom resigned, had ruled against the government in the landmark Keshavananda Bharati case. In this case, the Supreme Court by a slim majority decreed that the Constitution possessed certain principles and values which were part of its basic structure. This basic structure could not be tampered with even by an enactment of Parliament, and the judiciary was empowered to strike down parliamentary amendments that sought to alter the Constitution's basic features. Mrs Gandhi's action in elevating Ray was seen as a further reflection of her disdain for the democratic values that her father had held so dear. She wanted a judiciary subservient to the government. Her followers preferred

to term it a judiciary committed to the government's philosophy.

The head of RAW, the country's secret service for external intelligence, R.N. Kao, a fellow Kashmiri, worked closely with Mrs Gandhi and advised her on many issues within the country, although these did not come within RAW's charter. RAW had created dossiers on Mrs Gandhi's critics and political opponents as well as people in government and the media. RAW often helped the PM through its secret funds. Hints of the unconventional relationship between Mrs Gandhi and RAW surfaced when a retired army officer and suspected RAW agent, Rustom Nagarwala, was caught in 1971 after successfully withdrawing Rs 60 lakh from the State Bank of India without any documentation, allegedly by simply imitating Mrs Gandhi's voice on the phone. (Nagarwala was an old friend of our family's, and one of my first scoops in journalism was pointing out that he had a speech impediment and could not have mimicked Mrs Gandhi's voice as was being claimed in the government's official version.) Nagarwala died in jail shortly afterwards and Mrs Gandhi's opponents charged that he was made a scapegoat. One explanation for the mysterious Nagarwala affair is that Nagarwala had been arrested because P.N. Haksar, then Indira Gandhi's principal secretary, was unaware of the secret fund operation. He had summoned the police when a nervous cashier at the State Bank of India, Ved Prakash Malhotra, informed him that Rs 60 lakh had been withdrawn at the PM's behest.

Corruption flourished in the early 1970s. One man who epitomized the rot in the party was Lalit Narayan Mishra. As minister for foreign trade, Mishra was widely believed

to have introduced the system of 'licence raj': businessmen were granted government contracts and import and export licences in return for contributions to the party. A Congress MP, Tul Mohan Ram, was accused of forging the signatures of twenty-one MPs to seek licences for certain businessmen in Pondicherry. It was believed that Tul Mohan Ram was working at the behest of Mishra. In Parliament the Opposition pounced on the Pondicherry licence scandal and the government was in the dock. The finger pointed directly towards Mishra. But Mrs Gandhi refused to get rid of him.

B.K. Nehru wondered, like many in the country, why Mrs Gandhi was harming her party, her government and herself by saving such a corrupt individual. A friend of Feroze Gandhi's, Mishra had mentored Sanjay Gandhi's Maruti project and enlisted many of the original shareholders in the company. There was a preponderance of Jhas and Mishras who were minor shareholders in the company and most had a link to the Mishra family. The shares were believed to be *benami*—in their name only for the records—and some shareholders were reportedly not even aware that shares had been bought in their name.

The Pondicherry licence scandal made headlines in the media in 1974, and greatly embarrassed the government in Parliament as well. Mishra had become a major liability. An even more potent issue for the Opposition was the many favours shown to the PM's son's small-car project Maruti.*

Long before the Allahabad judgment, Mrs Gandhi's was contemplating taking repressive action against her political

* See Chapter 10 on Sanjay Gandhi.

foes and curtailing civil liberties. She first mooted the proposal within days of Mishra's mysterious death on 3 January 1975. 'She was worried about developments in Maruti after Mishra's death. To what degree I can't say. Even if there was no high court order against her election she would have done something seriously objectionable,' Tandon speculates.[15] Mrs Gandhi blamed the atmosphere of lawlessness prevailing in the country for Mishra's murder, and Barooah described Mishra as a symbol of the struggle against the dark forces of fascism. On the other hand there were those, including the journalist Nikhil Chakravartty, who saw the hand of government sympathizers in the murder.[16] What invited a number of comments at that time were the questionable delays on the part of the government in trying to save Mishra's life. Mishra was injured at 5.50 p.m. at Samastipur on 2 January. The train carrying the wounded minister did not leave Samastipur until 8.30 p.m., and he did not receive medical attention until six hours later. By then it was too late to save him—he died in a hospital in Danapur the next morning at 9.30 a.m.

Mishra would have received medical treatment much earlier if he had been rushed to Darbhanga, just an hour away. There was also a failure to provide security to the minister, in spite of specific instructions from the Bihar government.[17] The *Indian Express* subsequently published a pamphlet indicting the government for Mishra's murder.*

More sensational is Kuldip Nayar's conversation with Mishra the night before he left for Samastipur to inaugurate a broad gauge railway line. Mishra, a close friend of Nayar's,

* See note 3 of chapter 1.

disclosed that he had submitted his resignation as railway minister to Mrs Gandhi and had signed a document dealing with an import–export deal. He confided to Nayar that he doubted he would return from Samastipur—he feared he would be murdered.[18] Nayar believes that Mishra collected funds for his party and not for himself. Mishra's family, says Nayar, was not left very well-off. Mrs Gandhi, aware of the suspicions against her government over Mishra's death, commented bitterly at Mishra's condolence meeting, 'Even if I were to be killed they would say I myself had got it done.'[19]

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In January, after Mishra's death, Mrs Gandhi raised the question of banning the RSS and the Lok Sangharsh Samiti—the organization under whose banner political parties and civil society had rallied to JP's call for Total Revolution—with her secretary P.N. Dhar and Tandon. Both opposed the idea vehemently and warned her it would add to public discontent. Despite their negative reaction Mrs Gandhi, when Dhar was not present, put forward the same suggestion to the then home secretary Nirmal Mukarji and additional home secretary T.C.A. Srinivasa Varadan on 7 January 1975. The home ministry officials were shaken by the proposal. Varadan warned her that new laws would have to be passed, and that the 1971 Emergency might not be adequate. Mrs Gandhi, who wanted to use Mishra's assassination for settling scores with her political foes, had at the same time also approached Siddhartha Shankar Ray for advice. His letter of 8 January suggested imposing an internal Emergency and the series

of steps to be followed.* However, better sense seems to have prevailed at that time. And Mrs Gandhi refrained from implementing Ray's carefully laid-out list of instructions.

'The real culprit of the whole Emergency was S.S. Ray,' says R.K. Dhawan, Mrs Gandhi's all-powerful assistant, who remained steadfastly loyal to her, and to her memory. 'Afterwards he [Ray] tried to disown responsibility, and put the blame for everything on Mrs Gandhi in the Shah Commission.'[20] Dhawan recalls that during the Shah Commission hearings to inquire into Emergency excesses, Ray once went up to Mrs Gandhi and remarked sheepishly, 'You are looking fit.' She replied coldly, 'You are doing your best to keep me fit.' She never spoke to him again. Ray, like so many of those who were party to the Emergency excesses had, post–March 1977, tried to deny his involvement and pin the blame entirely on Sanjay and Mrs Gandhi.

After the Allahabad judgment, despite her statements to the contrary, Mrs Gandhi had no intention of resigning as PM. Before she even knew the nature of the stay from the Supreme Court vacation judge, she had set the wheels in motion to ensure that there was no monsoon session of Parliament. The proposal of the department of parliamentary affairs to the PM in May that the monsoon session of Parliament should start from 14 July was destroyed.[21] The original plan was that if the Supreme Court did not rule in the PM's favour, the Election Commission would be told to lift the bar on the PM. The Lok Sabha would be dissolved and general elections announced.

* See chapter 1.

But then there was a rethink and it was felt that Ray's January blueprint would be more beneficial, since the Opposition would otherwise continue with its campaign for her ouster. Mrs Gandhi thus opted for Ray's proposal for an internal Emergency and mass arrests. This time she did not take her officials into confidence, even though she had by then transferred Nirmal Mukarji as home secretary and replaced him with the chief secretary of Rajasthan, S.L. Khurana, who was presumed to be more pliable. Mrs Gandhi was in a fighting mood, egged on by Sanjay who by this time had formed a parallel secretariat of his own. Mrs Gandhi's indignation stemmed from the fact that, in her usual self-deluding way, she had convinced herself that the judgment was not against her but against the people of India. In her speeches she would often proclaim piously, 'I am not important but the institution of prime minister is important.'

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To Mrs Gandhi, loyalty was far more important than competence. Her suspicion of most of the people who surrounded her is revealed in an interesting anecdote related by Tandon. The Russian ambassador remarked politely to Mrs Gandhi in reference to I.K. Gujral's appointment as ambassador to the USSR that the Soviet Union was very happy to have someone who had the PM's trust and confidence posted as envoy. Mrs Gandhi snapped back, 'Trust and confidence! I do not have trust and confidence in anyone.'[22]

Her suspicious nature led to her callously discarding her one-time advisers and favourites. When she first came

to power, Dinesh Singh, her deputy minister for external affairs, wielded great influence, but he fell out of favour after he tried to insinuate that he had a special relationship with her. Madhya Pradesh Chief Minister D.P. Misra guided her in the early years of her prime ministership, but she started distancing herself from him after the 1972 assembly polls. Uma Shankar Dikshit was a favourite as minister for home affairs for a while but was dropped by the end of 1974. P.N. Haksar, who earlier worked in the foreign service as deputy high commissioner, joined her secretariat in 1967 and left his indelible stamp on her administration. She described Haksar in 1966 in glowing terms to Sanjay, 'He is a man of extraordinary common sense and competence.'[23] Haksar ensured that the powers of the government were centralized in the PM's secretariat, and all ministries took their orders from the PM's office. Mrs Gandhi's political and administrative triumphs, including her decisive electoral victory of 1971, and the liberation of Bangladesh from Pakistan, were due in part to Haksar's able guidance. Nevertheless, he too fell from grace in 1973 once he came into conflict with Sanjay. One confidant she did not discard was Mohan Kumaramangalam, formerly a CPI theoretician who later joined the Congress as a minister. He converted Mrs Gandhi to his philosophy that the bureaucracy and judiciary should share the same thinking as the government of the day so that progressive policies could be implemented. Kumaramangalam died in a plane crash in mid-1973.

At the time the Emergency was imposed, the triumvirate consisting of West Bengal Chief Minister Siddhartha Shankar Ray, Congress president D.K. Barooah and Bombay Pradesh

Congress Committee boss Rajni Patel was the current favourite. The three described themselves as progressive liberals and were in the thick of confabulations at the PM's house. The blue-blooded Ray considered himself a close family friend and felt he was entitled to instruct the PM on legal and administrative issues. Barooah, a complete yes-man, was seen as a bit of a clown, but a useful one. He once confessed, 'I do not take any decision—big or small. I do whatever the prime minister tells me.'[24] Patel was adept at raising funds in India's commercial capital. He was regarded as the party's bagman. He preached socialism but worked on the understanding that favours were bestowed in return for donations of large sums of money.

Like Haksar, the triumvirate lost its influence over Mrs Gandhi because of Sanjay. The PM's son was a diehard rightist who looked with suspicion on these leftists with intellectual pretensions and saw them as a bunch of opportunists. In fact, when Ray tried to put journalist Barun Sengupta of the Anandabazar Patrika (ABP) Group of Calcutta in jail, Sanjay sheltered him in Delhi temporarily. By the end of the Emergency, Ray might well have been removed from his chief minister's position, but for the fact that he fought back and whipped up Bengali regional sentiment in his favour. Sanjay's contempt for Barooah predated the Emergency. At the 20 June 1975 Boat Club rally, when he found the Congress president on the dais he remarked loudly, 'What is that buffoon doing here?' Towards the end of the Emergency, Rajni Patel was removed as president of the Bombay Pradesh Congress Committee.

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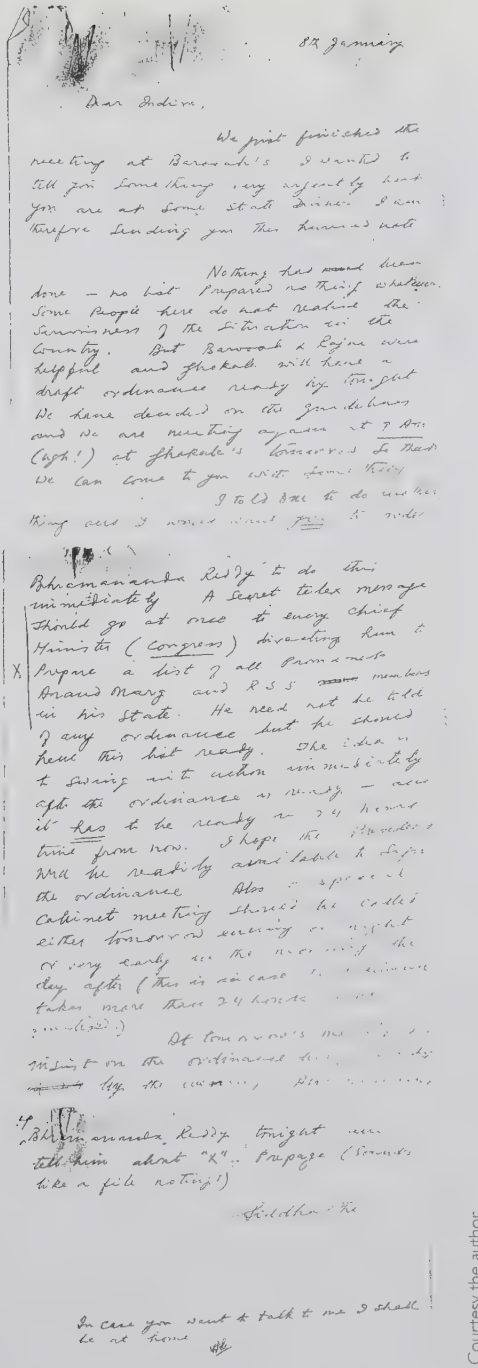
Sanjay was the only person in whom Mrs Gandhi really had complete trust despite his rough and rude behaviour and self-willed ways. Sanjay, according to her former private secretary N.K. Seshan, 'had a total hold on her. She had no tolerance for any other person.'[25] Nayantara Sahgal called Sanjay his mother's 'emotional blind spot'. 'His power over her was a curious yet classic flaw in his mother's otherwise tough, political armour.'[26] Akbar Ahmed, Sanjay's old friend from Doon School, recalls how Mrs Gandhi doted on her younger son. 'I remember once when he was in Amethi and campaigning and had a slight fever, the prime minister kept calling to make sure he was taking his medicines. Matters of state were forgotten, she was a mother first.'[27]

Haksar's fall from grace has been well chronicled,* but there were other well-wishers who got into trouble for expressing their criticism of Sanjay to his mother. Delhi MP Subhadra Joshi, a long-time friend, became an enemy the moment she tried to caution Mrs Gandhi about Sanjay's brutal methods of slum clearance and family planning in Turkman Gate. Mrs Gandhi snapped at her, 'People do nothing and when we ourselves do something they come to oppose and render pious advice.' On the eve of the 1977 general elections her trusted ambassador in the USA, T.N. Kaul, advised her to keep Sanjay out of the poll because he had become a liability. Her response was a glum, resentful silence.[28] When her ally the CPI tried to make a distinction between Sanjay and her, Mrs Gandhi would have none of it. 'Those who attack Sanjay attack me,' she told the media.

* See chapter 9 for details of the raid on the Pandit Brothers' shop.

Mrs Gandhi could be extraordinarily vindictive towards anyone who crossed her son. For instance, four junior officials of the ministry of heavy industries, who were asked to collect relevant information on the import of machinery by Maruti Private Limited for a reply in Parliament to a starred question posed by CPI(M) MP Jyotirmoy Basu in April 1975, had to pay a heavy price. Mrs Gandhi pulled up the minister of heavy industries T.A. Pai for the actions of his staff. She was upset and furious at the officials' impertinence. In Pai's presence she summoned the director of the CBI, D. Sen, and asked him to start inquiries against the four officers. The houses of the four men were raided and cases of disproportionate assets registered against them. They were hounded and humiliated. One of them, L.R. Cavale, was forced to resign from service. The harassed government employees became physical and mental wrecks, but the CBI eventually could not make out a substantive case against any of them.[29]

B.K. Nehru recalled how he once alerted Haksar, who was by then in the Planning Commission, that he was thinking of speaking to Mrs Gandhi about Sanjay's nefarious activities. Nehru, a great supporter of the Emergency, was taken aback when he came to India and heard the horror stories of Sanjay's activities. Money was extorted from businessmen for the grant of all kinds of permissions. His orders, sometimes verging on criminality, were obeyed blindly by many in government. Haksar warned B.K. Nehru that Mrs Gandhi would brook no criticism of her son. She was 'absolutely blind as far as the boy was concerned': in her eyes, he could do no wrong. Haksar spoke from experience. He cautioned Nehru that if



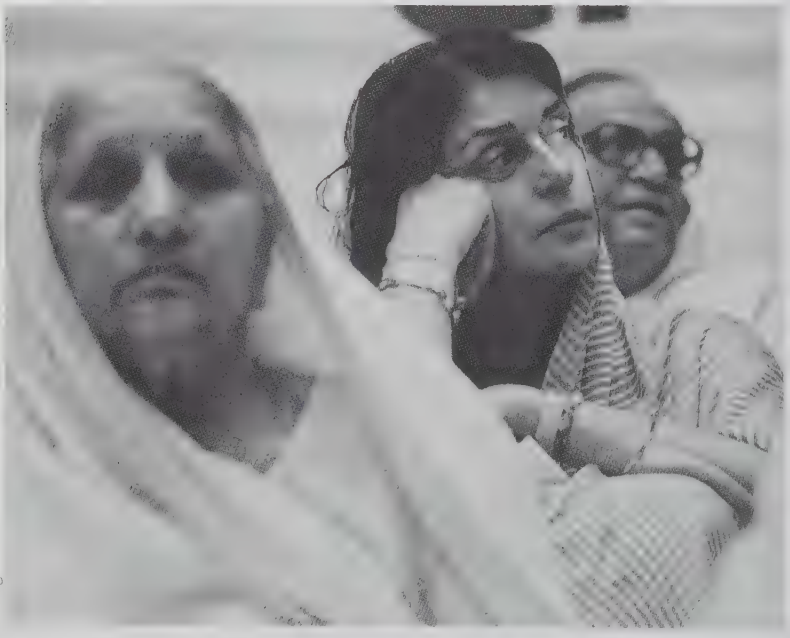
Courtesy the author

A revealing letter from Siddhartha Shankar Ray to Indira Gandhi, dated 8 January 1975, proposing the imposition of an internal emergency.



© Indian Express Archives

Jayaprakash Narayan at a rally against Indira Gandhi. Subramanian Swamy (extreme left) and other leaders can also be seen on the stage.



© Raghu Ra

Charan Singh's wife and the regal beauty Rajmata Gayatri Devi of Jaipur at a Bharatiya Lok Dal rally prior to the Emergency.



© Raghu Rai

A lathi charge on protestors and activists, in which an outstretched arm shields JP from a policeman's lathi.



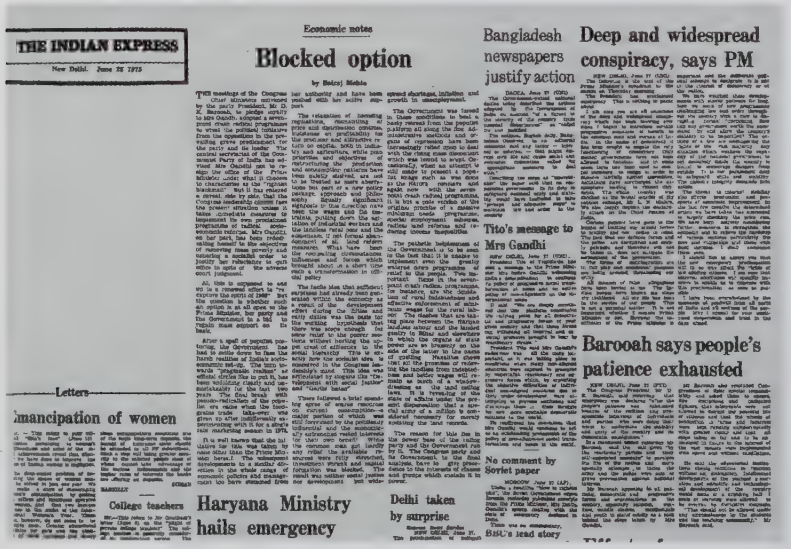
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Indira Gandhi at Vinoba Bhave's ashram, Paunar.



PIB/© Indian Express archives

Indira Gandhi's historic broadcast announcing the Emergency from the studios of the All India Radio on the morning of 26 June 1975.



THE INDIAN EXPRESS

New Delhi, June 28 1975

Economic notes

Blocked option

by Behroj Mehta

THE meetings of the Congress Chief Ministers convened by the party President, Mr D. K. Barooah, to pledge unity to Mrs Gandhi, suggest a severe curtailment of the opposition's power to wreak the political initiative from the opposition in the prevailing grave predicament to the party and its leader. The central servitude of the Congress Party of India has established a tradition that to reign the office of the Prime Minister, under what it chooses to characterise as the "regime of blackmail" but it has retained a shrewd idea by also that the Congress leadership cannot function effectively unless it implements its own proclaimed programme of radical socio-economic reforms. Mrs Gandhi on her part, has been relentlessly goading herself to the objective of implementing the reforms to underline a socialist order to justify her reluctance to quit office in spite of the adverse court judgment.

Ah, this is supposed to add up to a renewed effort to "recapture the spirit of 1969". But the question is whether such an option is at all open to the Congress Party, the party and the Government, in the face of the hard realities of India's socio-economic set-up. The term unwieldy "pragmatic realism" as the editor defines the is put to use, hardly fits the case. Pragmatism is the last thing that the Congress leadership needs—reluctance of the people who make the fundamental decisions to grapple with the basic problems of the country. Pragmatism is the very thing which has been responsible for the present crisis in the country. Pragmatism is the very thing which has been responsible for the present crisis in the country. Pragmatism is the very thing which has been responsible for the present crisis in the country.

The Congress has been in power for the last thirty years. Pragmatism is the very thing which has been responsible for the present crisis in the country. Pragmatism is the very thing which has been responsible for the present crisis in the country.

Bangladesh newspapers justify action

DACCA, June 27 (UNI).

The Government-owned national dailies today described the military takeover in Bangladesh as a "historic necessity" and a "turning point in the history of the country" that "will usher in good days".

The editors, Begum Sufia Kamal, Mr Abdul Gaffar Chowdhury, Mr Abdul Gani and Mr Abdul Latif Siddiqui, in their editorials welcomed the takeover and said that the Army had "rescued the country from the clutches of corruption and nepotism".

Describing the coup as "bloodless", the paper said that no expatriate governments in its time in Bangladesh had done so much in so short a time. Lauding the Army's swift and effective measures to "purge and reorganise" the administration, the editors said that the Army had "proved its mettle".

Tito's message to Mrs Gandhi

NEW DELHI, June 27 (UNI).

President Tito of Yugoslavia has sent a message to the Prime Minister, Mrs Indira Gandhi, commending the measures taken by her Government to solve it complex problems.

Mr Stevan Doronjski, Yugoslav Ambassador to India, met Mrs Gandhi this morning and conveyed the message.

Deep and widespread conspiracy, says PM

NEW DELHI, June 27 (UNI).

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Barooah says people's patience exhausted

NEW DELHI, June 27 (PTI).

Mr Barooah also described Congress-CPI relations as "unique" and said: "Even if we quarrel, we quarrel like brothers and sisters and we always come together". He claimed to have the support of the Congress Parliamentary Party and the Congress-supported Ministry in Haryana.

In a statement issued yesterday he said: "The people are with us. They have given overwhelming support to the 20-point programme and the measures announced by Mrs Gandhi."

Haryana Ministry hails emergency

Delhi taken by surprise

No comment by Soviet paper

MOSCOW, June 27 (AP).

BBC's lead story

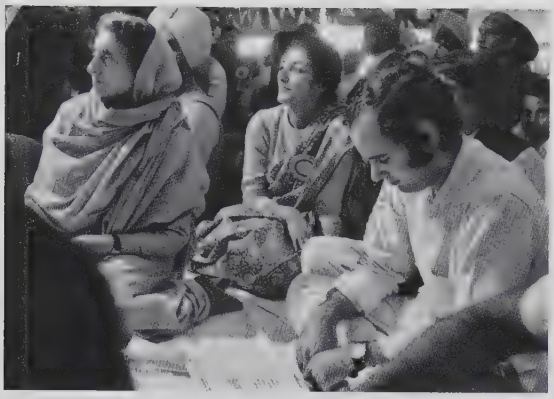
College teachers

Emancipation of women

Letters

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A blank editorial carried by the *Indian Express* on 28 June 1975, in protest against the censorship of the press.



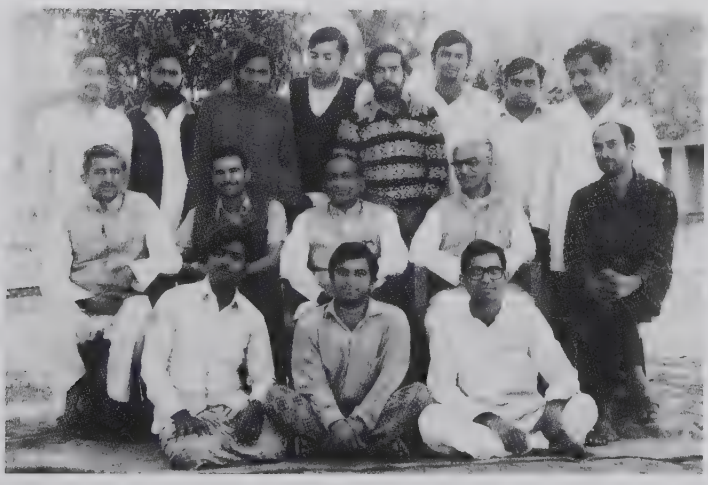
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Indira Gandhi, Ambika Soni and Sanjay Gandhi at a Youth Congress rally.



Courtesy the author

Subramanian Swamy disguised as a Sikh to evade arrest. This photo was taken by the author in the low light of the bathroom of VP House.



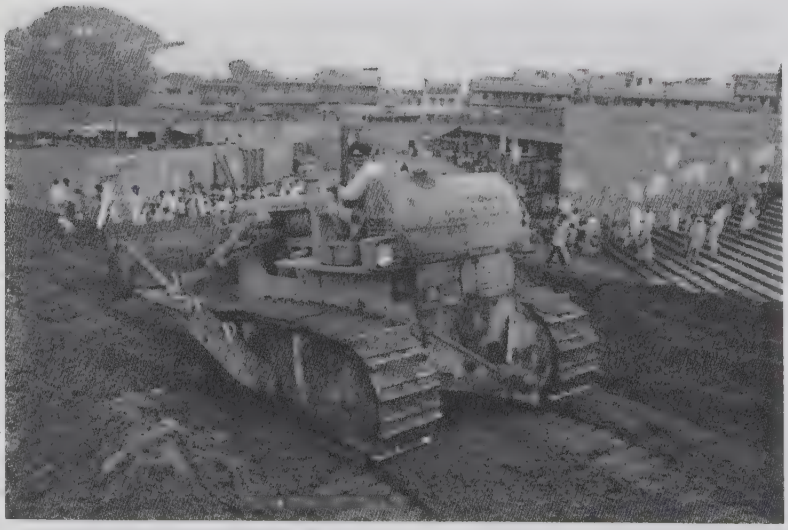
Courtesy the author

Political prisoners jailed under MISA during the Emergency, in the yard of Tihar jail, Delhi. (From left to right) Back row: (second) R.K. Bhatia, (fourth) Virendra Kapoor, (sixth) Arun Jaitley. Middle row: R.N. Vij, O.P. Kohli, K.N. Gupta, K.R. Malkani and Suresh Upadhyaya.



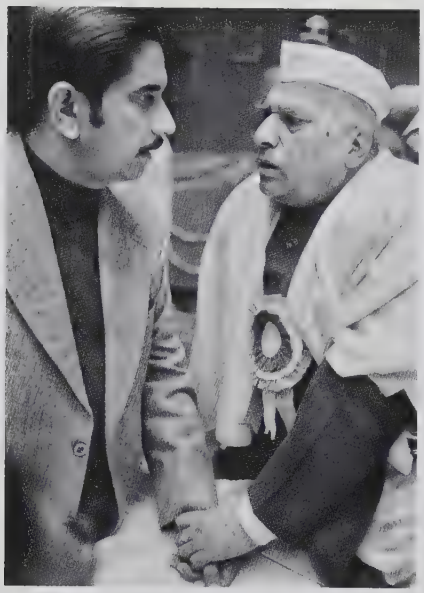
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Celebrity Rukhsana Sultana with a police escort on a tour of Old Delhi.



© Indian Express archives

A slum-clearance drive in Old Delhi ordered by Sanjay Gandhi on 13 April 1976.



© Raghu Rai

A Congress supplicant pleading with Indira Gandhi's right-hand man, R.K. Dhawan.



© Raghu Rai

Hoardings of Indira Gandhi were everywhere, as well as a heavy police presence to enforce her writ.



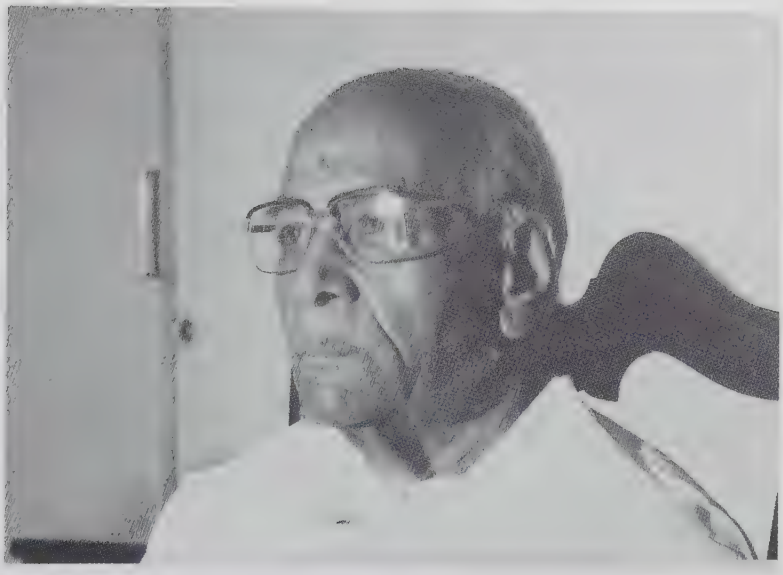
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Sanjay Gandhi acknowledging the greetings of the vast multitudes as he is taken in a procession in Guntur, accompanied by the chief minister of Andhra Pradesh J. Vengala Rao and Union minister K. Raghuramaiah, March 1976.



© Indian Express archives

Sanjay Gandhi being accorded a grand reception by Maharashtra chief minister Shankarrao Chavan at the Bombay airport, 24 October 1976.



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The owner of *Indian Express*, Ramnath Goenka, a key player during the Emergency and in the run-up to the 1977 elections.



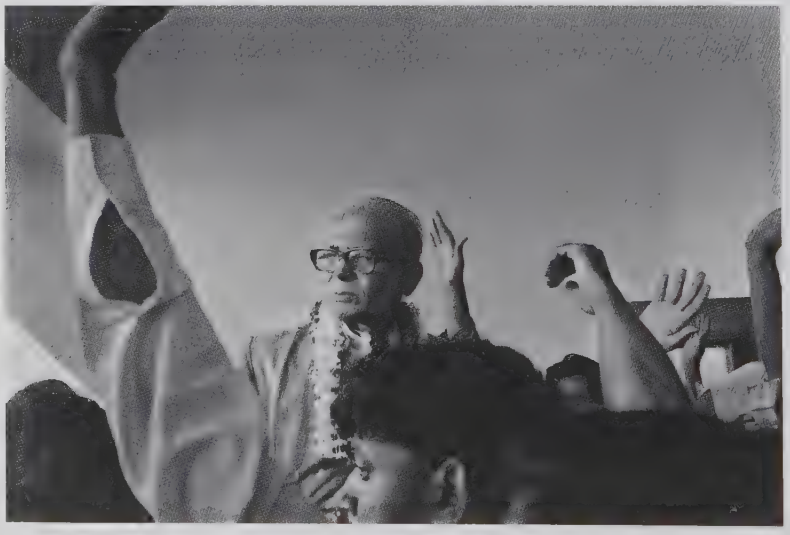
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Indira Gandhi addressing a Congress(I) rally at the Ramlila Grounds, Delhi, 5 February 1977.



R.K. Sharma © Indian Express archives

Kishore Lal declaring his alliance with Jagjivan Ram's newly formed Congress for Democracy at a press conference at Ram's house, February 1977.'



© Raghu Ra

Hundreds of thousands thronged JP's rallies during the 1977 election campaign.



© Ragnu Rai

Charan Singh, Jagjivan Ram, Chandra Shekhar and Morarji Desai during the 1977 election campaign.



© Indian Express archives

Jayaprakash Narayan, Acharya J.B. Kripalani, Morarji Desai, Atal Behari Vajpayee, Raj Narain and others at a meeting in New Delhi, 24 March 1977.



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The Janata administration taking oath at Raj Ghat, 1977.



© Indian Express archives

Returning home for the first time after the Emergency, George Fernandes meets his wife, Leila, and their son, Sean, at the Delhi airport, 6 April 1977. Sean was meeting his father after twenty-two months. Looking back, Leila called it an 'electric moment'.

he complained against Sanjay, all further access to Mrs Gandhi would be denied to him.[30]

Haksar similarly advised N.K. Seshan, who had been in the service of the family since Pandit Nehru's time. Seshan told Haksar that he wanted to retire from government service, that Mrs Gandhi often insulted him even on trivial matters and he had discovered to his shock that the IB was making inquiries about him. Haksar advised Seshan that he continue to work silently. The PM had a strong vindictive streak, and she would never forgive anyone whom she perceived had not worked fully in her interests. Haksar added that he himself would have liked to resign from the Planning Commission, but he feared the PM would not only defame him but also harass him.[31]

Her overwhelming maternal love for Sanjay was tinged with fear. The way in which he seemed to intimidate his formidable mother led some people to believe he had some kind of hold over her. Haksar once commented, 'I have seen the mother and son hitting their own wickets.'[32] P.N. Dhar recalls that when Sanjay had spoken out of line in an interview to *Surge* magazine and caused a major embarrassment, she had asked Dhar to get the story withdrawn from the media.* She could have very easily ordered V.C. Shukla, the minister for I and B, to scotch the interview, but she feared that Shukla, who was taking his orders from Sanjay, might betray her. It was much safer to ask Dhar to do her bidding because Sanjay would believe that he had acted on his own.[33]

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* See chapter 9 for details and excerpts of the interview.

The complex relationship between Sanjay and his mother has fostered many theories. The most common belief is that Mrs Gandhi had a major guilt complex towards her son. Sanjay adored his father, Feroze, even if he saw him rarely. He resented the fact that his mother in 1947 had moved out of her husband's home to act instead as her father Pandit Nehru's official hostess in Delhi. Sanjay believed that his father had been abandoned and that the neglect of his well-being had led to his heavy drinking and early death from a heart attack.

Mrs Gandhi had herself grown up in an atmosphere where her two parents were seldom together. And she was deeply aware of her own loneliness as a child. She was thus keen to compensate for any hurt she might have caused her son. She was a protective mother and indulgent of Sanjay's escapades as a schoolboy and an adolescent. It is striking that in her letters to Sanjay Mrs Gandhi acted as if he were the older, more responsible of her two sons, when the general impression was that it was Rajiv who was the more balanced and dependable sibling. If Mrs Gandhi was unhappy with the way Sanjay ticked off her ministerial colleagues openly, she did not show it. When she received complaints about him she backed him unquestioningly. According to S. Nihal Singh, editor-in chief of the *Statesman*, 'She was totally under Sanjay's influence. The mystery was why. Nobody has an answer. He seemed to have an illogical power over her.'[34]

With Sanjay's growing influence, the power of the PM's residence, as opposed to her secretariat, increased. The Sanjay coterie, in which R.K. Dhawan played a pivotal role, operated from the PM's house and was referred to derisively as the 'palace guard' by resentful officials in the PM's secretariat.

In the beginning, the palace guard only interfered in Delhi administration postings, but later expanded to deciding postings in income tax, banking and commerce. Soon, nearly every single appointment which went to the PM for approval was decided on the basis of the recommendations of the palace guard. 'When files now reach her, she does not bother to even read them. She just hands them over to the palace guards and then she passes orders based on the recommendations made by them,' Tandon noted in his diary.[35]

At times she went along with the wishes of Sanjay's coterie even when she had her reservations. For instance, Bhim Sen Sachar—an eighty-two-year-old freedom fighter who had held many important posts including of the chief minister of Punjab, Governor of Andhra Pradesh and High Commissioner to Sri Lanka—along with six other distinguished senior citizens wrote a letter to Mrs Gandhi in July 1975, protesting against the curtailment of civil liberties and censorship. Dhawan ordered DM Sushil Kumar to arrest all seven elderly men under MISA. One of those arrested wrote a pathetic letter to the PM's secretariat, requesting that he be granted permission to take his medicines which was being denied to him in Tihar jail. When Tandon showed the letter to Mrs Gandhi she blurted out, 'I told these people don't do this.' Her words suggested that she regretted the arrest of Sachar and the others, but was powerless to have prevented it.[36] Nihal Singh observed that 'Mrs Gandhi had a shrewd political sense, but she inexplicably seemed to act against her own better judgement on a succession of issues.'[37]

Similar regrets and conflicting emotions probably also marked her relations with JP at this time.

9

JP versus Indira

The failure of Jayaprakash Narayan and Indira Gandhi to reach any understanding, despite the old and close association between JP and Mrs Gandhi's family, was because of their widely differing perceptions. To JP, his campaign was a mass movement against growing corruption in public life, and increasingly authoritarian tendencies in government at both the Centre and state levels, with frequent suppression of civil liberties.

JP believed that, far from creating an atmosphere of anarchy and violence, his movement provided a peaceful outlet for the anger and frustration of the youth, in particular of students. But instead of being responsive to their unrest, the government set about crushing the movement with a heavy, repressive hand. This was because Mrs Gandhi viewed JP's movement as aimed personally at her. She insisted that JP was encouraging anarchy, preventing the government from functioning, and trying, through a minority opposition, to

submerge the voice of the majority. 'Does he want to be a saint or a martyr? Why does he refuse to accept that he has never ceased to be a politician and desires to be the prime minister?' she once complained to Pupul Jayakar.[1] Historian Bipan Chandra described JP's call for Total Revolution as 'hazy, naïve and unrealistic thinking' and his demands too general to amount to concrete politics.[2]

Indira Gandhi's dismissive opinion notwithstanding, JP was a formidable opponent, with a moral authority that Indira Gandhi lacked. He was an icon of the freedom struggle, a hero of the 1942 Quit India movement who had daringly escaped from Hazaribagh jail. When he was finally rearrested by the British he was released a full year after the other political prisoners. Before he joined the freedom movement, JP had been a student in the USA for seven years and had impressed his teachers with his scholarship and keen mind. On his return to India he was encouraged to join the Congress by Pandit Nehru. JP used to call Panditji 'bhai'. The friendship extended to the two wives, Prabhavati and Kamala, who corresponded with each other regularly. It was a remarkably intimate exchange of letters between the two women.

After Independence, JP's moral stature grew since he was one of the rare senior Congress leaders who had declined to accept political office. His revolutionary fervour had first taken him to Marxism and then, through the national freedom movement, to democratic socialism. When the socialists separated from the Congress in 1948 to form a separate party, he joined them. During that period, when JP was in the Praja Socialist Party, he was attracted to Vinoba Bhave's Bhoodan movement, where donated land was collected for distributing

to the landless. By 1957 JP had resigned from party politics to devote all his time to the Sarvodaya movement, which practised social work based on the principles and values preached by Mahatma Gandhi. But, as JP noted in the Sarvodaya Sammelan of 1961, not being in any political party did not mean 'we are not concerned about what is happening in the country in the political field'. He subsequently directed his energies towards trying to settle conflicts in Nagaland and Kashmir, and later in Bangladesh.

JP had a soft spot for Indira Gandhi as she was Nehru and Kamala's daughter. He congratulated her warmly when she was elected PM in 1966. From time to time he supported some of the government's programmes. In 1969, however, he was unhappy with her conduct in the presidential election. And he said so frankly in a letter to Mrs Gandhi in 1971, when he congratulated her on her sweeping electoral victory: 'I did not like your conduct at the time of the presidential election though I am aware that at that time it was politically a question of life and death for you. Now that you have been given uncontested power my prayer to God is that he may keep your thinking pure.'[3]

Cut to the quick, Mrs Gandhi wrote back haughtily, 'How little do you know or understand me. I have never bothered about political or any other identity for myself. At that time the question was not of my future but that of the Congress party and therefore of the country.'[4]

During the Bangladesh crisis, relations between Mrs Gandhi and JP improved after he praised her role in the creation of Bangladesh. There were also cordial talks between the two on the surrender of dacoits in Madhya Pradesh and

on the issue of capital punishment. However, things began to sour after JP expressed increasing disenchantment with the government's style of functioning and the concentration of power in the hands of a single individual. In early 1973 JP wrote to Mrs Gandhi, expressing concern about the elevation of Justice A.N. Ray as Chief Justice of the Supreme Court sidestepping three senior judges. He wondered whether the idea was to make the head of the Supreme Court 'a creature of the government of the day'. Later that year JP wrote to MPs, warning against the erosion of civil liberties and democratic institutions. He also raised the issue of corruption, and of electoral and educational reform. The PM did not take kindly to being lectured by JP. She started complaining that JP was confused and frustrated and wanted to grab power.

The relationship took a turn for the worse in March 1974 when agitating students in Bihar asked JP to lead their movement against corruption in the state. The Bihar Chhatra Sangharsh Samiti had drawn its inspiration from the youth of Gujarat, whose Navnirman movement with state-wide demonstrations, rallies and agitations had forced the corrupt Congress chief minister, Chimanbhai Patel, to step down in February 1974. JP agreed to take up the students' cause on the understanding that it would be non-violent and the movement would not be restricted to Bihar but would cover the whole country. He led a series of protests demanding the dissolution of the Bihar assembly.

In May 1974, Mrs Gandhi wrote to JP inquiring about his health. She added that in view of the long friendship between the two families, their political disagreements should not create personal bitterness or questioning of each other's

motives. Mrs Gandhi's offer of peace would have seemed more genuine if she had not, just a short while earlier, at a speech in Bhubaneswar, made disparaging remarks about Sarvodaya leaders keeping the company of the rich and living in posh guest houses. JP replied that the remark had deeply wounded him and he regretted that Mrs Gandhi failed to perceive the disillusionment of the country's youth and the upsurge of support for his call for Total Revolution.[5]

The PM, while claiming disingenuously that her remarks on Sarvodaya leaders did not refer to him in particular, refused to apologize. She asked him to consider carefully the company he was keeping in his movement, referring to the RSS and the Jana Sangh's participation in his crusade. Both Nanaji Deshmukh of the Jana Sangh and *Indian Express* owner Ramnath Goenka were close friends of JP's and the Sarvodaya leader had stayed at the *Express* guest houses on occasion. Mrs Gandhi questioned the widespread notion that JP was the nation's conscience keeper. Others, she pointed out tartly, were equally concerned about people's welfare and the need to cleanse public life of weakness and corruption. The misunderstanding between the two leaders, far from clearing up, now increased, JP noting sadly that he was 'only a private citizen but I have my self respect'.[6]

Wherever he toured, JP received a rapturous response. Apart from the increase of corruption in public life, there was also much discontentment because of rising prices, thanks to two failed monsoons and a rise in international oil prices. Buoyed by the public support for his crusade, JP called for a conference of all opposition parties to help channelize the enthusiasm of the people into a nationwide movement. The

opposition parties were naturally delighted to have an icon like JP championing an anti-Indira Gandhi front.

On 1 November 1974 Mrs Gandhi and JP had a long meeting in Delhi. The PM offered a compromise formula. She was willing to dismiss the Bihar government provided JP ended his campaign and there were no further agitations for the dissolution of other state assemblies. JP declined and the meeting ended in bitterness. JP handed over to Mrs Gandhi the letters written by her mother, Kamala Nehru, to his wife, Prabhavati. (Prabhavati had passed away in 1973.)

Kamala's letters to Prabhavati, to whom she had become very close, revealed her innermost thoughts. She wrote of her deep sense of loneliness because of her husband's frequent absences, and her feeling of isolation in her in-laws' home. In her later letters she confessed—something she was hesitant even to tell her husband—that she was increasingly turning towards God and away from a temporal life. 'I made a big mistake by spending 35 years of my life as a housewife. If I had searched for God during that period I would have found him,' she confided.[7]

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Just a few days after the talks between JP and Mrs Gandhi broke down, he became the target of a policeman's baton while on his way to address a meeting in Patna. Photographs of Jana Sangh leader Nanaji Deshmukh trying to fend off the blow to JP forehead, and of JP stumbling and falling during the lathi charge, were splashed in all the newspapers the next day.

The battle lines between the two sides were getting clearly drawn. In the opinion of Mrs Gandhi's disillusioned joint secretary B.N. Tandon, 'The PM's own ego, pride and corruption did not have the ability to stand up to JP's moral roar.'[8] As JP's movement spread, Mrs Gandhi attacked it with increasing stridency. She accused the movement of encouraging violence and held it responsible for Lalit Narayan Mishra's murder. Her government's attitude was that force was the best way to stamp out the movement. When JP was alighting from the train at Ludhiana, someone came from behind and tried to grab him, fracturing his neck bone. In Calcutta, a few armed Congressmen surrounded his car and attacked it with lathis. In Patna, JP's procession was fired at from a flat belonging to a Congress MLA. The Congress's ally, the CPI, accused JP of being anti-national. JP responded, 'It might sound vain, but the day JP becomes a traitor to the country there would be no patriot left.'[9]

JP did have a few supporters in the Congress who were bold enough to openly display their affection for him. In November 1974, Chandra Shekhar, a Congressman and former socialist who refused to toe the party line, held a reception for JP in Delhi. Apparently around fifty Congresspersons attended the dinner. Chandra Shekhar was unperturbed by his party's disapproval. He felt JP's campaign should be viewed in the correct perspective. In his magazine, *Young Indian*, Chandra Shekhar wrote that since JP's movement was not a fight for power it would be difficult to defeat him with the help of power.

After the Allahabad judgment, when the High Court declared Indira Gandhi guilty of electoral malpractices, JP

demanded Mrs Gandhi's resignation pending her appeal to the Supreme Court. It was decided to launch a campaign throughout the country from 29 June to 5 July 1975 to urge her to honour the Allahabad judgment in spirit. Mrs Gandhi felt cornered. On 25 June 1975 Morarji Desai, in an interview to Italian journalist Oriana Fallaci, declared, 'We intend to overthrow her, to force her to resign. This lady won't survive this movement of ours.'[10]

Defending her imposition of the Emergency to Pupul Jayakar, Mrs Gandhi claimed, 'You do not know the gravity of what was happening. You do not know the plots against me. Jayaprakash and Morarjibhai have always hated me. They were determined to see that I was destroyed and the government functioning paralysed. How could I permit this?' Mrs Gandhi eyes grew moist with unshed tears as she talked about her relationship with JP. 'Jayaprakash's wife Prabha was very close to my mother but with her death relationships have altered. Jayaprakash has always resented my being prime minister.'[11]

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As described in chapter 2, JP was arrested from the Gandhi Peace Foundation at around 3 a.m. on 26 June, and kept in custody in a guest house in Sohna, together with Morarji Desai, although the two were not allowed to meet each other.

During his three days at the guest house JP was examined by doctors who claimed he had a heart ailment. This was the first time JP learnt that he was suffering from such a disease. He was now moved to AIIMS, Delhi, the premier government hospital in the country, for further medical examination. After

two days at AIIMS he was flown to Chandigarh in an IAF plane and admitted to the Postgraduate Institute of Medical Education and Research at Chandigarh.

JP's ordeal during the Emergency was painful, solitary and, indeed, heartbreaking. His health slowly deteriorated. He wrote in his diary on 21 July 1975, 'My world lies in shambles all around me. I am afraid I shall not see it put together again in my lifetime.'[12] But he did not buckle, continuing to write frequently to Mrs Gandhi, refuting her canards against his struggle. She never deigned to write back. The most disturbing aspect of JP's incarceration was the suspicion, which JP himself did not rule out, that some people might have deliberately tried to damage his kidneys.

During his 130 days of detention JP remained in solitary confinement. 'The reason why a month in prison appears like a year is my loneliness,' he reflected in his diary. 'The company of other detenus might have helped. . . . Of course doctors, nurses and police officers used to see me but they would only enquire after my health. . . . There was no one with whom I could converse freely. As soon as any doctor or nurse enters the room a policeman follows.' His guards, in fact, occupied several rooms on the entire floor.[13]

JP compared the callous attitude of the Indira government to the British authorities when he was prisoner during the Quit India movement. In 1942, when he had complained of solitary confinement the British had acceded to his request and allowed Ram Manohar Lohia, his colleague, to meet him for an hour daily.

There was a long corridor leading to the room where JP was kept as a detainee in Chandigarh. Armed sentries were

posted on either side of the room. He was only permitted to take a walk outside after sunset.[14] A writ was filed in the high court protesting the ill effects of such treatment on a seventy-three-year-old man. He was finally transferred to the hospital rest house located in the campus.

In August 1975, deeply disturbed at hearing news of the devastating floods in his home state, JP requested a month's parole to mobilize people to organize relief in Bihar. He offered to work in cooperation with the state and Central governments. Mrs Gandhi did not respond. P.N. Dhar, the well-meaning economist who was P.N. Haksar's successor as secretary to the PM, was anxious to bring about a rapprochement between Mrs Gandhi and JP. But Mrs Gandhi was still smarting from a letter that JP had sent her a month earlier in which he had bitterly criticized her. What hurt her most, Dhar observed, was JP's comment that 'nine years is not a short period of time for the people who are gifted with a sixth sense, to have found you out'.[15] Moreover, she felt JP was simply trying to upstage her in Bihar. As a sop, Dhar dispatched the additional secretary in the ministry of food and agriculture, B.B. Vohra, to brief JP on what was happening in Bihar by way of flood relief.

Vohra conveyed back to Dhar that JP seemed keen to review the entire policy that had been followed in the name of the Emergency. Dhar took this to mean that JP's position had changed from one of belligerence and confrontation and he was ready to negotiate. JP, in fact, had written a letter to the Kashmir leader Sheikh Mohammed Abdullah, complaining about the PM's refusal to settle across the table issues posed by his movement. He concluded his letter with the remarks:

'However, in spite of all that has happened and is happening I am prepared, in the interests of the country, to seek the path of conciliation. I shall therefore be much obliged if you kindly see me as soon as possible so that I could discuss the matter with you . . . I am hereby willing to offer you my full cooperation.'[16]

Mrs Gandhi did not agree with Dhar's view but was willing to go along: 'In spite of her strong reservations, she agreed that it would be desirable to establish some contact with JP but was not sure who could be entrusted with that delicate job.'[17] Dhar suggested Sugata Dasgupta, the director of the Gandhian Institute of Varanasi set up by JP.

As part of his brief, Dasgupta had the unpleasant task of informing JP that while his personal, non-political letters would be sent to their addressees, the political letters would be returned to him. Accordingly, he handed back the letter JP had written to Sheikh Abdullah.[18] (In fact, many of the personal letters did not reach the addressees either. According to JP, of the twenty letters he sent out till mid-September, only one, to Kusum Deshpande, an inmate of Vinoba Bhave's ashram, reached its destination. Letters to his family and friends were held back by the authorities.)[19]

Dasgupta tried to gauge JP's reaction in case he was released from jail. JP made it clear that if civil liberties were not restored, if elections were not held, and if censorship continued, the only recourse for him was confrontation. On a possible election, he said he would do his best to ensure that there was one opposition candidate from each constituency. He wanted a new party to emerge. He also suggested that if nobody took note of what he was saying, he might go on a fast at the end of October.

In October 1975, JP began to suffer from acute and continuous pain in his lower abdomen. All kinds of investigations were done but nothing was found. The medicines given by the doctors brought temporary relief, but the pain recurred and JP continued to suffer from acute discomfort. His hands and legs were swollen. His undereye area was so swollen that it hung over his face, giving him a deathly appearance.[20]

JP's brother Rajeshwar Prasad had met him in the first week of November and was alarmed by his physical deterioration. Without his brother's knowledge Prasad wrote a letter to Indira Gandhi: 'I have very serious apprehensions that if his [JP's] condition continues like this he might not survive for more than two months. This is causing us great anguish. I have not discussed my anxiety with JP nor mentioned that I would be writing to you, but I feel I must apprise you about his condition so that you can make your own assessment. Apart from the great personal tragedy that his loss would mean to our family, it is for you to decide whether it would be in the best interests of the government, if JP dies in jail.'[21]

On 12 November 1975 JP was released on parole. Clearly Mrs Gandhi agreed with Prasad that his death in jail would not be in the best interests of the government. L.K. Advani noted in his diary, 'Neither generosity nor humanitarian considerations had prompted his release. The motivation was sheer political self-interest. The parole announcement betrayed it very clearly.'[22]

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In a letter to his family and friends written after his release, JP expressed his suspicion about the damage to his kidneys. 'I came to know the damaged state of my kidneys only a week before my release. I did not have any kidney ailment before my arrest. Nor was I told during my four months' detention in Chandigarh that my kidneys were malfunctioning. Suddenly on November 5 I was informed that both my kidneys had stopped functioning. . . . The total collapse of my kidneys was beyond my comprehension. A number of my friends have expressed a doubt, which I share, that my kidneys may have been deliberately damaged. The doctors at Chandigarh were nice to me so I cannot suspect them. Also no doctor (who has taken the Hippocratic oath) will be party to such a heinous scheme. But the physicians who treated me in Bombay were of the opinion that if I had received treatment 15 days earlier the functioning of the kidneys could have been partially restored. God alone knows how my kidneys were so totally affected. But this much is certain that I had been released only when the Indian government was convinced that I would not survive for more than a few days.'[23]

From Chandigarh JP was taken to AIIMS, but he remained there for only five days. When P.N. Dhar met JP in Delhi, his major complaint was that the talks with the government were dragging on without any concrete results. Dhar, keen to keep up the momentum of the talks with JP, now suggested that K.S. Radhakrishna, secretary of the Gandhi Peace Foundation, who was on parole, could take over from Dasgupta as the emissary.

Meanwhile, JP was admitted to the privately owned Jaslok Hospital in Bombay since his brother had no faith in

government doctors. It was thanks to the skill and diligence of the doctors at Jaslok that JP's life was saved. The doctors attributed his remarkable recovery to his own willpower. But from then on he was kept alive with the aid of dialysis. Since his heart was also better, JP was discharged from Jaslok on the provision that he undergo dialysis every second day.

Donations poured in from all over the country to fund JP's dialyser and other equipment needed for his medical treatment. JP was insistent that the money be raised only by small contributions. Prisoners in jail donated one rupee each by foregoing a meal in prison. A sum of about three lakh rupees was raised in no more than three weeks. JP rejected a donation from Mrs Gandhi when he came to know that the money was given from the Prime Minister's National Relief Fund and not from her own pocket, particularly as he was not accepting large donations from any one source. While the censors did not permit JP's letter expressing his thanks but explaining his reasons for returning the money to be carried by the media, a statement by some supporters of the PM, abusing him for daring to return her donation, was published prominently in the newspapers.

Mrs Gandhi herself was furious with JP for not accepting her donation, and by now she was sceptical about the negotiations leading to any agreement. All the same, she permitted Dhar to visit JP in Bombay. Radhakrishna, who now acted as a go-between, stayed with JP for several days and also kept in touch with the opposition leaders.*

* See chapter 12 on the Opposition.

By July 1976, JP had decided he wanted to return to Bihar. But before reaching Patna from Bombay he stopped en route at Paunar to meet Vinoba Bhave. The two men talked for an hour and a half. Afterwards, JP met press correspondents, criticized the Emergency and commented on the demise of democracy in the country. At first JP had planned to travel to Patna from Calcutta by rail. But the PM, apprehensive that JP's supporters were making arrangements to welcome him at various stations along the route, requested that he travel by air instead. Preparations were then made for a big welcome for him at Patna airport. JP arrived in Patna from Bombay by air on 20 July 1976. Thousands who had come from all over the state to see him had to go back disappointed, as the Bihar government promulgated Section 144 of the CrPC to prevent crowds from assembling. It was announced repeatedly through the loudspeaker that whoever went to the airport to see JP would be arrested under DIR and would have to undergo imprisonment for two to three years. Despite such threats people thronged the airport and were chased away or arrested. JP's own cousins and sister's son-in-law were among those detained by the police. The students who defied the police order or shouted 'Jayaprakash Zindabad' were beaten up mercilessly.[24]

A large posse of police ringed JP's house in Patna. Visitors were asked to provide their names and addresses. Although many came to see the grand old man and inquire about his health, the presence of the police and fear of consequences impelled the faint-hearted to stay away.

JP was determined to dispel Mrs Gandhi's propaganda that the Total Revolution he called for threatened to disrupt the unity of the country and endanger democracy and that was why she had been compelled to impose the Emergency. In his letter of 28 August 1976 he gave a brief history of the struggle to contradict the government's booklet justifying its actions, titled *Why Emergency*. He pointed out that the movement in Bihar was initiated by students and the youth, and that he joined it later, only after persuading his young friends to adopt peaceful action. The movement was started with certain specific demands, chief among them being the removal of corruption, measures to curb inflation, schemes to tackle unemployment and the introduction of basic changes in the education system.

JP never wanted to assume the leadership of the movement, but circumstances forced him to take charge when a peaceful procession of students was lathi-charged on 13 March 1974, leaving many students injured. To defuse the situation he organized a silent procession on 8 April the same year. The Congress-dominated Bihar Legislative Assembly, instead of chiding the government for its authoritarian methods, endorsed the government's actions. So the students demanded the dissolution of the legislative assembly. A signature campaign was launched, rallies were held all over the state, and a three-day Bihar bandh was called. A petition demanding the resignation of the government was signed by lakhs of people. But the government did not respond. Ultimately, there was a mass rally in Patna on 5 November 1974, to disperse which the police used tear gas and lathis indiscriminately.

Explaining the context of his call to the police and army to not obey illegal orders, JP pointed out that it was common during the protest movement for the constabulary to beat up the satyagrahis mercilessly. Having witnessed such incidents he had felt compelled to observe that it was wrong for the police to obey illegal orders, such as asking them to use excessive force against peaceful protestors. He also believed that if the government of any party utilized the services of the army to maintain a dictatorship, it was the duty of the army to protect democracy as the Indian Constitution is democratic. JP said he had, perforce, to take this stand when Mrs Gandhi utilized the Border Security Force to suppress the movement.

On his use of the expression 'Total Revolution', JP explained that there should be a revolution in all aspects of the life of the individual and society. The movement was not only for a change in government, but for the change of society—individual as well as collective.[25]

The frequent open letters written by JP to clarify his position further irked Mrs Gandhi. By now she had grown cynical about the reconciliation efforts. Besides, utilizing Radhakrishna's services as an emissary was irritating Sanjay Gandhi. Dhar felt Sanjay had a vested interest in the continuance of the Emergency and was thus opposed to any efforts to end it. Sanjay managed to thwart Radhakrishna's unconditional release on parole and complained to his mother about the subversive activities of the Gandhi Peace Foundation. Although Dhar persisted with the attempts to bridge the gap between Mrs Gandhi and JP with Radhakrishna's help, he had little success. JP was clear that a meaningful dialogue could begin only once all political prisoners had been released

unconditionally and civil liberties and press freedom restored. By now he also wanted to talk to Mrs Gandhi directly and not through intermediaries. It was a stalemate which, despite Dhar's best efforts, could not be resolved. A major stumbling block was Sanjay.

10

Sanjay and His Coterie

Sanjay Gandhi was his mother's Achilles' heel. Right from his childhood, when her spoilt, rebellious younger son got into scrapes, Mrs Gandhi was quick to protect and defend him. At the exclusive Doon School in Dehradun, where Sanjay briefly studied, the teachers found Sanjay below par in both sports and studies. A loner who refused to follow school discipline and regulations, Sanjay enjoyed unscrewing hubcaps from cars and pinching the Mercedes star emblem from the cars of visiting parents. When a master suggested to his mother that she help her son understand the spirit of school life Mrs Gandhi, instead of chiding her son, simply removed him from the boarding school and sent him to St Columba's day school in Delhi.[1]

A rumour from his youth which dogged Sanjay all his life was that he, along with his friend Adil Shahryar, son of close family friend Mohammed Yunus, had taken to stealing cars and going on joyrides. The story blew up when Shahryar

was found unconscious after crashing a stolen motorcycle in May 1964. Earlier that same night, a car had been stolen by Shahryar and some other youngsters. The juveniles sped away without paying for fuel at a petrol pump and later crashed the car into a roundabout. The police tried desperately to hush up the affair, leading the *Times of India* to insinuate in a report that the spate of recent car thefts in the city was the handiwork of a gang of youths with connections in high places. D.F. Karaka's *Current* magazine named Sanjay as one of those involved in the car thefts and challenged his mother to clear her son's name. Mrs Gandhi maintained that Sanjay was on a hitch-hiking trip to Kashmir with a friend at the time of the car heist. Her opponents suggested that his mother had sent him post-haste by plane to Kashmir to cover his tracks.

There was talk of Sanjay's wild ways even when he was an apprentice at the Rolls Royce factory in England. Anthony Lukas of the *New York Times* claimed that P.N. Haksar, then deputy high commissioner in London, had to 'get Sanjay out of youthful scrapes involving drink, cars and women'.[2] When three brothers with the surname Jagotta in the early 1970s were arrested for forcibly driving their car into 1 Safdarjung Road, the PM's residence, the buzz in the capital was that there was a sexual angle to the strange incident.

It was a relatively simple matter for Mrs Gandhi to cover up for her son's youthful escapades. But it was not so easy to hide from the media and the Opposition Sanjay's many infractions in setting up his dream project to manufacture a small car. Long before the fateful judgment of 12 June 1975 declaring Mrs Gandhi's election to the Lok Sabha invalid, she was already under pressure because complaints were pouring

in against Sanjay's Maruti project. It made her vulnerable to charges of corruption and nepotism. Maruti, as developed by Sanjay, was a business enterprise doomed to failure, but Mrs Gandhi, blinded by maternal love, could not see this. Indeed, the story of Maruti is inextricably linked to the Emergency. Sanjay played a major role in shaping events between June 1975 and March 1977, and his political friendships and enmities were based largely on attitudes towards his small-car project.

Sanjay Gandhi's fascination with cars began when at the age of six he was presented a pedal car by his grandfather, Pandit Nehru. Later, as a teenager, he declared his ambition to make cars when he grew up. His doting mother and grandfather did not see Sanjay's goal as a pipe dream—they encouraged him to pursue this goal, despite the enormous capital and infrastructure required for starting such a venture. They wanted him to study for a degree in mechanical engineering, but Sanjay's academic performance was disappointing, and in any case he himself did not want to go to college. He preferred to learn through hands-on experience. Family friend Jayant Teja, a dubious shipping magnate who managed to secure loans worth Rs 20 crore from the government by flogging his connection to Nehru, arranged for an apprenticeship for Sanjay at the Rolls Royce plant in Crewe, England, in 1964. Teja was the youth's guardian in London. But after Sanjay had done three years of apprenticeship Teja's financial jugglery caught up with him, during the period when Lal Bahadur Shastri was PM. Teja had to flee London as he was wanted back in India for embezzlement. Sanjay was left to his own devices. Sanjay received a certificate from the Rolls Royce factory, but did not stay on to complete the full

five-year special students' apprenticeship. He was in any case bored with the apprenticeship, and his superiors were not impressed by either his talent or his diligence.[3]

Sanjay returned to India in 1968, by which time his mother had become PM of India. In 1974 Sanjay surprised everyone by getting married to Maneka Anand, daughter of an army colonel, after a whirlwind romance following a chance meeting at a wedding reception. Maneka was a bright student at Delhi's prestigious Lady Shri Ram College, who was attractive enough to have got an assignment as a part-time model. Although extremely young, Maneka had a mind of her own and was not intimidated by the stature of her husband's family. She was a vegetarian and a great believer in animal rights and environmental causes who brought with her to her new family home a large, fierce dog that did not get on with the gentler pets kept by Rajiv Gandhi's family.

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The government in the 1960s was still undecided about its policy regarding the private manufacture of an indigenous small car. But within a short time of Sanjay's return to India in 1968, the government and the Planning Commission veered around to the view that the manufacture of a small car in the private sector should be permitted. Sanjay, meanwhile, busied himself with building a prototype small car in a shack in Gulabi Bagh, a run-down part of Delhi and a favourite haunt of truck drivers.

The prototype of Sanjay's car, named Maruti, after the god of the winds, was nowhere near complete. But the wheels

of government moved at a fast pace to ensure that Sanjay could live out his dream. Although he lacked the technical proficiency and the capital for such a major enterprise, on 30 September 1970 Sanjay was awarded a Letter of Intent (LoI) to manufacture 50,000 cars annually. Both the then minister of industrial development Fakhruddin Ali Ahmed and his deputy, the minister of state Bhanu Pratap Singh, leaned heavily on the Directorate General of Technical Development to issue the LoI. Mrs Gandhi was unfazed by charges of nepotism. In a speech in Ahmedabad she praised the enterprising spirit of her son in putting forward a proposal for a completely Indian small car. She felt it was an inspiring example for the youth of the country.

While Sanjay was still in the process of applying for the LoI he found a powerful benefactor in the chief minister of Haryana, Bansi Lal. The chief minister wrote to the industries ministry, recommending grant of licence to Sanjay and giving an assurance that the Haryana government had offered all facilities, including land, water and electricity, and finance for the project. Significantly, Bansi Lal was then in political hot water. MLAs from his own party had revolted against him and submitted a memorandum to the President of India containing sixty-six allegations against him. Bansi Lal was one of the first Congress politicians shrewd enough to realize that he could get around the PM by keeping her younger son on his side.

The chief minister ordered his senior officers to go to Delhi and help Sanjay choose a site for his factory. Sanjay was picky. He rejected land near Sonepat, which was first offered to him. He wanted land closer to Delhi and personally

selected a tract near village Dundahera on the Delhi–Gurgaon road. This was fertile farmland, and within 1000 yards of an ammunition dump and an airstrip. Defence rules prohibited the setting up of an industry close to the ammunition dump; besides, the land was in an agricultural zone. But Bansi Lal brushed aside all rules and regulations. His government acquired the land from the tillers without giving them a chance to take the matter to court. He handed over possession of 290 acres to Maruti Limited, a public company floated by Sanjay on 10 August 1971. The land was sold to Maruti at Rs 10,000 an acre, while the price for adjoining land was Rs 35,000 an acre. The land was to be paid for in eighteen annual instalments. After the first two instalments, Maruti Ltd stopped paying its dues to the Haryana government. Minister of State for Defence Production V.C. Shukla, meanwhile, got the air force ammunition dump shifted elsewhere.[4]

Another controversial point was that the loans extended to Maruti by the Industrial Finance Corporation of India, the Central Bank of India and the Punjab National Bank were all at reduced rates of interest and without the necessary collateral. But the banks could not keep extending money indefinitely to a project that was struggling to take off.

Mrs Gandhi's headstrong son was not a person to take kindly to advice, no matter how well meant. When Mrs Gandhi requested Law Minister H.R. Gokhale to advise Sanjay on his project, Sanjay instead ticked him off: 'Mr Gokhale, your laws don't apply to me.' A shocked Gokhale reported this to the PM, but she seemed helpless.[5] When Maruti ran into all kinds of difficulties towards the end of 1973, an anxious PM asked her finance minister, C. Subramaniam, to look into the

company's affairs. A meeting with Sanjay took place with Indira Gandhi present. Subramaniam asked for the project report on Maruti. Sanjay maintained that there could be no project report before the project started. When Subramaniam insisted that a project report was essential, Sanjay dismissed his advice, stating that old-fashioned methods of operating were not for him. Subramaniam later apologetically told the PM that Sanjay, however dynamic, did not know how to proceed with setting up a company. He promised to help by inducting professionals. But Sanjay haughtily turned down his offer. Subramaniam had no option but to issue instructions to all banks to not lend any more money to Maruti. According to Subramaniam, Mrs Gandhi was so upset about the whole affair she had tears in her eyes.[6]



The story of Sanjay's dealing with the Central Bank is revealing of the way things functioned when Sanjay wanted his way. Dharam Vir Taneja confessed to eminent journalist Romesh Thapar, then a member of the bank's board, that his appointment as chairman of the Central Bank was thanks to Sanjay Gandhi, whom he had known since he was a child. Taneja had promised Sanjay that if he was made chairman of the bank he would help him with finances for Maruti. When his chairmanship did not materialize, Taneja complained to Sanjay. An indignant Sanjay stole the file dealing with the chairman's appointment from his mother's office and refused to return it unless she nominated Taneja as chairman. Mrs Gandhi finally succumbed.[7] The PM's secretariat had already

made out a note in favour of appointing P.F. Gutta of the Union Bank as chairman and the proposal had been circulated to the Appointments Committee of the cabinet. But Mrs Gandhi overturned the decision by writing on a slip of paper: 'I have expressed my firm views regarding this matter. I think Taneja should be given the post.' (She had underlined Taneja's name to make it clear that this was an order.)[8]

As details of the many irregularities in establishing Maruti Ltd leaked out, the issue figured prominently in the media and Parliament, embarrassing the government. Opposition leaders, including George Fernandes, Raj Narain, Madhu Limaye and Atal Behari Vajpayee, accused the PM of practising the worst kind of nepotism. The PM's ministers defended the project in Parliament while avoiding revealing the true facts. But the PM's principal secretary, P.N. Haksar, was apprehensive that the Maruti project was giving the government a bad name and could blow up into a scandal that would cause immense damage to Mrs Gandhi. He was conscious that Mrs Gandhi could not see rationally where Sanjay was concerned, and she refused to accept that despite all the government assistance provided, the project had little chance of success. Haksar recommended to Mrs Gandhi that in view of the mounting criticism, the Vehicle Research and Development Establishment (VRDE), Ahmednagar, get a feasibility test done on Maruti.[9] Haksar also advised Mrs Gandhi that if Sanjay persisted with his Maruti project it would be better if he lived separately from his mother, so that she did not get entangled in any scandals attached to Maruti. He was uneasy about the dubious people who surrounded Sanjay.

Sanjay never forgave Haksar for trying to scuttle his project and would later extract his revenge.* It was because of Sanjay that Mrs Gandhi gradually distanced herself from Haksar who had been a friend since her student days in London, and later her main adviser as PM. After 1973, Haksar had his wings clipped and he was eventually moved from the PM's secretariat to the Planning Commission as deputy chairman. He was no longer in Mrs Gandhi's inner circle.

The Maruti prototype could never pass the VRDE's test for roadworthiness up to 30,000 kilometres. The car, which was supposed to be totally indigenous, had a German engine fitted in the prototype by a German technician who was hired as a consultant by the company. The problems ranged from vibrations and rattling to brake failure and steering problems. Once, the prototype fell into a ditch because of a defective steering tie rod. However, the heavy industries minister T.A. Pai finally ruled that the VRDE tests were not essential for granting Maruti the manufacturing licence and on 22 July 1974 Maruti was granted an industrial licence for producing 50,000 cars. R.K. Dhawan had earlier warned the industries secretary that he would have to 'report to the highest' if the ministry continued to procrastinate about issuing the licence.[10]

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The tale of Maruti is replete with examples of extortion, string-pulling to bend rules, and blackmail. Once the Emergency was imposed, the blackmail became more blatant with a clear

* See pp. 226–27.

threat of arrest under the Conservation of Foreign Exchange and Prevention of Smuggling Activities Act (COFEPOSA) or MISA. The NDMC and the government of Haryana used their authority to compel people to buy Maruti shares. Jawaharlal Mehra, president of the Janpath Traders' Association, disclosed that the NDMC issued a notice of demolition to the Janpath shopkeepers, warning that the notice would only be withdrawn if they each deposited Rs 11,000 with Maruti Ltd as the price of Maruti shares. Mohan Lakhani, managing director of Urban Improvement, was trying to get a new colony in Gurgaon district approved by the Haryana government. He was told that his company should first buy shares of Maruti Ltd worth Rs 1 lakh. Onkar Nath Gotewala, a coal dealer, said that he was summoned by Sanjay and told that he must buy Maruti shares for Rs 1 lakh or he would be arrested under MISA.[11]

The JK Group, a large business house owned by the Singhania family, was seen as a convenient milch cow. The group invested about Rs 30 lakh in Maruti shares. In January 1976, yarn dealers and paper merchants affiliated with the JK Group mysteriously started buying shares of Maruti and making deposits for dealerships. The investments seemed to be directly related to the fact that Rameshwar Aggarwal, the export manager of J.K. Udyog Ltd, was arrested under MISA on 21 November 1975 and later his detention was continued under COFEPOSA. A detention order under MISA was also issued against Bharat Hari Singhania, a relative of the firm's owners. The JK Group represented to both Minister of State for Finance Pranab Mukherjee and Mrs Gandhi's additional private secretary R.K. Dhawan against the warrants.

Significantly, Aggarwal of J.K. Udyog was released from COFEPOSA the very day on which J.K. Synthetics started purchasing Maruti shares, and Bharat Hari Singhania too was let off the hook.[12]

MISA was also used as a weapon to keep in check the Maruti dealers who started getting restless when they found that the car which they had been assured would be ready by April 1973 was far from complete even three years later. Dealer Prakash Gupta asked for the interest on his deposit and was arrested under MISA and detained for two months. C.B. Gupta of Bhatinda who demanded interest on his deposit was warned by Dhawan that he would be arrested under MISA if he kept asking for his money. A car was delivered on 20 June 1974 to the dealer S.C. Aggarwal who had a showroom in Hissar. When he tried to drive the car to Hansi in Hissar it broke down and eventually had to be pushed to its destination. Another dealer, Daljit Singh, discovered that the car sent to him had defective brakes and clutch problems. He returned the car to the Maruti factory and it was never sent back to him. According to the company's annual report for 1975–76, only twenty-one cars were produced.[13]

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As chairman of the Central Bank, Taneja granted a number of loans to Maruti. But Sanjay was not satisfied. He demanded that Taneja immediately sanction a loan of Rs 1.5 crore. From September 1974 till the end of the year, Sanjay repeatedly called up Taneja that something should be done to finance

his car project. Taneja was hamstrung because of the Reserve Bank of India instructions and tried to explain that his board would not sanction the loan. Despite Sanjay's pressure he had finally to reject requests for further loans. He confessed his helplessness to Sanjay, who was 'rude, insulting, haughty and demanding'. He flared up and shouted, 'If this is the way important clients are treated and commitments not honoured proper persons would have to be brought to head banking institutions.'[14]

Taneja was not reappointed as chairman after a year's tenure even though it was generally acknowledged that he had turned the bank around. The bank was no longer in the red, relations with the union were on the mend, and the finance ministry had recommended Taneja highly in consultation with the Reserve Bank of India. A delegation of senior bank executives led by Rattan Pochkhanawala, general manager and son of the Central Bank founder, presented Mrs Gandhi an appeal to retain Taneja. Mrs Gandhi's secretary P.N. Dhar tried to reason with Mrs Gandhi and get the decision reversed. Mrs Gandhi would listen to him, appear to agree and then disappear into an inner room and emerge from it tight-lipped and refuse again. It was clear that Sanjay was exerting pressure on his mother and insisting on Taneja's removal.[15]

After Taneja's exit, Pochkhanawala received a mysterious phone call. A threatening voice over the phone ordered him to hire a taxi and come to a particular destination. There he was picked up and taken to the Qutab Hotel. He was ushered into a room, where Sanjay sat behind a desk. With a sneer on his face Sanjay offered to let Taneja off the hook if Pochkhanawala would ensure that Rs 25 lakh were released

to him immediately. A terrified Pochkhanawala came back to report the incident to Romesh Thapar, who was on the bank's board, and to Romesh's wife, Raj.[16] The Thapars had once been close friends of Mrs Gandhi's.



While Maruti Ltd consistently made losses, a private company started by Sanjay in 1970, the Maruti Technical Services Private Limited (MTSPL), received handsome remuneration from the parent company. The shareholders of MTSPL were, apart from one K.L. Shroff, all members of the Gandhi family: Sanjay, Sonia, Priyanka and Rahul. The agreement between Maruti Ltd and MTSPL was that the latter would impart the technical know-how for the design, manufacture and assembly in India of a wholly indigenous car for an annual fee. From 17 August 1971 to 31 March 1977 Rs 16 lakh were paid to MTSPL. Sanjay received a remuneration of Rs 4000 monthly and 1 per cent commission on net profits. (He received a similar amount plus perquisites as managing director of Maruti Ltd.)

In 1973 Sonia was appointed managing director of MTSPL on a monthly salary of Rs 2000 and 1 per cent commission of net profits. She resigned her position only in January 1975. The technical services provided by the family members to the parent company were non-existent. W.H.F. Muller, the German technician employed by MTSPL, admitted that the firm had no laboratory of its own. In fact, till May 1977 the design of the car engine had not been finalized.

MTSPL made profits from some intriguing sources. For instance, Sanjay used to buy petrol savers for around Rs 15

and sell them to Maruti dealers at Rs 85. Maruti dealers were forced to buy these petrol savers worth thousands of rupees at considerable loss to themselves.

A third Maruti company floated was the Maruti Heavy Vehicles Private Limited (MHVPL), in 1975. Fifty-nine per cent of the shares of MHVPL were owned by MTSPL. With the car project not taking off, Sanjay saw wisdom in exploiting his clout in Congress-ruled states to get contracts for supplying roadrollers, bus bodies and tractors. The company did not manufacture the products, it merely assembled them. For instance, in the case of the roadrollers, the machinery was bought from companies that had import licences. These were fitted on to old scrapped rollers and sold as brand-new rollers.[17] The Congress state governments of Rajasthan, UP, Punjab and Karnataka and the Delhi local bodies were only too happy to purchase the roadrollers and manipulate tenders, if necessary. The public sector Oil and Natural Gas Corporation (ONGC) was a steady purchaser of truck tractors from Maruti.[18]

MHVPL also became an agent for foreign multinational companies, most notably the International Harvester of Chicago and Piper Aircraft of the USA. According to the US Embassy cables released in 2013 by WikiLeaks, the Maruti company was negotiating to be the representative for the British Aircraft Corporation (BAC) in India. BAC was in the race for supplying aircraft to Indian Airlines. As a joint developer of the Jaguar fighter, it was also bidding for the IAF's deep penetration strike aircraft (DPSA) project. Interestingly, the US Embassy cables between 1973 and 1976 also suggest that Rajiv Gandhi was working for Saab-Scania, whose Viggen aircraft was in the fray for the DPSA

venture. If this information is correct, then the brothers would have been representing the interests of rival firms bidding for the same project. (The final decision on the IAF fighter contract was taken only after the Emergency, during the Janata Party rule.)[19]

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By early 1975 it was clear that Sanjay's entrepreneurial dreams were beginning to unravel. He had been able to mobilize only a small percentage of the Rs 60 crore capital he had hoped for. The bank loans were drying up and the price of the people's car had now increased to Rs 24,000. Worst of all, Sanjay had failed to produce even a viable prototype. Rather than hold himself responsible, Sanjay nursed a grievance against those who he felt had put a spanner in the works. Sanjay's antagonism extended not just to Haksar, but also to most of his mother's left-leaning advisers. He believed that Haksar had systematically installed those of a similar ideological viewpoint in key positions in Mrs Gandhi's government. Sanjay was an avowed right-winger, intrinsically suspicious of communists and those of their ilk, who he felt were giving his mother bad advice.

Sanjay had started building up his own coterie of supporters. The members of Sanjay's caucus had two attributes in common. They unabashedly wooed the PM's younger son, obeying his wishes blindly, and they were committed not to any ideology but to self-advancement. They were often referred to as the 'Punjabi mafia' as opposed to the more cultured and urbane 'Kashmiri mafia'. One of the first

to realize the degree of influence Sanjay had over his mother was L.N. Mishra, the corrupt minister for foreign trade. Mishra had offered all encouragement to Sanjay in his Maruti scheme initially, including arranging funds and introducing him to the Haryana chief minister Bansi Lal.

Mishra was assassinated in a mysterious bomb blast in Samastipur in January 1975,* but Bansi Lal remained a dogged supporter of Sanjay. He was the kind of man that Sanjay found useful: a rough, no-holds-barred Jat leader who had a reputation for ruthlessness and ignoring legal niceties. Bansi Lal, who started out as a briefless lawyer in Bhiwani, made his way up the political ladder through sycophancy, changing mentors more than once. By extending favours to Sanjay, Bansi Lal earned the support of the PM, who backed him up against party members who had presented a memorandum against him. Mrs Gandhi exonerated Bansi Lal of all the charges and made it clear to her party men in Haryana that the chief minister was there to stay.

Bansi Lal terrorized his officers and ran the state with despotic ruthlessness. When an old and respected lawyer of Panipat denounced Lal's corrupt rule, he was arrested and stripped naked, his face was tarred, and he was dragged all through the streets of the town.[20] When a Bhiwani newspaper, *Chetna*, dared to criticize Lal's barbaric ways, it had to pay a heavy price. A senior officer of the municipality arrived with a gang of thirty workmen armed with spades and crowbars. They started knocking down the front portion of the building.[21] Later, during the Emergency,

* See chapter 8 for details.

Chetna's editor Debrata Vasisht and his father were arrested on thirteen trumped-up charges. Vasisht's wife continued fearlessly to bring out the newspaper. Her seventeen-year-old son was beaten to a pulp with rods, chains, lathis and belts. The police refused to record the first information record (FIR), and the local doctors were too frightened to even provide first aid.[22]

In the days preceding the Emergency, when Sanjay was busy organizing loyalty rallies in support of his mother, Bansi Lal was in the vanguard. Jails and guest houses in Haryana were used to house prisoners from all over the country arrested under MISA. Bansi Lal became such a favourite of the PM and her son that within a few months of the imposition of the Emergency he was made defence minister.

Another member of Sanjay's core group was V.C. Shukla. When Shukla was appointed minister for I and B he presided over the media with the same brutality shown by Bansi Lal in handling Haryana.

Two mavericks in Sanjay's inner coterie were Arjan Das and Dhirendra Brahmachari. Arjan Das, who ran a tiny puncture repair shop at Lakshmibai Nagar, had initially endeared himself to Sanjay by taking him on trips to all the second-hand car repair shops in the city. Proof of his clout was the way he could walk in and out of the Gandhis' Safdarjung Road residence. He used to proclaim proudly that Mrs Gandhi called him her third son. Thanks to Sanjay's mentorship, he was elected a member of the Delhi Metropolitan Council. At his behest dozens of shops were raided by the authorities. And he was a power to reckon with. Arjan Das threw his weight around and no one dared

challenge him. As mentioned earlier, Mam Chand, the magazine vendor at the coffee house in Connaught Place, was arrested for nineteen months under MISA because he rashly got into an argument with Das.* When a Delhi SP refused to obey Das's orders on some issue the man was transferred with the concurrence of the PM.

Dhirendra Brahmachari was a different kettle of fish. He had been a family favourite even in Nehru's time. The yoga guru had a spellbinding physical presence, his tall, taut muscular body wrapped in a translucent white muslin cloth; at fifty, he still had flowing black hair and a long beard. He certainly did not have the manner or appearance of a *brahmachari* (an avowed celibate), and there were many stories circulating about his liaisons with female disciples. His assistant and long-time companion at his ashram was an attractive young girl named Manju. When Nehru was PM, the education ministry had sanctioned him an annual grant of Rs 20,000 and a bungalow on Jantar Mantar Road was allotted for his ashram. During Shastri's prime ministership he was thrown out of the bungalow after an inquiry revealed that he had embezzled ministry funds. Mrs Gandhi, who took yoga lessons from the brahmachari, restored the government grant when she became PM. Government records show that since 1967 the brahmachari had received government grants up to Rs 43 lakh.[23]

Dhirendra Brahmachari often applied to ministers and officials for favours and expected his demands to be fulfilled. He had set up a retreat at Mantalai in Jammu, which was

* See chapter 4 for details.

the last word in luxury. Ostensibly for teaching yoga and subsidized by the education ministry, it was, in fact, a pleasure resort rented out to rich foreigners and some favoured Indians. To reach his haven in the mountains, at a height of 6300 feet, the brahmachari imported a four-seater Maule M-5 aircraft. Claiming falsely that the US$40,583 aircraft was a gift, the yogi used his influence to get the plane into the country without paying any customs duty. He got the defence ministry to build an airstrip at Mantalai despite strong objections from IAF headquarters that this constituted a hazard as it was close to a sensitive radar site and the Udhampur airport. The objections were waved aside after the intervention of Defence Minister Bansi Lal's joint secretary S.K. Mishra. Of the 213 flights made by the brahmachari's fancy plane, Sanjay was on board on 73 trips and Rajiv Gandhi on 19. The aircraft was used by Sanjay to visit his Amethi constituency during March 1977.[24]

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Even before the Emergency, Sanjay had begun to interfere in the affairs of Delhi. As early as 1971, he got the NDMC president Shrichand Chhabra removed for displacing a large number of slum-dwellers who were Congress voters. It was thanks to Sanjay that Kishan Chand, an ICS officer who had worked in a UN agency and was looking for a post-retirement sinecure, was appointed lt governor of Delhi. Kishan Chand was the nominee of Sanjay's friend Navin Chawla. (Chawla was the magistrate who got Sanjay and Maneka married.) Another factor favouring Kishan Chand was that he was the father and father-in-law of Chawla's batchmates in the IAS,

Rohini and Deepak Nayyar. Conscious of those to whom he owed his position, Kishan Chand deferred not just to Sanjay, but also to his own aide, Chawla. The lt governor's private secretary, who practically ran the city despite his junior rank, Chawla had a ruthless streak under his polite and urbane exterior. He did not take kindly to Delhi officials, no matter how senior, even questioning his instructions.

Other ambitious Delhi officers in the inner circle included Jagmohan, vice chairman of the DDA, Municipal Commissioner B.R. Tamta, DIG (Range) P.S. Bhinder, a police officer who knew Sanjay from his earlier stint as SP Gurgaon, and P.N. Behl, chairman of the NDMC. They were in the habit of calling on Sanjay at 8 a.m. at his residence before he left for his Maruti factory. Carrying official files with them, they would inquire if he had any orders for them for the day.

One reason for Sanjay's growing clout even before the start of the Emergency was that he had the backing of R.K. Dhawan. Dhawan was the PM's faithful man Friday who worked twenty-four hours at his job. It was Dhawan who decided who got to meet the PM and it was he who conveyed her orders even to senior cabinet ministers. Officials in the PM's secretariat might have sneered at the earnest, moustached factotum, with his hair slicked back, dressed in a safari suit, but by dint of his hard work and obsequious manners he had become his mistress's eyes and ears, and made himself indispensable to her and Sanjay. He operated from the PM's residence, not from her office. Apart from assisting the PM in her official duties, he attended to the wishes of the family as well.

Dhawan first gained entry into the Nehru–Gandhi family as the first cousin of Yashpal Kapoor, who was well entrenched in the Gandhi household. Kapoor found Dhawan a job as personal assistant to Mrs Gandhi when she was her father's hostess and chairperson of the New York World's Fair Advisory Committee. Kapoor was a formidable power in the PM's household. He started out as a stenographer in Nehru's office, but soon moved to Teen Murti House to assist Indira Gandhi. He became indispensable to her as an odd-job man. In 1971, he graduated to looking after Mrs Gandhi's constituency of Rai Bareilly. As Kapoor shed his secretarial duties for political work—he was eventually made a Rajya Sabha MP—Dhawan stepped in to fill the breach at Mrs Gandhi's residence. The relationship with Kapoor might have helped open doors initially, but thereafter Dhawan worked his way up on his own steam.

Despite his extraordinary proximity to both Mrs Gandhi and Sanjay, Dhawan denies that in his many years of loyal service he ever acted on his own initiative. Whether he was simply following his boss's wishes or sucking up to her son, Dhawan frequently called up officials on Sanjay's behalf. And his word carried the authority of the PM. During the Emergency he would even suggest to chief ministers and ministers that they call on Sanjay to consult him.

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Sanjay, with Dhawan's help, consolidated his power by making key appointments in government and shunting out those who had come in the way of Maruti's interests. The two

of them together often vetted bureaucrats to see if they were trustworthy. Tandon recalls an incident in his diary when Lt Governor Kishan Chand was asked by him whether he had referred a particular matter to Mrs Gandhi. Chand replied, 'No, I have not spoken to her but I have spoken where it is necessary, i.e. to No. 2 and No. 3.' By this he meant Sanjay and Dhawan.[25]

R.K. Hazari, the deputy governor of the Reserve Bank of India who had objected to nationalized banks advancing further loans to Maruti in violation of credit regulations, was transferred and J.C. Luther, an income tax officer, was appointed in his place. S. Jagannathan, governor of the Reserve Bank, was replaced by K.K. Puri, chairman of the Life Insurance Corporation of India, a man who had no experience in banking. R.K. Talwar, chairman of the State Bank of India, who refused to sanction a loan of Rs 5 crore for Maruti, was sacked and T.R. Vardachary appointed in his place. The service conditions of nationalized banks were specially amended so that Talwar could be removed.[26] Another of Sanjay's nominess was Pranab Mukherjee, who was appointed minister of state for banking and revenue. The key portfolios were taken away from Finance Minister C. Subramaniam, who Sanjay felt had been unhelpful about Maruti. When the Industries Minister T.A. Pai refused to remove his secretary Mantosh Sondhi, the income tax raided Pai's family establishments.

Apart from Dhawan, Sanjay also utilized Om Mehta to get his work done. Tandon wrote in his diary, 'Om Mehtra affixes his signature on notes to override the views of the cabinet secretary and Prof Dhar, but these notes only reflect

the viewpoint of the palace. This enables the prime minister to override the cabinet secretary and Prof Dhar without having to write anything herself. The prime minister merely signs her assent on Om Mehta's proposals.'[27]



How completely Sanjay had his mother in his thrall is evident from the way he used the Emergency laws to settle scores with P.N. Haksar. He gave orders to target a venerable firm, Pandit Brothers, in Connaught Place, simply because it was owned by the Haksar family. Haksar's wife, Urmilla, and his uncle R.N. Haksar, a well-known figure in Delhi social circles, were two of the four partners of the firm that dealt in bed linen, handloom furnishing and fabrics. A sales tax raid was conducted by the Enforcement Cell of the Delhi Administration on 10 July 1975, but they could not find anything incriminating as all the account books were up-to-date. Navin Chawla informed Sanjay of the results of the raid. Sanjay was furious and made it clear that he wanted major action, which would include arrests of those controlling the firm.

A few days later, another raiding party checked the shop's entire stock without finding a single piece without a price tag. Finally, an officer pointed to the top shelf of racks where goods were kept in stacks with price placards on each stack. He made use of a technicality to claim that this was in violation of the gazette notification dealing with hoarding, although the manager of the shop pleaded that it was not in violation of the rules.[28]

The manager of the firm, S.L. Mathur, was arrested by the police and a case made out under the Delhi Essential Articles (Display of Price) Order 1975. The SHO of Chandni Chowk received orders from the SP to also arrest the proprietors of the firm. The eighty-four-year-old R.N. Haksar was arrested by the police when he returned from his early-morning walk. Another partner, K.P. Mushran, who was ill and in bed, was picked up from his house. P.N. Haksar's wife was also to be arrested, but was spared when Mrs Gandhi intervened after a Congress MP pleaded on her behalf.

Chawla personally dictated a press release on the raid of Pandit Brothers to the Delhi Administration public relations department. The news of the arrest of the three men was on television as well as broadcast on the AIR news bulletin for thirty-six hours. It was Sanjay Gandhi's way of delivering a warning to all those who were thinking of putting obstacles in his path.

In another case of vendetta, Sanjay Gandhi ordered the arrest under MISA of twelve textile customs officers for having the temerity to take samples from certain packages belonging to M/s Indira International, because they suspected there had been a false declaration of whether the garments were manufactured from mill-made or power-loom cloth. M/s Indira International was partly owned by Sanjay's mother-in-law, Amteshwar Anand. The CBI was brought in to create false and fabricated charges against the officers.[29]

Sanjay was also indirectly responsible for the arrest of JNU student Prabir Purkayastha who landed up in jail because of mistaken identity. DIG (Range) Bhinder was summoned to Safdarjung Road and informed about a complaint from

Maneka Gandhi against JNU students. Maneka was a language student at the university and she was not allowed to attend classes because of a strike called by the CPI(M)-affiliated Students' Federation of India (SFI) on 24 September 1975. Devi Prasad Tripathi, as president of the students' union, was a much-wanted man by the police because of the strike. (D.P. Tripathi is now spokesperson for the National Congress Party.)

Chided by Sanjay for not being tough on the JNU students, Bhinder became agitated and decided to take matters in hand personally. Accompanied by the DSP (South) T.R. Anand and two plain-clothes constables, he drove to the campus, determined to arrest Tripathi. Anand had warned that he did not know what Tripathi looked like. Bhinder saw Purkayastha, a PhD student, sitting on the lawn with two female students and insisted on taking him into custody, even though all the other students protested that the person being whisked away was not Tripathi.

By afternoon it was clear to the ADM Pradipto Ghosh and the local police that the wrong man had been taken into custody. However, Bhinder did not want to backtrack. He took the stand that even if Purkayastha was not Tripathi, he was in any case a notorious SFI activist, although CID records showed that Purkayastha had no SFI record. A detention order under MISA was issued against Purkayastha on the same day. He remained in prison for over a year. Such was the terror prevailing that no one was willing to undo a mistake.[30]



Sanjay usually kept a distance from the press and was suspicious of journalists. But in August 1975 journalist Uma Vasudev, who had written an adulatory biography of Indira Gandhi, managed to get an extensive interview out of the enigmatic Sanjay for her magazine, *Surge*. Over long sessions, Vasudev put searching questions to Sanjay. She questioned him about his past, especially the stories that had long circulated about Sanjay's wild youth. The interview gave an insight into the reclusive heir apparent. Some excerpts:

Q There are so many stories about your fondness for alcohol.

A I don't drink at all. Not only alcohol, not even Coca Cola, Fanta, Limca or any of these things.

Q How would you really explain the rumours about fast living?

A I don't know because I hardly ever go even to a hotel. . . . When I first started on Maruti in 1967 I was usually working 16 hours a day, more often 18.

Q Has your volatile and high spirited personality brought you into clash with the PM, your mother?

A I've never been in clash with my mother. I've held some views and she's held different views . . . that's a difference of opinion, so what . . . I've had lots of arguments because I'm quite argumentative. I've never had a heated argument.

Q Does she listen to your views or give you a hearing on issues that matter?

A Yes, obviously she listens to my views.[31]

In the interview, Sanjay blamed the Opposition for helping stymie the Maruti project by probing into every aspect of

it and frightening off the bureaucracy. He attributed the downslide at Maruti to the fact that the market for motor cars was very weak. Most significantly, Sanjay made clear he was in favour of free enterprise and a greater role for the private sector. In fact, he rubbished the socialist policies followed by the governments of his grandfather and mother.

It was his remarks about the communists, who were his mother's electoral allies, which set the cat among the pigeons. 'The communists may have a small cadre that actually works but if you take all the people in the Communist Party, the bigwigs—even the not so bigwigs—I don't think you'd find a richer or more corrupt people anywhere,' Sanjay declared.[32]

Vasudev was so excited by her scoop that before it could appear in her magazine she sent a press release of the main points of the interview to the news agencies UNI, PTI and Reuters. Sanjay's remarks about the communists were carried by the *Evening News*.

Mrs Gandhi, who was away in Haryana that day, was appalled. She wrote frantically to her secretary P.N. Dhar to issue orders to immediately stop further publication. 'Sanjay has made extremely stupid remarks about the communists. . . . At a most crucial and delicate time, we have not only grievously hurt those who have helped us and are now supporting us within the country. . . . What do we do? I am terribly worried. It is the first time in years that I am really upset. How do we inform the USSR and others? What excuse do we find or concoct? Should we get Sanjay to say something—he will not I am sure (although I have not spoken to him) wish to put the blame on the interviewer or anyone else.'[33]

Most Indian newspapers did not carry the interview the next day because of the censors' orders, and Vasudev lost her prized scoop. But extracts of Sanjay's remarks were printed in publications all over the world. The communists were furious at this open declaration of war by the PM's son. Sanjay issued a clarification to the *Indian Express*, which had carried extracts of the interview. He said he did not mean to make such sweeping statements about any party. But the damage had been done.

To Dhar it seemed the interview was deliberate. Sanjay was impatient to get into the driver's seat. He thought his mother was a ditherer who acted only when pushed by a person of stronger conviction. He believed he knew the kind of leadership India needed, and he was going to provide it.[34]

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A stage had come when chief ministers of the states adjoining Delhi looked to Sanjay for their orders. The chief ministers vied with each other to ensure that Sanjay got a special reception when he visited their states. He often flew in an official aircraft since he travelled with ministers entitled to this privilege, such as Om Mehta. Senior officials and ministers lined up at the airport to receive him. Arches and billboards were erected, hailing the country's new hero. Functions were arranged in his honour and people were ferried to his rallies to ensure there were large crowds. Maneka often accompanied him on his trips, although she was kept away when the Emergency plans were first being put in place, since it was felt she might give the game away by talking too much.

The chief ministers realized on their own what was expected of them when welcoming Sanjay and Maneka, but to be doubly sure, Congress president Barooah wrote to all of them, ordering them to accord Sanjay all facilities and respect during his visits. Ignoring Sanjay's insulting behaviour towards him, the gushing Barooah hailed Sanjay as a Vivekananda, a second Shankaracharya and an Akbar all rolled into one.

When he travelled, Sanjay was provided the security detail normally reserved for a chief minister, with a pilot car preceding him. Later Mrs Gandhi wrote a letter to the party president, noting that chief ministers did not need to welcome Sanjay with such fanfare. But this letter seems to have been merely for the record. The only two Congress chief ministers not part of the Sanjay fan club were Siddhartha Shankar Ray of West Bengal and Nandini Satpathy of Orissa. Sanjay was deeply suspicious of both because of their leftist leanings. Ray, in fact, would have been happy to be an acolyte if he had got any encouragement from Sanjay. (In a letter to Mrs Gandhi as late as 21 February 1977 he gushed, 'Sanjay drew huge and massive crowds.')

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By September 1975 Sanjay started taking an interest in the Youth Congress, the party's youth wing, with an eye to capturing the organization. His first step was the removal of the Youth Congress president Priya Ranjan Dasmunshi, who was close to S.S. Ray. Sanjay did not move subtly; he simply summoned Dasmunshi and suggested he resign. Dasmunshi's ostensible fault was that the Youth Congress was

not supporting the Twenty Point and five-point programmes adequately. In Dasmunshi's place Sanjay installed Ambika Soni, a general secretary of the Youth Congress, who lost no opportunity to display her proximity to Sanjay.* He himself opted to take a more low-key position as member of the executive council of the Youth Congress. But there was little doubt as to who really called the shots.

The willowy, bright-eyed Soni had entered politics through an unusual route. The wife of an Indian Foreign Service (IFS) officer, she was keen to get an entry into the Congress and participate actively in politics. Her first mentor was Chandrajeet Yadav, the left-leaning general secretary of the Congress who secured for her a position in the Youth Congress. But the ambitious Soni had also impressed Mrs Gandhi who had met her during one of her tours abroad. Soni attracted the attention of not just Mrs Gandhi, but also of her son. Sanjay saw her as a pliable and reliable replacement for Dasmunshi.

At the Congress session at Komagata Maru Nagar near Chandigarh on 30 December 1975, Sanjay was the cynosure of all eyes. His career as a party leader was formally launched. Realizing that he was the face of the future, sycophants in the party flocked around him. After Sanjay's entry the membership of the Youth Congress shot up dramatically, and by February 1977 it had spiralled from seven lakh to sixty lakh.[35] During the Emergency, Youth Congress members gained notoriety for flexing their muscles and terrorizing ordinary folk, particularly shopkeepers. Many unemployed

* See chapter 5 for more on Ambika Soni.

young men with an unsavoury past now donned white outfits and Gandhi caps, claimed to be Youth Congress members and extorted money, ostensibly for implementing Sanjay's five-point programme. I remember once travelling in a bus and finding some Youth Congress types sitting in the reserved 'ladies only' seats. I asked them to get up, which they did. I became a star for the rest of the bus passengers. An old man came up to me and congratulated me for having made them get up. The Youth Congress was clearly very unpopular.

A year later, at the Congress annual session at Gauhati, Sanjay and the Youth Congress were the central theme of the party conclave as delegate after delegate got up to praise the youth leader. Mrs Gandhi in her speech acknowledged proudly that the Youth Congress 'has stolen our thunder'. The stage was set for Sanjay to be officially declared his mother's political heir.

11

Five-Point Terror

The most controversial of Sanjay Gandhi's pet projects was the family planning programme. With his penchant for quick-fix solutions, Sanjay had no time for persuasive methods and the long-term goals advocated in the National Population Policy of 1976, drawn up by the department of family planning under Health Minister Dr Karan Singh. Advocacy, publicity campaigns and awareness drives were measures Sanjay dismissed as ineffective. He wanted immediate results and tangible figures. He believed the only way to go about family planning was through mass sterilization programmes. His followers let loose a reign of terror to meet the statistical targets set by the impetuous young heir apparent and win his approval.

In India, where a family's good fortune is judged by the number of sons it has, the family planning department had a tough job convincing people to restrict their families to two to three children, despite hoardings everywhere exhorting

'Bus do ya teen' (Just two or three) or *'Hum do, hamaare do'* (Us two and our two), with a picture of a couple hand in hand with their two children. Since few people came forward voluntarily for sterilization—particularly as many also believed it was physically disabling and medically dangerous—Sanjay pushed for coercive measures.

Sanjay's methods were actually contrary to the health ministry's approach. The ministry's policy was not confined to the physical aspect of contraception, but also included concerns such as increasing marriageable age, female literacy, linking the distribution of federal resources to the 1971 population figures, introducing family planning values in the education system and launching a massive multipronged and multimedia motivational campaign.[1]

Ignoring the nodal ministry, Sanjay turned directly to the state chief ministers, most of whom bent over backwards to please the rising sun of the Gandhi dynasty. State after state issued a series of draconian measures to ensure that their statistical targets would meet Sanjay's approval. The result was that between 1975 and 1976 sterilizations achieved 107 per cent of the allotted target, and during 1976 to 1977 they reached an astonishing 190 per cent of the projected target. There were 26.24 lakh sterilizations in 1975–76 and a phenomenal 81.32 lakh sterilizations in 1976–77. Some eager-beaver chief ministers were particularly keen to be counted as overachievers. Haryana outdid itself. The figures showed that in 1976–77 the state had achieved four times its original target. In Madhya Pradesh the final figure was more than three and a half times the prescribed goal of 2.675 lakh fixed by the Government of India. UP doubled

its target, although the state government figures cited the sterilization of some 164 unmarried persons and 11,434 persons who had only one child. There were 1.38 lakh sterilizations in Delhi—way above the target of 29,000—as the Delhi chief executive councillor Radha Raman had wanted the capital to achieve one lakh sterilizations.[2]

Targets were fixed for each district and each divisional-level officer. Failure to meet the target resulted not only in withholding salary payments but even in suspensions and transfers. The district officers in turn passed on the burden of producing the numbers to the police and more junior government employees. Government schoolteachers and lecturers were convenient scapegoats. They were ordered to motivate at least five sterilizations if they expected to be paid their salaries. Some desperate teachers were so frantic to meet their quotas that they offered half their salaries to persuade volunteers to undergo the operation. In some instances, the services of teachers and government employees were terminated. Those who refused to get sterilized were deprived of their festival allowances, housing loans, cooperative loans and advances for buying vehicles. Unions and employees' associations maintained a discreet silence.

The scheme of incentives and disincentives was not just for government employees. Unless a sterilization certificate was produced, admission to government schools was denied to the third or fourth child. Economic benefits given by the government, such as free education, medical care, allotments of agricultural land, loans at low interest rates or a government job were dependent on either spouse producing a certificate of sterilization.

Things got so out of hand that in several Delhi government hospitals, treatment was denied until the patient first agreed to sterilization or produced a certificate stating that he or she had fewer than three children. Hard-pressed doctors ignored many of the standard rules for conducting a safe procedure. Because of the rush and chaos in sterilization camps, the special regulations for post-operative care were also sidetracked.[3] There were several instances of unmarried men and those under twenty-five being coerced into having a vasectomy.

Public hysteria over forcible sterilization became so widespread that in some areas the parents refused to send their children to school, apprehending that the vaccination campaign was in fact a secret sterilization programme. Parents were not convinced by the assurances of the director of health services that vaccinations and sterilizations were totally different campaigns. Finally, in desperation, the MCD announced that it was immediately stopping all free inoculations and vaccinations. In the future, parents would have to pay a fee of rupee one for every vaccination.[4]

The Delhi Administration gave employment as casual labour only to those who had two children or less or produced the mandatory sterilization certificate. In villages, priority for the supply of drinking water and irrigation facilities was dependent on proof of sterilization or fewer than three children. Industrialists were threatened with tax raids and electricity supply disconnection if they did not 'motivate' their employees.

The Youth Congress organized family planning melas. Under colourful shamianas, tables were set up, stacked with tins of vanaspati and watches as inducements for volunteers

to come forward. Suggestive film songs were played over loudspeakers. 'I couldn't understand the link between vasectomy and *filmi geet*,' Raj Thapar commented caustically in her diary. She described how at the Irwin Road camp one evening there was a macho-looking man at the mike singing a little ditty—in English with a broad Punjabi accent: 'Come, have yourself vasectomized, make your family systemized.' Since the only people visible on the road were fruit sellers, who didn't know English, Thapar wondered how they would get the message.[5]

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The Youth Congress street shows did not prove very productive. The glamorous Rukhsana Sultana, who had taken on the task of spreading the word of family planning among the Muslims of Old Delhi, was more successful. She simply utilized the police to round up beggars and vagrants who were brought to her centre at Dujana House, in Old Delhi, for vasectomy operations. The socialite, who had been specially selected for this task by Sanjay, saw herself as a role model for the people of the walled city—a liberated, well-dressed Muslim woman enjoying the good life.

I had a first-hand encounter with Rukhsana. The *Indian Express* general manager R.K. Mishra, who had met her at a party, asked me to accompany her on her rounds of Old Delhi and write a report. Being part of Rukhsana's entourage was a bizarre experience. She was dressed as if for a dinner party, in high-heeled shoes, a chiffon saree, pearls and her trademark enormous blue-tinted dark glasses. In

her thirties, she was strikingly attractive in a voluptuous, theatrical way. Her shoulder-length hair fell in waves about her face. Divorced from her Sikh businessman husband (a nephew of Khushwant Singh's), Rukhsana, a niece of yesteryear's actress Begum Para and daughter of a Hindu airforce officer, had taken to designing jewellery. During her college days she was considered the femme fatale of Miranda House. She was a regular on the Bombay and Delhi social circuit, but had been swayed by Sanjay Gandhi's programme to volunteer for social service.

On her tours of the walled city, Rukhsana was surrounded by Youth Congress leaders who looked like louts. Everywhere she went she was greeted by shouts of *baji* (sister), and petitions were handed to her, beseeching her for help of one kind or another. Rukhsana clearly revelled in her role as the empress of Delhi slums and the squalid, narrow galis of the old city, where she invariably received a royal reception. She carried a bottle of French perfume with her with which she sprayed herself liberally to drown out the stench of those neighbourhoods and their unwashed masses. Many unemployed youth formed part of her procession. The day I followed her, she was accompanied by DDA Vice Chairman Jagmohan, since on that occasion she was propagating both family planning and the beautification and clean-up of the city. The residents of the area seemed more interested in handing over petitions of various kinds and asking for favours than in her message about family planning. The more conservative residents, however, eyed her with suspicion and saw her as a fallen woman out to corrupt the youth.

I went back to the office and duly filed a report on this new breed of social worker walking the streets of Jama Masjid. But, unfortunately, the deputy editor Ajit Bhattacharjea was unwilling to carry my story. He felt that we should not bother to give 'such people' publicity. My argument was that the incongruity of the situation would not be lost on the readers, and the censors could not object as she was keen for publicity. Finally, we did not publish it.

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On 24 September 1976, an IB report warned of the growing resistance to Sanjay's population control methods. It blamed the hostility to the programme on communal and obscurantist elements. But at the same time it cautioned against the fixing of high targets disproportionate to those set by the Government of India.

Between August and December 1976 there had been at least eight instances of firing by the police to deal with the law-and-order situation because of resistance to the family planning drive. Violence broke out in Gorakhpur, Muzaffarnagar, Rampur, Bareilly, Pipli and Pratapgarh. Twelve persons died in police firing in Gorakhpur, Muzaffarnagar and Pratapgarh alone.

Pipli, a village in Haryana forty-five kilometres north of Delhi, became the epicentre of a major riot. The agitation was triggered off by the death of a widower, Hawa Singh, who had been forcibly taken for sterilization. His surgical incision turned septic, his wound festered, and he bled to death. Even after Hawa Singh's death, the block development officer

(BDO) in-charge was unrelenting. He returned to the village demanding more sterilization volunteers. A man repairing shoes by the roadside was forcibly picked up. Furious with such high-handed and callous behaviour, the villagers drove the BDO and his men out of the village after a scuffle. Hearing of the plight of Pipli village, people from neighbouring areas, including in Punjab and UP, assembled at Pipli in a show of solidarity and in defiance of the authorities.[6]

Retaliation was swift and brutal. Several hundred policemen arrived, along with the subdivisional magistrate (SDM), and ordered all the men to come out of their homes. Police took up positions around the village, several behind mud walls that separated the houses from the fields. The siege continued throughout the night. At 6 a.m. shots were fired and two women making cowdung cakes outside their huts were mowed down by the bullets. A warning was sounded that if the villagers did not step out of their houses, an aircraft would be sent to bomb the whole area. Trembling and fearful, the men had little option but to surrender. Eventually, out of a population of 2761, between 400 and 500 men were rounded up and sterilized.[7]

Uttawar village in district Gurgaon, Haryana, was the scene of another family planning horror story. A raid on the village was specially planned by state officials because of the opposition of the local populace to the sterilization programme. To teach the villagers a lesson, the supply of electricity to the group of villages around Uttawar was disconnected between 12 and 29 October 1976, and once again from 5 to 13 November that year.

On 12 October, cases under DIR and the Arms Act were made out against several villagers, on the false charge that they were in unlawful possession of arms. The FIRs also claimed that some of the villagers were indulging in adverse propaganda against family planning, fomenting communal tension by maintaining clandestine links with Pakistan, and smuggling arms from neighbouring Rajasthan to subvert the government's family planning programme. A police force raided the village. Some local leaders made efforts to bring about a settlement and they assured the authorities that the villagers would undergo sterilizations after the sowing season.

This was not good enough for the chief minister of Haryana B.D. Gupta who declared, 'The prestige of the Haryana government is involved.' Defence Minister Bansi Lal, who was in touch with developments in his home state, was also kept in the loop about Uttawar, the village which refused to cooperate with family planning efforts. The government felt that to overcome resistance in Uttawar, it would facilitate family planning in the entire Mewat region which had a high proportion of Muslims.

Early on 6 November 1976 a large police force led by the senior superintendent of police (SSP) and the deputy commissioner encircled the village. The raiding party carried out house-to-house searches during which they destroyed pots, pans and other household goods with their lathis. Villagers were asked to gather near the bus stop and out of fear they obeyed. From the bus stand the villagers were transported in trucks to the Hathin police station for interrogation. Over a hundred villagers were made to go to the Mandkola hospital for sterilization. Doctors who initially

resisted sterilizing a seventy-year-old man were pressured to do so by the police and revenue officials. The doctors were helpless and compelled to follow instructions, since their annual confidential reports were routed through the subdivisional officers and deputy commissioners.

After the raid a wireless message was sent to the IG that some 550 men had been rounded up and brought for interrogation. Eligible men were sorted out by the SDM of Nuh and 'motivated' for vasectomy. Significantly, there was no recovery of any firearms during the raid, the original excuse for raiding the village.[8]

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Another of Sanjay's pet projects that caused much grief and evoked similar public resentment was the 'beautification' of the capital, which involved the removal of *jhuggi-jhopri*s (slum clusters), encroachments, pavement hawkers and buildings deemed unsightly or for which authorization papers were not produced. The demolition operations in Delhi, which Sanjay sometimes personally supervised, were carried out like a blitzkrieg with extraordinary callousness and utter disregard for the human suffering involved. The officials in the DDA, the MCD and the NDMC vied with each other to follow Sanjay's instructions. Under the cover of the Emergency the local authorities ruthlessly ignored legal requirements, such as issuing show-cause notices or taking cognizance of stay orders obtained from the court. Very often, no distinction was made between unauthorized constructions and structures built on private property with

legitimate authorization. The city's Master Plan was blithely ignored.

The bulldozers, accompanied by squads of policemen, simply moved into the earmarked area and the civic authorities were impervious to all pleas. Some bulldozers even had a plaque on them with the sinister words 'I am Deaf and Blind'. Resistance was met with threats of arrest under MISA or denial of papers offering the residents alternative sites. Surprise was of the essence in these operations, which were carried out with lightning speed. Only the very few at the top knew the true extent of the area where structures were to be pulled down and the population relocated.

The avowed aim was to make Delhi a clean and beautiful city, but some of the targets of the bulldozers were selected on Sanjay's whims and fancies or because he had personal scores to settle. For instance, in Samalkha village on the Delhi–Gurgaon highway, Sanjay was inconvenienced by the structures along the road. He found the buildings an eyesore and he had to slow down his vehicle while passing. When the zonal assistant commissioner O.P. Gupta demurred at carrying out the demolition of the shops and houses without following the prescribed legal procedure, Municipal Commissioner B.R. Tamta ordered him to go on leave for two months.[9] In fact, the authorities were so scared of Sanjay's wrath that officials used to guard the highway when Sanjay's car was speeding by to ensure that village cattle did not stray on to the road. In one instance, the dogs of one Colonel Ram Singh Yadav were exterminated so that they would not create a nuisance.

Shops along the road in Andheria Mor village on the Mehrauli–Chhatarpur Road were similarly demolished on

Sanjay's express orders. He used to drive by the village on the way to his family's farmhouse, and he did not take kindly to having to slow down his car because of the human traffic. When the Andheria Mor shopkeepers met Sanjay in a delegation to protest that their shops had been demolished without giving prior notice, they produced papers to prove that their establishments were of long standing. He told them dismissively that such proof could be obtained for five rupees, and he had no intention of helping them as they were all Jana Sanghis (apparently subscribing to the stereotype that all traders were supporters of the Jana Sangh).

Karol Bagh's Ghaffar Khan Market had been set up by the rehabilitation ministry to settle refugees from Pakistan after Partition. Over the years the shopkeepers had obtained permission from the municipal authorities to extend their shops and build awnings. These were pulled down overnight without any notice. When the shopkeepers applied to Sanjay for relief he accused them of backing the Jana Sangh and not voting for the Congress.[10]

Unlike most of the civic officials who were time-servers and realized that the way ahead in their careers was to keep on the right side of the PM's son, the former DDA vice chairman Jagmohan, an ardent supporter of Sanjay's, genuinely believed in the righteousness of the slum clearance drive. He was unrepentant before the Shah Commission about the brutal demolition programmes he had ordered. Instead, he boasted that there was no parallel in the world of resettling seven lakh people—twice the population of Amritsar—in the short period of eight months, and of providing them all the

amenities necessary for human existence. 'This is something which is tremendous,' he argued.[11]

In fact, when the bewildered refugees first arrived at the alternative sites provided in resettlement colonies such as Mangolpuri, Khichripur, Jahangirpuri and Trilokpuri, on the periphery of the city, they had to live through a nightmare. Most of the basic amenities were lacking in these sprawling, dusty resettlement camps. The twenty-five-square-yard plots of land offered only half-complete buildings. For months the displaced persons had to erect tents to seek shelter from the burning sun and the rain. Common latrines were clogged and stinking and there were long queues to use the facilities since there were dire warnings issued against any persons found relieving themselves in the open.

The colonies had been carved out in such haste that there were numerous teething problems. Water pumps did not work or threw up brackish yellow water. There were no schools and only a handful of shops, and very few public buses plied on the route, making it difficult for residents to reach their workplaces. Because of the unhygienic living conditions, including open drains and flies everywhere, disease became rampant and there were almost no medical facilities available.[12] The relocation took a heavy toll on many resettled families, particularly the children, but the authorities were not keeping score of the death toll.

At the *Indian Express* we carried a report mentioning that it was unfortunate that the resettlement was taking place in the middle of the monsoon. But we had to play down the horror stories told to us by the residents of these newly constructed colonies since the article would not have been cleared by

the censors. The photograph of the woebegone refugees sitting in trucks with their meagre belongings, waiting to be transported to the distant colonies, was probably more telling than the actual report.

Resentment over the resettlement drive was spreading throughout the city. But such was the fear that gripped the people during the Emergency that it prevented them from coming out openly against the authorities. The few who stuck their necks out to protest were rounded up by the police and put behind bars under different sections of the law.

It was in Turkman Gate, in the heart of Old Delhi, that the anger of the people boiled over. Residents rose in revolt against both the sterilization drive and the demolitions. They had to pay a heavy price for their resistance.

Jagmohan was particularly keen that the residences around Jama Masjid be cleared, and Sanjay backed him to the hilt. It was widely believed that Sanjay himself had expressed a desire to have a clear view of the Jama Masjid mosque from Turkman Gate, and the authorities bent over backwards to see that his wish was fulfilled. As with most of the demolition operations during this period, the DDA went about its task in Turkman Gate in complete secrecy. First, the DDA officers claimed they were only removing the transit camps in the Dujana House area, which were meant for temporary relocation of slum-dwellers. But after this was completed, the bulldozers returned the next day. Some suspicious residents of Turkman Gate wondered if

the bulldozers were meant for their homes, although most complacently dismissed the thought. After all, they had been living in these permanent structures for decades. Some houses were over a hundred years old. There were decaying havelis and small private homes numbering around 3400 along the narrow by-lanes leading from Turkman Gate, at the entrance of Old Delhi, to the Jama Masjid mosque. The buildings may have looked run-down from the outside, but the house dwellers claimed they had all the fittings for a comfortable life inside. In some cases this included air conditioners, refrigerators, carpets and chandeliers. A large number of residents had been paying house taxes to the municipality.

Nevertheless, although they had proof of their ownership, local residents started making inquiries as to whether there was any real danger to their homes. A local Youth Congress leader was sent to meet Arjan Das, Sanjay Gandhi's buddy, to find out why the bulldozers were still parked in the area. Das, after a talk with Jagmohan, assured them that nothing would happen. But when the delegation returned they discovered to their horror that the bulldozers had been active and fifty houses had already been razed to the ground. The house owners squatted beside the debris with their belongings scattered in all directions.

The frightened residents felt their best bet was to appeal to Rukhsana Sultana. Rukhsana had arrived in the area only a few months earlier, but almost everyone had heard about Begum Sahiba's efforts to persuade the women of the walled city to give up their burqas, and to motivate the people to go in for sterilizations.

Rukshana's minions informed the desperate Turkman Gate victims that Begum Sahiba was willing to take up their case with Sanjay only if they provided 300 cases for sterilization. When they tried to buy time, Rukhsana's flunkeys told them that the Begum Sahiba was furious with them for prevaricating about the sterilizations and that they could try their luck elsewhere.

The residents then met the local MP Subhadra Joshi, who was said to enjoy a personal rapport with Mrs Gandhi. A sympathetic Joshi asked them to prepare a memorandum which she could present to the PM. Two days later, Joshi backed out of accompanying the affected people to the area slated for demolition.* Her influence with Mrs Gandhi was waning; Sanjay did not take kindly to her. Mrs Gandhi herself was unmoved by a petition delivered to her residence late at night by a delegation from the locality.

While the men of Turkman Gate knocked on the doors of senior politicians, begging for help, the DDA bulldozers kept systematically demolishing walls and roofs of more and more houses. Allotment slips were handed out to those whose homes were pulled to the ground. The bitter truth was slowly sinking in. Nobody was going to be spared. The DDA officials had orders to clear the houses in the congested interior right up to Hauz Qazi. The great Jagmohan himself paid a fleeting visit to the locality and asked a delegation to meet him the next day since their objections had reached the ears of even the PM. The meeting with Jagmohan did not go well. When some people tried to make the point that they all

* See chapter 8 for Indira Gandhi's retort to Subhadra Joshi.

wanted to stay together Jagmohan reportedly fumed, 'I don't want another Pakistan over here.'[13]

With no one willing to hear their pleas, the residents of the mohalla decided to take the law into their own hands. They were encouraged by Jama Masjid's Shahi Imam Syed Abdullah Bukhari. He had warned the ADM (Central), Ashok Pradhan, that if the family planning programme was not called off he would lead the women and court arrest in protest.[14] Trouble first broke out at Dujana House on 19 April 1976, at Rukhsana's infamous family planning centre. Women surrounded a family planning van filled with vagrants who were being taken for sterilization. In the ensuing scuffle, the inmates of the van who had been rounded up by the police managed to escape. A call for a hartal was given by the shopkeepers of the area. Women and children squatted on the demolition sites wearing black armbands.

At noon, seven truckloads of police from the Central Reserve Police Force (CRPF), armed with riot shields, tear-gas guns and rifles, moved into the area. DIG Bhinder arrived on the scene and men in khaki surrounded the squatting women protesters. The women, who had been sitting in the sun since morning without a drink of water, picked up stones and started hurling them at the policemen. Soon it became a full-scale battle. The men joined in the stone pelting, with soda bottles and acid bulbs as added ammunition. A second mob coming from Delite Cinema attacked the police from the rear. The police responded first with lathi charges and tear-gas shells. There were reports that some policemen forced their way into houses and misbehaved with the residents. The police claimed that two of their men had been

stabbed. Twenty companies of police were deployed that day and the CRPF as a precaution had obtained two unsigned orders from the Delhi Police for permission to fire on the mobs.

After the temporary capture of a police chowki by the agitators, the police resorted to fourteen rounds of firing. Sounds of weeping and screaming rent the air. Several blood-stained bodies were found under the debris. Since the bodies were taken to the police station and not to the mortuary at the nearby Irwin Hospital, rumours spread about the exact number of the deaths. According to official sources, eight people died and scores were injured. The people of the mohalla put the death toll at multiple times these figures.

After the situation was brought under control at around 7 p.m., the DDA bulldozers again arrived at the spot and continued their operations under the cover of the curfew. Electricity had been cut off, as had the water and telephone connections to the houses. Floodlights were installed and the number of bulldozers increased. The demolitions continued until 27 April 1976. The whole of Jama Masjid, which included the riot-affected area, continued to be under curfew from 19 April to 13 May 1976.[15]

Sanjay Gandhi visited the area twice before the riots broke out, but then left for a five-day holiday to Simla with his family. On his return he met some of the injured policemen at the hospital. He pointedly ignored the civilians who were victims of the police firing, although they were in the same hospital. A press statement under the name of Mir Mustaq Ahmed, chairman of the Delhi Metropolitan Council, was released after being vetted by the lt governor Kishan Chand.

The trouble was blamed on miscreants from the Muslim League and Jamaat-e-Islami.[16]

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Ironically, the day after the firing there was a front-page photograph in the *Indian Express* of agitating students in Paris being tear-gassed for protesting against university reforms. There was no mention of the major riot that had taken place just a few kilometres from the newspaper office. On page three there was a press statement from the lt governor, warning that drastic action would be taken against those who tried to obstruct family planning. A family planning camp had been opened in the walled city four days earlier and 300 cases had been treated, the statement added. On 22 April, there was a terse official press release announcing that the situation in Turkman Gate had been brought under control. The police had been forced to resort to firing after miscreants indulged in stone pelting and attempted to set fire to a building next to the police post. A subinspector and two police officers were stabbed. Three people had died in the rioting, the press release claimed.

The news of the Turkman Gate atrocities spread by word of mouth among the Muslim community. President Fakhruddin Ali Ahmed, whose wife had visited the area, voiced his concern to Mrs Gandhi. The chief minister of Kashmir Sheikh Abdullah flew down from Srinagar to get a first-hand look at the devastation. He was accompanied by Mohammed Yunus. The two men were shocked when the man who was escorting them and showing them the site of the

clashes was arrested from right under their noses. Abdullah later made a speech in Kashmir decrying the incident.

More than the mass arrests, denial of civil liberties and censorship, it was probably Sanjay Gandhi's brash and ruthless campaigns under his five-point programme that aroused the hostility of the general populace in north India, and brought about the eventual downfall of his mother.

Meanwhile, even as Sanjay went about implementing his programmes with brute force, his mother focused her efforts on the opposition leaders, whose unity in the face of the Emergency had her increasingly worried.

12

The Opposition versus Indira

Opposition unity had been forged by JP under the Lok Sangharsh Samiti, and Indira Gandhi was determined to break it. For her, the opposition leaders were not colleagues in the political arena but enemies for her to vanquish. And in her bid to tame them, the distinction between party and government was forgotten.

She chose with care the politicians she thought were especially vulnerable, and two of her first targets were the charismatic *rajmata*s (queen mothers) of Jaipur and Gwalior. Not only were they the leading lights of the Opposition in Parliament, they were hugely popular and influential for getting votes in the region that comprised their former kingdoms. To dim their aura, the government charged them as smugglers and income tax evaders, instead of as political activists. Detained under MISA, both women showed courage in the face of adversity, while Indira Gandhi displayed the levels of vindictiveness to which she could stoop.

The Rajmata of Jaipur, Gayatri Devi, often described as one of the most beautiful women in the world, had had a privileged existence, travelling the world during the polo season and being toasted by the cream of international society. She was one of the founders of the Swatantra Party and had bitterly opposed the abolition of privy purses. Gayatri Devi had made it to the *Guinness Book of Records* by winning the Jaipur parliamentary constituency in 1962 with the largest majority of any candidate in a democracy. She retained her seat in 1967 and 1971.

Indira Gandhi was no fan of the erstwhile maharajas, having abolished their privy purses and other privileges in 1971. The harassment of the Rajmata had begun even before the Emergency came into effect. Income tax officers raided every house, palace and office of the Jaipur royal family. Distorted accounts of these raids appeared daily in the newspapers, claiming that hidden treasures had been unearthed. After the Emergency was declared in June 1975, it was just a matter of time before Gayatri Devi was put in prison. She had come to Delhi in July to attend Parliament and was arrested by the police the same day under COFEPOSA.[1] There was a similar warrant for her stepson Major Bhawani Singh, an apolitical and popular figure in sports and army circles.

Back in Jaipur, there was immense public shock and anger at the incarceration of the two much-respected members of the royal family. People wanted to hold demonstrations in protest, but were dissuaded because it was believed that it would only harm Gayatri Devi further. Several of the maharani's influential friends abroad, including Lord Louis Mountbatten, pleaded on her behalf with Mrs Gandhi. In

the grim environs of Tihar jail her health deteriorated. Such was the fear and suspicion in which she lived that at one stage Gayatri Devi even believed that she and the Rajmata of Gwalior could be poisoned and their families informed that they had died of a heart attack.[2]

Christmas 1975 was a bleak affair for Gayatri Devi, very different from the social whirl of Calcutta that she was used to. Suffering from a painful mouth ulcer, the already fragile Rajmata lost a lot of weight in jail and was admitted to Delhi's G.B. Pant Hospital on the advice of the jail doctors. But she refused to be treated in the rat-infested hospital.*

Eventually, however, with no end to her imprisonment in sight, Gayatri Devi caved in. She wrote a penitent letter to Mrs Gandhi, promising to give up politics. 'After the death of Rajaji [C. Rajagopalachari] I had wanted to leave politics,' she wrote in her letter. 'Now my health does not permit me to remain active in politics. I support your 20-point programme. I may be released. I will not participate in politics. If you like, you may impose any other condition as well.'[3] On 9 January 1976 she was released on parole on the grounds of ill health. B.N. Tandon noted in his diary, 'It was a fine example of a document of surrender to procure which strenuous efforts had been made for quite some time.'[4]

Gayatri Devi's parole order forbade her from travelling by public transport as the authorities feared that people would gather at railway stations or airports to see her. Nevertheless, 600 people had gathered for Gayatri Devi at Lily Pool Palace, her home in Jaipur, apart from staff, family and friends.

* See also chapter 2.

For the Rajmata of Gwalior, Vijayaraje Scindia, politics was a passion. The Gwalior family commanded much respect and loyalty in the region, which once formed part of the Scindia kingdom in Madhya Pradesh. The Rajmata had dealt a major blow to the Congress when she switched loyalties from the Congress to the Opposition in 1967. In the late 1960s the Congress government in Madhya Pradesh, headed by D.P. Misra, had been toppled by the Opposition, with Vijayaraje playing a key role. The Rajmata became a deeply committed member of the Jana Sangh and made sure that her son Madhavrao Scindia, just back from Oxford University, also joined the party.

Vijayaraje got news of the declaration of the Emergency when she was in her Delhi bungalow at Civil Lines. She was persuaded by friends to leave the house the next day and go into hiding. Her close aide and husband's relative Bal Angre also went underground. Madhavrao, married to a Nepalese princess, opted to flee to Nepal with his family. He sent messages to his mother to join him in exile. But Vijayaraje, wrestling with her conscience, felt she would be letting down her followers by fleeing the country. In fact, after a month in hiding at a remote farmhouse in the Terai she decided she would prefer to give herself up. She sneaked into her Gwalior palace, Jai Vilas, at night and then telephoned the police to come and arrest her. Madhya Pradesh Chief Minister P.C. Sethi was so shaken by her voluntary surrender that he delayed her arrest for several hours, rechecking with Delhi whether it was really necessary to detain her.[5]

In Madhya Pradesh, the Rajmata was treated with some deference to her rank and position as an MP. She was kept in a pretty bungalow called Bison Lodge, surrounded by forests,

in the hill resort of Pachmarhi. But after a while the Rajmata tired of her solitary confinement, fearing that it would be used by the government for propaganda purposes to demonstrate how well the detainees were being treated. She asked to be transferred to a regular jail. She was also stung by a letter written by B.K. Nehru to the *Times* in London, claiming that the care bestowed on the detainees was almost maternal.

There were other forms of harassment as well. The government froze her bank accounts. The income tax authorities descended on all the Gwalior properties in Delhi, Pune, Bombay and Gwalior. Her twenty-one-year-old daughter, Yashodhara, was left to single-handedly tackle the law enforcement agencies who turned up in great strength and started sealing off rooms in the Jai Vilas Palace. Every nook and cranny was searched for gold as if it were indeed a smuggler's den. They even carried metal detectors in the hope of discovering a hidden treasure. Two small walkie-talkie sets, which were probably meant for shikar, were recovered from the palace along with some firearms with expired licences. The government put out a sensational report based on these inconsequential seizures. The family's tax returns for the last fifteen years were opened up and scrutinized with a fine-tooth comb. The authorities assumed that some discrepancy was bound to crop up. The bungalow on 37 Rajpur Road, where the family lived in Delhi, was requisitioned by the authorities. The building was taken over to house the officials who would oversee the implementation of the Twenty Point Programme.[6]

From his hideaway in Nepal, Madhavrao Scindia negotiated with the Indian government, using the Indian ambassador to Nepal as an intermediary. He pleaded not just for himself but

for his mother and the family. Bal Angre was greatly displeased with what he considered his nephew's craven attitude. On 15 August 1975 Scindia wrote to Mrs Gandhi that after pondering over the situation he had reached the conclusion that in the nation's interest everyone should support the PM and he himself would henceforth do so. He was dissociating himself from the Jana Sangh. The arrest warrant against Scindia was quashed and he was allowed to return home.

Scindia tried to persuade his mother to follow suit. He requested Mrs Gandhi that since his mother's health was failing she should be released from prison. Usha, one of the Rajmata's daughters who was married into a Rana family of Nepal, by sheer doggedness managed to arrange an interview with Mrs Gandhi through R.K. Dhawan. The PM was stern and unrelenting. 'You know of course that your mother has not been imprisoned for political activities but for smuggling offences,' she claimed.[7] Pressure was put on Vijayaraje's own father, Thakur Mahendra Singh, to persuade his daughter to quit the Jana Sangh. The Maharaja of Dhrangadhra was also recruited by Mrs Gandhi to make the two rajmatas aware that it was futile to defy the wishes of the all-powerful PM.[8]

By September 1975 Vijayaraje was persuaded to resign from the Jana Sangh. Her health had worsened in prison and she was anxious about her youngest daughter who had been left on her own to handle the numerous cases slapped against the family. The government wanted Vijayaraje to denounce the Jana Sangh before her release, which she refused to do. It was after many months in jail that she was finally allowed out on parole.



In early 1976 Mrs Gandhi focused her attention on ending the rule of the opposition state governments in Gujarat and Tamil Nadu. She was furious that many opposition leaders against whom there were MISA warrants were able to take shelter in these two states. Underground leaders met frequently in Gujarat and Tamil Nadu since the local police turned a blind eye to the Centre's 'wanted list'.

Minister of state for home, the dependable Om Mehta, was entrusted with the task of collecting material to justify the dismissal of the DMK government in Tamil Nadu headed by Chief Minister M. Karunanidhi. The home ministry, the director of the CBI and the chairman of the Central Board of Direct Taxes were all summoned and ordered to collect incriminating evidence against Karunanidhi's government. Cases were made out for maladministration, corruption, misuse of government powers for political objectives and non-compliance with Central government orders during the Emergency.

The Governor of the state, K.K. Shah, initially demurred at dismissing the government on relatively flimsy grounds, which did not justify invoking Article 356 of the Constitution. But he soon fell in line and submitted the report conveniently prepared for him by Mehta's men in Delhi. The corruption charges raked up against Karunanidhi's government could just as easily have been made out against several Congress state governments, especially the notoriously corrupt Bihar state government headed by Jagannath Mishra. But Mrs Gandhi was not bothered about fair play; she wanted to decimate her opponents. The imposition of President's Rule in Tamil Nadu went through without much protest. The deposed

chief minister gave in without putting up much of a fight. Eight thousand DMK cadres were arrested, in order to ensure a smooth transition. Later, in a speech in Madras, Mrs Gandhi claimed at a public meeting that the DMK was preparing to stage an armed revolt in Tamil Nadu.

Om Mehta, meanwhile, also worked on veteran Congress(O) Gujarat leader Hitendra Desai. After a fifty-minute interview with Mrs Gandhi, Desai switched loyalties and was recruited to help woo members of his former party to defect to the Congress(I). The rallying call was that Gujarat should become part of the mainstream. By March 1976, Babubhai Patel's Janata Morcha government, which had come to power with such high hopes, had lost its majority, thanks to defections. The services of the crafty and discredited Chimanbhai Patel were used in the toppling exercise.* President's Rule was imposed for six months. After this, Madhavsinh Solanki from the Congress(I) was installed as chief minister.

Another opposition leader whom Mrs Gandhi hijacked was the Congress(O)'s strongman in Tamil Nadu, K. Kamaraj, albeit posthumously. Immediately after the declaration of the Emergency, Kamaraj had addressed several meetings protesting against the arrests and denial of civil liberties. He did not join the mass struggle of the Opposition because of ill health and differences with the DMK, but he remained a bitter foe of the Emergency. But Mrs Gandhi flew down to Madras for Kamaraj's funeral in February 1976 and claimed that it was Kamaraj's dying

* See chapter 9 on Chimanbhai Patel's ouster as chief minister in 1974.

wish that the two factions of the Congress should merge, at least in his state.



Among the Opposition's national-level heavyweights, Mrs Gandhi suspected that Chaudhary Charan Singh, the tough Jat leader who headed the BLD and was both ambitious and crafty, would be most susceptible to her blandishments. Singh was a veteran politician who had become a hero among the dominant peasantry, particularly in his home state of UP, for his opposition to Jawaharlal Nehru's socialist and collectivist land use policies. Mrs Gandhi believed that she could use him to break the JP movement.

Singh, a former Congressman, had a history of double-crossing in politics. In 1967, he ditched the Congress to bring down Chandra Bhanu Gupta's Congress ministry in UP and took over as chief minister from the Samyukta Vidhayak Dal. During the 1969 presidential election his party put up C.D. Deshmukh as a candidate, but when it came to second-preference voting, his party's votes went to V.V. Giri, Deshmukh's rival, after Charan Singh reached a secret understanding with Mrs Gandhi. In February 1970, he had assured C.B. Gupta that his party would join the Congress(O) in forming a government in UP but he somersaulted and formed a coalition with the Congress(R) (renamed Congress(I) after the 1971 elections).[9] (True to form, Singh would live up to his reputation for being an unreliable ally even after the Emergency: in 1979, he brought down Morarji Desai's Janata government with the help of Mrs Gandhi.)

Before the Emergency, Charan Singh had taken part in JP's movement rather half-heartedly. Although he didn't express his ambitions openly, he believed firmly that as the leader of the largest party in north India, the mantle of leader of any new party formed by uniting all the opposition parties should automatically fall on his shoulders. He was not prepared to be one among equals, with JP as the supreme commander.

JP was aware of Charan Singh's reservations, and a month before the Emergency was declared, he had a talk with Satpal Malik, general secretary of the BLD, questioning him about Singh's reluctance to join the campaign. Malik explained to JP that the Chaudhary felt that a big fight couldn't be won when there were divergent views and groups that were not unified under a strong central leadership. He believed he was the right person to head, unite and lead the Opposition to Mrs Gandhi. JP in turn confided in Malik that he felt it was necessary for the leadership of the movement to pass on to a new, younger generation of leaders in order to succeed. All the same, Charan Singh supported JP's movement up to a point. Although he himself did not go to the Delhi meeting of the action committee calling for Mrs Gandhi to step down after the Allahabad High Court judgment, he ensured that his party members went. Charan Singh did not attend the 25 June Delhi rally either, claiming he had sciatica, but he sent Malik in his place.[10]

But when he was jailed along with other opposition leaders, the Chaudhary was disheartened that his Jat followers did not show much enthusiasm about rallying to the cause. The RSS and the Akalis were far more organized in staging satyagrahas, recruiting volunteers and distributing literature.

'In his parliamentary constituency and around Meerut very few people went to jail. We mustered about fifty people with great difficulty. The Bharatiya Lok Dal was not a cadre-based party,' recalls K.C. Tyagi who was then a young BLD activist.[11] Malik confirms, 'People were not willing to come out and court arrest. We were directionless. Chaudhary sahib advised me to court arrest while doing the Ganga *snaan* in November 1975. We went to Garmukhteshwar's main gate where there are normally hundreds of people. But only seventeen people joined our satyagraha.'[12]

Malik acknowledges that he was instrumental in Charan Singh later making a deal with Mrs Gandhi. Malik was moved from Meerut jail to Fategarh and was then transferred to Delhi. When Malik reported to the superintendent's room in Tihar jail in January 1976 he found H.K.L. Bhagat, a minister of state and Delhi MP, waiting for him. Bhagat explained that he had personally intervened to transfer Malik to Delhi because he wanted him to play a role in bringing about a rapprochement between Indira Gandhi and Charan Singh. (Before the Emergency the BLD had had some talks about a tie-up with the Congress in which both Bhagat and Malik were involved, but the alliance did not fructify.)

Bhagat gave Malik a brief rundown of the thinking within his own party. One group in the Congress believed that India should turn into a Nasser–Tito type of dictatorship with a one-party rule and a new Constitution. The other group, of which Bhagat was a part, believed that the party should return to democracy. He said that he had wanted to approach Charan Singh first because the BLD leader had reservations about JP's direct-action tactics. Bhagat asked Malik to talk to

Charan Singh and assured him the government would listen to Singh's recommendations as to who should be released from jail.[13]

Malik was moved to a room in Charan Singh's barrack in Tihar, which received favoured treatment from the jail authorities. When he put the proposition to Charan Singh, the BLD leader cautioned him that if he was released alone it would give him a bad name. He suggested that others like Radhakrishna, Asoka Mehta, Biju Patnaik, Piloo Mody and Madhu Dandavate be freed simultaneously and then there could be talks. Singh also advised Malik that he should get out of jail first and go straight to Mrs Gandhi and find out what she was really thinking, instead of talking to Bhagat.

Bhagat took Malik to Om Mehta, who assured him that Mrs Gandhi genuinely wanted to hold talks with the Opposition. Malik warned him that Singh would not give up his political activity, to which Bhagat said he had no objection. 'Charan Singh's attitude towards Mrs Gandhi fluctuated. He grumbled that not even the British would have treated us the way she did. He was very disturbed in jail. At the same time he was willing to compromise if it suited his interests. But he would never compromise on two things: the economy and the importance of agriculture,' Malik reminisces.[14]

Charan Singh was released in March 1976. The jails were abuzz with speculation that the wily Singh had worked out a private deal with Mrs Gandhi. Most of the prisoners on the list given by Singh were released soon afterwards, except for Madhu Dandavate. BJP leader Atal Behari Vajpayee, bedridden after a slipped-disc operation

and suffering from septicaemia, was by this time on parole, but under house arrest.

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Apart from singling out Charan Singh, Mrs Gandhi also worked on urbane politicians like Biju Patnaik, Asoka Mehta and Piloo Mody as she assumed they would be less able to withstand the rigours of prison life. The business interests of some of these leaders were also affected as the state had utilized the income tax authorities and other investigative agencies to hound them and keep them under surveillance. When Mody, the jovial and aristocratic Parsi, jokingly remarked to his wife, Vina, that he wanted to have his dogs brought to jail, the remark was overheard by an IB man standing nearby. Soon there was a buzz in Parliament's Central Hall that Mody was feeling very depressed in jail and missing his dogs.

A leader from Orissa, Biju Patnaik had a reputation for heroism and daring as a freedom fighter, pilot and politician. But he was also a businessman and therefore vulnerable. The income tax authorities were ordered to investigate his numerous companies. The government put pressure on his wife, Gyan Prakash, who urged her husband to get out of jail as his business interests were going downhill. She even met the home minister Brahmananda Reddy to find out if her husband could be released. Patnaik was furious with his wife when he came to know of her intervention. Patnaik's lawyer Milon Banerjee was sent by the government to persuade him to climb down. Eventually, after he realized his financial affairs were in a sorry state, Patnaik appeared to have softened his

attitude, although he still refused to give an apology. In March 1976 he wrote to Charan Singh praising the gains of the Emergency and suggesting there was a need 'to stop political quibbling . . . to get on with the task of nation building at the grass roots level'.[15] Harekrushna Mahtab was another Orissa politician who was brought around.

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While the government was attempting to work out deals with individual members of the Opposition, JP was trying to bring about the formation of a single opposition party. Representatives of the Socialist Party, the Jana Sangh, the BLD and the Congress(O) held a joint meeting in Bombay in JP's presence in March 1976. They decided to form a single new party. A steering committee was set up for the purpose with N.G. Gore (Socialist), Om Prakash Tyagi (Jana Sangh), H.M. Patel (BLD), and Shanti Bhushan (Congress(O)). Goray was convenor. For two months there was not much progress. Then in May the representatives of the four parties and some independents met again in Bombay. The talks did not make much headway till JP warned them that if a new party were not formed the opportunity might be lost forever. His stern words had an impact. JP was authorized to hold a press conference on 25 May and announce the formation of the new party. Mrs Gandhi reacted angrily to the announcement. She talked of another attempt to spread anarchy.

Almost immediately, difficulties surfaced over the unity talks. Charan Singh left Bombay before JP's announcement. He was peeved that he was not named convenor. He insisted

that no agitation should be launched against the government before opposition unity was properly established. He ensured that the BLD national executive pass a resolution that the BLD would not join the new party announced by JP. Several state units of the Congress(O) also resisted merging their identities into a new party. In June 1976, Charan Singh reiterated to JP that the Opposition should have a meaningful dialogue with the PM before taking up a confrontationist line. Later he raised the demand that workers of the RSS should not be permitted to join the new party.



It is pertinent here to mention the role of Vinoba Bhave, the founder of the Bhoodan movement for distribution of land to the landless. Vinoba was a revered figure among Gandhians and a close friend of JP's. When Vinoba refused to back JP's crusade there was a split among Sarvodaya workers, whose mission was to spread the values preached by the Mahatma. In the beginning Vinoba seemed to back the Emergency unreservedly when he declared that it was a period of *anushashanparva,* an era of discipline. He was dubbed as a *sarkari sant* (government saint) by those opposing the Emergency, particularly as the government utilized Vinoba's phrase on discipline for its propaganda purposes. But what was not reported in the censored media was that Vinoba also had reservations about JP's imprisonment and the continuation of the Emergency. In January 1976, he asked Shriman Narayan to organize a conference of intellectuals, including writers, vice chancellors, academics and jurists, to

take stock of the situation in the country and suggest how to move forward.

The meeting came to the conclusion that without seeking to apportion blame it was important to initiate a process of normalization. It regretted the detention of so many political workers, censorship and curtailment of civil liberties. Expectedly, the conclusions of the conference were censored and the government was unresponsive to its suggestions. Vinoba, meanwhile, decided to organize a larger conference with representatives from each district. But planning for the second conference was aborted abruptly and Vinoba seems to have got sidetracked and turned his attention instead to the issue of cow slaughter. He announced that he would go on a fast to enforce the abolition of cow slaughter. The police raided his ashram at Paunar and confiscated copies of the ashram's monthly *Maitri* which carried the news. Mrs Gandhi, meanwhile, tried to placate Vinoba by promising government action on the cow slaughter front. The octogenarian Vinoba announced his decision to give up his fast. In December 1976, he declared he was renouncing all public activity for the rest of his life.[16]

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Unlike the socialists and the three rightist parties, the Jana Sangh, the Swatantra Party and the Congress(O), the CPI(M) was let off rather lightly. Only a few of its leaders and some of its cadres were jailed. The government wanted to maintain its image of battling only the right.[17] Towards its own ally, the CPI, the government was slightly ambivalent. There

was a degree of bitterness between the Congress and the CPI because of Sanjay Gandhi's open hostility. The junior Gandhi had not tried to hide his distrust of the communists and they in turn complained that Mrs Gandhi's Twenty Point Programme was being replaced by Sanjay's five-point programme. In the latter half of the Emergency Mrs Gandhi, influenced by her son, made critical references to the CPI and its opposition to the family planning programme.[18]

At the end of 1976 Biju Patnaik, Charan Singh and Asoka Mehta, president of the Congress(O)—all of whom had once been in the Congress—started negotiations with the government under circumstances that a lot of MISA detainees, particularly George Fernandes, felt was a betrayal of the cause.

Charan Singh, Om Mehta, Biju Patnaik and Mohammed Yunus met at Patnaik's residence in New Delhi on 4 December 1976. According to Malik, Charan Singh was handed a note from Patnaik at the Mirzapur airport to join the talks. The note read: 'Dear Chaudhary: Friends from the other side are coming to my place on the fourth. This is the time. Let's meet.'

Malik said he and a fellow BLD worker Brahm Dutt waited outside the room while Charan Singh, Patnaik, Om Mehta and Mohammed Yunus discussed a working paper that had been prepared. They reached a broad understanding that the government would end the Emergency, fundamental rights would be restored, and political prisoners would be released. The Opposition in turn would not give a call for direct action, there would be no disruption of law and order, and no appeals to the army. Patnaik wrote a letter to Om Mehta on

1 January 1977, outlining the main points of the discussions. He addressed the minister of state for home familiarly as 'My dear Om'. Meanwhile, Congress(O) chief Asoka Mehta had between October and November 1976 written twice to Mrs Gandhi, advocating direct discussions between her and the opposition leaders. Responding to Asoka Mehta's letter, Mrs Gandhi claimed that her party was committed to parliamentary democracy once there was genuine acceptance of changes in 'constitutional, demographic and economic fields and repudiation of violence'. In that case, she continued, 'it should not be difficult to find a solution between Opposition and government'. Karunanidhi, the deposed chief minister of Tamil Nadu, in an article in the *Murasoli*, welcomed the letter and spirit of Mrs Gandhi's appeal.[19]

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George Fernandes, the socialist leader, who was in jail by then, was infuriated when the 'My dear Om' letter was shown to him. He termed it a betrayal and a sell-out. C.G.K. Reddy, a co-conspirator with Fernandes in the Baroda dynamite case,* described the moves to reach a negotiated settlement with the government, which were given wide publicity in the media, as an attempt to demoralize those who were determined to fight dictatorship. 'Unfortunately the negotiations not only contributed indirectly to the further weakening of an already near destroyed Opposition but was an indirect attack against those who were fighting against heavy odds. Whether this

* See p. 285.

was born out of an honest belief or because of pure and base self interest, is hardly relevant. The negotiators proved to be embarrassments to the underground movement.' Reddy called the working paper drawn up between Mehta and the opposition leaders a 'pure and simple surrender document admitting indirectly that the Opposition was guilty of all that Mrs Gandhi had accused them of'.[20] The 'My dear Om' letter caused consternation and demoralization among those who were either in jail and still uncompromising, and among the few that were left outside who were determined to continue the fight. It was a clear indication to Mrs Gandhi that the Opposition was in a mood to surrender.

The Jana Sangh's L.K. Advani had similar reservations about Patnaik and Asoka Mehta's efforts. In his reply to a letter from RSS acting chief Madhavrao Mule on 8 January 1977 on the progress of the talks with the government, Advani warned that the government did not seem to want meaningful talks, but instead wanted to make the Opposition endorse the constitutional and political changes that had taken place during the past year and a half; and to extract a statement from the Opposition that the proclamation of the Emergency was justified. He also noted that while leaders were being released in driblets, the rank and file still remained behind bars.[21]

The division in the opposition ranks must surely have delighted Mrs Gandhi who by the end of 1976 had been veering around to the view that a return to democracy and early elections was the best course of action. A weakened, disunited Opposition would be playing into her hands. Unlike her secretary P.N. Dhar, she was not interested in keeping JP

within the loop. JP had conveyed to Radhakrishna that he was keen to keep negotiation efforts under his direct control to prevent confusion among the opposition parties.

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Mrs Gandhi had by now veered away from the more extreme course of action supported by a powerful group within the party, including her son Sanjay. They wanted to convert the existing Parliament into a Constituent Assembly which could recommend major amendments to the Constitution, so that India could change from a parliamentary form of government into a presidential system. In August 1976, the principal opposition parties had declined a government invitation for discussion on constitutional amendments. Their argument was that the existing Lok Sabha had outlived its term; besides, most political leaders were behind bars. The CPI, the Muslim League and the ADMK, however, accepted the government's invitation for talks.

The idea of a presidential system was first mooted by B.K. Nehru, Mrs Gandhi's uncle, who felt that the Westminster model was not suited to a country like India. When he discussed his concept with Mrs Gandhi she said she did not approve of the proposal, but she did not object to his discussing the idea with leaders of her party. When B.K. Nehru broached the subject with senior leaders such as Jagjivan Ram, Y.B. Chavan and Swaran Singh, their response was that if the PM wanted the changes they would support her. Sanjay's followers were especially enthusiastic. Punjab Chief Minister Zail Singh assured that whatever '*bibiji*' wanted was all right

with him. Bansi Lal was the most enthusiastic: 'Nehru sahib, get rid of all this election nonsense. If you ask me, just make our sister president for life and there's no need to do anything else.'[22]

B.K. Nehru handed over a report of his discussions on the subject to Mrs Gandhi, who forwarded his proposals to the Ray–Patel–Barooah triumvirate. Patel asked A.R. Antulay to write a draft paper on the subject. An anonymous note on the proposal was circulated as a trial balloon by Barooah. Nikhil Chakravartty's *Mainstream* magazine carried an article speculating that the government was contemplating constitutional amendments to introduce a presidential form of government. B.K. Nehru, who was later blamed for the idea, protested that Antulay's handiwork was totally different from his original concept. For a start, it was framed in atrocious English and advocated a presidential system without any safeguards against the exercise of absolute power. P.N. Dhar felt the final draft 'made a mockery of the presidential form of democracy and twisted the Constitution in an unambiguously authoritarian direction'.[23]

Although Sanjay had not been consulted, he ardently supported the idea of a Constituent Assembly as it would mean the postponement of elections for a long time to come. While his mother was on a state visit to Africa, Sanjay and his groupies put pressure on the chief ministers of some northern states. As a result, the state legislatures of UP, Haryana and Punjab passed resolutions calling for the setting up of a Constituent Assembly. Other state legislatures were expected to follow suit. The state assembly resolutions took Mrs Gandhi, who had just returned from a foreign tour, by

surprise. The exercise had been carried out by Sanjay's cohorts behind her back. The CPI publicly condemned the move. C. Rajeswara Rao, general secretary of the CPI, wrote to Mrs Gandhi in October 1976 urging her to oppose this 'suicidal move'. Mrs Gandhi decided to stop the proposal before it could gather further steam. For once, Sanjay did not seem to be getting his way.

But regardless of whether or not a Constituent Assembly was instituted, elections seemed a long way off. On 5 November 1976 the life of the fifth Lok Sabha was extended yet again till February 1978. The now badly divided Opposition was further demoralized at the gloomy future ahead.

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Despite having got the term of the Lok Sabha extended by over a year in November 1976, Indira Gandhi seemed at this stage to have been assailed by doubts as to whether this was the right move. After the Gauhati All India Congress Committee (AICC) session that same month, Mrs Gandhi for the first time began to harbour some doubts about Sanjay's political maturity. Perhaps she got wind of the unspoken resentment of old-time party workers at the spectacular rise of Sanjay's Youth Congress. Surprisingly, she confided to P.N. Dhar, whose influence with her had by now declined sharply, that she had reservations about some of the people who surrounded her son and feared he could not see through them.[24] The PM's secretary used the opportunity to urge her to hold elections. He pointed out that gains from the Emergency had been achieved. The economy was in good

shape. Both industrial and agricultural production had gone up in 1975–76. The national income had grown by 9 per cent, the highest in several years, and prices were under control. Dhar brought to Mrs Gandhi's attention a study by the Institute of Policy Research in New Delhi, which suggested that public opinion in favour of Mrs Gandhi had reached its apogee. To continue the Emergency would be counterproductive, he felt.

Dhar pointed out that March was the most convenient time to hold elections and she had to decide by the end of December if she wanted the wheels set in motion. Mrs Gandhi was by now getting increasingly uncomfortable with the Emergency and wanted to get out of it somehow. To the philosopher J. Krishnamurti she confessed in 1976, 'I am riding the back of a tiger. I do not know how to get off its back.'[25]

Mrs Gandhi once again sounded out party colleagues about the prospect of elections, but in a casual manner, so that no one should get a hint of what she planned to do. The feedback was generally positive—they told her that her stock was high.

This was one of the few times when Mrs Gandhi did not take her son into confidence. She knew Sanjay was violently opposed to an early poll. When Sanjay, Bansi Lal and Mohammed Yunus came to know of her decision, they felt she was committing a horrible mistake. Sanjay felt that his mother should at least wait till after the monsoons, by which time the opposition leaders would be fighting with each other. March was too soon for the opposition unity to fall apart, since they had just come out of jail.[26] Mrs Gandhi

weighed the pros and cons for over a month, before finally announcing on 18 January 1977 that the elections would be held in March. As early as 1 January, the PM's secretary had formally conveyed the news to the chief election commissioner T. Swaminathan.

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Holding elections was Mrs Gandhi's way of demonstrating to the world and herself that India was indeed still a democracy. Swaraj Paul, a British businessman with a direct pipeline to Mrs Gandhi, felt that the PM was pained by the constant refrain of the western press that Nehru's daughter had become a dictator. She believed that if she held elections she would be able to legitimize her position.[27] According to Kuldip Nayar, it was from the West that Mrs Gandhi now craved approval. Old admirers and friends abroad such as Dorothy Norman, in the USA, John Grigg in London and Bruno Kreisky in Vienna had cut off relations with her after the Emergency, and participated in protests against the demise of democracy in India. This hurt her deeply.[28]

Pakistan PM Zulfikar Ali Bhutto's announcement that elections would be held in Pakistan in March probably also acted as a catalyst. It would have been extremely embarrassing if Pakistan, which lacked India's credentials as a democracy, stole a march on its neighbour. Bhutto certainly boasted to the media that India owed its forthcoming election to him.

One factor that probably weighed strongly with Mrs Gandhi was that she was advised by intelligence agencies that she would get 300 seats in a parliamentary election.[29]

Moreover, her party colleagues, whom she had sounded out in December 1976, mostly painted a rosy picture. They had long since come to the conclusion that they should tell the PM only what she wanted to hear.

Mrs Gandhi was confident that she had not lost the special chemistry she enjoyed with the masses of India and she could repeat her triumph of 1971, with perhaps slightly fewer seats than before. For once, she went by her own instincts and not those of her son's. She was convinced, moreover, that the fissures in the Opposition, which she had helped create, would work in her favour. The underground was in a shambles, and the firebrand George Fernandes, who had mounted a vigorous campaign against Mrs Gandhi and the Emergency rule on several fronts, was now safely behind bars.

13

Firebrand Fernandes

George Fernandes had become a romantic symbol of resistance to the Emergency. Scathing about the increasingly vacillating attitude of most opposition leaders, he feared the Lok Sangharsh Samiti had lost its will to fight—the top leadership of the organization was in jail, while those who remained outside did not seem to do much except hold meetings.

Fernandes believed that there were circumstances in which satyagraha, or non-violent resistance, was not the only weapon to be used in a battle for justice; in the fight against an illegitimate government, using violent means was justified, as long as it did not lead to serious injuries and death. Fernandes had a colourful history. A rebel all his life, he had frequently taken up cudgels against the establishment and crusaded for citizens' rights. He grew up in Mangalore, and at the age of sixteen was sent to a seminary to be trained as a Catholic priest. Disillusioned by what he considered the hypocrisy of the church, he left the seminary at eighteen

and drifted to Bombay in search of employment. He slept at night on the benches at Chowpatty beach and became actively involved with the trade union movement and the Socialist Party. Ram Manohar Lohia, the unconventional and outspoken socialist leader, was his inspiration.

In the 1950s Fernandes became the uncrowned king of the taxi drivers' union. With his unruly shock of hair framing his lean, bespectacled face, and dressed in his trademark crumpled khadi kurta–pyjama and scuffed chappals, Fernandes looked every bit the fiery activist he was—a 'rebel without a pause' as some dubbed him. He was jailed frequently for taking part in agitations. Many in the middle class, including my own family in Bombay, perceived Fernandes as a disruptive influence, a demagogue who kept bringing life in the city to a halt with his calls for 'Bombay bandh'. But to hundreds and thousands of Bombay's downtrodden he was a hero and saviour. In 1967, Fernandes stood against the veteran Congress leader S.K. Patil and stunned the ruling party by defeating the Congress strongman in his Bombay South parliamentary constituency. After his victory he earned the nickname 'George the giant killer'.

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Fernandes took over as chairman of the All India Railwaymen's Federation in November 1973. The Indian Railways employed some fourteen lakh people then, nearly 7 per cent of the labour force of the entire organized sector. Railway workers felt they had a legitimate grievance when they compared their incomes with the employees of some other public sector undertakings. Fernandes called a nationwide

railway strike on 8 May 1974 to redress grievances of the railway staff, which had been pending for more than two decades. The government had ignored the rising cost of living and not adjusted their salaries accordingly. This was in the heyday of union activity, and soon electricity workers, transport workers and taxi drivers also joined the strike in solidarity with the railway workers.

For some days the railways came to a standstill. There was no movement of goods or people. Demonstrations were held all over the country. Mrs Gandhi responded to the strike with tough measures. Some 30,0000 people, including Fernandes, were imprisoned. Thousands lost their jobs and were evicted from their quarters. The army was called out in several places. The government's ruthlessness paid off. The strike was broken within three weeks. But the bitterness between the government and the union activists festered for long afterwards. Mrs Gandhi complained that on the one hand, the opposition parties attacked the government for its inability to check rising prices but at the same time they were pressing for the demands of the railway employees to be met even though it would have meant sky-rocketing inflation. Mrs Gandhi looked upon the railway strike as a manifestation of the growing climate of violence and indiscipline in the country. Indeed, she often mentioned the strike when justifying the imposition of the Emergency.

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The forty-five-year-old Fernandes was in the remote fishing village of Gopalpur-by-the-Sea in Orissa, visiting his in-laws,

when he heard the news of the Emergency on the radio. He had no intention of being a sitting duck for the police. He escaped immediately, dressed in a lungi, looking like a local fisherman. He left a letter for his wife, Leila, and their son. After that he was on the move constantly, changing his address and appearance often.[1]

As a much-wanted underground leader Fernandes took precautions to keep the police off his trail. He did not permit foreign journalists who met him to take his photograph. He avoided speaking on the telephone. He changed disguises frequently. By August 1975, his hair had turned grey and his beard was long enough for him to transform himself into a Sikh. His turban was kept arranged for him in a special hatbox. He travelled from town to town, all over the country, often as a Sikh. In cities, he often disguised himself as a sadhu in a saffron kurta and lungi. So completely did he alter his appearance that he was unrecognizable. Once he was staying at a guest house in Bangalore when the sales tax department raided the place and turned it upside down. Fernandes did not move and continued to nonchalantly eat his toast at the table.[2]

Fernandes spent considerable time in Gujarat, considered a safe haven because the Opposition was in power there. He also moved around extensively in the south, including his home town of Mangalore. During his trips Fernandes was able to establish contacts with his socialist and trade union colleagues as well as family and friends.

On 15 August 1975 Fernandes issued an appeal. He pointed out: 'Everyone must by now have realized that you cannot have committee meetings and mutual consultations in

the prevailing situation . . . the president and general secretaries of all the parties are in prison, so are most of the members of the national executives, state executives, even district committees of these parties. Those who have evaded arrest are not easily available.' He suggested that in the circumstances 'there should either be quick mutual consultations, or people should simply assume leadership at various levels'.[3] He felt that a debate on the nature of the movement against Indira Gandhi's dictatorship was unnecessary, and often a cover for inaction or a rationalization of cowardice.

In a letter to Socialist leader N.G. Gore, for circulation among all political parties, he said that he was increasingly fearful that most people in the Opposition were not willing to face the realities of a totally fascist dictator having taken over the country. 'If Parliament has been reduced to a joke, the so-called opposition parties' members, who still refuse to resign their seats from that illegitimate Lok Sabha, are only playing the part of circus clowns. I believe it is a contradiction in terms to say that we shall provide a democratic alternative to a fascist dictatorship. Such a position only means that we are all mixed up in our priorities.'[4]

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Fernandes had many strategies for waging war against 'that woman', as he referred to Indira Gandhi. He felt the primary objective was to remove fear from the minds of the people. To this end he believed that the underground should undertake acts of defiance, which might even be violent but which should not result in any casualties. He also

advocated sabotage of a kind that would not inconvenience people. Soon after the Emergency was declared, Fernandes felt the most effective way to demonstrate his defiance of the state was to use dynamite. Originally, the dynamite was procured from Gujarat but later stocks were acquired from other places as well. Training sessions and demonstrations were arranged in Baroda. The targets were bridges, railway lines and culverts in wayside areas and not in crowded places.[5]

Fernandes's core group included actress Snehlata Reddy and her family in Bangalore, M.S. Appa Rao and his daughter Amuktha in Madras, C.G.K. Reddy, a former freedom fighter who was a business consultant to *The Hindu*, Viren J. Shah, chairman of Mukund Iron and Steel Works, journalists Vikram Rao and Kirit Bhatt, and sympathizers like Captain Huilgol, his daughter Girija, Govindbhai Solanki, a mill worker Motilal Kanojia and lawyer Prabhudas Patwari.

C.G.K. Reddy in his book *Baroda Dynamite Conspiracy* points out that the socialist underground movement was not only about dynamite as is often made out. The aim was to generate publicity, letting people both in India and abroad know of the widespread opposition to the Emergency. The dynamite explosions were only one of the several methods towards that end.

'There was a division in the Opposition about the methods to be adopted to fight the Emergency,' recalls K.C. Tyagi who was a follower of Charan Singh. 'But George was a romantic hero for all of us. I remember I also took some dynamite but hesitated to use it because of the fear of Chaudhary Charan Singh's disapproval.'[6]

Rahul Ramagundam, who is researching a biography of Fernandes, believes: 'In reality, the dynamite conspiracy did not result in any major destructive act. The seven to eight months were utilized largely by the conspirators in organization, training and dispatching consignments. People were drawn by George's personality and believed in resistance. But in actual terms they did very little.'[7] Reddy, in contrast, in his book cites the complete destruction of the Arrah telephone exchange and the severe damage to the railway system in Bihar as the result of the dynamite conspiracy.

To make people aware of the underground, appeals and letters in Fernandes's name were sent out. In July 1975, one of Fernandes's letters appeared on the front page of the *Times*, London. Fernandes had many influential contacts outside India, thanks to his trade union and socialist activities. To counter Mrs Gandhi's propaganda through Indian embassies and delegations sent abroad by her regime, he felt someone from the Opposition should be sent overseas as well, to build up world opinion against the atrocities being perpetuated in India. Civil liberties had been snatched away, yet Mrs Gandhi proclaimed that the country was a democracy and that just a few people, mostly smugglers and bad characters, had been put in jail. For this mission, Fernandes chose his friend C.G.K. Reddy, who travelled abroad frequently for legitimate business purposes and had contacts overseas.

Reddy did a sterling job. He met friends who were prominent members of the Free JP Campaign Committee in London. He travelled to Brussels at the end of November 1975, where a meeting of the Bureau Socialiste Internationale (International Socialist Bureau) was held. As a representative

of Fernandes, who was chairman of the Indian Socialist Party, Reddy was welcomed with open arms. The secretary general of Socialiste Internationale, Hans Janitschek, asked him to address the bureau. Reddy read out a pamphlet titled 'Indira's India: Anatomy of a Dictatorship'. Copies of the pamphlet were printed after the bureau meeting; it was translated into German, French, Italian and Japanese, and several thousand copies distributed all over the world. It contributed significantly in neutralizing Mrs Gandhi's propaganda campaign outside India. The Socialiste Internationale, on the basis of Reddy's address, adopted a strong resolution, noting with concern the situation in India and the deteriorating health of Jayaprakash Narayan who had recently been released from detention. It deplored the violation of civil liberties and fundamental rights of Indian citizens. As a consequence, several articles and news items appeared in major newspapers in Europe during and after Reddy's visit. Although the WikiLeaks tapes of the diplomatic exchanges of that period suggest that Fernandes had even applied to the CIA for funding his cause, Reddy in his book is emphatic that he was very selective about whom he accepted donations from. Some of the biggest contributors were foreign trade unions.

The backing of the Socialiste Internationale, Amnesty International and foreign trade union organizations did much to influence public opinion abroad against Indira Gandhi's regime. On at least two occasions, former chancellor of West Germany Willy Brandt, Chancellor Bruno Kreisky of Austria and Prime Minister Olof Palme of Sweden came out publicly against Mrs Gandhi. The Free JP Campaign Committee in London organized demonstrations on India's

Independence Day and Republic Day. In the USA, a group titled Indians for Democracy was active and official Indian representatives in the USA, including ministers, could not attend major meetings without embarrassing questions being raised about the suppression of civil liberties back home. Leila also campaigned abroad on her husband's behalf.



In their frantic hunt for Fernandes and his accomplices, the police acted with incredible ruthlessness and cruelty. Two of the victims in this brutal operation were Snehlata Reddy and Fernandes's brother Lawrence. Snehlata was a reputed actress in theatre and films, and interested in poetry and the arts. Her husband, Pattabhi, was a Telugu poet and a famous film producer. His film *Samskara*, in which Snehlata had acted, achieved international acclaim. The Reddys were never active in politics but were close to Ram Manohar Lohia and later came to know Fernandes well. After the detention of the former joint secretary of the Socialist Party, Venkatram, Snehlata took over the southern wing of the operation. She participated in all the secret meetings.[8]

Snehlata was on a trip to Madras when the police picked up her teenaged son Konarak. They also raided her house in Bangalore in the middle of the night and interrogated her eighty-four-year-old father. A panicky Snehlata and Pattabhi rushed back to Bangalore. Worried sick by the disappearance of her son, Snehlata broke down under interrogation and promised she would disclose everything if the police would leave her family alone. Snehlata was taken into police custody

on 2 May 1976. Despite police pressure she refused to betray the names of the people she had interacted with.

Snehlata was then detained under MISA on 22 May and kept in the Bangalore jail. A chronic asthmatic, Snehlata's distress and despair is reflected in her diary, where she wrote about the ill treatment she was subjected to by the jail authorities and the lack of proper medical care. Since no doctor attended to her she even had to administer the injections she needed herself. On 26 July she wrote in her diary, 'Can't I be released or paroled on health grounds? I almost died because of the conditions here. My asthma has never been so continuous and severe. . . . I am going to have a nervous breakdown soon. I am on my way to it.' She pleaded with the jail authorities to permit her family to see her, but a sadistic jail superintendent had cancelled all interviews with relatives. Another entry in the diary reads, 'No business to shut me up with the C class prisoners without air or even a window to look into the jail compound.' She was kept apart from other MISA prisoners. 'Here no company either male or female, no walks, no fresh air and no communication,' was another cry for help in her diary. On 1 August she wrote, 'Deliberate negligence—I will die here slowly, like a forgotten song of the past. Why are these people forcing me to die in public.' Four doctors who eventually examined her said she should be immediately hospitalized because the claustrophobic atmosphere and conditions in the jail aggravated her allergies. But the prison authorities paid no heed.[9]

Snehlata's health steadily deteriorated. Her asthmatic attacks intensified and she was treated with heavy doses of cortisone. She was finally released on parole on 13 December

1976, and died shortly afterwards on 20 January 1977 of a massive heart attack. When she was sent to jail 'Snehlata was a slim, youthful-looking woman, and she came out broken in spirit and health, looking bloated and elderly.'[10]

The treatment meted out to Fernandes's younger brother Lawrence was equally cruel. Lawrence was taken from his house in Bangalore at 8.45 p.m. on 1 May 1976, but his arrest was not entered in the police records. He was placed in the custody of the Karnataka Police's Corps of Detectives in Bangalore, and they interrogated him relentlessly to find out the whereabouts of his brother. When he gave no answers he was brutally assaulted with lathis by eight to ten policemen. The beating continued till 3 a.m. and during this period he was not given anything to eat or drink. When he begged for water an officer asked a constable to urinate in his mouth. The constable mercifully desisted.

His father, J.J. Fernandes, lodged a report with the police control room that his son had been picked up, but the police refused to disclose that they had him in their custody. He was listed as a missing person.

By 3 May, after two days of ceaseless torture, Lawrence's condition rapidly deteriorated. Apprehensive that Lawrence might die on their hands, the police summoned a doctor named Rajgopal to examine him. The doctor was ordered not to ask the patient any questions. Dr Rajgopal could make out the injuries were due to external violence. His body was swollen all over and his left foot seemed fractured. He urged that the patient be transferred to a hospital immediately. It was only on 7 May, when Lawrence complained of trouble in breathing at 2 a.m., that he was taken in a taxi from

Malleswaram police station to the K.C. General Hospital. The doctor on duty recalls that the patient, who was wearing only a vest, was speaking in a faint voice and complaining about pain around his chest. The doctor instructed the nurse to give the patient some painkillers and went out of the room for a few seconds to wash his hands. When he returned, the police and the patient had vanished.[11]

On 9 May Lawrence was taken to Davangere Extension police station and lodged in an ill-ventilated lock-up full of cockroaches and mosquitoes. The next day he was brought before a magistrate in the presence of the DSP. The magistrate asked him whether he had anything to say. After a brief silence and with tears in his eyes Lawrence just muttered, 'What can I say?' He was taken out and made to walk barefoot to the police station in the burning sand. According to the official police records, Lawrence was arrested in Davangere on 10 May at a bus stand.[12]

Later, in the Bangalore prison, in a dark, stinking cell, Lawrence one day heard a voice calling his name again and again. At first he thought he was hallucinating but then he recognized the voice of the Socialist MP Madhu Dandavate. He replied feebly, 'Yes.' Dandavate and other MISA prisoners started a hunger strike, demanding that Lawrence be transferred from the condemned cell and provided better accommodation. Lawrence also went on a hunger strike. By this time he had lost some twenty kilos and looked like a skeleton.

Lawrence was eventually released only towards the end of the Emergency. He was admitted to AIIMS in Delhi where doctors found that he had a painful limp in the left leg,

limited movement in both hips, and damage to the ankle and foot joints. AIIMS records noted that Lawrence had suffered severe assaults and he needed both mental and physical rehabilitation.

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George Fernandes was eventually arrested on 10 June 1976 in Calcutta. His arrest and that of his companions, and the subsequent crackdown by the authorities on their underground activities, was not due to the investigative powers of the police and intelligence agencies. Fernandes was caught because a businessman named Sharad Patel, who had been taken into confidence about the dynamite conspiracy, turned approver. Sharad Patel had come under the scrutiny of the CBI in an unrelated case. He was the nephew of Bharat Patel, a businessman contacted by Fernandes to procure dynamite. When Sharad got into trouble with the authorities on an unrelated matter he revealed his knowledge of the underground as a trade-off to get the police off his back. His uncle also turned approver.

Getting wind of the crackdown on his companions Fernandes, disguised as a Sikh, left Delhi and caught the first flight to Calcutta on 10 March 1976. Fernandes was supposed to lie low, but it was not in his nature to remain confined indoors and idle. The police were able to find out that Fernandes had moved to Calcutta from Delhi. Fernandes was given shelter in a small cell of a church in Calcutta by a priest, Father Rudolph. The police were able to locate Fernandes after three months thanks to a tip-off. The

informer was never identified.[13] From Calcutta Fernandes was brought in a plane to Delhi and taken blindfolded and handcuffed in a van to an interrogation cell. Stripped naked and wrapped in a rough blanket, he was cross-questioned by the police, but refused to say anything other than that he was fighting an illegitimate dictatorship. He was first taken to Hissar jail where he had a run-in with the jailer. Fernandes saw a photograph of Mrs Gandhi on the wall and saw red. He taunted his captors, 'You are following the orders of this woman, but I tell you, tomorrow this woman will be in jail.'[14] He was then transferred to Tihar jail in Delhi. The Socialiste Internationale publicized his case, and leaders like Willy Brandt and Olof Palme conveyed to Mrs Gandhi that she would be answerable if anything happened to Fernandes.



On 4 October 1976 the accused were first produced before the chief metropolitan magistrate. The charge sheet ran into 3000 pages. It stated that Fernandes and his co-conspirators had attempted to overthrow a lawfully established government by criminal force and conspiracy. Supplementary charges included illegal possession of explosives, distributing of underground literature, inciting various groups in revolt and organizing meetings for sabotage. The prosecution filed about 500 documents and listed 575 witnesses. The prosecution did not, however, cite examples of serious cases of sabotage. Reddy believes that this was because it wanted to depict the conspiracy as being of no great threat to the state

and the conspirators as incompetent, bumbling amateurs.[15] The charge sheet mentioned an unsuccessful plot to blow up the dais in Varanasi a few hours before Mrs Gandhi was to speak there. The case against Fernandes was referred to as the Baroda Dynamite Conspiracy. The prosecution did not add the names of the two women conspirators, Snehlata Reddy and Dr Girija Huilgol, probably because they felt it would attract sympathy for the movement.

Fernandes and his co-conspirators pleaded guilty to the charge of attempting to overthrow Mrs Gandhi, but did not accept the specific charges put forward by the government. The defence team was headed by the defence lawyer for Virendra, V.M. Tarkunde. Acharya Kripalani was chairperson of the defence committee. Fernandes and his fellow accused came handcuffed and in chains, accompanied by a dozen policemen armed with Sten guns. Although granted bail after the trial, all the accused were rearrested and detained under MISA.

The trial became a cause célèbre. Foreign correspondents from all over the world flew down to cover it. The Indian media was, however, prohibited from reporting the details except for dispatches from the news agency Samachar.

While in jail Fernandes prepared his own arguments. At one point he read out a moving six-page petition in court, explaining why he had been forced to organize an underground resistance against Mrs Gandhi's 'fascist regime'. He demanded the restoration of fundamental rights and civil liberties. He recounted the torture of Snehlata and Lawrence and the manner in which all the accused were being treated in jail. Noting that the elections had been announced, he

exhorted the people to remain ever-vigilant about their rights and liberties—only then could the country remain free and prevent its takeover as the private fiefdom of an individual and her family.

In a dramatic gesture, Fernandes held up his chained hands and declared: 'The chains that we bear are symbols of the entire nation which has been chained and fettered.' He ended his plea to the judge with the words, 'Sir, I am proud, very proud indeed, that when Mrs Gandhi became the dictator, I and my comrades behaved like MEN.'[16]

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Although elections were announced halfway through the trial, Fernandes had no faith that the elections would end Indira Gandhi's reign of terror. His letters, smuggled out to opposition party leaders by his lawyers Sushma and Swaraj Kaushal, urged them not to fall into the trap of fighting the poll. He was convinced that the elections would not be free and fair—they were just a ruse to give legitimacy to Mrs Gandhi's rule. But Jayaprakash Narayan insisted that Fernandes should be fielded in absentia from the Muzaffarpur constituency in Bihar, and Fernandes finally agreed. The government refused to grant him parole to campaign. However, during the trial Fernandes managed to be in contact with the outside world and played a part in the selection of candidates. He also managed to send out taped speeches and give interviews to the foreign press.

On 22 March 1977, when news of the election results began filtering into the courtroom, including news of

Fernandes's own lead by a huge margin from Muzaffarpur,* jubilant crowds swarmed all over the courtroom. Fernandes's cross-examination was not over, but seeing the public mood the magistrate released all the accused on bail. The Baroda dynamite case was withdrawn on 26 March.



After the Emergency ended, Morarji Desai talked about the need to forgive and forget. Fernandes was unwilling. 'How can I ever forget or forgive JP's kidneys, the torture to my brother Lawrence, the death of Snehlata?' he protested.

As the results of the elections in March 1977 would demonstrate, millions of Indians, like George Fernandes, were not willing to forgive Indira Gandhi and Sanjay, or forget the excesses committed during the Emergency.

* See p. 324.

14

The Denouement

'Lok Sabha Elections Likely in March'—the banner headline, in bold capital letters across the front page of the *Indian Express* on 16 January 1977, hit us all like a thunderbolt. The report, which added that the Emergency laws would be relaxed but not lifted, was a scoop by Kuldip Nayar, who had a remarkable ability to ferret out news, and amazing contacts within the government despite his open opposition and defiance of the regime. Many, including myself, crossed our fingers in hope, but remained cautious. The news sounded too good to be true. Mrs Gandhi had just recently extended the life of the Lok Sabha and there seemed no ostensible reason why she should suddenly make an about-turn. The Emergency was well entrenched by now, and resistance seemed to have sputtered out. The elusive firebrand George Fernandes had finally been tracked down and arrested. Even countries that had once sharply criticized the Emergency now seemed to have come around to accepting the situation: Sanjay had

made clear his anti-communist, pro-capitalist views and had reportedly been in touch with some envoys from western countries. We felt that Mrs Gandhi would surely not have taken the risk of calling elections unless her many intelligence sources had assured her of victory.

Kuldip Nayar knew there was a very real danger that he would be sent back to jail for his sensational report, for which he had no official confirmation. He had worked on a tip-off he had received from a police officer in Punjab, who had whispered to him that the IB was being asked to assess the prospects of the various political parties at the polls. Nayar thought he could probe further by talking to Sanjay Gandhi's friend Kamal Nath, a former director of the *Indian Express*. He began the conversation by asking where Sanjay would be standing from. Taken aback, Nath asked from where Nayar had obtained the news, but he did not deny the assumption that elections were round the corner. Nayar decided to go ahead with his story.[1]

The next day our newspaper received a verbal warning from the Press Information Bureau for putting out a 'false report'. Even so, the possibility of elections became a hotly discussed topic, and in the jails, there was talk of little else. Two days later, in a broadcast to the nation, Mrs Gandhi finally confirmed the news, but warned that a strict vigil would still be kept on the media—there would be no returning to the old days of unfettered press freedom.



Morarji Desai had been in solitary confinement in a guest house near Sohna in Haryana for the past nineteen months,

cut off from the world except for occasional visits from his family and access to the newspapers, which in any case were heavily censored. When he saw the *Indian Express* report on 16 January, speculating on elections, he did not give it too much credence. It was only when several policemen entered his room on 18 January and announced that he was being released unconditionally and taken back to Delhi that Desai realized there might have been some truth in the newspaper report. He later recalled, in a conversation with Nayar: 'I always knew she would release me only when she wanted to go to the polls.'[2] Five hours later, the eighty-year-old Desai was back in the capital and speaking to newsmen. Desai said that although it was unfair that the Opposition was given so little time to prepare for elections, he was ready to face the challenge.

For L.K. Advani too the news of his release came suddenly, on the afternoon of 18 January. The superintendent of Bangalore jail came to his room at around 1.30 p.m. and informed him that there was a wireless message from New Delhi revoking his detention order. The jail superintendent wanted Advani to leave within the hour, but Advani insisted that he would not leave without saying goodbye to the prisoners in the other cells. From the pattern of releases, it appeared to him that while the leaders were being allowed to go free, the RSS and Jana Sangh activists would continue to remain behind bars. He left prison with a sense of guilt that so many of his junior colleagues were still in jail.[3]

Desai, phlegmatic as ever, sprang into action straightaway, clearly not needing any time to recuperate from his long solitary confinement. There was a healthy glow on his face,

which his followers attributed to his special diet of nuts, dried fruit and his own urine. A meeting was called at his Dupleix Road residence the very next day to explore the possibility of a merger of the Congress(O), the BLD, the Socialist Party and the Jana Sangh. In prison and outside it, politicians from the opposition parties had bonded over shared hardships and other bitter experiences of the Emergency—even the RSS and the Jamaat-e-Islami workers had shed their suspicions of each other.

As discussions began on the possibility of forming a single party, Charan Singh was as usual not very positive at first. Reiterating that Mrs Gandhi had given them too little notice, he pointed out the many practical difficulties in bringing about a merger of the four parties in such a short time. The seemingly insurmountable obstacles were, however, resolved within a day when a letter from JP was delivered by the Socialist S.M. Joshi to the heads of the various political parties. JP made it clear that if they did not join together as one party he would dissociate himself from the elections.

The real, but unspoken, hurdle in unity talks was the question of who would be the leader of this group of parties. But, so intense was the pressure, not just from JP but also from political workers and student activists still in prison, and the recently released MISA detainees, that no political leader openly dared to oppose the concept of a merger. Moreover, the urgency of the situation was not lost on them. This might well be their last chance. If they did not join hands they would all sink together and Mrs Gandhi would gain legitimacy for her dictatorial rule and the establishment of a dynasty. Sanjay was all set to be appointed her heir apparent.

While Desai was in jail, Charan Singh believed he was best qualified to head a united opposition party. After all, the BLD was the largest group in the proposed coalition. But with Desai's return, his seniority, his stoic acceptance of his long ordeal and his national image in contrast to that of Charan Singh's, who was seen more as a provincial leader, worked in Desai's favour. Morarji Desai was appointed chairman of the new party and Charan Singh had to settle for the deputy chairmanship. Singh accepted the junior position grudgingly, believing that in a trial of strength after the elections he would have the upper hand. JP blessed the union and termed it a battle between democracy and dictatorship.

Indira Gandhi was taken by surprise at the speed with which the merger had been worked out. She had calculated that there would not be sufficient time for the existing parties to dissolve and form a new party since legal and technical formalities had to be addressed. But desperation throws up solutions. The representatives of the four non-communist opposition parties formed a new party called the Janata Party. Since the electoral law would not permit a new election symbol to be recognized as a national symbol, they agreed that the BLD's existing symbol of a farmer with a plough would be used by all candidates. This meant that technically all persons elected from the opposition ranks would be officially affiliated to the BLD, until it wound up. They quickly succeeded in tying up electoral alliances with the CPI(M), the Akali Dal in Punjab and the DMK in Tamil Nadu. Taken aback by these unexpectedly rapid developments, Mrs Gandhi attacked the concept of opposition unity, calling it an opportunistic alliance of disparate elements with nothing in common. She

charged that they had joined hands with a section of the news media which had always been negative towards her and her government. This was a reference to the *Indian Express* owner Ramnath Goenka who was back in action and was one of the driving forces behind the birth of the Janata Party.

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JP might have achieved his dream of a single united opposition party, but he was aware that the fledgling party was at a distinct disadvantage in taking on the mighty, well-oiled machinery of the Congress. The Janata Party was without funds, and many of its activists were still in jail. It was feared that few volunteers would dare to invoke the wrath of the government by offering their services to the Opposition during the election campaign, since Emergency laws were still in force. Indeed, several people in the anti-Emergency camp, including George Fernandes and Romesh Thapar, thought they would face such an unequal fight that it made more sense to boycott the elections rather than participate in them, lose, and thereby give legitimacy to the repressive Indira–Sanjay regime. But at JP's first press conference after the elections were announced, he declared that even though the Congress was likely to win because the united opposition was fighting under a great handicap, the Opposition must take up the challenge in this David-versus-Goliath contest.

On 30 January, the anniversary of Mahatma Gandhi's assassination, the Janata Party launched its election campaign with trepidation. Would people dare to attend party meetings? JP addressed a rally in Patna, Charan Singh in Kanpur,

Chandra Shekhar in Jaipur and Morarji Desai in Delhi. The numbers far exceeded the modest expectations of the nervous politicians. There was a mammoth gathering in Patna. In Delhi, an estimated one lakh braved chilly winds and cloudy weather to show their support, even though public buses had been diverted so that their route did not pass anywhere near the rally venue at the Ram Lila grounds. Public sympathy for the political prisoners was evident, and many of those who attended the rallies lined up to offer donations. JP's voice choked as he talked of the violence, oppression and curtailment of civil rights of the past nineteen months. The Congress complacently attributed the large crowds to mere curiosity to see the recently released leaders; they were confident that subsequent rallies would be thinly attended.

And then, just a couple of days later, the 'J bomb', as the newspapers called it, exploded. Jagjivan Ram, popularly known as Babuji, was the single-most powerful Congress leader after Indira Gandhi. A Lok Sabha member from Bihar, he had been a cabinet minister since Independence, renowned for his political acumen, and was an influential dalit leader as well. Jagjivan Ram had indicated to Chandra Shekhar and other Young Turks (these were the Congressmen who had earlier supported Mrs Gandhi against the Syndicate but were sympathetic to JP) his misgivings when the Emergency was declared, but he had hastily retreated and fallen in line. Chandra Shekhar and another disgruntled Congressman, H.N. Bahuguna, who had been removed as UP chief minister by Indira in 1975, had been egging on a cautious Jagjivan Ram to come out in the open and proclaim his true feelings. But Babuji hesitated, fearful of what Mrs Gandhi might

have in store for him by way of exposing his past financial irregularities. She was known to keep a file on all her senior cabinet colleagues.

At the same time, Jagjivan Ram realized that Mrs Gandhi would try to marginalize him even if he remained in the party. Most of his followers were likely to be denied party tickets in the forthcoming elections. Sanjay had demanded some 200 seats for the Youth Congress and the first tentative Congress lists that had leaked out indicated that many from the old order were to be dropped. In Delhi, Emergency loyalists such as Rukhsana Sultana, Ambika Soni, Jagdish Tytler, Krishan Swaroop and Charanjit Singh were being talked of as the likely candidates.

Characteristically, the wily Jagjivan Ram planned his moves so secretively that even Bahuguna was left guessing till the eleventh hour. Ram was convinced that the government was keeping tabs on his visitors. On 1 February Ram met Mrs Gandhi and casually suggested to her that he felt that the time had come for the Emergency to be lifted. Mrs Gandhi assured him she would get the home ministry to examine the matter. At 2 a.m. that night Bahuguna received a call from Ram, saying he had decided to quit the Congress and asking him to come over. Arrangements were hastily made for a press conference on the lawns of Ram's bungalow on Krishna Menon Marg the next morning at 11 a.m. At 10.30 a.m. Jagjivan Ram sent in his resignation letter to Mrs Gandhi, after which he met the President to seek his blessings.

With Bahuguna, former Orissa chief minister Nandini Satpathy and a few other Congressmen by his side, Babu Jagjivan Ram announced to the large group of assembled

journalists, who had hurried there at short notice, that he was leaving the Congress and forming a new party called the Congress for Democracy (CFD). Apart from Bahuguna and Satpathy, K.R. Ganesh, former minister of state for finance, D.N. Tewari, a former MP, Raj Mangal Pandey, a former UP minister, Khurshid Alam, B.A. Desai and Harikesh Bahadur also quit the Congress with him. Jagjivan Ram, the hero of the hour, said he felt stifled in his old party; that power was concentrated in a coterie, particularly in a single individual; and that the government wanted to perpetuate itself by measures like the Emergency and its punitive laws.

While Ram's press conference was in progress there was a meeting of the Congress Working Committee to decide on ticket nominations. Mrs Gandhi noticed that Ram's chair was empty. Assuming he was late she was about to ask her office to summon him, when Dhawan entered the room with a note which made it clear that the bird had flown the coop. If Mrs Gandhi was rattled she did not show it; she simply announced to her cabinet colleagues: 'Gentlemen, Babu Jagjivan Ram has resigned from the Congress.'[4] Later Mrs Gandhi would remark bitterly to the press that it was strange that Jagjivan Ram had remained silent for so long in the government if he was distressed by the Emergency. In her reply to Ram she wrote, 'When you met me yesterday you gave no hint that you were planning to resign. You did raise the question of lifting the Emergency. There was no indication of strong feeling on your part.'[5]

Newspapers brought out special midday supplements to break the sensational news. One cheeky hawker even sold his newspapers screaming, *'Doob gayee, doob gayee'* (She has

drowned).[6] With Jagjivan Ram deserting the Congress ranks, new hope surged in the Opposition. Charan Singh declared, 'I am the happiest man today.' Sanjiva Reddy described it as the 'best news in two years'. Acharya Kripalani remarked, somewhat caustically, 'Better late than never.' Another Young Turk, Krishan Kant, exulted: 'The Congress is a corpse now. Babuji's action has burst the lid of suffocation under which most Congressmen have been suffering for a long time.'[7]

Psychologically, it was a major blow to Mrs Gandhi. Suddenly the Congress no longer looked so invincible. For a start, there were apprehensions that more old-timers in the party would defect if they were not given party tickets. Babuji's defection had ensured that those earlier slated to be axed got their party nominations. According to a joke making the rounds in Congress circles, these Congressmen hung portraits of Babuji in their homes, in gratitude.

West Bengal Chief Minister Siddharth Shankar Ray, by now in Mrs Gandhi's bad books because of his differences with Sanjay who disliked his leftist leanings, was now able to press a suddenly vulnerable Indira Gandhi to include his chosen men in the state's list of candidates. On the other hand, Rukhsana Sultana, Ambika Soni, Jagdish Tytler and other Emergency faces from Sanjay's coterie had their dreams of standing for Parliament dashed. Suddenly it had become a disadvantage to be too closely associated with Sanjay Gandhi and the Emergency excesses.

The Janata Party no longer looked so bedraggled. Its ranks were swelling. Jagjivan Ram's CFD agreed to fight the elections in an alliance with the Janata Party. At a late-night election rally for Sikander Bakht, the Janata Party candidate

from Old Delhi, we reporters were informed that there was to be a surprise announcement. The narrow lanes and by-lanes of old Delhi were teeming with curious spectators. All of a sudden, the Shahi Imam of Jama Masjid, Maulana Syed Abdullah Bukhari, arrived on the dais. The onlookers, most of whom were Muslims, cheered wildly. The Imam declared that he was endorsing the Janata Party and asked the people to vote against the Congress. It was another slap in the face for the ruling party, which had always banked on the minorities as its loyal vote bank. The atrocities of Turkman Gate, the demolitions and the sterilization drive had taken place in the Imam's backyard and he was not about to forgive the Congress. It did not seem to bother him that one of the partners in the Janata Party was the pro-Hindu Jana Sangh, affiliated to the RSS.



On 5 February, Indira Gandhi started the Delhi election campaign with a rally at the Ram Lila grounds, and I was assigned to cover the event. The organizers had done their bit to muster the numbers: schoolteachers, employees of the NDMC and the MCD, and workers of industrial units were transported in buses to the rally ground. Mrs Gandhi appeared to be in a bad mood, her face set in grim lines. Her speech was hard-hitting: she warned that there would be no return to the pre-Emergency era of indiscipline; she scoffed at the 'khichri' that was the Janata Party formation. She said if they did not like the rules of democracy as they prevailed in the country, they were free to go elsewhere. She angrily spat

out a Hindi expression against her opponents which, with my limited Bombay Hindi, I failed to catch. In the middle of the speech, the women sitting in the front row became restive and started walking out, even as Congress workers frantically gesticulated to them to sit down. Loud murmurs now arose from the crowd, forcing Mrs Gandhi to cut her speech short. Sanjay Gandhi who was initially slated to speak did not address the rally. Although my report captured the hostile mood at the rally and Mrs Gandhi's inability to hold the crowd's attention, the next day I was pulled up by my chief reporter Arun Chacko for not reporting the punchline of Mrs Gandhi's address. In the part I had missed, thanks to my inadequate Hindi, a furious Mrs Gandhi told her opponents, *'Jahannam me jao'* (Go to hell).

A day later, on 6 February, JP arrived in Delhi and an election rally was organized at the same venue. In an ingenious attempt to keep the crowds at home, the I and B minister V.C. Shukla (often described by Indira's opponents as her Goebbels), got Doordarshan to change the timings of the Sunday feature film from 4 p.m. to 5 p.m. Instead of Doordarshan's usual Sunday afternoon fare of old Hindi film reruns, he decided that *Bobby* (1973), the biggest box office hit in recent times, was to be telecast at exactly the same time as the Janata Party rally was to be held. Once again, buses were not allowed anywhere near the Ram Lila grounds and people had to walk for over a kilometre to reach the venue. The rally organizers from the Delhi Jana Sangh, Vijay Kumar Malhotra and Madan Lal Khurana, feared there would be unfavourable comparisons with the large crowds at Indira's rally the previous day.

But, as it turned out, JP and Babu Jagjivan Ram proved a much bigger attraction than *Bobby*. Thousands trudged for long distances to reach the grounds. Namita Bhattacharya, Atal Behari Vajpayee's foster-daughter, remembers driving down towards the venue and hearing muffled sounds. 'We asked the taxi driver what that noise was. He said it was the sound of people's feet. When we reached Tilak Marg it was packed with people. We had to get down and walk to the grounds.'[8]

By 5 p.m. the huge ground was a sea of humanity. The crowds spilled over into the adjacent Asaf Ali Road and Jawaharlal Nehru Marg. The audience listened with rapt attention as JP and other opposition leaders spoke. Jagjivan Ram recalled that long ago the emperor Nadir Shah had sought to change the map of Delhi at the expense of the poor, and now the DDA was trying to do the same. He explained that if he had tried to leave the government earlier it would not have been reported in the press. He had the audience in splits by declaring that one and a half bosses were ruling the country. Babu had indeed bested *Bobby*.

Now the Congress began to get seriously worried. While Mrs Gandhi still presumed that she would win the elections, she feared her margin of victory was likely to be less than had been estimated. The tenor of her speeches changed. She was no longer threatening but conciliatory. She apologized if there had been any excesses in the family planning drive and assured that there would be no compulsion in the future. She also kept saying that Jagjivan Ram and the Opposition had stabbed her in the back.

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In our family, too, things began to look up. Subramanian Swamy had decided to return home from the USA, although there was a warrant for his arrest and over a dozen cases against him, including criminal cases for not appearing before a magistrate and charges under FERA, DIR and the Passport Act. Om Mehta had made it clear that the law would take its course if he returned. We feared that Swamy would be arrested as soon as he landed at Bombay's Santa Cruz airport. My mother put aside her reservations about getting the family further involved in politics and, in the spirit of family solidarity, went to the airport to receive him. My sister Roxna and her daughters remained in Delhi. At the airport, my mother found a large number of people gathered outside the terminal, waiting to see whether Swamy would be taken into custody on arrival. The Bombay Police asked for instructions from Delhi about what they should do with Swamy. After half an hour the message came: Swamy was not to be arrested.

Two days later Swamy arrived at the New Delhi railway station by the Rajdhani Express. A noisy, exuberant crowd thronged the platform to welcome him, and he was carried out on the shoulders of the slogan-shouting mob. His younger daughter, Suhasini, was in tears because she lost her rubber slipper in the melee.

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February 1977 was a particularly eventful month. President Fakhruddin Ali Ahmed, who had gone on an official visit to Malaysia, returned home on 10 February, having cancelled his engagements on the last day and cut short his tour because

he was feeling so unwell that even the guard of honour at the airport was dispensed with. For reasons that will never be known, Mrs Gandhi tried to reach him late at night on the telephone. Ahmed is believed to have told her that he would talk with her the next morning. At 6 a.m. Ahmed's wife found him lying unconscious in the bathroom. He was rushed to hospital where he was declared dead from a heart attack. The capital was abuzz with rumours about his sudden death and the reason for Mrs Gandhi's late-night call. Some claimed that she wanted the President to withdraw the notification for the elections, which he had signed a few days earlier. Another story making the rounds was that she had tried to get a rule passed that all those who had been detained under MISA should be barred from standing for elections. Mrs Gandhi was rattled enough by the whisper campaign to issue an official statement stating that there was no truth in the rumours that Ahmed was against the Emergency and wanted to resign.

For Mrs Gandhi there was more bad news ahead. Her seventy-six-year-old aunt Vijaya Lakshmi Pandit, Nehru's favourite sister with whom Mrs Gandhi never had the best of relations—indeed she had once even denied her permission to stay overnight at the Nehru family home, Anand Bhavan, in Allahabad—came out of retirement to offer the Opposition all help in their fight against the Congress. In an interview to the *New York Times*, Pandit, a former ambassador to the US and Britain, confessed that she was profoundly troubled at the course the government had taken. Dissent was the essence of democracy, she said, while declaring she was joining Jagjivan Ram's CFD.

In Delhi it became pretty apparent which way the wind was now blowing. On a reporting assignment at the lower courts at Tis Hazari, I witnessed an extraordinary sight. George Fernandes was expected for a court hearing in the Baroda dynamite case and there were some three dozen JNU students clapping their hands and shouting full-throatedly, *'Jail ka phatak tod do, George Fernandes ko chhod do'* (Break the gates of prison, release George Fernandes). Nobody stopped them. Tears welled in my eyes: such a demonstration would have been unthinkable less than a fortnight ago. The floodgates had been opened—now there was no turning back the waters.

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Although censorship was officially still in force, the *Indian Express* went ahead to boldly expose the various atrocities that had taken place during the Emergency. Whenever I went to cover an opposition rally I was greeted with a warmth bordering on reverence when I mentioned that I represented the *Express*. People rushed to tell me how much they admired the paper's courage, and regaled me with stories about how the newspaper was treasured and passed around from one household to the next. In my long career in journalism, I have never received such adulation ever again. On the other hand, my friend Nandini Chandra, who was a reporter for the *Hindustan Times*, found herself constantly on the defensive the moment she disclosed which newspaper she worked for. Most *Hindustan Times* reporters pleaded that they did not support the newspaper management's editorial policies. But they still found themselves at the receiving end of the public's contempt, even abuse.

The circulation of the *Express* soared. In Delhi it went up from some one lakh copies to around three lakh a day, and it became difficult for the newspaper to cope with the demand. Thousands of long-time *Hindustan Times* readers telephoned to say they were cancelling their subscriptions and switching to the *Indian Express*. Our office received numerous complaints that the vendors were not delivering copies because the newspaper was in short supply. There was a graph in deputy editor Ajit Bhattacharjea's office showing the dramatic rise in the newspaper's circulation.

The newspaper carried many reports on the Emergency excesses which other newspapers were too timid to use. One of my reports with the headline 'For some the 19 month nightmare continues' described the tragedies of three ordinary families whose lives had been wrecked by the Emergency. One of them was the Kapil family. Baijnath Kapil, a Jana Sangh supporter, died of a heart attack in Delhi's G.B. Pant Hospital. He had been ailing for long in prison, but the authorities transferred him to hospital only four days before his death. His distraught wife, who used to hang around the hospital wards all day, hoping to get a glimpse of him, was permitted to meet him only twice briefly in his last days. Kapil's chemist shop had to close down because there was no one to look after it—his son Ashok Kapil was also in jail. When he finally got bail he walked eagerly towards the jail compound gate to meet his family, only to be rearrested under DIR. The family was reduced to penury and had to open a small tea shop to survive. After my report appeared, several people came up to me to say that they were unaware such atrocities were taking place and they felt ashamed that they had not understood what was happening during the Emergency.

My colleagues Suman Dubey and Ashwini Sarin described in graphic detail the ruthless sterilization drives in villages such as Pipli and Uttawar where protesting villagers were mowed down by police bullets. Congress politicians campaigning in north India soon discovered that Sanjay's sterilization drive had given the entire party a bad name. Mrs Gandhi's constituency, Rai Bareilly, had not long before received an award from the state government for the 40,000 'voluntary' sterilizations performed in the district. Now, that very figure came to haunt her as her as voters in her constituency finally felt able to express their real feelings of outrage.

Congress leaders quickly struck a conciliatory note during the election campaign. In an election speech at Meerut, Indira Gandhi urged her audience to forgive and forget. 'If any excesses have been committed, we will look into it,' she assured. The normally abrasive Bansi Lal apologized with folded hands in his home town of Bhiwani, urging people to forgive him and give him their vote. His argument was that Bhiwani had for the first time ever been represented in the Central government and if he were defeated such an opportunity might never come again.[9] The only one who did not seem to have gauged the public mood and the havoc his five-point programme had wrought was Sanjay, who in his speeches in Amethi was still boasting about his family planning drive. When the local landowner, the Raja of Tiloi, gently tried to persuade him to steer clear of this issue, on which local passions ran high, Sanjay dismissed his advice. He insisted the programme was a good one and he would continue to speak about it.[10]

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In the run-up to the elections I was assigned to cover the East Delhi constituency, across the Yamuna, where H.K.L. Bhagat, one of Mrs Gandhi's trusted ministers and a powerful Delhi Congress leader, was contesting against the CFD candidate Kishore Lal. A former Congress corporator, Kishore Lal had quit the party soon after Jagjivan Ram's defection. East Delhi was regarded as the safest seat for the Congress in the capital. It had remained faithful to the party even when the Jana Sangh had swept the other Delhi constituencies in 1967. In those days, it was mostly the poor who lived across the Yamuna—nearly all the new resettlement colonies were located in this far-flung part of the city. I felt that the constituency would provide a good indicator of the electoral mood in Delhi. If the Congress lost from East Delhi then it had no chance anywhere else in the capital. Together with the *Express* photographer R.K. Sharma, I tramped up and down these resettlement colonies and the dingy lanes of Shahdara, trying to gauge the political wind. Many people grumbled about the sterilization and demolition drives, but some, inexplicably, still doted on Indira amma and her 'love for the poor'. On balance, it seemed to me that the Janata Party certainly had a clear edge. I feared that my own biases and wishful thinking might be clouding my judgement. But even if the Congress lost all its seats in Delhi, what about the rest of the country? Mrs Gandhi had a larger-than-life image: she was a cult figure. I assumed that she would win nationally, even if she lost in Delhi. My modest hope was that it would be a narrow victory that would not allow any more scope for constitutional amendments.

Apart from politicians who had joined the Opposition, others too were coming forward to be counted. For instance,

several senior academics, including V.M. Dandekar, the head of the Gokhale Institute of Politics and Economics, Pune, Dr C.T. Kurien of the Madras Christian College, Dr D.T. Lakdawala, director of the department of economics in Bombay University, Dr Aloo Dastur, the head of the department of civics and politics, Bombay University, and Dr M.L. Dantwala of the Indian Society of Agricultural Economics, signed a statement urging people to elect those who would not permit a revival of the nineteen lamentable months of the Emergency.

A section of the usually politically timid Hindi film industry also decided it was time to take a stand. Dev Anand and his brother Vijay Anand took the lead along with Shatrughan Sinha, Danny Denzongpa and Pran. At a public rally in support of JP in Bombay, they talked about the humiliation and harassment they had suffered with V.C. Shukla as I and B minister. Vijay Anand said that the entire industry had faced immense interference from the government. They had to deal with arbitrary tax impositions and unnecessary censorship. Pran charged that Shukla had threatened artistes and film-makers with imprisonment if they did not cooperate with the government. Shatrughan Sinha said he had wanted to meet JP and Jagjivan Ram, both of whom were from his home state and personally known to him, but an official approached him at a party and threatened that he would be arrested in the Baroda dynamite case if he did so. He also received an anonymous call warning of income tax raids. Some film stars remained loyal to the Congress. Sunil Dutt and Nargis campaigned for the ruling party and were booed and hissed at a meeting in UP. They came to the *Express*

office to recount their unhappy experience to our film correspondent Anil Saari. After the film stars it was the turn of the producers. Shree Ram Bohra, president of the Indian Motion Pictures Producers' Association, accused Shukla of bullying and blackmailing the industry. Shukla had forced the industry to sell off shares in the Indian Motion Picture Export Corporation at 20 per cent of the share value.

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Mrs Gandhi, who was suffering from an attack of herpes on her face, struggled on valiantly despite her painful affliction. Often she covered her face with her sari pallu to hide the welts. (Unaware of her condition, we thought she was putting on an ultra-conservative look for the benefit of rural voters.) She covered some 40,000 kilometres, addressed 244 election meetings and visited every state except Jammu and Kashmir and Sikkim. But as a seasoned campaigner, she could make out that this time something was different. The old chemistry, the rapport with the crowds, was missing. The people listened politely but remained silent when asked whom they would vote for. Many in the audience recounted tales of harassment under the Emergency rule. At times the crowds expressed their resentment openly. For instance, government employees who had gathered during their lunch break to attend an election rally at Delhi's Boat Club on 1 March were distinctly hostile. They refused to join in the slogans raised by the Congress candidate from New Delhi, Shashi Bhushan. *'Bolo Indira Gandhi ki jai,'* Bhushan urged. He was met with a deafening silence. At first he thought the mikes were not

working, but then the truth slowly began to sink in. The audience started gesticulating and laughing mockingly. The PM had never been treated so disrespectfully by the people of Delhi. People started walking out even before Mrs Gandhi had finished her speech.

Several irreverent jingles against the Congress were coined. One catchy campaign ditty making the rounds was a take-off from the *Bobby* song *'Jhoot bole kaowa kate'*. It went:

Jhoot bole, Janata kate,
Kale Jagu se dariyo
Main Italy chali jaoongi . . .

Tu Italy chali jaayegi,
Main warrant le ke aaunga
Tu hotel mein ghus jayegi
Main bulldozer le ke aaonga . . .

Tu bulldozer le ke aayega
Main Maruti mein chhup jaoongi . . .

Main Italy nahin jaoongi
Main janata mein mil jaoongi

Frantic instructions were sent to the chief ministers to offer sops in a bid to win votes: power rates were lowered, house rent exemptions granted, additional dearness allowances (DA) offered, rent and medical facilities were promised to government employees, and land revenue and agricultural income taxes were lowered.

Trade unionists, students from Bombay and Delhi universities, and sympathizers from all over the country descended on Muzaffarpur in Bihar, to campaign for George Fernandes, who was still in jail. Cardboard cut-outs depicting Tihar jail with the figure of Fernandes handcuffed and behind bars were taken in processions by students. George's mother, Alice, and his brother Lawrence, recovering from his terrible torture at the hands of the police, joined the campaign. Sushma Swaraj was one of Fernandes's many enthusiastic supporters and it was in Muzaffarpur that her oratorical abilities first came to notice. 'Chant after me: George, George, George,' she declaimed, clapping her hands.

A few days before the polls, a Samachar report late at night claimed that Sanjay had been shot at by unknown assailants while travelling in a jeep in Amethi. The report appeared suspect, with the incident manufactured to get sympathy votes. Sanjay had miraculously escaped any injury after five bullets had supposedly been shot at the jeep in which he was travelling. The perpetrators of the crime were never found. Samachar kept relaying the news, but no one took it very seriously. Even his mother's reaction was fairly mild.

As the day for voting approached, the air was thick with rumours that the government had some ace up its sleeve. Some feared mass-scale rigging. Others talked darkly of the invisible ink on ballot papers.* One story doing the rounds was that Mrs Gandhi would impose martial law if she lost. But army chief General T.N. Raina tried to assuage such fears by announcing firmly at a Rotary meeting that the army

* These were the days before electronic voting machines (EVMs), when voting was done on paper and counting of votes, manually.

would not be dragged into the political sphere. R.N. Kao, the RAW chief, who had begun to suspect defeat was in the offing, suggested to Mrs Gandhi that he would position armed paramilitary forces around her house in case the mobs turned violent. She refused to consider the possibility and merely asked him to look after the safety of her children.[11]



There was heavy turnout in all four rounds of voting between 16 and 19 March. In Delhi there were long, winding queues outside the polling booths. Both parties claimed that this was a positive sign for them. Some Janata Party activists were so convinced that the Congress was up to double-dealing that they took their bedrolls with them and spent the nights before the counting at the place where the ballot boxes were stored. Volunteers brought meals to those standing guard.

It was a nerve-wracking period of waiting. I remember having tea with my colleague Anjali Pal at the India International Centre and thinking one's whole future depended on the next day's outcome. Mrs Gandhi would be unrelenting if she returned to power with a large majority, and Sanjay would be unstoppable.

On the D-Day, 20 March, I set off for the counting hall in Shahdara an hour late, thinking it would take that long to complete the formalities before the actual counting of votes. On the bus to Shahdara one man announced triumphantly to all the passengers that Kishore Lal was ahead by 10,000 votes. But when I reached the counting centre, the boxes had not even been opened. The Congress agents had put

forward a series of objections, all of which were baseless. The wrangling went on until after lunchtime. The ADM B.P. Mishra listened impassively to arguments from the polling agents of both parties. Finally, the wax seals were broken, the ballot papers stacked in bundles, and the suspense was soon over. Even before they started counting the first round, the verdict was obvious. The piles of ballot papers for the Janata Party were more than double of those for the Congress. There were scenes of wild jubilation all around. I came across my two acquaintances from the Delhi IB, Mutt and Jeff, who were making their rounds collecting the news. I seized the opportunity to intercede for a colleague: 'Can you do something for *Express* reporter B.M. Sinha who is still in jail?'

'By tomorrow everyone will be out of jail,' they predicted.

I had to rush back to file a report for the newspaper's *dak* (early) edition on the voting trends so far in Delhi. When I reached the *Express* office by late afternoon the overall nationwide picture was still hazy. Samachar was concentrating only on results from south India where the Congress was marching ahead. As I was typing out the dak report, the news editor Piloo sahib came up to me and said gravely, 'It looks like a north–south divide.' Piloo sahib had started his career in the Congress mouthpiece, the *National Herald*, Lucknow, and I suspected his sympathies still lay with the Congress. Suddenly, there was an excited shout from the news desk. Our correspondent in Lucknow had called up with the momentous news that Mrs Gandhi was trailing in Rai Bareilly. Raj Narain, who likened himself to Hanuman and whom no one including his own party took very seriously, was ahead of the PM. The whole newsroom was abuzz. If

Mrs Gandhi was trailing, surely the rest of her party must be facing a similar plight.

I was dispatched to other counting centres in Delhi in the battered *Express* vehicle, known as the 'dog van', which distributed newspapers in the early morning, to report on the trends from different parts of the city. When I arrived at the Sadar centre, practically everyone in the counting hall, including the candidates, trooped outside to ask me what was happening in the rest of the country. (The Sadar result was so obvious that everyone had lost interest in the counting.) They were stunned when I told them, 'Mrs Gandhi is trailing in Rai Bareilly.' I was bombarded with the question, 'By how much?' In my excitement I had forgotten to find out.

By late evening Samachar could no longer put off announcing the results of the victorious Janata and CFD candidates in north India. In UP, Bihar, Punjab, Haryana, Delhi and Himachal Pradesh it was a clean sweep for the anti-Emergency forces. In Rajasthan and Madhya Pradesh the Congress had managed to wrest one seat in each state.

Outside the *Indian Express* office we had an old-fashioned billboard where the latest results were put up manually, along with the major headlines in block letters. Each time a fresh Janata victory was shown on the board there were wild cheers from the crowds gathered there. Coins were showered on the man putting up the results. Some people were doing the bhangra, others were laughing and joking, *'Mummy meri car gayee, beta meri sarkar gayee'* (Mom, my car is gone; son, my government is gone). Old-timers said that they had not witnessed such public exuberance since Independence Day in 1947.

An anonymous benefactor stopped by in a black car and distributed some 100 tandoori chicken dishes to the people standing near the billboard. He promised to return with more. The crowds outside our office were far larger than those outside the *Times of India* next door, as we were associated with the Janata victory, and we were much faster on the draw. By late evening the *Express* had announced: 'Mrs Gandhi trails in Rai Bareilly'. The jubilant crowd burst firecrackers. The *Times of India* refrained from announcing the news of Mrs Gandhi's impending defeat till many hours later. A Sikh gentleman came forward and taunted the man putting up the figures on the *Times of India* billboard, promising him Rs 100 if the *Times* had the guts to put out the Rai Bareilly result. Bahadur Shah Zafar Marg, New Delhi's Fleet Street, was buzzing with excitement late into the night. Bliss was it to be alive that day.

Later, we learnt the reason for the delayed announcement of the final Rai Bareilly tally. Raj Narain had established a sizeable lead over Mrs Gandhi. But by 10 a.m. the counting started slowing down. The returning officer was badgered every five minutes by calls from R.K. Dhawan and Om Mehta in Delhi. With defeat staring the Congress in the face Makhan Lal Fotedar, Mrs Gandhi's election agent, demanded a re-poll. The brave returning officer Vinod Malhotra stood his ground: he said he would give the Congress agent fifteen minutes to substantiate his case for a re-poll, otherwise he would have to announce the result. Outside the courtroom where the counting was taking place, thousands had gathered, determined not to allow any monkey business. Although the counting was over by 1 a.m., the result was not declared until 3 a.m.

Pupul Jayakar describes the desolate scene at 1 Safdarjung Road, Indira Gandhi's residence, where she learnt of Mrs Gandhi's impending defeat. Mrs Gandhi was stoic: 'Pupul, I have lost. It happens.' 'But not to you, Indira,' protested Jayakar, 'Not to you.' At the dinner table Sonia was crying quietly. Rajiv was grim and tight-lipped. Sanjay had still to return from Amethi, where he too had lost the election. As Jayakar was leaving around midnight Rajiv said to her, 'I will never forgive Sanjay for having brought Mummy to this position. He is responsible. . . . I had spoken to her about Sanjay and what people were saying on several occasions but she refused to believe.'[12]

The Janata Party won 270 seats, the CFD 28, the CPI(M) 22. The Congress was down to 153 seats. Mrs Gandhi lost by 55,000 votes, Sanjay by over 75,000 votes and Bansi Lal was defeated by 1,61,000 votes. George Fernandes won the Muzaffarpur elections by an astonishing margin of 3,00,000 votes, although he was behind bars and had not set foot in the constituency.

Most of the cabinet ministers lost their seats. At an early-morning cabinet meeting, Emergency laws were repealed. The nightmare was finally over.

15

Epilogue

Indira and Sanjay Gandhi's resounding defeat in the March 1977 general elections bore triumphant witness to the vibrancy of India's democracy, which twenty-one months of oppressive dictatorship had failed to crush. But, alas, it did not usher in a golden era in Indian politics—the euphoria soon evaporated. In the months and years that followed, several political alliances turned out to be short-lived; and many politicians and bureaucrats saw their fortunes plunge and then rise again, proving a couple of old adages: that in politics there are no permanent friends or enemies; and that Indian politicians are remarkably resilient, often bouncing back years later from ignominious defeat and oblivion. As the brief notes below on the afterlives of the main players in the Emergency drama show, many of them would return to power, their past misdeeds forgotten and even forgiven.

Indira Gandhi

After she ceased to be prime minister, Mrs Gandhi was obliged to leave her spacious 1 Safdarjung Road residence for a modest government bungalow at 12 Willingdon Crescent, which had officially been allotted to close Gandhi family friend and confidant Mohammed Yunus. She was a lonely figure, much reviled by the media which, after so many months of enforced silence, now revelled in exposing the Emergency excesses.

The Janata government, goaded by Home Minister Charan Singh, was determined to settle scores with Mrs Gandhi and instituted several commissions, most notably the Shah Commission,* to investigate the past misdeeds of her government.

With her back to the wall, Indira Gandhi fought to protect herself and her son. As early as August 1977, she ventured out into the public arena and effectively demonstrated that she had not lost her special touch in connecting with the masses. She set off on elephant back in torrential rain to visit the submerged village of Belchi in Bihar where landless Harijans had been massacred by the Bhoomihars. Her dramatic journey to console the victims made headline news and riveting front-page photographs.

Mrs Gandhi also had a showdown with her own party, since most of her former ministers had ratted against her before the Shah Commission and blamed her for all the wrongdoings of the Emergency. On 3 January 1978 the Congress party split, with most of the party's senior leaders siding with the Congress Working Committee presided

* See chapter 1.

over by Brahmananda Reddy, which expelled Mrs Gandhi. Seventy-six MPs joined the Congress led by Swaran Singh as president, referred to as the Congress(S).

Seventy MPs stuck with Mrs Gandhi's party, named the Congress(I). Soon after it was formed, Mrs Gandhi's truncated party showed its mettle by winning the assembly elections in both Andhra Pradesh and Karnataka.

In November 1978, Indira Gandhi stood for the parliamentary by-election in Chikmagalur, Karnataka, and won despite the best efforts of George Fernandes and other Janata Party leaders to defeat her. Mrs Gandhi campaigned on the issue of rising prices and poor governance by the Central government. Her stay in Parliament was short-lived—the Janata Party filed a breach of privilege against her, raking up an old case in which she as PM in 1975 had ordered CBI action against officers in the industries ministry who had dared to investigate Maruti. She was sent to prison for a week and expelled from Parliament. She refused to apply for bail and instead summoned the media to witness the attempt to persecute her. Sonia came every day to the prison, bringing with her home-cooked food.

Charan Singh's attempts to prosecute Mrs Gandhi backfired. The charges against her could not be substantiated and she emerged a political martyr. Public sympathy slowly turned in Mrs Gandhi's favour. Within three years of Indira Gandhi's humiliating defeat in the March 1977 elections, the tables turned completely. The Janata government led by Morarji Desai as PM was riven apart by internal rivalries, bickering and jealousy. Mrs Gandhi and Sanjay worked quietly behind the scenes to split the fractious and badly

divided Janata Party, playing on Charan Singh's ambitions to become prime minister. Charan Singh was an easy prey, who was bowled over when Mrs Gandhi sent him flowers on his birthday. The government fell before the special courts set up by the Janata government to follow up the Shah Commission report could become functional. In the general elections of January 1980 Mrs Gandhi scored a sweeping victory.

Mrs Gandhi was back as PM but she never fully recovered from Sanjay's death in a plane crash in June 1980. She grew estranged from Sanjay's widow, Maneka Gandhi, and they parted bitterly. Her elder son, Rajiv Gandhi, was groomed to take Sanjay's place.

Violence and terror in Punjab escalated in the early 1980s, with Jarnail Singh Bhindranwale leading the call for a separate state of Khalistan. On Mrs Gandhi's orders, on 5 June 1984, the Indian Army surrounded and entered the Golden Temple in Amritsar and in a bloody siege shot dead a large number of armed militants, including Bhindranwale, who were taking shelter inside. Several innocent people in the temple at that time were killed as well. On 31 October 1984, while walking in her compound Mrs Gandhi was gunned down by her own Sikh security guards, Beant Singh and Satwant Singh, to avenge the military attack on their sacred shrine.

Sanjay Gandhi

Sanjay Gandhi, along with his wife Maneka, who ran a magazine called *Surya*, helped Mrs Gandhi in bringing about the fall of the Janata government. Sanjay succeeded in sowing the seeds of mistrust between the main players in Morarji Desai's cabinet. *Surya* carried a campaign against the key

figures in Desai's government, even publishing embarrassing photos of Jagjivan Ram's son Suresh Ram in the nude with a college girl.

Sanjay, who had resigned from the Congress at the start of the Janata regime, was sentenced, along with V.C. Shukla, by a lower court to two years' imprisonment for destroying the master negative of the film *Kissa Kursi Ka*. He filed an appeal in the high court. But at one stage his bail was cancelled and he had to spend some nights in jail, giving his mother some anxious moments. Sanjay's Youth Congress brigade acted as his cheer squad whenever he made a public appearance. One of his storm troopers, Bhola Pandey, brandishing a cricket ball, which was assumed to be a grenade, hijacked a Delhi-bound Indian Airlines plane from Kanpur, demanding the withdrawal of all cases against Indira Gandhi. Upon the Gandhis' return to power he was rewarded with an assembly ticket.

In the 1980 general elections Sanjay was elected from the Amethi constituency and entered Parliament along with some 150 of his nominees. Mrs Gandhi did not appoint Sanjay to any official post but continued to rely on his advice for important issues in the party and government. He was her undeclared successor.

Sanjay must be given credit as a talent spotter. Many of the key players in the Congress in later years were his protégés. These include Pranab Mukherjee, Kamal Nath, Ambika Soni, Ghulam Nabi Azad, Ahmed Patel, R. Gundu Rao, Ashok Gehlot, Digvijaya Singh, Jagdish Tytler, Vayalar Ravi, Kalpnath Rai, Anand Sharma, (Dumpy) Akbar Ahmed, Ram Chandra Rath and Gufran-e-Azam. In

some ways V.P. Singh and Arjun Singh also owed their rise in the party to him.

On the morning of 23 June 1980 Sanjay along with a flying instructor Captain Subhash Saxena took a Pitts S-2A, a two-seater plane, on a joyride. He wanted to try out some aerobatic stunts. Sanjay lost control during an aerobatic loop. The plane dived nose-first into the ground, killing both occupants instantaneously. The crash happened close to the Safdarjung airport in Delhi, just a few kilometres from his mother's residence. His heartbroken mother rushed to the accident spot to claim her son's watch from his mutilated body.

Maruti Ltd was liquidated in 1977. A commission of inquiry headed by Justice A.C. Gupta was appointed to look into the company and it came out with a damning report. A year after Sanjay's death, the Central government, at Mrs Gandhi's behest, salvaged Maruti Ltd and began a search for an active collaborator. Maruti Udyog was incorporated and it entered into a joint venture with Suzuki of Japan, which specialized in the manufacture of small cars. In February 2012 the company sold its ten-millionth vehicle in India.

The Janata Government

The Janata Party government, with Morarji Desai as PM, came to power on the crest of a huge wave of popular support and hope. But it fell apart in less than three years because of bitter internal wrangles. There was a deep discord and disconnect among several Janata leaders, which could not be papered over despite JP's best efforts. Charan Singh never reconciled to being bypassed as PM. He grumbled to interlocutors,

including my husband, Virendra, 'Look at the injustice . . . Someone who has won with lakhs of votes is sitting here as home minister and someone who barely scraped through with a margin of 20,000 is prime minister.'

Playing on his discontent, Sanjay Gandhi used the services of controversial godman Chandraswamy to hold secret meetings with Charan Singh's lieutenant, Raj Narain. The venue was Sagar Apartments on Tilak Marg, in the flat of Sanjay's businessman friend Sagar Suri. Sanjay persuaded Raj Narain to advise Charan Singh to break away from Morarji Desai if he wanted to achieve his lifelong ambition of becoming PM. He held out the carrot of Congress(I) support to a government formed by Charan Singh.

The socialists, both in and out of government, also played a divisive role. Madhu Limaye, who had refused to take ministerial office, opened a front against the Jana Sangh component in the Janata Party, raking up its RSS connection.

Charan Singh, along with former socialists like George Fernandes and Madhu Limaye, withdrew support from the Morarji government after the leader of the Opposition, the Congress(S)'s Y.B. Chavan, moved a no-confidence vote as planned. Finding to his shock that a large number of his own MPs had deserted him, Desai stepped down as PM on 15 July 1979. The ostensible reason for the split in the Janata Party was the issue of dual membership of the erstwhile members of the Bharatiya Jana Sangh, who refused to sever links with the RSS. But it was, in fact, more a struggle for power than of ideological principles.

Charan Singh, who claimed the support of sixty-four MPs, was invited to form the government by President

Sanjiva Reddy. Desai, who is believed to have still had a larger number of MPs backing him, recommended a fresh poll. But Reddy, who his detractors charged nursed an old animosity towards Desai, chose instead to invite Charan Singh to form the government. Charan Singh was duly sworn in as PM, but his claim of a majority could never be put to the test in Parliament since he had perforce to resign within days on 20 August 1979 as Mrs Gandhi withdrew her offer of support of her seventy MPs. Charan Singh was asked to continue as caretaker PM until elections were held in early 1980.

Mrs Gandhi's Congress(I) returned to power with a thumping majority. She won 351 seats out of the 529 Lok Sabha seats on a heady promise of a performing government. *'Vote unhey dein jo kam kar sakein'* said the posters. Although Mrs Gandhi portrayed the Janata Party as a bunch of squabbling non-performers, the Desai government's record on socio-economic indices was fairly respectable. It was the image of the internal squabbles and a lack of cohesion at the very top that harmed it immensely. The Janata Party, Charan Singh's BLD and the Congress(S) were decimated at the polls. After the elections, the former Jana Sangh members broke from the Janata Party and formed a new party, the Bharatiya Janata Party (BJP) at a convention in Bombay in 1980.

The Shah Commission

The Shah Commission was appointed by the Morarji Desai government on 28 May 1977 under the Commissions of Inquiry Act to look into the excesses, malpractices and misdeeds during the Emergency or immediately before. It was headed by Justice J.C. Shah, a former Chief Justice of

India. The commission began hearings on 29 September 1977. The commission's three reports provide invaluable material on the manner in which the country was governed during the Emergency. The affidavits by witnesses highlight the cowardice of public servants and government officers, who meekly accepted and carried out unconstitutional orders. It is also a testimony to the illegal power wielded by Sanjay Gandhi. The commission was in the nature of an investigation rather than an inquiry. However, since the accused persons were not allowed to cross-question investigators or witnesses there were those who dubbed it a kangaroo court. Mrs Gandhi refused to give evidence before the commission, claiming that she was not legally bound to do so. A case was registered against her in a Delhi magistrate's court for defying the commission.

The Shah Commission submitted its third and final report on 6 August 1978. A committee headed by L.P. Singh was appointed for suggesting action on the basis of the Shah Commission findings. Parliament passed an act instituting two special courts on 8 May 1979 to ensure speedy trial of the Emergency cases, which ranged from illegal imposition of an Emergency to wrongful arrests of thousands and illegal orders in relation to sterilization drives and slum clearance programmes. Processing the commission's findings, however, became a casualty to the political events in the country. Morarji Desai's government fell on 15 July 1979 and Charan Singh was unable to prove his majority in Parliament. In fact, Mrs Gandhi cited the institution of special courts to fast-track cases pinpointed by the Shah Commission as the reason for withdrawing support to Charan Singh.

After she came back to power in 1980, Mrs Gandhi disbanded the L.P. Singh committee and withdrew the cases instituted in the special courts. Mrs Gandhi also made sure that all copies of the Shah Commission report in libraries and government institutions were withdrawn and destroyed. This is why very few copies of the original Shah Commission report exist today. Veteran parliamentarian Era Sezhiyan in 2010 used his personal copy of the Shah Commission report to edit and reproduce the report's findings. He republished them in a book, *The Shah Commission: Lost, and Regained.*

Jayaprakash Narayan

When the Janata government was formed in 1977 it was JP who acted as mentor and mediator, and tried to keep the ambitions of feuding leaders in check. But JP was in frail health and was unable prevent the open warfare that broke out by 1978. He temporarily patched up the differences between Charan Singh and Morarji Desai but it did not last for long. In March 1979, JP suffered a cardiac arrest but was revived with prompt shock treatment. A rumour that he had died reached Delhi and an IB report passed on the news to PM Morarji Desai, who made the announcement of JP's death in Parliament. He later had to apologize and explain that there had been a miscommunication.

JP lingered on for some months. He died three days before his seventy-seventh birthday, on 8 October 1979, in Patna of diabetes and heart failure, his dreams of an inspiring alternative to Mrs Gandhi's dictatorial regime completely shattered. (Mrs Gandhi had met JP shortly before his death to patch up relations.) Some 50,000 mourners gathered outside

JP's house in Patna when they heard the news of his death and lakhs followed the funeral cortege. Charan Singh, who by then was a lame-duck PM, announced seven days of national mourning.

Morarji Desai

His tenure as PM from 1977 to 1979 was dogged by controversy. The octogenarian Desai, uncompromising and rigid in his views, was not suited to dealing with the squabbling Janata Party flock. He was unable to rein in a frustrated Charan Singh, anxious to step into his shoes. Desai's prime ministership was marred by infighting in the party and government, and charges of persecution of Mrs Gandhi. His son Kanti was accused of profiteering from his father's position.

However, Desai's government undid the constitutional amendments passed during the Emergency and made it difficult for any future government to impose a national Emergency. Desai re-established relations with China and tried to mend fences with Pakistan. His eccentric habit of drinking his own urine and advocating it as a medical solution for those unable to afford health care evoked much merriment and ridicule in the international media. After he was forced to step down as PM, Desai doggedly refused to surrender the leadership of the Janata party. In the 1980 elections he campaigned for the party but did not stand for Parliament. After his party's defeat he quit active politics. Pakistan honoured him with the Nishaan-e-Pakistan award in 1990, and he was awarded the Bharat Ratna in 1991. He died in 1995 at the age of ninety-nine.

Charan Singh

After the Emergency, Singh became deputy PM in the Desai government and first held the home portfolio and later became finance minister. As home minister he was in such a hurry to prosecute Mrs Gandhi that he created an embarrassment for the government by getting the CBI to hastily institute cases against her that could not hold up in court. On the other hand, he dubbed his ministerial colleagues a 'bunch of impotent people' unable to punish Mrs Gandhi. Desai called for his resignation and he quit the cabinet in June 1978. JP managed to persuade Charan Singh to return to the cabinet as deputy PM and finance minister in January 1979. As finance minister, Singh was a flop. He was so determined to prove his credentials as a leader of rural India that he imposed a series of new taxes targeting urban India, even taxing toothpaste. His brief tenure as finance minister was marked by high inflation.

Charan Singh's success in the battle to become PM of India turned out to be a pyrrhic victory. Twenty-four days after Singh took office he had to resign, in August 1979, when he could not face a confidence motion in Parliament, because Indira Gandhi who had lured him to break away from Morarji Desai had withdrawn her support. Singh claimed that the reason she went back on her word was that he refused to accede to her demand to abolish the special courts that had been set up to try Emergency-related cases.

Singh continued to lead the BLD till his death in 1987 but he never again dominated national politics. Although he had vociferously decried dynastic politics, he was succeeded in his party by his son Ajit Singh.

Jagjivan Ram

Like Charan Singh, Jagjivan Ram also expected to be made PM after the defeat of Mrs Gandhi in 1977, and he was unhappy that Morarji Desai had been chosen instead. Ram would have in all probability won had there been an election among the MPs. The parliamentarians were shrewd enough to know that he was the only one among the three contenders with the pragmatism and administrative skills to run a government with so many disparate elements. JP, however, was against an election to select the leader. He felt that Jagjivan Ram was unacceptable for the PM's post, since it was he who had introduced the bill seeking parliamentary approval for the proclamation of the Emergency. Ram showed his frustration by not attending the oath-taking ceremony for the cabinet members of the Janata government. JP later mollified him and persuaded him to join Desai's cabinet, in which he was given the post of deputy PM along with Charan Singh. He was greatly embarrassed when Maneka Gandhi's magazine *Surya* published photographs of his son Suresh Ram in flagrante delicto with a young college girl. The photographs were stolen from Suresh Ram's car by a supporter of Charan Singh, reflecting the internecine warfare within the Janata Party.

After Desai resigned as PM Jagjivan Ram assumed he would finally be chosen as the leader of the Janata Party and projected as the prime ministerial candidate, since by then Charan Singh and his followers had left the party. Desai, however, refused to step down as the leader of the Janata Party and make way for Ram. Disillusioned, Ram eventually formed his own Congress(J) party. He continued to be elected from his Sasaram constituency in Bihar till his death

in 1986. His daughter Meira Kumar joined the Congress and was Speaker in the Fifteenth Lok Sabha.

Chandra Shekhar

If the choice had been left entirely to JP, Chandra Shekhar would have been his nominee for PM in the post-Emergency era. But Chandra Shekhar was young at that time and did not enjoy the support of a large number of the MPs. Instead, he was appointed president of the Janata Party. It was an impossible task for Chandra Shekhar to keep his squabbling flock together. He watched helplessly from the sidelines as the three old men of the Janata fought among themselves.

After Indira Gandhi returned to power Chandra Shekhar remained president of the Janata Party, and later the Janata Dal, for a decade. He forgot his democratic principles and turned the party into his personal fiefdom. He did not permit anyone to challenge him for the post of party president. In 1989, Chandra Shekhar expected that as president of the Janata Dal he would finally be elected PM of India. But V.P. Singh was the choice of the majority of MPs in the party. A year later, in 1990, during the post-Mandal agitation, Chandra Shekhar succeeded in splitting the party. Although he had only sixty-four MPs on his side, he managed to secure the support of Rajiv Gandhi's Congress(I). He lasted only seven months in office before Rajiv Gandhi pulled the rug from under his feet. After this, Chandra Shekhar largely lost his relevance in politics although he continued to be elected consistently from his Ballia constituency in UP on the Samajwadi Janata Party ticket. He died in 2007 at the age of eighty.

Nanaji Deshmukh

Morarji Desai wanted to make Nanaji Deshmukh, who was elected from Balrampur, a minister in his cabinet. But Nanaji turned down the offer and nominated the low-key Brij Lal Verma to head the ministry of communications in his place. Nanaji played an active role as firefighter and peacemaker, trying to save the Desai government during 1978 and 1979. But despite his best efforts he could not do much. He continued to remain in close touch with JP and Ramnath Goenka. In 1980, when he turned sixty, he resigned from political life and created a ripple by suggesting that other elderly politicians should follow his example. He devoted himself to his social work and managing the Deen Dayal Institute that propagated the values of Deen Dayal Upadhyaya's integral humanism. Nanaji pioneered several anti-poverty schemes in agriculture and cottage industry in UP and Madhya Pradesh. He set up a model village in Chitrakoot that became the centre of his social work movement, which included rural health schemes and education. He died in 2010 at the age of ninety-three, a much-revered figure till the end of his life.

A.B. Vajpayee

Atal Behari Vajpayee served as an able minister for external affairs in Morarji Desai's government. The ministers from the erstwhile Bharatiya Jana Sangh worked smoothly with Desai, and were not engaged in the power struggles that engulfed the other constituents of the Janata Party. However, their refusal to dissociate themselves from the RSS was the pretext for bringing down Desai's government. In 1980, after Vajpayee left the Janata Party coalition, he became a

founder-member of the BJP along with L.K. Advani. He was prime minister of India from 1998 to 2004. After he lost the elections in 2004 Vajpayee has been in retirement, bedridden after a stroke.

George Fernandes

All cases against George Fernandes were withdrawn immediately after the Janata Party came to power. Fernandes reluctantly agreed to be minister for industries in Morarji Desai's government and it was during his tenure that the multinationals IBM and Coca Cola were asked to leave the country for violating foreign exchange regulations. In the vote of no-confidence against the Desai government in 1979, Fernandes made an impassioned speech defending the government in Parliament. 'What is your benchmark?' he queried as he cited facts and figures of the administrative successes of the Desai government. However, after such a scintillating defence of the government, Fernandes surprised friends and foes alike when the next morning he joined forces with the anti-Desai group. Madhu Limaye had worked on his socialist colleague, convincing him to stand firm on the issue of asking members of the erstwhile Jana Sangh to dissociate themselves from the RSS.

Fernandes was railway minister in the government of V.P. Singh between 1989 and 1990. In 1994 he was an ally of the BJP and when Atal Behari Vajpayee became PM in 1998 Fernandes was appointed defence minister. A sting operation by *Tehelka* dented his image and his office was accused of accepting bribes. An inquiry commission subsequently absolved him of wrongdoing.

In 2009 Fernandes fell out with his old friend Nitish Kumar, chief minister of Bihar, and he was denied the party ticket to fight from Muzaffarpur constituency on the grounds of his ill health. He stood as an independent and lost. Fernandes is now in fragile health both mentally and physically.

L.K. Advani

Appointed minister for information and broadcasting in the Morarji Desai government, L.K. Advani left the Janata Party in 1980 on the issue of dual membership of the RSS, and together with Vajpayee became a founder-member of the BJP. He was considered the hardliner in the party, in contrast to Vajpayee, who was seen as the party's more liberal face. He built up the BJP on the Hindutva platform by taking out a rath yatra (road show) to propagate the building of a temple to Lord Ram on the site of the Babri Masjid in Ayodhya, UP. In the bargain, his party withdrew support to the V.P. Singh government in 1990.

In 1998, when Vajpayee was elected PM, Advani was appointed home minister. Later he became deputy PM. Advani considered himself the natural successor to Vajpayee, but he fell out with the RSS in 2005 when he tried to project a liberal face by praising Mohammed Ali Jinnah, and describing the founder of Pakistan as secular. In 2009, he was the National Democratic Alliance's candidate for PM but the Congress defeated the NDA convincingly. In the run-up to the 2014 Lok Sabha elections the octogenarian Advani made no secret that he still nurtured prime-ministerial ambitions, but with the ascent of Narendra Modi, Advani was sidelined. After Modi's election as PM Advani was dropped from the

party's parliamentary board and given a merely ceremonial position as 'Marg Darshak'.

Arun Jaitley

After the Emergency, Arun Jaitley made a name for himself as a lawyer at a very young age and appeared in several high-profile cases, including the *Indian Express* building demolition case. He was appointed additional solicitor general in the V.P. Singh government in 1989, and was responsible for a fair amount of the investigative paperwork in the Bofors case. He remained an active member of the BJP, and during A.B. Vajpayee's government held several ministerial portfolios including law, company affairs, and information and broadcasting. In 2009, he was appointed leader of the Opposition in the Rajya Sabha. In 2014, he became a powerful figure in the Narendra Modi government with the portfolios of finance, corporate affairs, and information and broadcasting.

Subramanian Swamy

All the cases against Subramanian Swamy were dropped by the Janata regime. During the Janata rule Swamy fell out with erstwhile members of the Jana Sangh, particularly A.B. Vajpayee. He felt that his former party colleagues had tried to thwart his political career and deprive him of a cabinet ministership from the Jana Sangh quota. He became extremely close to Desai and after 1980 remained with the Janata Party. He was elected thrice to the Lok Sabha and has also been a member of the Rajya Sabha. He was a minister in Chandra Shekhar's short-lived government and held a cabinet post during PM Narasimha Rao's tenure, as chairperson for

the Commission on Labour Standards and International Trade even though he was in the Opposition. Swamy has been responsible for numerous exposés, including the 2G Spectrum scam and the fallibility of electronic voting machines (EVMs). He was also the driving force in pursuing the corruption cases against J. Jayalalithaa.

He used to regularly teach an economics course at Harvard in the summer session till 2011, when he was dropped by the university after some students and professors mounted a campaign against him over a controversial article he wrote, which was considered offensive towards minorities. From 1990, Swamy was president of the Janata Party rump. In August 2013 his Janata Party merged with the BJP, which in the past had often been at the receiving end of his barbs. His pro-Hindu views became more extreme over time. He remains a popular personality on television talk shows and has a large following on Twitter. However, the BJP has given him no official position in the government.

Vijayaraje Scindia

The rift between Vijayaraje Scindia and her son Madhavrao, which started because of their differences during the Emergency, never healed. The political battle between the two also extended to a bitter legal dispute between mother and son over the palaces and properties of the former kingdom of Gwalior. Vijayaraje remained a senior and much-respected leader of the BJP till her death in 2001. She was repeatedly elected to Parliament on a BJP ticket, while her son Madhavrao consistently won on a Congress ticket from constituencies in the erstwhile princely state of Gwalior.

Mother and son have both passed away but the family feud continues. Vijayaraje's daughter Vasundhara Raje is BJP chief minister of Rajasthan, while another daughter, Yashodhara Raje, is a minister in Shivraj Singh Chouhan's government in Madhya Pradesh. Her grandson Jyotiraditya Scindia was a minister of state in Manmohan Singh's government and is today the chief whip of the Congress in Parliament.

Raj Narain

Having defeated Indira Gandhi in the 1977 Lok Sabha elections, the maverick Raj Narain was appointed health minister in Morarji Desai's cabinet. Narain turned out to be an embarrassment to the government. His ministry gave up the family planning programme altogether. He attended office only sporadically, preferring to interact at his home with his large stream of oddball visitors. He resigned in 1979 over the issue of dual membership of the Janata members in the RSS and in fact played an active role in bringing down the Desai government. He was introduced to Sanjay Gandhi through the well-networked godman Chandraswamy. After 1980, the mercurial Raj Narain fell out with Charan Singh and formed his own party that had very few followers. He died in 1987, aged sixty-nine.

Ramnath Goenka

The day after the Emergency was lifted RNG wanted to rectify the injustice done to his old friend and editor S.M. Mulgaokar by bringing him back as editor-in-chief of the newspaper chain. Unfortunately, he acted with such haste

that he forgot to inform the acting editor V.K. Narasimhan of his decision. Narasimhan entered the editor's office to find Mulgaokar sitting in his chair. He was so hurt he left the newspaper, never to return, despite Goenka's efforts to bring him around and reappoint him editor of the *Financial Express*. Soon after the Janata government came to power the *Indian Express* was faced with a crippling strike followed by a lockout. This added to the plight of the newspaper chain, which had already been badly hit financially by the government's actions during the Emergency.

RNG was in close touch with Nanaji and JP, and throughout 1978 and 1979 tried to protect the tottering Desai government from the growing infighting within its ranks. For example, he refused to permit the *Indian Express* to carry an exclusive report on the discovery of Jagjivan Ram's son's incriminating nude photographs, which were later snapped up by *Surya* magazine. The newspaper backed Jagjivan Ram and Morarji Desai against Charan Singh's rebellion and described Singh's five-month government as a 'constitutional aberration'. Goenka was deeply saddened by the failure of the Janata experiment for which he had battled so hard. 'JP had led a captive nation to its second liberation,' he wrote. 'But the sapling he had planted had been cut down.' He denounced Indira Gandhi as an 'unabashed liar'. To add to RNG's heartbreak, his only son, Bhagwandas Goenka, died in June 1979.

When Mrs Gandhi returned to power in 1980, retribution was swift. The day Jagmohan was appointed Delhi's lt governor on 17 February 1980 he called for the *Express* files. Jagmohan held a press conference to charge the newspaper

with unauthorized construction in contravention of municipal by-laws and the city's Master Plan. Once again Goenka was in court, fighting to get a stay order to prevent his building from being demolished. After Mrs Gandhi's death there was a temporary truce with the government but soon the feisty press baron had taken on PM Rajiv Gandhi on a number of issues ranging from V.P. Singh's removal as finance minister, to the Bofors case and Rajiv Gandhi's behind-the scenes power struggle with President Zail Singh. Ramnath Goenka died in October 1991.

V.C. Shukla

Despite his notorious role as I and B minister during the Emergency, V.C. Shukla continued to flourish in politics. His anxiety to remain perennially in power earned him a reputation as an inveterate party hopper. He was elected to Parliament nine times from the Shukla family's constituency, Mahasamund in Madhya Pradesh. In 1977, after the Congress defeat, he deserted the Congress(I). But he was rehabilitated by Rajiv Gandhi in 1984 and made a minister. Later he quit Rajiv Gandhi's government and sided with V.P. Singh to form the Jan Morcha in 1987. He was minister in V.P. Singh's National Front government from 1989 to 1990. But, when Chandra Shekhar ditched Singh, Shukla followed suit and was appointed minister for external affairs in Chandra Shekhar's short-lived government. He then rejoined the Congress and became minister for parliamentary affairs in Narasimha Rao's government in 1991–96. In 1999 he quit the Congress once more and joined the BJP when Vajpayee was PM. But he lost the Mahasamund seat on a BJP ticket

and subsequently quit the party. He was permitted to rejoin the Congress in 2007.

At the age of eighty-four, hoping to be nominated by the Congress for the Mahasamund seat, Shukla took part in the party's ill-fated 'Parivartan Yatra' in Chhattisgarh. The cavalcade of cars returning after attending a party rally was attacked by Maoists on 25 May 2013. Shukla suffered serious bullet injuries and died on 11 June 2013 in hospital.

R.K. Dhawan

R.K. Dhawan remained loyal to Indira Gandhi through thick and thin. During the Janata regime he was investigated in several cases dealing with Emergency excesses and had to appear frequently before the Shah Commission and the Maruti Commission. But, unlike many others, Dhawan never once tried to put the blame on Mrs Gandhi. He refused to depose against her. He was temporarily imprisoned along with Mrs Gandhi by an order of the Lok Sabha on the report of the Privileges Committee of Parliament in 1978.

Dhawan became private secretary and special assistant to Mrs Gandhi when she returned as PM in 1980. He was by her side when she was gunned down by her security guards in 1984. During Rajiv Gandhi's regime, Dhawan fell out of favour for a while, a victim to the internal warfare within the then PM's inner circle. A commission of inquiry under Justice M.P. Thakkar investigating the assassination of Mrs Gandhi came to the extraordinary conclusion that the 'needle of suspicion points to Dhawan's involvement'. After some years, however, Dhawan was exonerated and appointed officer on special duty to PM Rajiv Gandhi in 1989.

He was subsequently elected twice to the Rajya Sabha on a Congress ticket, and was also a member of the Congress Working Committee. He was minister for urban development in 1995 under PM Narasimha Rao. A long-time bachelor, Dhawan married his companion of many years, Achala, in 2012 at the age of seventy-four. He is planning to write his memoirs.

Navin Chawla

Known for his proximity to Sanjay Gandhi, Navin Chawla was severely criticized by the Shah Commission for his role during the Emergency. Justice Shah in his report wrote that Chawla was 'unfit to hold any public office which demands an attitude of fair play and consideration for others'. However, Chawla claimed before the commission that he was a changed man after coming under the influence of Mother Teresa and was sorry for his past sins. He later wrote a biography of Mother Teresa, which was translated into fourteen languages both in India and abroad.

Despite the strictures by the Shah Commission, Navin Chawla enjoyed a very successful career in the civil service, except for a temporary punishment posting to Lakshadweep during the Janata rule. Among the posts he held were secretary, ministry of information and broadcasting, and secretary, consumer affairs. Towards the fag end of his career in the civil service a TV channel broke the story that Chawla and his wife ran an education trust that received money from Congress MPLADS (Member of Parliament Local Area Development Scheme) funds and was granted land by then Rajasthan chief minister, Ashok Gehlot.

After his retirement from the IAS, the United Progressive Alliance government appointed Chawla to the Election

Commission in 2006. The opposition NDA filed a petition with the President, protesting his appointment in the light of his known links with the Congress. In 2009, the then chief election commissioner, N. Gopalaswami, wrote to the President accusing Chawla of favouring the Congress in his duties as election commissioner. Nevertheless, Chawla was appointed chief election commissioner in 2009 and remained in that post till the end of his term in July 2010.

Kishan Chand

Taking responsibility before the Shah Commission for his actions and orders as lt governor of Delhi during the Emergency, Kishan Chand tried to shield his junior officers from the blame. He acknowledged that many of the orders he issued had come directly from Sanjay Gandhi via Navin Chawla. He testified that Mrs Gandhi had been aware of and personally involved in issuing orders for many illegal actions during the Emergency. The Shah Commission report charged him with 'abdicating his legitimate functions in favour of an over ambitious group of officers . . . he betrayed his trust and committed a serious breach of faith with the citizens of Delhi'. Shortly after the commission's report came out in 1978, Chand committed suicide by jumping into a well at the Siri Fort grounds. He left a note saying that death was better than a life of humiliation.

P.S. Bhinder

As soon as Mrs Gandhi returned to power in 1980, Sanjay ensured that Pritam Singh Bhinder was appointed commissioner of police, Delhi, superseding his seniors in the service. After Sanjay's death Bhinder was moved out of Delhi and he became

inspector general of police, Punjab. He retired as director general of police, Central Industrial Security Force. Sanjay nominated Bhinder's wife, Sukhbans Kaur Bhinder, as the Congress candidate for the Gurdaspur parliamentary constituency. Mrs Bhinder won the election in 1980 and retained the seat five times. She was also elected to the Rajya Sabha and served as a minister of state under PM Narasimha Rao. While Bhinder was Delhi Police commissioner, most of the new constables in the force were recruited from Bhinder's wife's constituency.

Rukhsana Sultana

After her years in the limelight as the 'glamorous' face of the Emergency, Rukhsana Sultana's fortunes began to fade. The divorcee eventually moved out of her rented apartment on Parliament Street, in the heart of New Delhi, where she used to hold court, and gradually disappeared from public view. She was plagued by ill health in later years and passed away in 1996 in relative obscurity, staying at a rented DDA flat in south Delhi. Although she was rumoured to have brokered several deals during the Emergency, including securing NDMC permission for constructing the five-star Taj Hotel in the heart of Lutyens's Delhi on a plot where a dilapidated guest house once stood, Sultana did not display any conspicuous signs of wealth. Her daughter, actress Amrita Singh (formerly married to actor Saif Ali Khan), has in interviews credited her stylish mother for lessons in grooming.

H.K.L. Bhagat

A loyalist of Indira and Sanjay Gandhi's, H.K.L. Bhagat, who was president of the Delhi Pradesh Congress Committee for

over a decade, from 1970 to 1983, was popularly dubbed the uncrowned king of Delhi. He won the East Delhi parliamentary constituency four times. When Indira Gandhi returned as PM in 1980, Bhagat was appointed I and B minister, and was held responsible for transforming Doordarshan into a Congress mouthpiece.

Bhagat came under a cloud for his role in the 1984 anti-Sikh riots. The largest number of Sikhs were massacred in his constituency and Bhagat was charged with personally leading an armed mob against helpless Sikhs. He was acquitted in the three cases filed against him, but indicted by the Nanavati Commission, which noted that there was credible evidence from eyewitness accounts that he had a hand in the 1984 riots. The government declined to prosecute him because of his poor health. He suffered from Alzheimer's in his last years and died in October 2005.

Om Mehta and D.K. Barooah

Both these cheerleaders for the Emergency disappeared into the political wilderness because they made the wrong decision—they did not support Mrs Gandhi post-1977. Barooah, who had gushed and showered embarrassingly effusive praise on Mrs Gandhi ('India is Indira and Indira is India') and on Sanjay during the Emergency, started making sarcastic cracks the moment she was out of power. When the case of Maneka Gandhi's mother Amteshwar Anand's export firm Indira International came up before the Shah Commission, Barooah quipped, 'I declared Indira was India and India was Indira, but even I didn't know that Indira was International.' When the Congress split he remarked

disloyally at one of his evening durbars, 'From the country's leader, she became a party leader and now she has become no more than a faction leader.'

Apart from his Emergency role Om Mehta is best remembered for the fact that his daughter married Chandra Shekhar's son.

Ambika Soni

Another one of those who made the wrong choice of deserting Mrs Gandhi after the Emergency and joining the Congress(S), Ambika Soni returned to the fold during Rajiv Gandhi's prime ministership. She was kept in the background until she emerged as one of Sonia Gandhi's most strident supporters when Sonia formally joined politics. Soni gained prominence when she forcefully pushed aside Sharad Pawar who sought to present a memorandum stating that Sonia's foreign origins made her an unacceptable choice for prime ministership. Since then, Soni was rewarded with many important posts in the party and government, including Congress general secretary, minister for culture and minister for I and B. She is presently handling the Congress president's office.

Kamal Nath

Remaining loyal to his school friend Sanjay Gandhi during the Janata regime, Kamal Nath was rewarded with the Congress nomination from the Chhindwara parliamentary seat in Madhya Pradesh. He won in 1980 and has been elected from the same constituency nine times. In fact, in the Sixteenth Lok Sabha he was selected pro-tem Speaker as one of the longest-serving parliamentarians. Kamal Nath was

a minister in the cabinets of both PM Narasimha Rao and PM Manmohan Singh, holding important portfolios, such as environment, commerce and industries, road transport and highways, petroleum and urban development. He was not, however, appointed leader of the Congress in the Sixteenth Lok Sabha despite his seniority, much to his chagrin.

Bansi Lal

The Jat leader remained a major political force in Haryana long after the Emergency. He was chief minister of the state three times, in 1968–75, 1985–87 and 1996–99. In his last stint as chief minister, he quit the Congress and formed his own party, the Haryana Vikas Party. Despite his reputation for ruthlessness and his rough, no-nonsense language, Bansi Lal was respected by the voters of Haryana for his work for Haryana's development. He died in 2006, but his family members, among them his daughter-in-law Kiran Chaudhary, are still active in politics.

Jagmohan

Even under cross-examination by the Shah Commission, Jagmohan insisted on the righteousness of his cause in the demolition drives during the Emergency, which had displaced thousands of poor people from their homes in Old Delhi. He also wrote a book, *Island of Truth*, justifying his actions. Jagmohan remained in favour with the Gandhi family. He was appointed lt governor of Delhi during 1980–84, and subsequently Rajiv Gandhi sent him as Governor of Jammu and Kashmir from 1984 to 1989 where he clamped down on militancy with a heavy hand.

He then fell out with the Congress over how to handle the Kashmir situation and joined the Congress's main political rival, the BJP. He was elected thrice as a BJP MP from the New Delhi constituency and he served as minister for urban development, tourism and communications in A.B. Vajpayee's governments. He has authored half a dozen books and is still to be seen most days in the library of Delhi's India International Centre, researching material for yet more books.

Pranab Mukherjee

In his long and distinguished career, Mukherjee has held a string of important positions in the government and in his party. He has been leader of both the Lok Sabha and the Rajya Sabha, finance minister, defence minister and minister for external affairs. The crowning glory of his career was his appointment as President of India in July 2012. There was a time, however, when Mukherjee was in the doghouse. After Mrs Gandhi's assassination in 1984, Rajiv Gandhi suspected that Mukherjee nursed prime ministerial ambitions and considered Rajiv too inexperienced for the job. Mukherjee was thus kept at a distance, and he quit the Congress to form his own party. He rejoined the Congress in 1989. It was rumoured that Mukherjee's other regret was that he was passed over for prime ministership in favour of Manmohan Singh in 2004.

Siddhartha Shankar Ray

According to R.K. Dhawan, Mrs Gandhi never spoke to Siddhartha Shankar Ray after he ditched her in 1977 and tried to distance himself from the Emergency rule. Ray

contested for party president when Mrs Gandhi stepped down in 1977, but lost to Brahmananda Reddy. Later, he joined the Congress(S). But Mrs Gandhi's son Rajiv did not seem to have borne a grudge against Ray, and the distinguished barrister was appointed Governor of Punjab from 1986 to 1989, the crucial years of the Khalistan movement and militancy in the state. Narasimha Rao as PM also favoured Ray and appointed him ambassador to the USA during 1992–96. Ray died in November 2010.

Notes

Chapter 1: Darkness at Dawn

1. Author's interview with Subramanian Swamy.
2. Author's interview with Arun Jaitley.
3. Anand Marg is a socio-spiritual sect with its foundations in tantric philosophy. It has lakhs of followers, mainly in north India. In December 2014, forty years on, four Anand Marg followers were convicted for Mishra's murder, although there was no evidence to back the allegation. See also, chapter 4.
4. *The Interim Report of the Shah Commission of Inquiry* (released in three volumes by the Ministry of Information and Broadcasting, Government of India, on 11 March, 26 April and 6 August 1978).
5. Ibid.
6. Dom Moraes, *Indira Gandhi* (Little, Brown, 1980).
7. Pupul Jayakar, *Indira Gandhi: A Biography* (Penguin Books, 1997).
8. Moraes, *Indira Gandhi*.
9. Author's interview with R.K. Dhawan.
10. *Indian Express*, 19 June 1975.

11. J.R. Anand's testimony before the Shah Commission of Inquiry.
12. Kuldip Nayar, *The Judgement: Inside Story of the Emergency in India* (Vikas Publishing House, 1977).
13. Uma Vasudev, *Two Faces of Indira Gandhi* (Vikas Publishing House, 1977).
14. *Shah Commission Report.*
15. S.S. Ray's testimony before the Shah Commission of Inquiry.
16. Author's interview with R.K. Dhawan.
17. Author's interview with Kuldip Nayar.
18. D.R. Mankekar and Kamla Mankekar, *Decline and Fall of Indira Gandhi* (Vision Books, 1977).

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14. L.K. Advani, *A Prisoner's Scrap-Book* (Arnold-Heinemann Publishers India, 1978).
15. Ibid.
16. Author's interview with Namita Bhattacharya.
17. Ibid.
18. *Shah Commission Report.*
19. Author's interview with Pradipto Ghosh.
20. *Shah Commission Report.*
21. Ibid.
22. Testimony of jail superintendent S.K. Batra before the Shah Commission of Inquiry.
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24. Author's interview with Arun Jaitley.
25. Author's interview with Virendra Kapoor.
26. Ibid.
27. Gayatri Devi, *A Princess Remembers: The Memoirs of the Maharani of Jaipur* (Rupa and Co, 1976; rev. ed., 1996).
28. Ibid.
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32. Ibid.
33. *Shah Commission Report.*
34. Mankekars, *Decline and Fall of Indira Gandhi.*

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3. Author's interview with Mark Tully.
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7. Author's interview with S. Nihal Singh.
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19. Home and Foreign Affairs, 'Prime Minister's Reply to Debate in Rajya Sabha on President's Address', Vol. No. 1995 (Ministry of External Affairs library, Government of India).
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22. Ibid.
23. Thakur, *All the Prime Minister's Men.*
24. Sanjay Gandhi and Shukla were sentenced to two years' imprisonment in 1979 by the lower court for destroying the film, but the sentence was overturned in an appeal when Mrs Gandhi returned to power in 1980.
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5. Author's interview with Soli Sorabjee.

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2. As well as under the Baroda Dynamite Conspiracy case, although not too many; see C.G.K. Reddy, *Baroda Dynamite Conspiracy: The Right to Rebel* (Vision Books, 1977).
3. Author's interview with Virendra Kapoor.
4. Author's interview with Subramanian Swamy.
5. Ibid.
6. Author's interview with Roxna Swamy.
7. Author's interview with Subramanian Swamy.
8. Author's interview with Dr J.K. Jain.
9. Author's interview with Subramanian Swamy.
10. B.K. Nehru, *Nice Guys Finish Second: Memoirs* (Penguin Books, 2000).
11. Author's interview with Subramanian Swamy.
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7. Fali Nariman in Idea Exchange (moderated by Maneesh Chibber), *Indian Express*, 6 April 2014.
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2. Letters from Indira Gandhi to Sanjay Gandhi, quoted in *Newstime* in 1986. I took extensive notes from the letters that were shown to me by a source in 1982. Excerpts from the letters were carried in the *Free Press Journal* in 1982. Later, in 1986, when I was a syndicated columnist, I referred to further details from the letters in a report that was carried by *Newstime*, *Free Press Journal*, the *Malayala Manorama* and several other vernacular publications.
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4. Pupul Jayakar, *Indira Gandhi: A Biography* (Penguin Books, 1997).
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6. Author's interview with Kuldip Nayar.
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19. Jayaprakash Narayan, *Prison Diary* (Popular Prakashan, 1977).
20. Author's interview with R.K. Dhawan.
21. Tandon, *PMO Diary-I.*
22. Tandon, *PMO Diary-II.*
23. Letters from Indira Gandhi to Sanjay Gandhi.
24. Tandon, *PMO Diary-II.*
25. Jayakar, *Indira Gandhi.*
26. Sahgal, *Indira Gandhi.*
27. Author's interview with Akbar 'Dumpy' Ahmed.
28. Mankekars, *Decline and Fall of Indira Gandhi.*
29. *The Interim Report of the Shah Commission of Inquiry* (released in three volumes by the Ministry of Information and Broadcasting, Government of India, on 11 March, 26 April and 6 August 1978).
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31. Tandon, *PMO Diary-II.*
32. Tandon, *PMO Diary-I.*
33. P.N. Dhar, *Indira Gandhi, the 'Emergency', and Indian Democracy* (Oxford University Press, 2000).
34. Author's interview with S. Nihal Singh.
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37. Author's interview with S. Nihal Singh.

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3. B.N. Tandon, 'JP's Political Thinking and Conflict with Indira Gandhi', *Think India Quarterly*, 2013.
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5. Ramchandra Guha, *India After Gandhi* (Picador, 2008; 1st ed. 2007).
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12. Jayaprakash Narayan, *Prison Diary* (Popular Prakashan, 1977).
13. Ibid.
14. Narayan, *JP's Jail Life*.
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16. Narayan, *Prison Diary*.
17. Dhar, *Indira Gandhi, the 'Emergency'*.
18. Ibid.
19. Narayan, *Prison Diary*.
20. Narayan, *JP's Jail Life*.
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18. *Maruti Commission Report*.
19. From the diplomatic cables released by WikiLeaks, reported in *Times of India*, 10 April 2013. See also WIKILEAKS Public Library of US Diplomacy, https://www.wikileaks.org/plusd/.
20. Thakur, *All the Prime Minister's Men*.
21. Ibid.
22. Ibid.
23. Ibid.

24. *The Interim Report of the Shah Commission of Inquiry* (released in three volumes by the Ministry of Information and Broadcasting, Government of India, on 11 March, 26 April and 6 August 1978).
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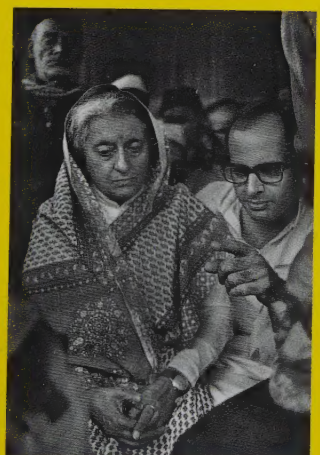
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Coomi Kapoor has been a political journalist for more than four decades, and is currently consulting editor at the *Indian Express* where her popular column, 'Inside Track', appears on Sundays.



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